



Knowledge is power. Knowledge shared is power multiplied.

-Robert Boyce

It has been an endeavour to provide updated information on “ **The HR Manual- A Compendium of the Service Rules of DMRC**” consisting of all the policy circulars/guidelines, issued in DMRC from time to time. In pursuance of this objective all our circulars issued by HR Department are available online on DMRC intranet.

I am happy to present the latest issue of the “ **The HR Manual- A Compendium of the Service Rules of DMRC**” **incorporating all the latest circulars/guidelines/office orders/instructions**. I do hope that the compendium would prove to be useful to all concerned in their day to day working.

I would also like to place on record appreciation of the efforts of the HRExecutives and Staff who had worked hard to compile all the orders issued by DMRC during this period.

Place : New Delhi

Date:.....

(.....)

Managing Director

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Chapter –A

GENERAL CONDITIONS OF SERVICE RULES



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GENERAL CONDITIONS OF SERVICE RULES

These Rules shall be called "The General Conditions of Service Rules" and shall apply to all the employees of DMRC.

(**Exclusions:** - Some of the clauses of these rules may not be applicable to Board level officers, which may vary / not applicable, as per the terms and conditions, specified in their appointment letters)

1. CLASSIFICATION OF EMPLOYEES

The employees of the Corporation are classified into the following Categories / Grades: -

Sr.No	Categories	IDA Scale (Rs.)	Status
<u>NON-EXECUTIVE</u>			
1.	Unskilled	16000-50000	Non-Supervisor
2.	Semi-skilled	20000-60000	
3.	Skilled Maintainer	25000-80000	
4.	Maintainers and Assistants	35000-110000	
5.	Supervisor-II	37000-115000**	Supervisor
6.	Supervisor-I	40000-125000**	
7.	Sr. Supervisors -II	46000-145000	
8.	Sr. Supervisor-I	50000-160000	
<u>EXECUTIVE</u>			
1.	Asstt. Manager	50000-160000	Executive
2.	Manager	60000-180000	
3.	Dy. General Manager	70000-200000	
4.	Sr. Dy. General Manager	80000-220000	
5.	Jt. General Manager	90000-240000	
6.	Addl. General Manager/ Sr. Addl. General Manager*	100000-260000	
7.	General Manager / Sr. General Manager / Chief General Manager*	120000-280000	
8.	Executive Director	150000-300000	
9.	Director	180000-340000	Functional BOD
10.	Managing Director	200000-370000	

* Entitled for special pay of Rs.2,500/- p.m.

** Time bound promotion for non-supervisor to grades which are operated in Supervisor level, however the Work profile of non-supervisor shall remain unchanged. Certain service benefits shall be extended, at par as admissible to supervisors in the grade. The Supervisory

pay scales are also being operated in non-supervisory categories on time bound promotions.

2. APPOINTMENT

2.1 Modes of intake: The various modes of employee intake are: -

- (a) Direct Recruitment from open market (Regular / On Contract)
- (b) Deputation
- (c) Absorption of Deputationists
- (d) Post Retirement Contractual Engagement
- (e) Lateral Induction
- (f) Compassionate appointment

2.2 Record of age and Date of Birth:

Every employee shall declare on his / her first appointment in the Corporation whether by direct recruitment, or deputation or otherwise, or on being required to do so by the Management at any other time during his / her employment in the Corporation, their date of birth, and produce confirmatory documentary evidence thereof e.g., matriculation or school leaving certificate or birth certificate from the concerned local authority.

In the case of employees, who have worked in a Government or Undertaking body before joining the Corporation, the date of birth as recorded in the records of such previous employer will be taken as the correct date of birth.

Once recorded in the Corporation's records after being declared and obtained in the above manner, the date of birth will not be altered except to rectify clerical errors, if any, or except when substantial evidence is produced, within one year of his / her service in the organization showing any other date of birth and the Managing Director is satisfied that there is adequate justification to show that the date of birth as originally recorded was patently wrong and needs to be altered in the interest of justice to the employee concerned and that the employee has not himself / herself unduly delayed his / her request for change of the recorded date of birth.

2.3 Age:

- a) The age of a person at the time of direct appointment to the service of the Corporation (for entry level recruitment levels) shall not be less than 18 years and generally not more than 28 years, as on the crucial date.
- b) For filling up certain posts, to acquire expertise and attract talent, where DMRC decides for recruitment through lateral induction, the upper age limit may vary, such as in case of Post retirement contractual engagement, contract or appointment for the mid-level / high level posts, the age limit will be as determined by the Corporation.
- c) For direct recruitment in initial grades, relaxation in the upper age limit for SC/ST/OBC/PWD/ESM etc. will be provided as per Govt. of India guidelines. Every person

appointed shall produce confirmatory evidence like Matriculation certificate / birth certificate issued by Competent Authority, as may be acceptable to the Corporation.

- d) For candidates joining DMRC on Compassionate appointment, upper age limit may be relaxed, wherever deemed necessary, however minimum age limit shall remain 18 years.

Guidelines on Reservation and respective relaxations issued by the Govt. of India on recruitment, appointment and promotion shall be followed in DMRC.

2.4 Medical Fitness:

No person shall be appointed in the service of the Corporation [on Direct Recruitment / Contract] unless such a person has been certified fit by a Medical Officer / Medical Board of the hospital nominated for this purpose by the Corporation, as prescribed at **Annexure-I**.

The medical fitness report / comprehensive medical check-up report by the nominated hospital shall be considered valid till 6 months of such medical examination, in case of any medical fitness report obtained while in service.

In case of candidate joining DMRC on Post Retirement Contractual Engagement basis, the medical fitness will be obtained as per the existing policy.

2.5 Information to be furnished by Employee, on initial appointment:

Every employee is required to furnish the following information on initial appointment -

- (a) His / her residential address and change in same at any point of time during employment, if any.
- (b) The details of educational course(s), he / she is pursuing, if any, at the time of appointment. In such cases, the qualification may be considered for inclusion in their service record, without any incentive, as prescribed for this purpose.
- (c) The candidates will have to necessarily inform, regarding any employment application made by them elsewhere, prior to the date of issue of the offer of appointment letter from DMRC and shall not appear for interview or accept any employment, if offered, without the prior permission of DMRC.

2.6 After joining:

- (a) In case the candidate is pursuing a regular full-time course, at the time of joining the Corporation, permission to continue the same through regular mode shall not be given.
- (b) For pursuing Correspondence / Part Time / Distance learning mode course, the employee shall be eligible for permission / NOC only after completion of 03 years of service (i.e., Probation

completion and 01-year regular service in case of employees whose probation period is for 02 years) and the period of seeking such permission would be reduced to 02 years where the probation period of employee is 01 year [for DGM & above levels].

- (c) The employee will be required to fill an Attestation Form, at the time of initial appointment, wherein any information suppressed or wrongly declared will render his / her summary removal from service, as well as make him / her liable for other implications, as provided under Corporation's rules and the law of the land.

2.7 Verification of character and antecedents:

Appointment of any person in the service of the Corporation or his / her continuance in service shall be subject to his / her character and antecedents being verified and found satisfactory in the prescribed manner. This requirement may be relaxed in case of employees drawn from other Government department or PSUs on deputation / absorption, as they will be joining DMRC, with proper relieving by their respective Organization.

2.8 Probation:

- a) All initial appointments, other than on absorption, are on temporary basis, i.e., whose services are not confirmed / permanent, and incumbents shall be on probation for specified period.
- b) The probation period prescribed for candidates inducted on Direct Recruitment basis; (i) minimum period of 1-year at the level of DGM & above (ii) minimum period of 2 years for Non-Executive cadre and for Executives inducted up to the level of AM / Manager. During this period, an employee shall be liable to be discharged from the service, at the sole discretion of the Corporation without notice or without assigning any reason thereof. On satisfactory completion of probation, he / she shall be made permanent.
- c) For confirmation of service, the assessment at the end of probation period through the "Working Report" is taken into consideration. In case of employees up to Manager level, assessment of 2 Working Reports and in case of employees at the level of DGM & above, 1 working report (based on their period of probation) is prescribed.
- d) At the end of probation period, if the last assessment is 'Suitable', the Probationer will be considered for confirmation by the Screening Committee. Otherwise, the probationer will be treated as on further extended probation.
- e) A maximum period of one year of extended probation will be provided at the discretion of Management only if it is felt that the probationer can improve and earn suitability during the extended period.
- f) If at the end of probation period including extended period, the probationer review does not merit 'Suitable' assessment, his / her services shall be terminated forthwith, in accordance

with the terms of offer of appointment.

- g) When any employee joins an organization, their level of expertise and professional acumen as required for the effective discharge of their official responsibilities and duties is assessed and augmented through induction training programs. For the aforementioned DMRC has instituted DMRA (Delhi Metro Rail Academy), a state-of-the-art facility, wherein induction / advanced trainings are conducted through various methodologies such as simulators, classroom training sessions etc. Newly recruited employees undergoing exhaustive DMRA training programs becomes a part of the HR resource Asset pool, hence an appropriate retention policy augurs well for the Corporation in the longer run. Hence the concept of Surety Bond with a 3-Year period is prescribed presently in the Corporation. The Surety Bond of 3-Year period and respective Training Costs incurred by the Corporation on an employee, is applicable for all direct recruits and contract employees. If, any employee resigns from service during probation period or within 3 years of joining, he / she shall be liable to pay Surety Bond amount (along with applicable service tax), as submitted by him at the time of joining DMRC. Training cost and payment in lieu of short notice period (along with service tax), if any, shall also be paid by the employee. Minimum notice period for resignation is 90 days.

- Probation period for all employees on their promotion from one group to other (i.e., from Non-Executive cadre to Executive cadre), shall be for 24 months. During this period, he / she is liable to be reverted to his / her original post, should the performance be deemed as unsatisfactory by the Competent Authority. If the promotion is within the group (Non-executive to Non-executive / Executive to Executive), no probation is applicable.
- Post the satisfactory performance of the employee during the aforementioned 24 months of probation (post promotion), the employee is confirmed in promoted grade/ scale.

3 ABSORPTION AND CONFIRMATION

- a. Absorption of deputationists in DMRC service shall be subject to a tripartite consent, i.e., DMRC's / parent department's / employee's, and fulfilment of the conditions as per the laid down policy and subject to availability of vacancies in DMRC.
- b. Deputationists, direct recruits and personnel working on daily rate basis / contract basis shall be considered for permanent absorption / confirmation / regularization in the service of the Corporation in accordance with the instructions issued by DMRC from time to time. It will be subject to screening by a select Committee of officers at the appropriate level, set up to adjudge the suitability of these personnel for the above purposes and meeting the prescribed medical standards fixed by DMRC.
- c. Contract employees, who work in regular pay scales / consolidated fee in DMRC may be

considered for absorption, regularization subject to fulfilment of the following conditions (Ref: O.O. No. PP/2871/2019 dated 30/08/2019): -

- i. The number of contract employees to be regularized in a particular category, in a year, will be decided once a year, i.e., on the 1st July every year, based on the availability of regular / permanent vacancies, in that category. The contract employees shall be regularized to the extent, they are essential for DMRC and would not become surplus during the next five years.
- ii. A contract employee shall be considered for regularization on completion of 02 years of contract service, in DMRC.
- iii. For consideration under the regularization process, the contract employee should have undergone at least 2 annual appraisal process. Further the latest APAR ratings should be in the “Outstanding” grade, i.e., should have been appraised with 18 out of 20 marks and preceding year appraisal should have been in the “Very Good” grade.
- iv. Subsequent upon regularization, the contract service of such employees shall be counted @ maximum up to 70% for further promotion in DMRC. The maximum period of past contract service shall not exceed the quantum of 1.4 years (approx. 70% of 02 years), for promotion purposes and for availing various advances.
- v. All regularization / absorption orders, shall have only prospective effect.
- vi. The regularization of contract employees shall be solely guided by the future requirements of DMRC and no contract employee shall have a right to be absorbed, even if he / she has fulfilled all the requisite conditions for such regularization, automatically.
- vii. Upon regularization, their pay will continue to be paid at the same level, as before. However, their seniority in the grade of absorption, will count from the date of regularization/absorption, against a regular post only.

4 SENIORITY

4.1 Direct Recruits:

- (a) The seniority of direct recruited non-executives will be fixed taking in to account the marks obtained by them at the time of selection and on completion of their exhaustive training in DMRC, at 60:40 ratio. When two or more candidates are declared to be of equal merit at one and the same examination / selection, their relative seniority shall be determined by the date of birth, the older candidate shall be considered as senior. The direct recruit will get seniority from the date of joining as per the panel seniority, provided they have joined within the stipulated time of 3 months. In case of delayed joining, their seniority will be considered from the date of joining DMRC (vide Office Note No.

DMRC/PERS/14/2013 dated 26.08.2013). The candidates inducted through operation of shadow panel will rank junior to the candidates who have been inducted through main panel.

- (b) Candidates selected for appointment at an earlier selection shall be senior to those selected later, irrespective of date of joining within the stipulated period.
(Ref: Circular No. DMRC/PERS/14/2014 dated 16.12.2014).
- (c) When a candidate cannot join duty within a reasonable time after receipt of the orders of appointment, the Appointing Authority may determine his / her seniority, by placing him below all the candidates selected at the same examination/selection, who have joined within fixed period allowed for reporting to duty or even below the candidates selected at the subsequent examination/ selection who have joined before him.
- (d) The seniority of employees of DMRC who have been promoted through a positive act of selection, involving written examination and interview (i.e., Limited Departmental Examination) shall be given seniority from the date of promotion.
(Ref: Circular No. DMRC/PERS/14/2014 dated 16.12.2014)
- (e) On promotion, the seniority of the employee shall be fixed on the basis of position in the panel based on the date of promotion, subject to inter-se seniority in the panel being maintained as per rules.
- (f) Departmental Competitive Examination - In case two or more candidates securing same number in the aggregate, their relative merit position for the purpose of empanelment may be determined on the basis of their relative seniority in the feeder grade. The same logic will be applied to fill up the last vacancy.

4.2 On permanent absorption of deputationists:

- (a) Absorption of a deputationists is done in the same substantive grade of his / her parent department. In case the deputationist is working at one grade higher than his / her substantive grade in DMRC, he / she can be absorbed in the higher grade in DMRC.
- (b) The seniority of the employees who have been absorbed in a particular grade in DMRC and have been working at two / more grade higher than the absorbed grade on ad-hoc basis, on the date of absorption, will be assigned in the higher grades, on completion of two years from the date of absorption / regularization of the preceding grade or from the actual date of next promotion whichever is later.
- (c) The seniority of absorbed employees who have been absorbed in a particular grade in DMRC and have been granted next higher grade within two years from the date of absorption, based on their services during deputation tenure has been assigned in the

promoted grade only after completion of two years from the date of regularization of previous promotion in DMRC / date of absorption. All subsequent regularization of ad-hoc promotions (in series) of an absorbee will be done after a period of two years from the date of regularization of preceding grade promotion or from the actual date of next promotion, whichever is later.

- (d) In case of absorbees, if the date of regularization of two or more Executives in the same grade are identical, their seniority position will be determined as per the date of promotion in the preceding grade. In case the date of promotion in the preceding grade also happens to be same, the seniority will be determined based on the date of promotion in the substantive grade in parent department. (Ref: Circular No. DMRC/PERS/14/2014 dated 16.12.2014)

4.3 On regularization of contractual employees:

The contract employees shall be granted seniority from the date of regularization of their contractual services in DMRC. They will be given 70% weightage of required contractual service in regular grade for consideration of residency for the next higher grade and regularization in the promoted grade.

(Ref: Circular No. DMRC/PERS/14/2014 dated 16.12.2014)

4.4 On change of cadre:

The seniority of employees changing from one discipline to another will be regulated as under: -

- (a) In case the discipline of the employee is changed by the Management on his / her request, the seniority in the new discipline will be at the bottom of the list.
- (b) In case the change of discipline is made on administrative grounds in the Corporation's interest, the employee will get his / her due seniority in the new discipline, reckoned from the date of entry to the grade.

4.5 On promotion:

The seniority of employees of DMRC promoted to higher posts shall be maintained as per the panel seniority position, irrespective of the date of assumption of charge of the higher post. This shall be subject to the condition that they assume the charge of the higher post within a period of 06 (six) months, from the date of issue of the promotion order.

(Ref: Office Order No. DMRC/PERS/14/2022 dated 03.02.2022)

- 4.6** Seniority lists will be issued for officers and staff in the grades, which they are holding in the Corporation on regular basis and not in the grades which they are holding on ad-hoc and provisional basis.

5 **PERFORMANCE APPRAISAL**

Annual Performance Appraisal Report (APAR) is an objective assessment of the work and conduct of an employee. Assessment of APAR is the main criteria for Promotion. Writing, maintenance and disclosure of APAR, therefore assumes importance, not only in the interest of organization but also in the interest of the employee. The APAR is to be filled online on the ESS. The guidelines for filling-up the APAR are given below: -

- a. **Applicability:** APAR is compulsory for all employees of the Corporation, who have completed minimum 90 days of service in the Corporation on assessment year ending, i.e., on 31st March of the year, except for contractual employees working as consultants and on Post Retirement Contractual Engagement basis.
- b. **Periodicity:** APAR is written annually according to financial year, i.e., 1st April to 31st March.
- c. **Reporting / Reviewing Officer:** APAR to be written by the Reporting Officer immediately superior to the employee concerned and reviewed by the next higher authority. In both cases, they should have supervised the work of employee for not less than three months.
- d. **SOP OF REPORTING/REVIEWING/ACCEPTING AUTHORITY**
Non-Executive level

S. No	Description of category	Reporting level	Reviewing level	Accepting level
1	All non-supervisory staff i.e., below the grade of Rs. 35,000-1,10,000	Supervisor	Sr. Supervisor	AM/Manager
2	Supervisor staff i.e., grade of Rs. 37,000-1,15,000 & Rs. 40,000 – 1,25,000	Sr. Supervisor	AM/Mgr.	Dy. HoD
3	Supervisory staff i.e., grade Rs. 46,000 – 1,45,000 and above	AM/Mgr.	Dy. HoD	HoD

Executive level

S. No	Description of category	Reporting level	Reviewing level	Accepting level
1	AM & Manager	Dy. HoD	HoD	Director
2	Dy. HoDs	HoD	Director	MD

3	HoD	Administrative Director / counter signed by Cadre Controlling Director	MD
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If the employee concerned happens to be a relative, Reporting or Reviewing, as the case may be, to be done by the next higher authority.

- e. **Self-appraisal or Self-Assessment:** APAR has to be performance oriented. All employees are required to submit brief resume, which summarizes their achievements during the year under review including special achievements (if any).
- f. **APAR Forms & Ratings:** There are two formats - One for Executives and One for Non-Executives. The employees may be graded as Outstanding (OS), Very Good (VG), Good (G), Average (A), and Below Average (BA), as per their performance and the rating will carry the numerical value of 10, 8, 6, 4, 2 in a scale of 10, respectively for the purpose of promotion for regular employees. The same formats are required to be filled for contractual employees (Executives and Non-Executives).
- g. **Guidelines for filling the APAR:** The Appraisee, the Reporting Officer, the Reviewing Officer and the Accepting Authority, all have to keep it in mind that APAR is a very important tool not only for assessment of performance of the concerned employee but also for other important managerial functions like organizational discipline, staff motivation, training needs and succession planning etc. Therefore, it may be emphasized that all entries need to be filled up with utmost care, professionalism and objectivity. In this regard guidelines are issued along with schedule of filling the APAR. (Office Order No. PP/2993/2020 dated 01/06/2020 & Office Order NO. PP/3098/2021 dated 25/03/2021).
- h. In case, an employee fails to initiate their APAR within the stipulated time frame, the Reporting Authority can initiate the employee's APAR without the Self-Appraisal and follow the regular course of action on APAR.
- i. The Reporting and Reviewing Authority in APAR cannot be the same, However, the Reviewing and Accepting Authority can be the same (APARs of Personal Assistants / Secretarial staff are exempted from this rule). In case Reviewing and Accepting Authority is same, the form will be directly sent for acceptance to the Accepting Authority (thereby skipping the Reviewing process), however, the Accepting Authority will have to fill in the attribute rating of the employee.
- j. For all HODs who fall under the scope of dual reporting (administrative reporting & functional reporting), it is mandatory that their APAR is countersigned by the administrative as well as functional Director.
- k. The employees on deputation to DMRC, from different Organizations, should fill APAR format of their parent department in hard copy. They must enclose the copy of online APR

filled in DMRC along with hard copy of APAR.

- l. Time schedule for finalization of APAR:** The model time schedule of APAR process shall be defined as per notification issued every year: -

S. No	Scheduled Action (changed in sync with online APAR process)	Target date in the year
1.	Uploading APAR formats & Guidelines on intranet	
2.	Submission of self-appraisal by the employee to Reporting Officer	
3.	Submission of duly filled APAR by Reporting Officer to Reviewing Officer	
4.	Completion of APAR process by Reviewing Officer	
5.	Appraisal finalization by Accepting Authority	
6.	Submission of APAR, completed in all respect, to HR Department	
7.	Uploading of APAR on Intranet	
8.	Review of APAR request by employee	15 days from uploading on intranet
9.	Forwarding of representation to the Competent Authority	15 days of receipt of APAR representation
10.	Disposal of Representation by the Competent Authority	7 days of receipt of decision of Competent Authority
11.	Communication of decision of the Competent Authority	7 days of receipt of Decision of Competent Authority
12.	End of APAR cycle	

- m. Disclosure of APAR ratings:** The APAR rating shall be disclosed to the concerned employee, soon after completion of the above process.
- n. Appeal:** Any representation regarding the APAR for Executives may be sent to respective HR Head. The representation may be sent within 15 days of receiving the scanned copy of APAR through email. The representation will be forwarded to the Competent Authority and disposal of representation by Competent Authority will be done within 30 days and the concerned officer / staff will be informed.

6. ASSESTS AND LIABILITIES:

Annual Property Return: (to be filled for the calendar year, as on 31st December)

All Executives [Including Direct recruits/Deputationists/Contractual/Post Retirement Contractual Engagement] are required to furnish details of their Immoveable Property in the

ESS portal in the Annual Property Return tab, as on 31st December, every year. No APAR (wherever applicable) will be initiated, unless it is accompanied with Annual Property Return. The Annual Property Return of the Executives shall be uploaded on DMRC website (www.delhimetrorail.com) on internet, in public domain, as a part of Suo-moto disclosure by employees and the organization, along with list of defaulters who fail to furnish their Annual Property Return.

7. HOURS OF WORK

- i. **Metro Bhawan**: - The working hours for Metro Bhawan are as under: -

For Project Executives / Staff

- Working days - Monday to Friday
- Working hours - 09.00 hrs. to 17.30 hrs.
- Lunch hours. - 13.00 hrs. to 13.30 hrs. or staggered.

For O&M Executives / Staff

As per Office Orders issued from time to time.

- ii. **Project Wing- Outstation / site Offices**: - All site offices will function on 6 days of a week (8 hours a day) from 09.30 hrs. to 17.30 hrs. with half an hour rest every day except on Saturdays, when they will work from 09.30 hrs. to 13.30 hrs. (Ref: O.O. No. PP/1525/2012 dated 14/11/2012)
- iii. **O&M**: -
The duty hours in O&M are as under:

- (a). DO Office Building / Shastri Park: -

S. N.	Place	Timing between Monday to Friday	Lunch-Break	Timing on Saturday	Weekly off
1.	All Officers and ministerial / administrative staff	0930 - 1730 hrs.	1330-1400 hrs.	0930-1330 hrs.	Sunday

- (b) All work centers of O&M Wing like Depots, Stations, Crew Controls, OCC etc. will function on 6 days of a week (8 hours a day) and shifts / duty for the round the clock functioning will be as under: -

(Ref: O.O. No.

S.N.	Shift/ Duty	Timing (Round the clock)	Lunch/ Meal break	Weekly Rest
1.	Morning	0600-1400 hrs.	NIL	As per roster
2.	Afternoon	1400-2200 hrs.	NIL	As per roster
3.	Night	2200-0600 hrs.	NIL	As per roster
4.	General	0930-1730 hrs.	1330-1400 hrs	Sunday

O&M/R&T-213 of 2007 dated 18.10.2007)

If warranted due to exigencies of work, there may be a suitable variation in the time of commencement and closure and the lunch break of the daily working hours in the offices of DMRC.

- (iv) **Delhi Metro Rail Academy (DMRA):** - The working hours of DMRA, Shastri Park are 09:00 to 17:30 hrs. In addition to five days working, from Monday to Friday, the institute will function for full day on 1st and 3rd Saturday of every month.

(Ref: O.O. No. O&M/HR-751 of 2011 dated 22.12.2011 and O.O. No. HR/O&M/241/2021 dated 09.8.2021).

- (v) Every employee of the Corporation is expected to maintain strict punctuality of attendance and devote themselves sincerely to the tasks assigned to them. For every 3rd late arrival in office / work place during the month, half a day's CL shall be deducted from employee's leave account for every late arrival. In case of non-availability of CL, one EL shall be deducted.
- (vi) Attendance registers or other methods like Access Card / Biometric attendance system for recording attendance are required to be maintained in all offices / work places.
- (vii) If the exigencies of Corporation's day-to-day business require that any or a group of employees work outside the prescribed hours of work, they are expected to be available for such work. Compensation, if any, for working outside the normal working hours will be laid down by the Management in the regulations notified for this purpose from time to time.
- (viii) Flexibility in working hours may be applied at the work places, where work intensity is very low, depending upon footfalls at stations / ridership etc., the working hours in such cases may be stretched up-to 12 hours with break.

8. HOLIDAYS

8.1 Apart from the weekly holidays, the employees are entitled to other annual holidays that will be notified at the beginning of every year either as National / Gazetted Holidays or as Restricted Holidays to be availed of by individual employees according to the limits that may be prescribed. The Corporation will also observe the holidays that may be notified by the Govt. on the death of dignitaries and any other special occasions.

8.2 The Holidays entitlement of Project / O&M employees posted at Metro Bhawan / sites / stations / offices is as under-

S. No	Holiday / leave	Metro Bhawan Staff	Field Staff
1.	National/ Gazetted Holidays	17	15*

2.	Restricted Holiday	02	02
3.	Casual Leave	08	12

- * Two Gazetted Holidays will be converted in to Restricted Holidays (RH) for the field staff. In this regard Office Order shall be issued before commencement of the calendar year. The regulations that may be issued to govern working outside the normal working hours will apply to attendance on weekly and annual holidays also.

- 8.3 The field staff performing roster duties, who are booked to perform duty on holidays shall be entitled for National Holiday / Gazetted Holiday Allowance as per prescribed rates and no compensatory leave shall be given for working on holidays. However, for performing duty on weekly rest, employee shall be entitled for compensatory rest.
- 8.4 Compensatory Rest: - In exigencies of services, the employee (only on roster duty) who performs duty on his / her weekly rest is entitled for Compensatory Rest. The guidelines for Compensatory Rest are as under: -
- Normally, the employee should not be called to perform duty on his / her weekly rest, except in case of exigencies of services / less availability of manpower.
 - Compensatory Rest shall be given for full day working / shift duty (8 hours) on the weekly off. Compensatory Rest shall be given only after verification of the same in the Access / Exit record / attendance record of the employee. In case of working for less than 8 hours / complete shift duty, only fixed amount for conveyance and refreshment will be admissible, as in vogue from time to time.

In view of essential services, some officials will have to be called on duty even on their Gazetted / National holidays.

- In case of five days working one Compensatory Rest will be given, if, the employee works on weekly holiday(s), subject to compliance of conditions mentioned in Para-ii, above.
- Compensatory Rest is admissible to non-Executives only.
- A maximum of three days of Compensatory Rest should be availed in a single stretch at a time.
- Compensatory Rest should be availed within a period of 30 days, in lieu of which it is claimed.
- Where honorarium is paid for working on weekly rest day, like exam duty etc., no Compensatory Rest / conveyance charges will be admissible for O&M employees.

9. TRANSFER

- 9.1 Employees of DMRC are liable to be transferred at the discretion of Management, in the interest of Corporation from one job/division/station to another, with the provision that such transfers will not affect the pay, grade and seniority of the employee except when such transfer takes place consequent to imposition of a penalty under the DMRC Conduct, Discipline and Appeal Rules, in which case pay, grade or seniority might be affected consistent with the penalty imposed or if the transfer is at '*own request*' of the employee.
- 9.2 To meet the expenditure on account of transfer, a Composite Transfer Grant is payable to the transferred employee, besides reimbursement of the expenditure incurred on journey from old station to new place of posting for self and family, by entitled class and expenditure incurred on movement of household articles from old to the new station of posting as per the extant rules on the subject.
- 9.3 If an employee is transferred / repatriated at his / her own request, he / she shall not be eligible for any of the above facilities.

9.4 TRANSFER POLICY OF NON-EXECUTIVES

9.4.1 Definition:

Transfer is an incidence of service. Employees of DMRC are liable to be transferred, in the interest of the Organization, from one job/division/station to another.

The transfer will not affect the pay, grade and seniority of the employee, except when:

- (i) Such transfer takes place consequent to imposition of penalty under DMRC Conduct, Discipline and Appeal Rules.
- (ii) On personal request, for which employees must fill up the preference of posting, in order of priority.

If transfer is on administrative grounds, no reasons need to be assigned.

9.4.2 Objective:

- (i) The objective of the policy is to maintain a harmonious balance between administrative convenience/interest(s) and individual aspiration(s) welfare, as also to avoid developing vested interest(s), allow exposure to different aspects of DMRC's working, which would also, help in the overall growth of the employee.
- (ii) As far as possible, it may be ensured that an employee is posted near his / her residence, subject to vacancy and system training etc.

9.4.3 Types of Transfer:

- (i) **Transfer on Administrative Grounds:**

- a. Simple Transfer
- b. Transfer on promotion
- c. Temporary Transfer

Whenever transfer is in administrative interest, it will not affect the pay, grade and seniority of the employee. Transfer on promotion will only be affected from the date of assumption of the new charge (promoted post).

If any transfer is done /denied on administrative grounds/reasons, it will only be reviewed when the administrative reason ceases to exist. However, if required, a review could be undertaken after one year, of such transfer.

(ii) Transfer on the request of the employee:

- a. Mutual Transfer
- b. Transfer on request from one place to another –
 - b.1 Transfer on mutual basis/self-request, shall not be a matter of right and shall be subject to administrative convenience. However, in case of denial of such requests, the approval of the next higher authority above the Competent Authority, shall be obtained.
 - b.2 Whenever transfer is on account of self-request/mutual request, involving change of category/cadre, etc., the pay, grade or seniority might be affected, on case-to-case basis.

9.4.4 Periodicity of Transfer:

- (i) Transfer on administrative grounds may be made, irrespective of any period.
- (ii) Certain posts have been identified as sensitive posts and employees working against such posts shall be transferred after three (3) years, if not earlier.
- (iii) Field Staff of both Project and O&M may be transferred on interchange basis in the interest of the organization, as and when, required.
- (iv) Request for mutual transfer may be given priority on case-to-case basis, subject to system training.
- (v) In normal course an employee may be transferred only after 3 years, from one place of posting to another.

9.4.5 Schedule of Power for Transfer

- (i) Transfer will be made based on the requirement and report submitted by the Controlling Officer, as per the table shown below, at the level of Assistant Manager and above.

No.	Transfer involving	Authority
1	Only change of station within the jurisdiction of the Assistant Manager	Dy. HOD
2	Change of controlling officer at AM/Manager level	HOD
3	Change of controlling officer at Dy. HOD level	
4	Change of controlling officer at HOD level	Director
5	Change of wing, i.e., O&M to Project and vice-versa	Both the concerned-Directors
6	Outside Delhi/NCR	Concerned Director

For any transfer from Project wing to O&M and vice versa, approval of the Cadre Controlling Director and DO, shall have to be obtained.

Routine/periodical/administrative ground transfers in O&M wing will be done as per the following norms:

- I. As per the requirements of training of the system (for SC/TO cadre).
 - II. According to the request received from employees.
- (ii) Once a choice posting has been agreed to, any transfer on administrative ground/s, if made, within three years from the date of the choice posting, the approval for such posting shall be obtained from HoD level only.

9.4.6 Online Maintenance of Request/s:

Request for transfers received from employees, will be updated on intranet, on quarterly basis, which shall be maintained in ESS.

9.4.7 Joining Time, etc.

- (i) One day's joining time shall be allowed to join a new post within Delhi/NCR.
- (ii) CTG and Transfer Allowance, as applicable from time to time, shall be payable.
- (iii) Extant instructions guiding joining time, CTG, etc., shall continue to hold good in respect of transfers outside Delhi/NCR.

(Ref: Office Order No. PP/2937/2019 dated 23/12/2019)

10. JOINING TIME FACILITY

- i. Employees transferred from one headquarter station to another headquarter station, involving change of residence are entitled to joining time as below:

S. No.	Distance between Old HQ and New HQ	No. of days of joining time
1.	1000 km or less	10 days
2.	More than 1000 km and Up to 2000 km.	12 days
3.	More than 2000 km	15 days

(Except in the case of travel by air, for which the maximum period is 12 days i.e., less three days in each group).

- ii. Joining time shall commence from the date of relinquishing charge of the old post, if the charge is made over in the FN and if the charge is made over in the AN, then joining time shall commence from the following date.
- iii. When holidays follow joining time, the normal joining time is deemed to have been extended to cover such holidays.
- iv. Competent Authority for grant of extension of joining time beyond the aforementioned normal limits shall be Managing Director or a Functional Director. Such extension can however be granted for a maximum of 30 days. The guiding principle for sanction of additional joining time would be a total 8 days for preparation plus reasonable transit time including time unavoidably spent due to disruption of traffic caused by strikes, natural calamities etc.
- v. Not more than one day's joining time shall be allowed to join a new post within the same station or when change of residence from one station to another is not involved.
- vi. No joining time is admissible in the case of temporary transfer for a period not exceeding 180 days. Only the actual transit time is allowed as in the case of journey on tour.
- vii. When the employee joins the new post without availing of full joining time, as admissible, the un-availed portion of joining time shall be credited to his / her earned leave account (non-encashable) subject to the restrictions on accumulation of earned leave.
- viii. Joining time can be combined with any kind of leave except casual leave.
- ix. An employee on joining time is treated as on duty and is paid pay (Basic + DA) as applicable at the old station from which he / she is transferred.
- x. Joining time should be availed in a single stretch, within six months from the relieving date, on transfer. It cannot be availed in parts.

11. TRAINING

Employees are given specialized training in their respective field of work. On direct recruitment the prescribed period of training, including on the job training / attachment, is as under: -

S. No.	Module Name	Department	Total Training Days
1	Assistant Manager	All	120
2	Train Operator	Operations	130
3	Station Controller		95
4	Customer Relation Assistant		75
5	JE (Induction)	Electrical	144
		Signaling	109
		Tele / AFC	123
		Civil	99
		Rolling Stock	108
6	Maintainer (Induction)	Electrical	96
		Signaling	85
		Tele / AFC	115
		Civil	99
		Rolling Stock	97

Evaluation of competency is an integral part of training program, which is looked after by the Delhi Metro Rail Academy.

In addition to the above, employees undergo specialized training at Premier Railway Institutes and off-shore training. In case of resignation before minimum prescribed period of service after completion of the specialized training course, the employee is liable to refund the expenditure incurred on his / her training, as stipulated in the Bond / Agreement. (Ref: O.O. No. O&M/R&T-214 of 2008 dated 21.07.2008)

While proceeding for training (Inland / off-shore), execution of Bond / Agreement and maintenance of record thereof, the following procedure will be adopted at the time of nomination: -

- (a) After approval of Managing Director for off-shore training, in case of DMRC Officers / staff, a copy of the same shall be endorsed to HR Wing by the concerned HOD.
- (b) A Bond / Agreement on the prescribed format (**Annexure-II**) will be furnished by the DMRC Officer / Staff nominated for training.
- (c) The Bond to serve the Organization after completion of training shall be as under: -

S.No.	Period of Training	Bond for service after completion of training	
		Inland	Abroad
1.	Up-to 2 weeks	6 months	1 Year
2.	Up-to 4 weeks	1 year	2 Year
3.	Up-to 6 weeks or more	2 year	3 year

- (d) The nominating officer will include the specifics of aforementioned Bond in the training nomination proposal.
- (e) The amount of Bond will entail the cost of journey expenses, TA/DA and Training Cost charged to DMRC per head, which will be furnished by the concerned HoD, duly vetted by associated Finance. Applicable service tax will be added to the above.
- (f) The Bond shall be obtained on non-judicial stamp paper of Rs.100/- value, as is being done for Bond at the time of appointment.
- (g) After receipt of Bond furnished by concerned employee and completion of all the formalities, a formal Office Order will be issued by the respective HR Wing.
- (h) Bond will be signed before release of currency / advance / on proceeding for training.

Similar Bond / Agreement will be obtained from the officers / staff proceeding on training to premier Railway / other institutes, where cost of training exceeds Rs.1,00,000/- per head.

11 (i) POLICY OF ONLINE COURSES

Learning and Development plays an important part in the effectiveness of organizations and to the experiences of people in work. DMRC is cognizant of the learning and developmental needs of its employees and the pursuit of enhanced professional knowledge, skills and capabilities of DMRC employees across various jobs/profiles departments.

The rules framed hereunder shall apply only to the Online courses. For other trainings, the extant instructions shall continue.

- (A): Objective:** Massive Online Open Courses (MOOCs), are available on web portals and are widely gaining popularity amongst professionals/organizations today. Such Online Courses are a value for time and money and have also become the need of the hour. A few such Online Courses have been identified for the employees, for enhancing their professional knowledge, further.

(B): The courses have been divided into two categories:

Category A-1: Generic Courses

Courses which are considered appropriate for all departments, i.e., these courses can be done by any employees, irrespective of their being in any job profile. The list of such Online Courses is available at **Annexure III-1**.

Category A-2: Specialized Courses

Courses which are department specific and can be done by employee of the respective discipline only. The list of such courses is detailed at **Annexure III-2**.

(C): Course Specifications

The courses under **Category A-1 and Category A-2**, vary in terms of duration, fees, certification, affiliation, etc. The courses shortlisted are of –

- i) Duration: Minimum – 3 weeks
Maximum – 12 weeks
- ii) Course fee: Max (INR) – Rs.12000/- (170 USD)
- iii) Affiliation & Certification: Reputed Universities/Institute (National/International).

(D): Eligibility for the Online Courses:

Category A-1: Generic Courses

Courses which are considered appropriate for all departments, i.e., these courses can be done by any regular employee / contract employees who have put in 02 years' services, irrespective of their being in any job profile.

Category A-2: Specialized Courses

Courses which are department specific and can be done an employee of the respective discipline only. The employees of RS and Electrical wings can pursue the department specific courses of both the wings.

- (i) Any regular employee and [contract employee, who has put in (02) two years of service] in the Corporation, can take up the above trainings (Generic Courses) under **Category A-1**.
- (ii) Courses under **Category A-2** (Specialized Courses) can only be taken up by any regular employee and contract employee who has put in (02) two years of service; of that respective discipline only.
- (iii) An employee can pursue any number of courses; however, fee reimbursement shall be restricted to Rs. 12000/- per block of 3 years (from completion of one course).

- (iv) An employee shall undertake these Online Courses only with the prior approval of the **Competent Authority**.
- (v) The employee shall register for the Online Courses after obtaining prior approval and shall claim reimbursement, on qualifying the course and submission of copy of Certificate awarded.
- (vi) Provision for accessories, such as computer & peripherals, laptops, internet connections etc., would not be provided by DMRC and employee undergoing the courses, shall have to arrange the same.
- (vii) The Online Courses should not be pursued during office/duty hours.
- (viii) Any kind of special consideration/leave/transfer/shifting of duty etc., to pursue the Online Course, shall not be entertained.
- (ix) No further incentive/s, shall be permissible on successful completion of the Online course/s.
- (x) The courses as contained in the approved list of courses shall only be pursued for reimbursement of course fee and addition of qualification in service records. Request(s) for consideration of any other course will not be considered for the above purposes.
- (xi) Employees are advised to avail discount (if offered), by the University / College.

(E): Procedure for seeking permission for Online Course:

- (i) Employee would send his / her request in the prescribed format **(Form I)**.
- (ii) The format should be forwarded by:

Category (for)	Forwarding level
Non-Supervisors / Supervisors	AM/Manager
AM/Manager	Dy HoD
Dy HoD	HoD
HoDs	Director

- (iii) The application for Online Courses may be submitted to the HR Department, duly approved by the Competent Authority.
- (iv) Competent Authority for Grant of Approval:
 - Upto Manager level - Concerned HoD
 - Dy HoD/HoD - Director level
- (v) The record of online courses, updation of course list etc., shall be the responsibility of the Delhi Metro Rail Academy and the list will be updated and published by the DMRA on the Intranet website from time to time, after the due approval of the Competent Authority.

The reimbursement of course fee and addition of qualification will be restricted to the course list (as in vogue) and fee would be restricted to the course fee, as reflected in the list of courses, however, total fee reimbursement shall be restricted to Rs. 12000/- per block of 3 years (from completion of one course).

(Ref: O.O. No. PP/3058/2020 dated 17.12.20)

12. FORWARDING OF APPLICATIONS FOR EXTERNAL EMPLOYMENT

DMRC, as an organization has a credible image and is known worldwide for its values and ethics. DMRC not only provides State of the Art facilities such as simulator, training modules etc.; valuable time & manpower resources are also expended thus entailing sizeable spend of monetary funds for the Corporation. In addition, DMRC being a responsive and responsible organization also cares about environment, sustainability, waste management, energy conservation, use of solar energy, water management and hence devotes a lot of other effort and resources also. The following guidelines are applicable for consideration of employee's request(s) for forwarding their applications (in the prescribed format) for outside jobs: -

12.1 At the time of joining DMRC, if the employee has applied for outside employment elsewhere, prior to the date of issue of offer of appointment letter from DMRC, he / she will have to necessarily inform about the same and shall not appear for interview or accept any employment, if offered, without prior permission of DMRC.

12.2 Modalities -

- i. The limit for forwarding applications for external employment to other Govt. departments / Offices, is four (04) applications per calendar year (including forwarding of applications on deputation basis), subject to the norms prescribed. Out of the four applications, the limit of forwarding of applications on deputation basis per calendar year is (02) two.
- ii. It would be the discretion of the Competent Authority to decide whether application(s) may be forwarded, or not, keeping in view the administrative exigencies and safeguarding the interests of DMRC>
- iii. Applications for the Civil Services Examination, Engineering Services Examination, Indian Forest Service Examination, Indian Economic Service / Indian Statistical Service Examination only, as advertised by the UPSC, can be sent directly by the employee, under prior intimation to the HR department, through the concerned HoD. Such applications shall not be counted towards the limit of four applications for outside employment, per calendar year. All other posts advertised by the UPSC, or, other Service Commissions, etc., shall be counted towards the limit of Four applications for outside employment, per calendar year.
- iv. Once an NOC is granted, no opportunity shall be available, for cancellation of the

same.

- v. Request for grant of NOC shall, under no circumstances, be kept pending, at any level and all such request shall be either accepted, or, rejected.
- vi. An employee shall be relieved in the event of selection in another organization, only, if prior NOC has been obtained. Under no circumstance, shall an employee be relieved, henceforth, in case prior NOC for applying for the post, had not been obtained.

(Ref. OO No. PP/3205/2022 dated 16.08.2022)

12.3 The applications for outside job will be forwarded after ascertaining the available / requisite manpower, required for smooth functioning of the department / organization. In view of organizational targets and constraints existing in terms of manpower resources or any likely adverse effects on the running of train operation services, forwarding of application may be restricted for certain periods of time and notifications may be issued in this regard thereof.

12.4 For new recruits (who join DMRC, on direct recruitment basis), it will be a condition on their appointment that no application of theirs would be forwarded for outside employment until they complete their probation period and one-year regular service in the Corporation thereafter. On completion of the said period, only two applications per calendar year will be forwarded for outside employment in Govt. department / office.

12.5 For absorbed employees (employees who join DMRC, initially on deputation and are absorbed later), no application will be forwarded for outside employment until they complete two years of service after absorption (OO No. PP/2471/2017 dated 11/09/2017). Thereafter as per extant policy applications will be forwarded for outside employment in Govt. department / office.

12.6 In case of deputationists, only one application per calendar year will be forwarded to their parent unit.

12.7 Requests for forwarding of applications for outside employment should be forwarded in the prescribed format, through proper channel; for approval of Competent Authority, only after satisfaction and endorsement of the fact that their release on selection will not adversely affect the ongoing jobs. As such the concerned Controlling Officer of at least Dy. HoD level, while forwarding the applications should keep in mind that the applicant has successfully completed the probation and has put in at least one-year regular service.

The Competent Authority for grant of approval of NOC for outside employment on Direct Recruitment / Contract / Deputation basis is as under –

Sr. No	Category	Approving Authority
1	Non-Executives	HR Head

2	Executives up to Dy. HoD	Respective Director
3	HoD & above	MD

(Ref: Office Order No. DMRC/PERS/14/2022 dated 26/10/2021)

- 12.8 Before forwarding the application for outside employment, D&AR and Vigilance clearance should be obtained.
- 12.9 For Board level posts, advertised by PESB, there is no restriction on the number of applications that may be forwarded.
- 12.10 Applications for jobs in private organizations shall not be forwarded by the Corporation.
- 12.11 “No Objection Certificate” will not be granted at the time of interview unless application is forwarded officially, through proper channel. For all cases, where employees of the Corporation are applying for Govt. / PSU jobs, prior permission for issuance of NOC / forwarding of application, before last date of receipt of the application, as per the Advt., is mandatory. Failing to meet the aforesaid requirements, such applications shall be summarily rejected for grant of NOC at a later date. Whilst in an outside employment advertisement, there may be waiver of any NOC requirement to be sought from the current employer, DMRC employees interested in applying for such posts are mandatorily required to apply for prior permission from the Corporation.
- 12.12 In case of contractual employees, forwarding of application for outside employment is not required. In such cases, intimation of outside employment application is mandatory. Contractual Employees who had applied for outside employment during their contractual tenure, will be issued NOC to appear for interview, if required, as per the outside employment Advt. Upon their regularization, any prior application for outside employment currently in force, will be counted within the extant maximum application limit of 2, per calendar year. Vigilance clearance / D&AR status will be taken into consideration while issuance of such NOC for interview.
- 12.13 Forwarding of applications for deputation to other organizations cannot be claimed as a matter of right. Such matters shall accordingly be dealt with keeping in view the interests of DMRC, based on the merit of the case/s. The employee of DMRC, including those selected for Board Level posts who join any other organization on deputation basis, shall be governed by the following terms and conditions. While forwarding the applications on deputation basis, the terms and conditions as laid down may be communicated to the Borrowing Organizations. The terms are as under: (Ref: : OO No. PP/3177/2022 Dated 10/06/2022)

TERMS AND CONDITIONS OF DEPUTATION TO OTHER ORGANISATIONS FROM DMRC

Deputation of DMRC employees to other organization shall be permitted only against an advertised post. Applications should be routed through the proper channel and no post-facto approval shall be granted. The employees of DMRC, including those selected for Board level posts who join any other organization on deputation basis, shall be governed by the following terms and conditions, with immediate effect:

1. Period of Deputation:

The deputation will be initially for a period upto five years, with effect from the date the incumbent is relieved from DMRC. The period of deputation may be extended, subject to the mutual consent of the DMRC and the borrowing department, for a further term, not exceeding one year, at a time. The total tenure shall not exceed 7 (seven) years, in any case. The borrowing department shall initiate the process of seeking extension six months in advance of the sanctioned tenure of deputation.

(Ref. OO No. PP/3171/2022 Dated – 10.06.2022)

2. Pay:

An employee appointed on deputation / foreign service, may elect to draw either the pay in the scale of pay of deputation / foreign service post of his / her basic pay in the parent cadre plus deputation (duty) allowance thereon plus personal pay, if any.

3. Deputation / Special Allowance:

The deputationist during the period of deputation will be paid deputation allowance by the borrowing organization, if eligible, based on the option exercised by the deputationist.

4. Medical reimbursement:

While on deputation, the employee will not be entitled to avail DMRC medical facilities both outdoor and indoor including the medical facilities for dependent parents as applicable in DMRC.

5. Leave Travel Concessions:

The deputationist during the tenure of deputation shall be entitled to avail the LTC facility of DMRC including that for dependent parents and the cost thereof shall be borne by the borrowing organization. The rules, thereof, shall be as per the extant regulations of DMRC.

6. HRA / Lease:

During the period of deputation, the deputationist will draw HRA/Lease as per the classification of the cities/towns and the corresponding rates declared by the Central Government and shall be subject, to the terms and conditions guiding the same. In case of lease, the rates will be as per the entitlement applicable in the borrowing organization, and shall be borne by the borrowing organization, only.

7. Travelling and Daily Allowance:

On deputation to the borrowing organization and on reversion therefrom, Travelling and Daily Allowance shall be paid for the deputationist and his/her **family** under the rules and at the cost of the borrowing organisation. Travelling Allowance/Daily Allowance for tours on duty during the period of deputation shall be governed by the rules of the borrowing organisation.

8. Joining Time Pay:

The period of joining time shall be governed by the rules of the borrowing organisation and joining time pay will be paid by the borrowing organisation.

9. Contribution on account of EPF/Gratuity and other deductions:

The following deductions/remittances shall be made by the borrowing organization to DMRC on a monthly basis in the enclosed format (Annexure-1)-

- i. During the period of deputation, the deputationist will continue to be a member of the Provident Fund as he/she was before deputation. The deputationist will not subscribe to any CPF, nor, accept any pension, or, gratuity, from the borrowing organisation.
- ii. The borrowing organization shall recover the contributions on account of EPF, Superannuation pension/NPS (if any), GSLI, Staff Welfare Fund and other deductions/recoveries/advances, mentioned in the Last Pay Certificate, from the salary of the deputationist and send it to DMRC through NEFT/RTGS, latest by the **7th of every following month to which the recovery relates**, together with the employer's contribution towards EPF/Superannuation pension/NPS/GSLI/Advances (if any).
- iii. **PF Contribution:** @ 12% of the Basic Pay + DA, in addition to the employee's contribution towards Provident Fund. EDLI monthly contribution/EDLI premium as applicable has to be remitted by the Borrowing Organization.
- iv. **Superannuation/NPS benefits (if any):** @ 2 ½ % of the Basic Pay, in addition to 7 ½ % of Basic pay recovered from the salary of the employee.
- v. **GSLI:** To pay to DMRC Employee and Employer portion as per the prescribed table towards GSLI, as per the category of the employee (if any).
- vi. **Staff Welfare Contribution-** Monthly contribution of employee as per the table enclosed and a contribution by employer has to be remitted by the borrowing organization.
- vii. **Administrative Handling Charges:** Administrative handling charges including PF administrative charges at the rate of 0.5% of PF wages (Basic and DA) and EDLI Inspection Charges at the rate of 0.005% of EDLI wages (Basic and DA) as applicable or as amended under the EPF rules on the above statutory deductions and remittance thereof and other administrative charges, if any, will be borne by the borrowing organization.
- viii. In addition, the following contribution shall be payable to DMRC, at the end of every year of the completion of service of the employee:

(a) Leave Salary:

The leave salary contribution based on the Basic Pay + DA @ 2 ½ days for every completed service of one month, or, part thereof, duly adjusting any leave availed or

encashed. The half pay leave contribution based on the Basic Pay + DA @ 20/365 for every completed service of one year, has to be contributed DMRC, after adjusting the availed half pay leave, along with the above.

(b) Gratuity Contribution:

The gratuity contribution @ 15/26 of pay and allowance (Basic Pay + DA) for every completed one year service, or, part thereof.

(c) Contribution towards Post-Retirement Medical Benefits:

It will be the responsibility of the Borrowing organization to remit the payment on account of contribution towards post-retirement medical benefits of the deputationist to DMRC. In case the borrowing organization is not willing to bear the above contribution, it should be invariably deducted from the salary of the deputationist by the borrowing organization and remitted to the DMRC. The amount will be calculated on proportionate basis from the date of deputation to 31st March and thereafter annually (on financial year basis) based on the data provided by the actuarial, which will be intimated by the DMRC, to effect recovery.

(d) Insurance:

DMRC employees are governed by Group Term Life Insurance of Rs. 25 lakhs and Group Personal Assurance of Rs. 25 lakhs to cover accidental and permanent partial disability. They will continue to be governed by the same. The insurance premium contribution shall be remitted by the borrowing organization in respect of the DMRC employee on deputation.

(e) Group House Building Advance Insurance:

This will be applicable to employees who have availed House Building Advance from DMRC. Both employee's contribution and employer's equal contribution on actual basis is to be remitted yearly by the borrowing organization.

Annual contributions as mentioned above may be paid annually within fifteen days from the end of each financial year or at the end of the foreign service, if deputation on foreign service expires before the end of a financial year, failing which, interest @ of two paise per day per Rs.100 from the date of expiry of the aforesaid period upto the date on which the contribution is finally paid will be charged.

10. Leave and Leave Salary:

DMRC employee on deputation will be governed by the Leave Rules of DMRC. DMRC employees are eligible for 30 days Earned Leave (15 days encashable and 15 days non-encashable), in addition to 20 days' Medical Leave. The leave availed by the deputationist should be informed to DMRC from time to time for updation of the leave records, of the employee. DMRC employees are eligible for leave encashment once a year, only of the encashable portion of the Earned Leave. The leave details should be sent to the DMRC along with the relieving order at the end of the deputation tenure in the following format-

Type of Leave	No. of days availed	Date from	Date to
Earned Leave			
Half Pay Leave			
Half Pay Leave Commutated			
Child Care Leave			
Extra Ordinary Leave			
Leave Not Due			
Encashment of Leave			

11. Leave Encashment:

During the deputation period the borrowing organisation may grant leave encashment to the deputationist, as per their eligibility in DMRC.

12. Advances:

Any recovery towards advances taken by the deputationist from DMRC like House Building Advance, Multipurpose Advance, Vehicle advance etc., as reflected in the LPC of the employee shall be recovered by the borrowing organization and sent to DMRC, every month by the 7th of the following month, giving full details of deduction made separately, for each item. A DMRC employee going on deputation to other organizations shall be governed by the provisions contained in DMRC EMPLOYEES 'OWN YOUR OWN HOUSE ADVANCE' RULES. Further, in terms of this office circular dated 31.12.2021, fresh sanction of advances to DMRC employees for HBA, Multipurpose advance, Laptop advance, Festival advance, Vehicle advance/Motorcycle advance etc., stands suspended till further orders.

(Ref. OO No. PP/3177/2022, Dated: 10/06/2022)

13. Termination of the deputation period:

The service of the deputationist may be recalled any time during the sanctioned tenure, without assigning any reason.

14. Responsibility of the Deputationist for ensuring all payments:

While the borrowing organization shall ensure the payments and effect the recoveries, as specified herein above, should any payment due to DMRC not being remitted, or, remitted late, the responsibility of making such payments/payment of the interest amount on the late payments, shall lie with the deputationist.

15. Annual Property Return:

DMRC Executives have to submit the Annual Property Return latest by the 31st January of each year, for the preceding year, in the DMRC format. The same may be duly sent to DMRC.

16. Application for Outside Employment:

Any application for outside employment of the employee while on deputation, should be routed through DMRC.

17. Conduct, Discipline and Appeal Rules:

The deputationist will continue to be governed by the extant instructions as contained in the DMRC Conduct, Discipline and Appeal Rules.

18. Other Matters:

In all matters not specified herein above, the deputationist shall be governed by the rules of DMRC.

12.14 The application of an employee for outside employment, whether by direct recruitment / transfer / deputation / secondment, for appointment to any other post, either in Government / PSU / UPSC etc., shall not be considered / forwarded, if -

- (i) Employee is under suspension; or
- (ii) Disciplinary proceedings are pending against employee and a Charge sheet has been issued; or
- (iii) Sanction for prosecution, where necessary, has been accorded by the Competent Authority; or
- (iv) Where a prosecution sanction is not necessary, a Charge sheet has been filed in a Court of Law against employee for criminal prosecution.
- (v) Where employee is undergoing a penalty.

12.15 When the conduct of an employee is under investigation (either in DMRC or by any investigative Statutory, viz. CVC or Govt. agency, viz. CBI) but the investigation has not reached the stage of issue of charge sheet or prosecution sanction or filing of charge sheet for criminal prosecution in an Hon'ble Court, the application of such an employee may be forwarded together with brief comments on the nature of allegations and it should also be made clear that in the event of actual selection of the said employee, she / he would not be released for 'taking up the appointment, if by that time any of the situations in (Clause 12.14) arises.

(Ref: Office Order No. PP/3170/2022 Dated 02.03.2022)

NOTE – NOC form to apply for outside employment - **Form II**

13. PRIOR PERMISSION TO PURSUE HIGHER STUDIES

In order to augment the professional knowledge, skillset and acquire higher qualifications, such that they aid in the better discharge of their respective line of work responsibilities, permission may be granted for pursuing higher education against the requests of the employees. Keeping in view the handsome costs incurred in the delivery of the world class training programs to the onboarded employees in the Corporation, attrition is a bane which ought to be adroitly dealt in a front facing manner. In light of the young age profile of employees, there is generally a considerable number of applicants wishing to pursue higher education in different streams. Guiding principles for the grant of NOC for pursuing higher education shall be subject to the below guidelines:

- 13.1 In cases where an employee gains admission in select Govt. institutions of repute such as IIM, IIT, he / she may be permitted to pursue regular course of study, relating to the same field of work, subject to availability of manpower and approval of Study Leave. A maximum quota of 0.5% of the manpower strength at a time may be determined for this purpose. Such employee should have completed 3 years' service and before proceeding for the course of study, he / she will furnish a Bond of Rs.5 lacs plus GST, and any other prevailing tax, to serve the organization for a minimum period of 5 years after completing the course.
- 13.2 For pursuing **regular / full time education program**, the request will be considered subject to the employee, meeting the conditions as contained in the Master Circular for Leave Rules (Study leave). For pursuing such course, the request would be considered along with the request for Study Leave.

However, for pursuing higher studies through **distance mode / correspondence / part time**, the requests of employees who have completed probation period may be considered. (Ref: Office Order No. DMRC/PERS/14/2022 dated 26/10/2021)

- 13.3 The Approving Authority for NOC for Higher qualification through “Part Time Course / Correspondence course / Distance learning mode course” for below HoD level employees shall be the concerned HR HoD. Whereas, the Approving Authority in respect of the HoD level Officers; shall be the concerned Director. The Controlling officer while recommending such cases shall check that the staff is not performing shift duties, which may likely affect the delivery of their duties.

- 13.4 It should be ensured by the applicant employee that the course of study shall not interfere with his / her official duties, including official tours, shift duties and working beyond duty hours in exigencies etc.
- 13.5 Once permission for higher study is given, employee will be granted leave for appearing in examination. However, leave for preparation will be granted only if circumstances permit.
- 13.6 The employees, who were already pursuing any educational course prior to the time of appointment in DMRC, will also require to obtain permission to continue pursuing the same. However, permission shall not be granted to such candidates who are pursuing regular full-time educational courses and the remaining duration of such courses are required to be completed through full time mode only. Further such employees who are already pursuing a course at the time of joining DMRC will not be eligible for any extant cash incentive schemes upon completion. Employees who are granted permission to continue the course that they were already pursuing prior to joining the Corporation, their incremental qualification shall be added in their service records, with the approval of Competent Authority, subject to meeting other mandatory conditions per extant service rules.
- 13.7 Any qualification acquired without prior permission during employment shall not be considered for inclusion in the service record of employee and will render the employee ineligible for cash incentive. Post facto permissions shall not be entertained.
- 13.8 The permission is liable to be withdrawn at any time in the interest of the administration without assigning any reason. Having found on duty reading books during duty hours, shall also lead to cancellation of permission and disciplinary action as per rules. In such case, employee shall have no claim for any loss etc. sustained by him in the event of withdrawal of permission.
- 13.9 The employee shall ensure that the course of study is recognized by concerned Govt. body like AICTE, UGC, DEC etc. and shall be required to produce necessary documents in support of the accreditation of the course and Institute along with application for permission for pursuing higher studies. Merely permission for higher study may not be considered as recognition of the course.
- 13.10 Qualification/s acquired, after obtaining due permission from the Management shall be considered for inclusion in the service records / departmental promotions / grant of incentive, subject to verification of educational qualification. Till the time, verification is completed, addition of qualification in service records / promotion (if any, made effective, on the basis of such qualification) shall be treated as provisional.

In case, marks secured is less than 60%, or, an equitable grade, grant of incentive shall not be admissible and only the qualification shall be added in the service records / considered

for departmental promotions.

(Ref: Office Order No. DMRC/PERS/14/2022 dated 26/10/2021)

- 13.11 For employees on contract, permission for pursuing higher studies (part time/correspondence/distance learning mode only) shall be given, only on completion of their 3 years' service in DMRC. However, they will not be eligible for any incentive for acquiring higher qualification.
- 13.12 No employee will be given permission to pursue more than one course at any given point of time.
- 13.13 The incentive for higher studies shall be paid as prescribed above, on production of an 'Indemnity Bond' by employee concerned to serve the Organization for at least 02 years after availing the incentive facility. (Ref: O.O. No. PP/1340/2011 dated 08/12/11)

NOTE – NOC form to pursue higher studies – **Form III**

14. Engagement of TADK (Telephone Attendant Dak Khalasi)

All regular HoDs, including deputationists and officers above in rank, are eligible to appoint 02 TADKs, during their entire service span in DMRC, at their residence, on self-recommendation basis, subject to the fulfilment of certain eligibility conditions, which, henceforth, shall be, as stipulated below: -

A. Eligibility Criteria

- (i) The upper age limit for engagement of TADK shall be 28 years of age. The upper age limit shall be relaxable by 05 years in case of SC/ST candidates and by 03 years in case of OBC candidates.
- (ii) Candidate must possess a Matriculation Degree from a recognized Board.

B. Selection Procedure

The TADK shall be appointed on daily rated basis initially, for a period of 180 days, with the approval of the MD. After completion of 180 days continuous satisfactory service, a Working Report, in the enclosed format, may be submitted by the officer concerned. Based on the same, temporary status shall be granted, in the grade of Rs. 16000-50000/-

IDA, on a year-to-year contract basis, subject to medical fitness from the DMRC nominated hospital.

C. Regularization of TADK's

- (i) The tenure for regularization of TADK shall be 06 years. No TADK would be regularized, prior to completion of the said period of service.
- (ii) If an HoD is relieved/repatriated/retired, before completion of 06 years residency period of his TADK, the services of the TADK shall be transferred to a new HoD, who requires fresh TADK in DMRC. Till such period, the TADK is transferred to the new HoD, the TADK can be permitted to complete his/her existing contract term (yearly), and attempts shall be made to adjust him/her, with some HoD. If no such adjustment is possible, then his/her case shall be processed for extension of contract and his/her services can be utilized in Depots, etc., as a contract employee only. A TADK shall be regularized, only on completion of 6 years' service in DMRC, on contract basis.
- (iii) TADKs who have put in six years of continuous service, after grant of pay scale, shall be considered for screening and regularization, subject to their being found suitable, by a duly constituted Screening Committee and fitness in medical test, which shall be, as per the norms. The services of those TADKs, who are not found suitable in the screening, shall continue to be on contractual basis. The services of TADK's, who are not found fit in medical examination, shall however, be terminated forthwith. Post regularization, the TADK can still continue to work as TADK at the residence of the officer, till he/she, is relieved.
- (iv) In any circumstance, a TADK can normally be relieved by an HoD, only after completion of 06 years of service. The HoD, who relinquishes the services of such a TADK, shall be eligible for fresh engagement of a TADK, only if he/she is left with 06 years of service in DMRC. If not, he/she shall be eligible for TADK allowance only. However, for any unseen circumstances, item (ii) above shall hold good.
- (v) The case of regularization etc., can be taken up in cases of TADK's, who have completed six years of service.
- (vi) TADKs who have completed six years, and are absorbed, shall be asked to choose the trade, based on which their posting shall be decided. Initially, they shall be nominated for on the job training for a period of six months, after completion of which, they shall continue in the grade of Rs. 16000-50000/- (IDA), on regular basis. In case, a TADK is not relived from the residence of an officer, on the due date of promotion, he/she shall be granted financial upgradation (maximum of 3), on adhoc basis, subject to learning the Skills/Trade (on the job training), for a period of 6 months, post relieving. Once certified, of having learnt the skill (on the job training), his/her promotion, shall be regularized.

- D.** SAG Railway officers, who join DMRC on deputation, have the option of carrying their TADK on deputation to DMRC and carry them, on completion of their deputation tenure, back to the Railways, in case the Railways, were to agree for deputation, in case of TADK's.

(Ref: O.O. No. PP/2868/2019 Dated 16/08/2019)

15. RESIGNATION

- a. Management reserves the right to accept resignation in Organization's interest.
- b. An employee, whose conduct is under investigation or against whom inquiry / investigation is pending (whether under suspension or not), decision for acceptance will lie with the Competent Authority only, and acceptance will not be automatic.
- c. The resignation will not be accepted if it is in the public interest to pursue the disciplinary case. The Competent Authority may, however, accept the resignation: -
 - i. If the case does not involve moral turpitude and public claims, or
 - ii. If the available evidence does not have a base strong enough to lead eventually to dismissal or removal from service, or
 - iii. If further pursuit of the case may get so protracted as to render acceptance of resignation cheaper for the exchequer.
- d. To sustain the on-going Project and O&M functions, arranging manpower, to take over the task handled by the erstwhile employee, resignation from service can be accepted, subject to serving of the prescribed notice period, so that Organization is able to plan smooth succession, as alternative arrangements for filling-up the post may take time. Resignation may be accepted before completion of notice period based on the merit of the case and when alternative arrangements have been made.
- e. Resignation would be submitted through employee's controlling HoD to HR Department in the prescribed Proforma- 'A'. The employee would also submit a hard copy of the same to HR department in advance.
- f. Resignation should be clear and unconditional. The resignation will be placed before concerned HoD, Director or to MD for in-principal acceptance as per SOP.
- g. On acceptance of resignation the employee would be intimated about the same with his / her probable date of relieving as per Proforma- 'B'.
- h. While every effort will be made to accept the resignation of the employee within the stipulated period of receipt of notice, however resignation will not become effective until

the Management accepts it.

- i. Subsequent upon tendering resignation, an employee would be allowed to take only CL/RH during the notice period of 90 days, the employee will have to make full payment towards short notice period and the leave availed shall be treated as LWP. Employee/s resigning from DMRC will be entitled for CL on pro rata basis as per his / her date of relieving.
- j. If an employee, after submitting the resignation and without formal relieving, leaves the Organization he / she will be liable for disciplinary action. Similarly, if he / she is absenting from duty without prior sanction of leave he / she will be treated on unauthorized absence. Sanction would be required for medical leave also and merely submission of medical certificate of nominated hospital will not suffice as leave is not a matter of right. For the employees who remain on unauthorized absence immediately after submitting the resignation, their resignation will be accepted by the Competent Authority during the leave period and conveyed to them at their permanent / present address. They will not be allowed to withdraw the resignation even if they return within the notice period for duty.
- k. An employee may resign from his / her employment in DMRC by giving notice of not less than 90 days. Requests for waiver of notice period shall normally not be entertained, however based on merit of case the same may be accepted at the sole discretion of concerned Director. If application is forwarded officially for outside employment in Govt. organizations, efforts will be made to accept the resignation within the stipulated period of receipt of notice. If employee requests early relieving (i.e. before 90 days), they can be allowed to do so with the approval of the Competent Authority i.e. concerned Director, and by making payment equivalent to last drawn (Basic Pay + DA) for the balance shortfall period. The concerned Controlling officer will make necessary arrangement for early relieving. Each Controlling officer of the employee will ensure for proper handing over by the employee before relieving. The original copy will be sent to HR department compulsorily.
- l. Since resignation from service is a major decision on the part of employee, proper application of mind should be made by the employee concerned before tendering resignation. Other than the 90 days' notice period, no further extension of time for relieving shall be permitted. The employee can decide to withdraw the request of resignation for genuine reasons during the notice period. DMRC reserves the right to accept the withdrawal or otherwise if Management approval for acceptance of resignation has been communicated to the employee. However, re-tendering of resignation within a short spell of time (i.e., less than one year) will be viewed seriously and a mention to this effect will be made in the relieving certificate of the employee concerned.
- m. The concerned controlling officer shall direct the employee / staff, tendering resignation, to contact HR Department for ascertaining dues like Bond amount, training cost, short notice period amount (if any), and other dues etc. After settlements of pending dues in his / her

name, the final relieving order will be issued by the HR Department on submission of “No Due Certificate” on prescribed format, Proforma- ‘C’, in original. No-dues from different department/s (from nominated officials) must be obtained within the notice period.

- n. If an employee resigns without intimation / prior notice and absents himself / herself without approval, his / her controlling officer shall arrange to urgently inform the HR department, by various means such as but not limited to, telephonically / through SMS and following with a written intimation, so that any undue payments to such employee may immediately be stopped.
- o. All officers and staff of DMRC while submitting resignation form DMRC have to submit an Undertaking along with resignation in the prescribed proforma as at Proforma-‘D’.
- p. In cases of Outside employment in Govt. organizations, **Transfer of Bond** is applicable subject to following conditions: - (Ref: O.O. No. PP/2047/2015 Dated 28/08/2015 and O.O. No. PP/3047/2020 Dated 21/10/2020) -
 - It is applicable to employees (including contractual employees) of DMRC.
 - It is applicable to employees, who seek employment under a Central Government, State government, a Public Sector Undertaking owned wholly or partially by the Central Govt. or by the State Govt. or a quasi-govt. organization, for which they have applied prior to joining DMRC / after joining DMRC.
 - The Organization in which the employee has been selected should agree for transfer of Bond
 - The Bond executed by DMRC employee, should not be enforced, in case the employee leaves DMRC service to secure employment, under a Central Govt., State Govt., a Public Sector undertaking owned wholly or partially by the Central Govt. or by the State Govt. or a quasi-Govt. organization, subject to the condition that the new organization take from him / her a fresh bond binding him / her to serve them for the balance of the original bond period.
 - An undertaking from the new organization that if the employee resigns prior to the completion of balance bond period prescribed by DMRC, the entire bond amount will be realized and remitted to DMRC.
 - The terms of Bond should not be enforced against DMRC employees, who leave services

of DMRC to secure employment, under a Central Govt., State Govt., Public Sector Undertaking owned wholly or partially by the Central Govt. or by the State Govt. or a quasi-govt. organization, subject to the condition that a fresh bond is taken from the concerned DMRC employee to ensure that he / she serves the new Employer for the balance of the original bond period.

- q. The facility of transfer of Bond is also extended to employees who join a higher post within the Corporation through lateral induction mode, for the balance remaining period.
- r. Direct recruit & Contractual employees are mandated to pay Surety Bond and applicable service tax on Surety Bond, if they resign from the service of DMRC before completion of 3 years' service period. However, the condition is relaxed in case of differently abled employees as they need to be enabled and facilitated for varied career growth and opportunities, suiting their requirements. However, the provision of minimum notice period of 90 days prior to resignation will be applicable to all.

16. RE-JOINING AFTER RESIGNATION

The following aspects shall govern the request of ex-employees who want to re-join DMRC after resignation and relieving from the Organization.

The re-joining of ex-employee will be at the discretion of the Management and not a right of the ex-employee. Generally, it will be discouraged, however, based on merit of case, re-joining may be considered by the Management on the following conditions: -

- a) A case for re-joining shall be considered, where the employee had obtained proper relieving order, otherwise applications shall not be entertained.
- b) Only those employees who resign and join Govt. departments / PSU can be considered for re-joining DMRC and not those who join some private organizations after resignation from DMRC.
- c) The request for joining DMRC can be entertained only within a period of one year from the date of resignation from DMRC, subject to the fact that the ex- employee was a confirmed employee of the Corporation.
- d) The re-joining is subject to the post being available in the grade / level. The past record of the ex-employee should be good and the gradation of APAR for the last two years should at least be "Very Good" and there should not be any adverse disciplinary records against him / her.
- e) The recommendation of the Controlling Officer will be required.
- f) The Bond amount or any other payment made at the time of acceptance of resignation shall

not be refunded.

- g) The employee will again be on probation for the specified period (as applicable to the post at which he / she is re-joining) from the date of re-joining and shall again be confirmed, as per procedure.
- h) The employee will be offered fresh appointment and will have to execute a fresh Bond for 3 years. His / her seniority will be counted only from the fresh date of joining and he / she will join, at the minimum of the pay grade.
- i) The employee has to get “No Due Certificate” from his / her last employer and has to give an Undertaking that he / she is free from Vigilance and D&AR angle in his / her previous organization.

17. RETENTION OF LIEN IN DMRC

The retention of lien on a post will be applicable only in case of individuals holding below Board Level positions in DMRC and is selected and appointed to Board Level positions. The retention of lien will be restricted up to GM level in Grade Rs. 1,20,000-2,80,000 in DMRC, subject to the condition(s) that –

- (i) The application is forwarded through proper channel.
- (ii) The selection of Board Level post is for Metros (owned by Govt. of India and / or State Govt.) or other Central Govt. Organization, where in the selection has been organized by PESB.
- (iii) The lien of the post will be for a maximum period of 6 years and will automatically stand terminated on completion of the 6 years’ period.
- (iv) The DMRC Officers requiring lien should have completed the probation period in DMRC.
- (v) The DMRC Officer acquiring a lien on a post will cease to hold any lien previously acquired on any other post.
- (vi) In case the employee reverts to DMRC during the lien period, he / she will be entitled to the last Basic Pay held by him in the substantive grade (which he / she was holding in DMRC, at the time of resignation). However, the retention of lien will be restricted to the GM level post only.

(Ref: O.O. No. – PP/1958/2015 dated 27/03/2015 and further modification vide OO No. – PP/2939/2019 dated 02/01/2020)

18. TRANSFER OF LEAVE AND GRATUITY IN RESPECT OF EMPLOYEES WHO JOIN OTHER GOVT. ORGANIZATIONS THROUGH PROPER CHANNEL

If, an employee joins other Government department through proper channel, he / she will be eligible for the following: -

- i. Transfer of the leave both Earned Leave (Encashable & Non-Encashable) and Medical

Leave (LHAP).

- ii. Transfer of Gratuity, even if, service is less than 5 years in DMRC, if, employee joins other Government organization through proper channel their service is treated as continuous service and all benefits are transferable.
- iii. An undertaking from the prospective employer, i.e., other Government organization, should also be taken that if the employee resigns from there, before completing 5 years (DMRC service put together) the gratuity paid will be refunded to DMRC.

19. ASSIGNMENT WITH WORLD BANK, ADB, ESCAP etc.,

Corporation employees are permitted to go on short time assignments abroad with World Bank, ADB, ESCAP etc. secured by them against their personal enrollment, under the following conditions:

- (i) The period of the assignment will be treated either as leave due in which case the employee has to specifically apply for the same and will be eligible to draw leave salary for this period;
OR
The period will be treated as leave without pay, in which case, he / she will not draw any salary during this period.
- (ii) He / She shall not earn any leave during this period.
- (iii) The employee shall remit (a) 25% of the remuneration received by him to DMRC where the assignment is for a period of 90 days or less (b) 10% of the remuneration where the assignment is for a period of over 90 days. The remittance will be made to DMRC within 7 days of receipt of the remuneration from the institution.
- (iv) The employee concerned will remit separately to DMRC his / her own PF contribution, based on the last pay drawn. DMRC shall remit equal amount towards employer's contribution to PF. The assignment period shall be counted for gratuity.
- (v) An Officer proceeding for consultancy to other Metro Projects in official capacity shall be eligible for all the service benefits with additional perks as prescribed for the respective project and in case of foreign assignments, he / she will be eligible for salary and benefits as per the extant guidelines.

20. REVIEW OF SERVICE AT THE AGE OF 50 YEARS & 55 YEARS

The objective of the Rule is to weed out the deadwood in order to maintain a high standard of efficiency and initiative in DMRC service. It is not necessary that a good employee may continue to be efficient and effective for all time to come. It may be that there may be

some employee who may possess a better initiative and higher standard of efficiency and if given chance, the work of the organization might show marked improvement. In such a case, compulsory retirement of an employee who fulfils the conditions of Rule 20.1, given below, is undoubtedly in public interest and is not a measure of punishment. Ordinarily, the order of compulsory retirement is not to be treated as a punishment coming under Article 311 of the Constitution. In fact, the rule merely seeks to strike a just balance between the termination of the completed career of a tired employee and maintenance of top efficiency in the diverse activities of administration. While undertaking the review of services, the following shall be kept in view: -

- (i) That the services of a DMRC employee are no longer useful to DMRC and the employee can be compulsorily retired for the sake of public interest.
- (ii) For better administration, it is necessary to chop off dead wood. The order of compulsory retirement can be passed after consideration of the entire service record of the officer.
- (iii) Any adverse entries made in the confidential record shall be taken note of and be given due weightage, in passing such order.
- (iv) Even un-communicated entries in the confidential record can also be taken into consideration.
- (v) The order of compulsory retirement shall not be passed as a short cut to avoid departmental enquiry, when such course is more desirable
- (vi) If the DMRC employee has been given promotion despite adverse entries made in the confidential record, that is a fact in favor of the employee.
- (vii) Compulsory retirement shall not be imposed as a punitive measure.

20.1 When an employee has attained the age of 50/55 years, review shall be made of those:

- ☐ Found inefficient, or,
- ☐ Of doubtful integrity

20.2 The procedure for review will be:

Categor y	Fall under Periodical Review of Service
Executives and Supervisors (Non-Executive)	<u>Executives of DMRC</u> Who have entered service before 35 years of age and have attained 50 years of age

	<u>Other cases</u> Attained 55 years of age DMRC Non-Executives at supervisory level can also be retired after he / she has completed 30 years of service
Notice Period	3 months or 3 months' pay and allowances, in lieu thereof

- 20.3 The cases shall be reviewed six months before he/she attains the age of 50/55 years or completion of 30 years' service/30 years of qualifying service and on completion of 30 years of qualifying service.

An employee may be prematurely retired from service with the approval of the Board of Directors in case of Executives and by the Managing Director, in case of Non-Executives, subject to the procedure prescribed, being followed.

- 20.4 To periodically review the service, Review Committees, consisting of the following level of Executives shall be constituted: -

S.No.	Level of employees	Review Committee
1	Non-Executives	Dy. HoD Level Committee
2	AM and Managers	HoD Level Committee
3	Dy. HoD & HoD	Director Level Committee

CVO in the case of Executives and his / her representative in the case of Non-Executives shall be associated /consulted in case of records reflecting adversely on the integrity of any employee.

- 20.5 The cases of Periodical Review of service will be put up to the Competent Authority, 6 months prior to attainment of 50/55 years or completion of 30 years' service / 30 years of qualifying service and on completion of 30 years of qualifying service, for review of service. Time schedule for review shall be as under: -

S.N.	Quarter in which review is to be made	Cases of employee who will be attaining the age of 50/55 years or will be completing 30 years of service or 30 years of service qualifying for pension, as the case may be, in the quarter indicated below to be reviewed.
1	January to March	July to September of the same year

2	April to June	October to December of the same
3	July to September	January to March of the next year
4	October to December	April to June of the next year

Where the review in accordance with the time schedule indicated above has not been completed for any reason whatsoever, of an employee of the Corporation attaining 50/55 years of age, such review may be undertaken at any time, thereafter.

20.6 “Review” means the review of the entire service record (available in DMRC), example - APARs, Personnel Files, Vigilance Clearance, D&AR, Reports etc., of the employee of the Corporation regarding suitability or otherwise of such employee for further retention in service.

20.7 The criteria to be followed by the Committee in making their recommendation would be as follows: -

- k. An official, who gets an adverse comment on his integrity in any two years out of last five years in his appraisal reports, would be reviewed by the nominated committee for premature retirement. (Ref: O.O. No. PP/3093/2021 dated 15/03/21)
- l. DMRC employees who are found to be ineffective will also be considered for review of service. The basic consideration in identifying such employee should be the fitness/competence of the employee to continue in the post which he/she is holding. The performance evaluation is to be adjudged on the basis of entire service record including APARs for the last 5 years. Only those employees whose APAR has been graded as AVERAGE/BELOW AVERAGE in any three years as in their last give available APARs would be reviewed by the nominated committee for pre-mature retirement. (Ref: O.O. No. PP/3093/2021 dated 15/03/21)
- m. While the entire service record of a DMRC employee should be considered at the time of review, no employee should ordinarily be retired on the grounds of ineffectiveness if his / her service during the preceding 5 years or where he / she has been promoted to a higher post during that 5-year period, his / her service in the highest post, has been found to be satisfactory. Consideration is ordinarily to be confined to the preceding 5 years or to the period in the higher post, in case of promotion within the period of 5 years, only when retirement is sought to be made on grounds of ineffectiveness. There is no such stipulation, however where the employee is to be retired on the grounds of doubtful integrity.
- n. No employee should ordinarily be retired on ground of ineffectiveness if, in any event, he/she would be retiring on superannuation within a period of one year from the date of consideration of his / her case. It is clarified that in a case where there is sudden and steep fall in the competence, efficiency or effectiveness of a DMRC employee, it would be open for review for premature retirement.

The above instruction is relevant only when an employee is proposed to be retired on the ground of ineffectiveness but not on the ground of doubtful integrity. The damage to public interest should be marginal if an old employee, in the last five years of service, is found ineffective; but the damage may be incalculable, if he/she is found corrupt and demands or obtains illegal gratification during the said period for the tasks, he/she is duty bound to perform.

- 20.8 The Appointing Authority shall, if it is of the opinion that it is in the public interest to do so, have the absolute right to retire any employee by giving him / her notice not less than three months in writing or three month's pay and allowances in lieu of such notice. No show-cause notice for retirement is required to be issued under the above provision. In every case, where it is proposed to retire a DMRC employee, in exercise of the power conferred by the said rule, the appropriate authority, should record in file its opinion that it is necessary to retire the employee in pursuance of the aforesaid rule in the public interest.

(Ref: OO No PP/3001/2020 Dated 24.06.2020 and OO No. PP/3093/2021 Dated 15/03/21)

21. VOLUNTARY RETIREMENT: -

Any permanent employee of the Corporation may opt for voluntary retirement, by giving notice of not less than three months in writing to the Appropriate Authority, after he / she has attained the age of 58 years and has rendered 15 years of service in a Govt. Deptt. / PSU / DMRC, put together, as on the date of voluntary retirement, and must have also, put in a minimum of 5 years of service, in the Corporation.

Provided that-

- (a) Nothing in this clause shall apply to a Corporation employee, including technical experts who –
 - (i) is on assignment under Consultancy with other Metro / Rails / Projects,
 - (ii) is posted abroad in a foreign based Project work and
 - (iii) goes on a specific contract assignment to a foreign Project, unless, after having been transferred to India, he / she has resumed the charge of the post in India and served for a period of not less than one year; and
- (b) It shall be open to the Appropriate Authority to withhold permission to a Corporation employee under suspension, who seeks to retire under this clause.

(Ref: O.O. No. DMRC/PERS/14/2021 Dated 07.01.2021)

22. TERMINATION OF SERVICE

Notwithstanding anything contained to the contrary in any other rules, the services of any employee shall be terminated by the Corporation, if: -

- (a) His / her post is abolished OR
- (b) He / She is declared unfit on medical grounds for any service in the Corporation OR
- (c) He / She remains on unauthorized absence for sixty days or more.

Explanation: -

- (i) In the case of (a) and (b) above, the services shall be terminated after giving three months' notice to a permanent employee and one-month notice to a temporary employee or pay in lieu thereof in both the cases.
- (ii) In the case of (c) above, services of an employee shall be terminated if he / she fails to explain his / her conduct satisfactory within 15 days from the date of receipt of the "Show cause notice" by him / her. The Management will be empowered to take a decision without resorting to further enquiries.
- (iii) The decision in case of (c), above, would be taken by a Committee of Officers, at an appropriate level to be constituted for this purpose.
- (iv) The reasons for the decision would be recorded in writing.

23. SUPERANNUATION

Every employee of DMRC shall retire from employment of the Corporation on attaining the age of 60 years*. Retirement will take place on the last day of the month, in which his/her date of birth occurs. However, the employee, whose date of birth is the first day of the month, shall retire from employment of the Corporation, on the afternoon of the last day of the preceding month. In case of retirement of the Senior level officers, the Management may in exceptional circumstances, grant extension of service to the employee beyond the age of superannuation, or re-employ him, on such terms and conditions as may be decided mutually between the Management and the employee.

*In case of Directors – the age of retirement is 62 years or completion of their tenure (whichever is earlier).

24. SERVICE CERTIFICATE AT SEPARATION

Corporation employees on the eve of their leaving the Organization due to superannuation, resignation, termination are issued a 'Certificate of service' at the request of the employee in the form as at Proforma-'E', from the Corporate Office. No such certificate shall be issued for the period of Leave not Due etc.

25. INTERPRETATION RELAXATION

The Managing Director has the power to interpret these rules and in case of doubt / dispute his / her decision will be final. He / She shall have the power to relax/ delete / modify / revise etc. any of the rule provisions in individual cases of hardship with reasons to be recorded in writing.
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Chapter –B

DMRC CONDUCT, DISCIPLINE AND APPEAL RULES



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DMRC CONDUCT, DISCIPLINE AND APPEAL RULES

PART I - GENERAL

1. SHORT TITLE AND COMMENCEMENT

These rules may be called the DMRC Conduct, Discipline and Appeal Rules.

2. APPLICATION

These rules shall apply to all the employees, except:

- 2.1 Those in casual employment or paid from contingencies;
- 2.2 Those who are inducted on Contract (Re-Employment, Retainership basis, Consultant, Advisor, Post Retirement Contractual Engagement, Contract).

3. DEFINITIONS

In these rules, unless the context otherwise requires: -

- 3.1. 'Employee' means a person in the employment of the Corporation, other than those who are inducted on Contract (Re-Employment, Retainership basis, Consultant, Advisor, Post Retirement Contractual Engagement, Contract), but includes a person on deputation to the Corporation.
- 3.2. 'Corporation' means the Delhi Metro Rail Corporation Limited.
- 3.3. 'Board' means the Board of Directors of the Corporation and includes, in relation to the exercise of powers, any Committee of the Board/ Management or any officer of the Corporation to whom the Board delegates any of its powers.
- 3.4. 'Chairman / Managing Director' means the Chairman / Managing Director of the Corporation.
- 3.5. 'Government' means the Government of India/ State Government.
- 3.6. 'Competent Authority' means the Authority empowered by Board of Directors by any general or special rule or order to discharge the function or use the powers specified in the rule or order.
- 3.7. 'Disciplinary Authority' means the Authority specified in the Schedule – A appended to these rules, and competent to impose any of the penalties specified in Rule-40.

- 3.8. 'Appellate Authority' means the Authority specified in the Schedule - A appended to these Rules.
- 3.9. 'Reviewing Authority' means the Authority specified in the Schedule - A appended to these rules.
- 3.10. 'Family' in relation to an employee includes: -
- (i) Employee's Spouse; or,
 - (ii) Son (below the age of 25 years or till he gets married or employed, whichever is earlier); or,
 - (iii) Unmarried Daughter but not employed and dependent on the employee; or
 - (iv) Parents of the employee who are normally residing with him/her and wholly dependent upon the employee and the monthly combined income of the parents is not more than 15% of the Basic Pay of the DMRC employee concerned or Rs. 9000/- plus dearness relief thereon, whichever is more
- 3.11. 'Public Servant' shall mean and include a person, as mentioned in Section 21 of Indian Penal Code, as amended from time to time.

PART II - CONDUCT

4. GENERAL CONDUCT

- 4.1 Every employee of the Corporation shall at all times;
- (i) maintain absolute integrity;
 - (ii) maintain devotion to duty;
 - (iii) do nothing which is unbecoming of a public servant.
- 4.2 Every employee of the Corporation holding a supervisory / managerial post shall take all possible steps to ensure the integrity and devotion to duty of all employees for the time being under his/her control and authority;
- 4.3 Prohibition of sexual harassment of women:
- (i) No employee shall indulge in any act of sexual harassment of any woman at any work place.
 - (ii) Every employee who is in-charge of a work place shall take appropriate steps to prevent sexual harassment to any woman at the work place.

Explanation: For the purpose of this rule: -

- (a) *"sexual harassment" includes any one or more of the following acts or behavior (whether directly or by implication) namely: -*
- (i) physical contact and advances; or*
 - (ii) a demand or request for sexual favours; or*
 - (iii) making sexually coloured remarks; or*
 - (iv) showing pornography; or*
 - (v) any other unwelcome physical, verbal, non-verbal conduct of a sexual nature.*
- (b) *the following circumstances, among other circumstances, if it occurs or is present in relation to or connected with any act or behavior of sexual harassment may amount to sexual harassment:-*
- (i) implied or explicit promise of preferential treatment in employment; or*
 - (ii) implied or explicit threat of detrimental treatment in employment; or*
 - (iii) implied or explicit threat about her present or future employment status; or*
 - (iv) interference with her work or creating an intimidating or offensive or hostile work environment for her; or*
 - (v) humiliating treatment likely to affect her health or safety.*
- (c) *"workplace" includes: -*
- (i) any department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit which is established, owned, controlled or wholly or substantially financed by funds provided directly or indirectly by the Central Government;*
 - (ii) hospitals or nursing homes;*
 - (iii) any sports institute, stadium, sports complex or competition or games venue, whether residential or not used for training, sports or other activities relating thereto;*
 - (iv) any place visited by the employee arising out of or during the course of employment including transportation provided by the employer for undertaking such journey;*
 - (v) a dwelling place or a house related to or connected in course of official dealings*
- (iii) The cases of sexual harassment will be dealt as per the extant rules / guidelines of DOP&T, on the subject.

5. MISCONDUCT

Without prejudice to the generality of the term “misconduct”, the following acts of omission and commission shall be treated as ‘misconduct’: -

- 5.1 Theft, fraud or dishonesty in connection with the business or property of the Corporation or property of another person within the premises of the Corporation;
- 5.2 Taking or giving bribes or any illegal gratification;
- 5.3 Possession of pecuniary resources or property disproportionate to the known sources of income by the employee or on his/her behalf by another person, which the employee cannot satisfactorily account for;
- 5.4 Furnishing false information regarding name, age, father’s name, qualification, ability or previous service or any other matter germane to the employment at the time of employment or during the course of employment;
- 5.5 Acting in a manner prejudicial to the interest of the Corporation;
- 5.6 Willful insubordination or disobedience, whether or not in combination with others or any lawful and reasonable order of his/her superior;
- 5.7 Absence without leave or overstaying the sanctioned leave for more than four consecutive days without sufficient grounds of proper or satisfactory explanation;
- 5.8 Habitual late or irregular attendance;
- 5.9 Neglect of work or negligence in the performance of duty including malingering or slowing down of work;
- 5.10 Damage to any property of the Corporation;
- 5.11 Interference or tampering with any safety devices installed in or around the premises of the Corporation;
- 5.12 Drunkenness or riotous or disorderly or indecent behavior in the premises of the Corporation or outside such premises where such behavior is related to or connected with employment;
- 5.13 Gambling within the premises of the establishment;
- 5.14 Smoking within the premises of the establishment where it is prohibited;
- 5.15 Collection, without the permission of the competent Authority, of any money within the premises of the Corporation except as sanctioned by any law of the land for the time being in force or rules of the Corporation;
- 5.16 Sleeping while on duty;
- 5.17 Commission of any act which amounts to a criminal offence involving moral turpitude;
- 5.18 Absence from the employee’s appointed place of work without permission or sufficient cause;

- 5.19 Purchasing properties, machinery, stores etc. from or selling properties, machinery, stores, etc. to the Corporation without express permission in writing from the Competent Authority.
- 5.20 Omission of any act subversive of discipline or of good behavior;
- 5.21 Abetment of or attempt at abetment of any act which amounts to misconduct;
- 5.22 Sexual Harassment of Woman at Workplace
- 5.23 Non – disclosure of private foreign visits/ study, undertaken by employee or his/her family member(s), within two weeks of the foreign visit (inclusive of foreign education), undertaken by them.
- 5.24 Subletting of Staff Quarters

6. EMPLOYMENT OF NEAR RELATIVES OF THE EMPLOYEES IN ANY CORPORATION OR FIRM ENJOYING PATRONAGE OF THE CORPORATION

- 6.1. No employee shall use his/her position or influence directly or indirectly to secure employment for any person related whether by blood or marriage to the employee or to the employee's wife or husband; whether such a person is dependent on the employee or not.
- 6.2. No employee shall, except with the previous sanction of the Competent Authority permit his/her son, daughter or any member of the family to accept employment with any Company or firm with which he has official dealings, or with any Company or firm, having official dealings with the Corporation. Where the acceptance of the employment cannot wait for prior permission of the Competent Authority, the employment may be accepted provisionally subject to the permission of the Competent Authority to whom the matter shall be reported forthwith.
- 6.3. No employee shall in the discharge of his/her official duties deal with any matter or give or sanction any contract to any Company or firm or any other person if any member of his/her family is employed in that Company or firm or under that person or if he or any member of his/her family is interested in such matter or contract in any other manner and the employee shall refer every such matter or contract to the superior official and the matter or the contract shall thereafter be disposed of according to the instructions of the Authority to whom the reference is made.

7. TAKING PART IN DEMONSTRATION

- 7.1 No employee of the Corporation shall engage him/herself or participate in any demonstration which involves incitement to an offence.

7.2 No employee of the Corporation shall engage him/herself in the following kinds of activities:

- (a) be an office bearer of a political party or an organization which takes part in politics;
- (b) take part in or assist in any manner in any movement/agitation or demonstration of a political nature;
- (c) take part in an election to any legislature or local Authority;
- (d) canvass in any election to any legislature or local Authority.

8. CONNECTION WITH MEDIA (PRESS, TV CHANNEL, RADIO, INTERNET MULTIMEDIA ETC.)

8.1 No employee of the Corporation shall, except with the previous sanction of the Competent Authority, own wholly or in part, or conduct or participate in the editing or management of any newspapers or other periodical publication.

8.2 No employee of the Corporation shall, except with the previous sanction of the Competent Authority (the prescribed Authority), or in the bonafide discharge of his/her duties, participate in a radio broadcast/competitions on TV channels or contribute any article or write any letter either in his/her own name or anonymously, pseudonymously, or in the name of any other person, to any newspaper or periodical or digital or social media platforms/blogs/vlogs/small duration videos; provided that no such sanction shall be required if such broadcast or such contribution is of a purely literary artistic or scientific character.

8.3 No employee of the Corporation shall, except with the previous sanction of the Competent Authority upload any matter on internet. Provided that no such sanction shall be required if material/ contribution is of a purely literary artistic or scientific character.

8.4 No employee of the Corporation shall, except with the previous sanction of the Competent Authority is permitted to take part in any show or act in the film.

9. CRITICISM OF GOVERNMENT AND THE CORPORATION

No employee shall, in any radio broadcast/TV show/ internet/ social media or any document published under his/her name or in the name of any other person or in any communication to the press or in any public utterances, make any statement:

- a. which has the effect of adverse criticism of any policy or action of the Central or State Government or of the Corporation, or
- b. which is capable of embarrassing the relations between the Corporation and the public.
 - (i) provided that nothing in these rules shall apply to any statement made or views expressed by an employee, of purely factual nature which are not considered to

be of a confidential nature, in his/her official capacity or in due performance of the duties assigned to him/her.

- (ii) provided further that nothing in these rules shall apply to bonafide expression of views by him/her as an office bearer of a recognized trade Union for the purpose of safeguarding the conditions of service of such employees or for securing any improvement.

10.EVIDENCE BEFORE COMMITTEE OR ANY OTHER AUTHORITY

- 10.1 Save as provided in sub-rule (3), no employees of the Corporation shall except, with the previous sanction of the competent Authority, give evidence in connection with any enquiry conducted by any person, committee or Authority.
- 10.2 Where any sanction has been accorded under sub-rule (1), no employee giving such evidence shall criticize the policy or any action of the Central Government or of State Governments, or of the Corporation.
- 10.3 Nothing in this rule shall apply to-
 - i. evidence given at any enquiry before an authority appointed by the Government, Parliament or a State Legislator or any Company;
 - ii. evidence given in any judicial enquiry; or
 - iii. evidence given at any departmental enquiry ordered, by authorities subordinate to the Government.

11.UNAUTHORIZED COMMUNICATION OF INFORMATION

No employee shall, except in accordance with any general or special order of the Corporation or in the performance in good faith of the duties assigned to him/her, communicate, directly or indirectly, any official document or any part thereof to any officer or other employee, or any other person to whom he is not authorized to communicate such document or information.

12.GIFTS

Save as otherwise provided in these rules, no employee of the Corporation shall accept or permit any member of his/her family or any other person acting on his/her behalf, to accept any gift.

Explanation: The expression 'Gift' shall include free transport, boarding, lodging or other service or any other pecuniary advantage when provided by any

person other than a near relative or a personal friend having no official dealings with the employee.

Note: -

1. An employee of the Corporation shall avoid acceptance of lavish or frequent hospitality from any individual or firm having official dealings with him/her.
2. On occasions such as weddings, anniversaries, funerals or religious functions, when the making of gifts is in conformity with the prevailing religious or social practices, an employee of the Corporation may accept gifts from his/her near relatives but he shall make a report to the Competent Authority if the value of the gift exceeds ₹25,000 in the case of Executives and ₹15,000/- in the case of Non-Executives;
3. On such occasions as are specified in sub-rule (2), an employee of the Corporation may accept gifts from his/her personal friends having no official dealings with him/her, but he shall make a report to the competent Authority if the value of any such gift exceeds ₹1,500/- in the case of Executives and Non-Executives.
4. In any other case, an employee of the Corporation shall not accept or permit any other member of his/her family or any other person acting on his/her behalf to accept any gifts without the sanction of the competent authority if the value thereof exceeds ₹1,500/- in the case of Executives and Non-Executives;

Provided that when more than one gift has been received from the same person/firm within a period of 12 months, the matter shall be reported to the competent authority if the aggregate value of the gifts exceeds ₹25,000/- and ₹15,000/- in case of Executives and Non-Executives respectively.

12A. DOWRY

No employee of the Corporation shall:

- (i) give or take or abet the giving or taking of dowry; or
- (i) demand, directly or indirectly, from the parents or guardian of a bride or bridegroom, as the case may be, any dowry.

Explanation: For the purpose of this rule 'dowry' has the same meaning as in the Dowry Prohibition Act, 1961 (28 of 1961), or as amended from time to time.

13.PRIVATE TRADE OR EMPLOYMENT

- 13.1 No employee of the Corporation shall, except with the previous sanction of the competent Authority, engage directly or indirectly in any trade or business or undertake any other employment. Provided that an employee may, without such sanction, undertake honorary work of a special or charitable nature or occasional work of a literary, artistic or scientific character subject to the condition that his/her official duties do not thereby suffer.
- 13.2 Every employee of the Corporation shall report to the competent Authority if any member of his/her family has engaged in a trade or business or owns or manages an insurance agency or commission agency.
- 13.3 No employee of the Corporation shall, without the previous sanction of the competent Authority, except in the discharge of his/her official duties, take part in the registration, promotion or management of any bank or other Corporation/ Company which is required to be registered under the Companies Act, 2013 or other law for the time being in force or any cooperative society for commercial purposes. Provided that any employee of the Corporation may take part in the registration, promotion or management of a Consumer/House Building Cooperative Society substantially for the benefit of the employees of the Corporation, registered under the Cooperative Societies Act, 1912 (2 of 1912) or any other law for the time being in force, or of a literary, scientific or charitable society registered under the Societies Registration Act, 1860 (21 of 1860) or any corresponding law in force.
- 13.4 No employee of the Corporation may accept any fee or any pecuniary advantage for any work done by him/her for any public body or any private person without the sanction of the Competent Authority.

14.INVESTMENT, LENDING AND BORROWING

No employee shall save in the ordinary course of business with a bank, the Life Insurance Corporation or a firm of standing, borrow money from or lend money to or otherwise place him/herself under pecuniary obligation to any person with whom he was or is likely to have official dealings or permit any borrowing, lending or pecuniary obligation in his/her name or for his/her benefit or for the benefit of any member of his/her family.

15.INSOLVENCY AND HABITUAL INDEBTEDNESS

- 15.1 An employee of the Corporation shall avoid habitual indebtedness unless he proves that such indebtedness or insolvency is the result of circumstances beyond his/her control and does not proceed from extravagance or dissipation.
- 15.2 An employee of the Corporation who applies to be, or is adjudged or declared insolvent shall forthwith report the fact to his/her competent Authority.

16. PERMISSION TO TRANSACT MOVABLE, IMMOVABLE AND VALUABLE PROPERTY

- 15.1 No employee of the Corporation shall except with the prior approval in the prescribed form of the Competent Authority, acquire or dispose of any immovable property by lease, mortgage, purchase, sale, gift, or otherwise, either in his/her own name or in the name of any member of his/her family.
- 15.2 Employee shall not speculate in any stock, share or other investment and that the frequent purchase or sale or both, of shares, securities or other investments shall be deemed to be speculation within the meaning of this sub-rule.
- 15.3 No employee of the Corporation shall except with the previous sanction of the Competent Authority, enter into any transaction concerning any immovable or movable property with a person or a firm having official dealings with the employee or his/her subordinate.
- 15.4 Every employee of the Corporation shall report to the Competent Authority every transaction concerning movable property owned or held by him/her and member of his/her family, if the value of such property is equal to or exceeding two times of his/her Basic Pay. An intimation shall also be made (on the proforma) where cumulative transaction i.e. sale, purchase or both in shares debentures or mutual funds etc. in a year equal to or exceeding two times of his/her Basic Pay.

Further, expenditure incurred in visiting countries abroad as well as on children's education abroad also needs to be intimated as such expenditures normally exceed the limit two times of Basic Pay. Henceforth, such expenditures on foreign visits and children's education abroad should also be intimated under this rule.

Explanation No.1

The term "every transaction concerning movable property owned or held by him/her" includes all transactions of sale or purchase. For purpose of this sub-rule, the definition of movable property would include:

- (a) Jewelry and Insurance policy premium, which is equal to or exceeding two times of his/her Basic Pay;
- (b) shares, securities and debentures;
- (c) loans advanced by such employee whether secured or not;
- (d) motor cars, motor cycles, horses or any other means of conveyance; and
- (e) refrigerators, radios, TV sets and computers etc.

Explanation No: 2

Transaction entered into by the spouse or any other member of family of an employee of the Corporation out of his/her or her own funds (including Stridhan gifts, inheritance etc.) as distinct from the funds of the employee of the Corporation him/herself, in his/her or her own name and in his/her or her own right, would not attract the provisions of the above sub-rules.

- (a) Every employee shall, on first appointment in the Corporation submit a return of assets and liabilities in the prescribed form giving the particulars regarding: -
- (i) the immovable property inherited by him/her, or owned or acquired by him/her, held by him/her on lease or mortgage, either in his/her own name or in the name of any member of his/her family or in the name of any other person;
 - (ii) shares, debentures, and cash including bank deposits inherited by him/her or similarly owned, acquired, or held by him/her;
 - (iii) other movable property inherited by him/her or similarly owned acquired or held by him/her if the value of such property is equal to or exceeding two times of his/her Basic Pay of the employee;
 - (iv) debts and other liabilities incurred by him/her directly or indirectly;
 - (v) every employee shall, beginning 1st January, submit a return of immovable property inherited owned/acquired once in every year.
- (b) The competent Authority may at any time, by general or special order require an employee to submit, within a period specified in the order, a full and complete statement of such movable or immovable property held or acquired by him/her or on his/her behalf or by any member of his/her family as may be specified in the order. Such statement shall, if so, required by the Competent Authority, include details of the means by which or the source from which such property was acquired.

17.CANVASSING OF NON-OFFICIAL OR OTHER INFLUENCE

No employee shall bring or attempt to bring any outside influence to bear upon any superior Authority to further his/her interests in respect of matters pertaining to his/her service in the Corporation.

The employees should not approach Members of Parliament or State Legislatures or other political/ outside authorities to sponsor their cases in respect of service matters, including D&AR matters. In case of violation, the following action will be taken against the concerned DMRC employee for approaching Members of Parliament or State Legislatures/ other Political authorities for sponsoring individual cases: -

- (i) DMRC employee violating the aforesaid provision of the Conduct Rule for the first time will be counseled and warned by the appropriate Disciplinary Authority, to

desist from approaching Members of Parliament/ Members of State Legislature etc. to further his/her interest in respect of matters pertaining to his/her service conditions. A copy of this warning letter will also be placed in the ACR/ APAR dossier of the employee concerned.

- (ii) If he/ she is found guilty of violating the aforesaid provisions of the Conduct Rules second time despite the issue of warning on the first occasion, Disciplinary action will be initiated against him/her for major penalty by the appropriate Disciplinary Authority under the provision of DMRC Conduct, Discipline & Appeal Rules, and deterrent punishment may be awarded.

18.BIGAMOUS MARRIAGES

- 18.1 No employee shall enter into, or contract marriage with a person having a spouse living, and
- 18.2 No employee, having a spouse living, shall enter into or contract a marriage with any person.

Provided that the Corporation may permit an employee to enter into a contract with any such marriage as is referred to in clause (1) or clause (2), if it is satisfied that:-
 - (i) such marriage is permissible under the Personal Law applicable to such employee and the other party to the marriage; and
 - (ii) there are other grounds for so doing.
- 18.3 If an employee has married a person other than that of Indian Nationality, he shall forthwith intimate the fact, to the Corporation.

19.CONSUMPTION OF INTOXICATING DRINKS & DRUGS

- 18.1 Every employee shall abide by any law relating to intoxicating drinks or drugs in force in any area in which he may happen to be for the time being.
- 18.2 Not be under the influence of any intoxicating drink or drug during the course of his/her duty and shall also take due care that the performance of his/her duties at any time is not affected in any way by the influence of such drink or drug.
- 18.3 Refrain from consuming any intoxicating drink or drug in a public place.
- 18.4 Not appear in a public place in a state of intoxication.
- 18.5 Not use any intoxicating drink or drug in excess.

Explanation: For the purpose of this rule, “Public Place” means any place or premises (including clubs, even exclusively meant for members where it is permissible for the members to invite non-members as guests, bars and restaurants, conveyance) to which the public have or are permitted to have access, whether on payment or otherwise.

20. CODE OF VALUES & ETHICS FOR DMRC EMPLOYEES

Statement of Purpose: DMRC's management practices and business conduct shall benefit the country, localities and communities in which it operates, and shall be in accordance with the laws of the land.

Preamble: Values are intrinsic to our lives; they add strength to our character and righteousness of our belief.

21.NATIONAL INTEREST

DMRC shall not undertake any project or activity to the detriment of the wider interests of the communities in which it operates.

22.EQUAL OPPORTUNITIES EMPLOYER

DMRC shall provide equal opportunities to all its employees and all qualified applicants for employment without regard to their race, caste, religion, colour, ancestry, marital status, gender, sexual orientation, age, nationality or disability. Human resource policies shall promote diversity and equality in the workplace, as well as compliance with all local labour laws, while encouraging the adoption of international best practices.

All the employees of DMRC shall be treated with dignity and in accordance with the DMRC policy of maintaining a work environment free of all forms of harassment, whether physical, verbal or psychological. Employee policies and practices shall be administered in a manner consistent with applicable laws and other provisions of this Code, respect for the right to privacy and the right to be heard, and that in all matters equal opportunity is provided to those eligible and decisions are based on merit.

23.GIFTS AND DONATIONS

DMRC and its employees shall neither receive nor offer or make, directly or Indirectly, any illegal payments, remuneration, gifts, donations or comparable benefits that are intended, or perceived, to obtain uncompetitive favours for the conduct of its business.

DMRC shall make all efforts to eliminate all forms of bribery, fraud and corruption.

DMRC and its employees may accept and offer nominal gifts, provided such gifts are customarily given and/or are of a commemorative nature.

24.HEALTH, SAFETY AND ENVIRONMENT

DMRC shall strive to provide a safe, healthy, clean and ergonomic working environment for its people.

25.QUALITY OF PRODUCTS AND SERVICES

DMRC shall offer services of world class quality standards, consistent with the requirements of its customers, while striving for their total satisfaction. The quality standards of the services shall meet applicable national and international standards.

26.CORPORATE CITIZENSHIP

DMRC shall be committed to good corporate citizenship, not only in the compliance of all relevant laws and regulations but also by actively assist in the improvement of quality of life of the people in the communities in which it operates.

27.THIRD PARTY REPRESENTATION

Agencies having business dealings with DMRC, such as consultants, contractors and vendors, shall not be authorized to represent DMRC without the written permission of DMRC.

Third parties and their employees are expected to abide by the Code in their interaction with, and on behalf of DMRC.

28.ETHICAL CONDUCT

Every employee of DMRC shall deal on behalf of the company with professionalism, honesty and integrity, while conforming to high moral and ethical standards. Such conduct shall be fair and transparent and be perceived to be so by third parties.

Every employee shall be responsible for the implementation of and compliance with the Code in his/her environment. Failure to adhere to the Code could attract provisions of the Conduct Rules.

Every employee shall always punctually turn up on duty, sober and smartly dressed.

29.REGULATORY COMPLIANCE

Employees of a DMRC in their business conduct, shall comply with all applicable laws and regulations, in letter and spirit, In all the territories in which they operate. If the ethical and professional standards of applicable laws and regulations are below that of the Code, then the standards of the Code shall prevail.

As good governance practice employee shall safeguard the confidentiality of all information received by them by virtue of their position.

30.CONCURRENT EMPLOYMENT

Consistent with applicable laws, an employee of DMRC shall not, without the requisite, officially written approval of the company, accept employment or a position of responsibility (such as a consultant or a director) with any other company, nor provide freelance services to anyone.

31.CONFLICT OF INTEREST

An employee of DMRC shall always act in the interest of the company, and ensure that any business or personal association which he/she may have does not involve a conflict of interest with the operations of the company and his/her role therein.

32.SECURITIES TRANSACTIONS AND CONFIDENTIAL INFORMATION

An employee of DMRC and his/her immediate family shall not derive any benefit or counsel, or assist others to derive any benefit, from access to and possession of information about the company or group or its clients or suppliers that is not in the public domain and, thus, constitutes unpublished insider information.

33.PROTECTING COMPANY ASSETS

The assets of DMRC shall not be misused; they shall be employed primarily and judiciously for the purpose of conducting the business for which they are duly authorized. These include tangible assets such as equipment and machinery, systems, facilities, materials and resources, as well as intangible assets such as information technology and systems, proprietary information, intellectual property, and relationships with customers and suppliers.

34.INTEGRITY OF DATA FURNISHED

Every employee of DMRC shall ensure, at all times, the integrity of data or information furnished by him/her to the Corporation. He/she shall be entirely responsible in ensuring that the confidentiality of all data is retained and in no circumstance transferred to any outside person/ party in the course of normal operations without express guidelines from or, the approval of the management. The DMRC's Information Security Policy, 2019, or as amended from time to time, shall be complied with, by all the employees.

35.REPORTING SYSTEMS

Every employee of DMRC shall promptly report to the management, when she/he becomes aware of any actual or possible violation of the Code or an event of misconduct, act of misdemeanor or act not in the DMRC's interest.

36.IMMUNITY

Every employee of DMRC shall be law abiding and will not embarrass the organization in any way.

No employee of DMRC will initiate any legal action against DMRC or any of its employees without exhausting departmental avenue and prior approval of the Management.

PART III - DISCIPLINE

37.SUSPENSION

37.1 The appointing Authority or any Authority to which it is subordinate or the Disciplinary Authority or any Authority empowered in that behalf by the Management by general or special order may place on employee under suspension: -

- a) where Disciplinary proceedings against him/her is contemplated or is pending; or
- b) where a case against him/her in respect of any criminal offence is under investigation or trial.

37.2 An employee who is detained in custody, whether on a criminal charge or otherwise, for a period exceeding 48 hours shall be deemed to have been suspended with effect from the time and date of detention by an order of the Disciplinary Authority and shall remain under suspension, until further orders.

37.3 Where a penalty of dismissal, removal or compulsory retirement from service imposed upon an employee under suspension is set aside in appeal or on review under these rules and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and from the date of the original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.

37.4 Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Government servant is set aside or declared or rendered void in consequence of or

by a decision of a Court of Law and the Disciplinary Authority, on a consideration of the circumstances of the case, decides to hold a further inquiry against him/her on the allegations on which the penalty of dismissal or removal was originally imposed, the employee shall be deemed to have been placed under suspension by the Competent Authority from the date of the original order, until further orders.

37.5 An order of suspension made or deemed to have been made under this Rule may at any time be revoked by the authority, which made or is deemed to have made the order or by any authority to which that authority is subordinate.

37.6 (i) An order of suspension made or deemed to have been made under these Rules shall be reviewed by the competent Authority on recommendation of a Review Committee, constituted for this purpose. It is also being provided that an order of suspension made or deemed to have been made under Sub-rule-37.1 and 37.2 of these rules shall not be valid after 90 days unless it is extended after review for a further period before the expiry of 90 days. It is further being provided that extension of suspension shall not be for a period exceeding 180 days at a time.

(ii) It is, therefore necessary to constitute Review Committee(s) to review the suspension cases. The composition of Review Committee(s) shall be as under: -

(a) The case, when Disciplinary Authority is of Assistant Manager level and above up-to Dy. HOD level: -

The Disciplinary Authority, the Appellate Authority and another officer of the level of Disciplinary Authority/ Appellate Authority from the same department or from another department.

(b) The case, when Disciplinary Authority is of General Manager/ HOD level: -

The Disciplinary Authority and two officers of the level of General Manager/HOD, who are equivalent or higher in rank than the Disciplinary Authority, from the same department or from another department, in a case where the Appellate Authority is the Managing Director.

(c) The case, when Disciplinary Authority is of Director level:-

Three officers of the level of Directors, who are higher in rank than the suspended official from the same Department/ Office or from another department (in case another officer of same level is not available in the same office), in case where the Disciplinary/ Appellate Authority is the Managing Director.

(iii) The Review Committee(s) may take a view regarding revocation/ continuation of the suspension keeping in view of the facts and circumstances of the case and also taking into account that unduly long suspension, while putting the employee concerned to undue hardship, involve payment of Subsistence Allowance without the employee performing any useful service to the Corporation, without prejudice to the foregoing, if the employee has been under suspension for one year without any charges being filed in a court of law or no charge memo has been issued in a departmental enquiry, he shall be ordinarily be re-instated in service without prejudice to the case against him/her. However, in case the employee is in police/ judicial custody or is accused of a serious crime or a matter involving national security, the Review Committee may recommend the continuation of the suspension of the official concerned.

(iv) It is further provided that, no such review of suspension shall be necessary in the case of deemed suspension under Sub-rule- 37.2, if the employee continues to be under detention at the time of completion of ninety days of suspension and the ninety days period for review in such cases will count from the date the employee detained in custody is released from detention or the date on which the fact of his/her release from detention is intimated to his/her appointing Authority, whichever is later.

(v) The report of the Review Committee shall be put-up to the concerned HOD/ Director/ Managing Director, as per Schedule of Power, for approval.

38.SUBSISTENCE ALLOWANCE

37.1 An employee under suspension shall be entitled to draw subsistence allowance equal to 50% of his/her basic pay provided the Disciplinary Authority is satisfied that the employee is not engaged in any other employment or business or profession or vacation. In addition, he shall be entitled to Dearness Allowance admissible on such subsistence allowance and any other compensatory allowance of - which he was in receipt on the date of suspension provided the suspending Authority is satisfied that employee continues to meet the expenditure for which the allowance was granted.

- a. When the period of suspension exceeds six months, the Authority which made or is deemed to have made the order of suspension shall be competent to vary the amount of subsistence allowance for any period subsequent to the period of the first six months as follows: the amount of subsistence allowance may be increased to 75% of basic pay and allowance thereon, if in the opinion of said Authority, the period of suspension has been prolonged for reasons, to be recorded in writing, not directly attributable to the employee under suspension.
- b. the amount of subsistence allowance may be reduced to 25% of basic pay and allowance thereon, if in the opinion of the said Authority, the period of suspension

has been prolonged due to the reasons, to be recorded in writing, directly attributable to the employee under suspension.

- 37.2 If any employee is arrested by the police on a criminal charge and bail is not granted, no subsistence allowance is payable. On grant of bail if the competent Authority decides to continue the suspension, the employee shall be entitled to subsistence allowance from the date he is granted bail.

39.TREATMENT OF THE PERIOD OF SUSPENSION

- 38.1 When the employee under suspension is reinstated, the Competent Authority may grant him/her the following pay and allowances for the period of suspension;
- a. If the employee is exonerated and not awarded any of the penalties mentioned in Rule 40, the full pay and allowances, which he would have been entitled to if he had not been suspended, less the subsistence allowance already paid to him/her; and
 - b. If otherwise, such proportion of pay and allowances as the Competent Authority may prescribe.
- 38.2 In a case falling under Sub-clause (a) the period of absence from duty will be treated as a period spent on duty. In case falling under Sub-clause (b) it will not be treated as a period spent on duty unless the Competent Authority so directs. The Disciplinary Authority shall clearly specify the manner of treatment of the period under suspension.

40.PENALTIES

- 39.1 The following penalties may be imposed on an employee, as herein provided, for misconduct committed by him/her or her or for any other good and sufficient reasons.

Minor Penalties -

- (i) Censure;
- (ii) Withholding of his/her promotion;
- (iii) Recovery from his/her pay of the whole or part of any pecuniary loss caused by him/her to the Corporation by negligence or breach of orders;
- (iv) Reduction to a lower stage in the time-scale of pay by one stage for a period not exceeding three years, without cumulative effect and not adversely affecting his/her terminal benefits;
- (v) Withholding of increments of pay;

Major Penalties –

- (vi) [save as provided for in clause (iv)], Reduction to a lower stage in the time-scale of pay for a specified period, with further directions as to whether or not the employee will earn increments of pay during the period of such reduction and whether on the expiry of such period, the reduction will or will not have the effect of postponing the future increments of his/her pay;
- (vii) Reduction to a lower time-scale of pay, grade, post or service, with or without further directions regarding conditions of restoration to the grade or post or service from which the DMRC employee was reduced and his seniority and pay on such restoration to that grade, post or service;
- (viii) Compulsory Retirement;
- (ix) Removal from service which shall not be a disqualification for future employment under the Government or PSUs;
- (x) Dismissal from service which shall ordinarily be a disqualification for future employment under the Government or PSUs.

Provided that in cases of persons found guilty of any act or omission resulted or would have, ordinarily, resulted in collision of trains one of the penalties specified in Clause (ix) and (x) shall ordinarily be imposed and in cases of passing Railway signals at danger, one of the penalties specified in Clauses (vi) to (x) shall, ordinarily, be imposed and where penalty is not imposed the reasons thereof shall be recorded in writing

Provided that, in every case in which the charge of possession of assets disproportionate to known-source of income or in cases of person found guilty of having accepted or having obtained from any person of any gratification, other than legal remuneration, as a motive or reward for doing or forbearing to do any official act is established, the penalty mentioned in clause (ix) or clause (x) shall be imposed. Provided further that in any exceptional case and for special reasons recorded in writing, any other penalty may be imposed.

39.2 For guidance of all Disciplinary Authorities, it is to mention that the cases in which there is reasonable ground to believe that a penal offence has been committed by a DMRC employee but the evidence forthcoming is not sufficient for prosecution in a Court of Law will warrant issue of a charge sheet. Further, for following matters also major D&AR will normally be initiated: -

- (i) Possession of disproportionate assets.
- (ii) Obtaining or attempting to obtain illegal gratification.
- (iii) Misappropriation of Government property, money or stores.

- (iv) Obtaining or attempting to any valuable thing or pecuniary advantage without consideration for a consideration which is not adequate.
- (v) Falsification of DMRC records.
- (vi) Gross irregularity or negligence in the discharge of official duties with a dishonest motive.
- (vii) Misuse of official position or power for personal gains.
- (viii) Disclosure of secret or confidential information even though it does not fall strictly within the scope of the Official Secret Act.
- (ix) False claims like TA/DA, LTC/ Medical claim etc.
- (x) Serious acts of misbehavior with Metro commuters.
- (xi) Acts of unsafe working resulting in grievous injury to Metro commuters.
- (xii) Passing signals at danger or an act which would have resulted in collision of trains.

Explanation

The following shall not amount to a penalty within the meaning of this Rule:

- a. withholding of increment of an employee on account of his/her work being found unsatisfactory or not being of the required standard, or for failure to pass a prescribed test of examination;
- b. stoppage of an employee at the efficiency bar in a time scale, on the ground of his/her unfitness to cross the bar;
- c. non-promotion, whether in an officiating capacity or otherwise, of an employee, to a higher post for which he may be eligible for consideration but for which he is found unsuitable after consideration of his/her case;
- d. reversion to a lower grade or post of an employee officiating in a higher grade or post on the ground that he is considered, after trial, to be unsuitable for such higher grade or post, or on administrative grounds unconnected with his/her conduct;
- e. reversion to his/her previous grade or post of an employee appointed on probation to another grade or post, during or at the end of the period of probation in accordance with the terms of appointment;
- f. replacement of services of an employee, whose services had been borrowed from the Government or any authority under the control of the Government;
- g. compulsory retirement of a Government servant in accordance with the provisions relating to his superannuation or retirement
- h. Termination of the services:

- (i) of an employee appointed on probation, during or at the end of the period of probation, in accordance with the terms of his/her appointment;
 - (ii) of an employee appointed in a temporary capacity otherwise than under a contract or agreement, on the expiration of the period for which he was appointed, or earlier in accordance with the terms of his/her appointment;
 - (iii) of an employee appointed under a contract or agreement in accordance with the terms of such contract or agreement; and
 - (iv) of any employee on reduction of establishment.
- i. any compensation awarded on the recommendation of the Complaints Committee referred to in the proviso to Rule 42 (2) and established in the Corporation for inquiring into any complaint of sexual harassment, within the meaning of Rule 4.3 of these Rules.

41.DISCIPLINARY AUTHORITY

The Disciplinary Authority, as specified in the Schedule - 'A', or any Authority higher than it, may impose any of the penalties specified in Rule 40 on any employee.

42.PROCEDURE FOR IMPOSING MAJOR PENALTIES

1. No order imposing any of the major penalties specified in Rule (vi) to (x) of Rule 40.1 shall be made except after an inquiry is held in accordance with this rule.
2. Whenever the disciplinary authority is of the opinion that there are grounds for inquiring into the truth of any imputation of misconduct or misbehavior against an employee, it may itself inquire into, or appoint any inquiring authority / any public servant / retired public servant to inquire into the truth thereof. Provided that where there is a complaint of sexual harassment within the meaning of Rule 4.3 above, the Internal Complaints Committee, established in the Corporation, for inquiring into such complaints, shall be deemed to be the inquiring authority appointed by the disciplinary authority for the purpose of these rules and the Complaints Committee shall hold, if separate procedure has not been prescribed for the complaints committee for holding the inquiry into the complaints of sexual harassments, the inquiry as far as practicable in accordance with the procedure laid down in these rules.
3. Where it is proposed to hold an inquiry, the Disciplinary Authority shall frame definite charges on the basis of the allegations against the employee. The charges, together with a statement of the allegations, on which they are based, a list of documents by which and a list of witnesses by whom, the articles of charge are proposed to be sustained, shall be communicated in writing to the employee, who shall be required to submit within such

time as may be specified by the Disciplinary Authority (not exceeding 15 days), a written statement whether he admits or denies any of or all the articles of charges.

4. On receipt of the written statement of the employee or if no such statement is received within the time specified, an inquiry may be held by the Disciplinary Authority itself, or by any other public servant appointed as an Inquiring Authority under sub-clause (2). Provided that it may not be necessary to hold an inquiry in respect of the charges admitted by the employee in his written statement. The Disciplinary Authority shall, however, record its findings on each such charge.
5. Where the disciplinary authority itself inquires or appoints an inquiring authority for holding an inquiry, it may, by an order appoint a public servant to be known as the "Presenting Officer" to present on its behalf the case in support of the articles of charge.
6. The employee may take the assistance of any other public servant / retired public servant but may not engage a legal Practitioner for the purpose unless the Presenting Officer appointed by the disciplinary authority is a legal practitioner, or the disciplinary authority, having regard to the circumstances of the case, so permits.
7. On the date fixed by Inquiring Authority, the employee shall appear before the Inquiring Authority at the time, place and date specified in the notice. The Inquiring Authority shall ask the employee whether he pleads guilty or has any defence to make and if he pleads guilty to any of the articles of charge, the Inquiring Authority shall record the plea, sign the record and obtain the signature of the employee concerned thereon. The Inquiring Authority shall return a finding of guilt in respect of those article of charge to which the employee concerned pleads guilty.
8. If the employee does not plead guilty, the inquiring authority shall adjourn the case to a later date not exceeding 30 days, after recording an order that the employee may, for the purpose of preparing his/her defence:
 - a. inspect the documents listed with charge-sheet.
 - b. submit a list of additional documents and witnesses that employee wants to examine; and
 - c. be supplied with the copies of the statements of witnesses, if any, listed in the charge-sheet.

Note: Relevancy of the additional document and the witnesses referred to in sub-clause (b) & (c) above will have to be given by the employee concerned and the documents and the witnesses shall be summoned if the inquiring authority is satisfied about their relevance to the charges under inquiry.

9. The Inquiring Authority shall ask the Authority in whose custody or possession the documents are kept for the production of the documents on such date as may be specified.
10. The authority in whose custody or possession the requisitioned documents are, shall arrange to produce the same before the inquiring authority on the date, place and time specified in the requisition notice.

Provided that the authority having the custody or possession of the requisition documents may claim privilege if the production of such documents will be against the public interest or the interest of the Corporation. In the event, it shall inform the inquiring authority accordingly.

11. On the date fixed for the inquiry the oral and documentary evidence by which the articles of charge are proposed to be proved shall be produced by or on behalf of the disciplinary authority. The witnesses shall be examined by or on behalf of the Presenting Officer and may be cross-examined by or on behalf of the employee. The Presenting Officer shall be entitled to re-examine the witness on any points on which they have been cross-examined, but not on a new matter, without the leave of the Inquiring Authority. The Inquiring Authority may also put such questions to the witnesses as it thinks fit.
12. Before the close of the prosecution case, the inquiring authority may, in its discretion allow the Presenting Officer to produce evidence not included in the charge sheet or may itself call for new evidence or recall or re-examine any witness. In such case the employee shall be given opportunity to inspect the documentary evidence before it is taken on record; or to cross-examine a witness, who has been so summoned.
13. When the case for the disciplinary authority is closed, the employee may be required to state his/her defence, orally or in writing as employee may prefer. If the defence is made orally, it shall be recorded and the employee shall be required to sign the record. In either case a copy of the statement of defence shall be given to the Presenting Officer, if any appointed.
14. The evidence on behalf of the employee shall then be produced. The employee may examine himself/herself in his/her own behalf if employee so prefers. The witnesses produced by the employee shall then be examined and shall be liable to cross-examination, re-examination and examination by the inquiring authority according to the provision applicable to the witnesses for the disciplinary authority.

15. The Inquiring Authority may, after the employee closes his/her case, and shall, if the employee has not examined himself/herself, generally question the employee on the circumstances appearing against the employee in the evidence for the purpose of enabling the employee to explain any circumstances appearing in the evidence against him/her.
16. The Inquiring Authority, may after completion of the production of evidence, hear the Presenting Officer, if any appointed, and the employee or permit them to file written briefs of their respective cases, if they so desire.
17. If employee does not submit the written statement of defence referred to in sub-rule (3) on or before the date specified for the purpose or does not appear in person, or through the assisting officer or otherwise fails or refuses to comply with any of the provisions of these rules, the inquiring authority may hold the enquiry ex parte.
18. Whenever any inquiring authority, after having heard and recorded the whole or any part of the evidence in an inquiry ceases to exercise jurisdiction therein, and is succeeded by another inquiring authority which has, and which exercises, such jurisdiction, the inquiring authority so succeeding may act on the evidence so recorded by its predecessor, or partly recorded by its predecessor and partly recorded by itself.
- Provided that if the succeeding inquiring authority is of the opinion that further examination of any of the witnesses whose evidence has already been recorded is necessary in the interest of justice, it may recall examine, cross-examine and re-examine any such witnesses as hereinbefore provided.
19. i. After the conclusion of the inquiry report shall be prepared and it shall contain-
- a. a gist of the articles of charge and the statement of the imputations of misconduct or misbehavior;
 - b. a gist of the defence of the employee in respect of each article of charge;
 - c. and assessment of the evidence in respect of each article of charge;
 - d. the findings on each article of charge and the reasons therefor.

Explanation — If in the opinion of the inquiring authority the proceedings of the inquiry establish any article of charge different from the original articles of the charge, it may record its findings on such article of charge.

Provided that the findings on such article of charge shall not be recorded unless the employee has either admitted the facts on which such article of charge is

based or has had a reasonable opportunity of defending oneself against such article of charge.

- ii. The inquiring authority, where it is not itself the disciplinary authority, shall forward to the disciplinary authority the records of inquiry which shall include-
 - a. The report of the inquiry prepared by it under sub-clause (i) above;
 - b. The written statement of defence if any submitted by the employee referred to in sub-rule (3);
 - c. The oral and documentary evidence produced in the course of the inquiry;
 - d. Written briefs referred to in sub-rule (16) if any; and
 - e. The orders if any made by the disciplinary authority and the inquiring authority in regard to the inquiry.

43. ACTION ON THE INQUIRY REPORT

- 42.1 The disciplinary authority, if it is not itself the inquiring authority may, for reason to be recorded by it in writing remit the case to the inquiring authority for fresh or further inquiry and report and the inquiry authority shall thereupon proceed to hold the further inquiry according to the provisions of Rule 42 as far as may be.
- 42.2 The disciplinary authority shall forward or cause to be forwarded a copy of the report of the inquiry, if any, held by the disciplinary authority or where the disciplinary authority is not the inquiring authority, a copy of the report of the inquiring authority, together with its own tentative reasons for disagreement, if any, with the findings of inquiring authority on any article of charge to the employee who shall be required to submit, if employee so desires, his/her written representation or submission to the disciplinary authority within fifteen days, irrespective of whether the report is favorable or not to the employee.
- 42.3 If the disciplinary authority having regard to its findings on all or any of the articles of charge, is of the opinion that no penalty is called for, it may pass an order exonerating the employee concerned.
- 42.4 If the disciplinary authority having regard to its findings on all or any of the articles of charge is of the opinion that any of the penalties that any of the penalties specified in Rule 40 should be imposed on the employee it shall, notwithstanding anything contained in Rule 44 make an order imposing such penalty.

44.PROCEDURE FOR IMPOSING MINOR PENALTIES

- 43.1 Where it is proposed to impose any of the minor penalties, specified in clauses (i), (ii), (iii), iv) and (v) of Rule 40, the employee concerned shall be informed in writing of the imputation of misconduct or misbehavior against him/her and given an opportunity to submit his/her written statement of defence within a specified period not exceeding 15 days. The defence statement, if any, submitted by the employee shall be taken into consideration by the Disciplinary Authority before passing orders.
- 43.2 The record of the proceeding shall include: -
- a. a copy of the statement of imputation of misconduct or misbehavior delivered to the employee;
 - b. his/her defence statement, if any; and
 - c. the orders of the Disciplinary Authority together with the reason therefore.

45.COMMUNICATION OF ORDERS

Orders made by the Disciplinary Authority under Rule 43 or Rule 44 shall be communicated to the employee concerned, who shall also be supplied with a copy of: -

- i. its finding on each article of charge,
or
where the disciplinary authority is not the inquiring authority, a statement of the findings of the disciplinary authority together with brief reasons for its disagreement, if any, with the findings of the inquiring authority and;
- ii. a copy of the advice, if any, given by the Commission, and
- iii. where the disciplinary authority has not accepted the advice of the Commission, a brief statement of the reasons for such non-acceptance.

46.COMMON PROCEEDINGS

Where two or more employees are concerned in a case, the authority competent to impose a major penalty on all such employees may make an order directing that disciplinary proceedings against all of them may be taken in a common proceedings and the specified authority may function as the disciplinary authority for the purpose of such common proceedings.

47.SPECIAL PROCEDURE IN CERTAIN CASES

Notwithstanding anything contained in Rule 42 or 43 or 44, the Disciplinary Authority may impose any of the penalties specified in Rule 40 in any of the following circumstances:

- 46.1 The employee has been convicted on a criminal charge, or on the strength of facts or conclusions arrived at by a judicial trial; or
- 46.2 Where the Disciplinary Authority is satisfied for reasons to be recorded by it in writing that it is not reasonably practicable to hold an inquiry in the manner provided in these rules; or
- 46.3 Where the Board is satisfied that in the interest of the security of the Corporation, it is not expedient to hold any inquiry in the manner provided in these rules. Provided that the employee may be given an opportunity for making representation in the penalty proposed to be imposed before any order is made in a case falling under clause (I).
- 46.4 Notwithstanding anything contained to the contrary in any other rules, the services of any employee shall be terminated by the Corporation if, the employee remains on unauthorized absence for sixty days or more and he fails to explain his/her conduct satisfactorily within 15 days from the date of receipt of the 'Show Cause Notice' by him/her. The management shall be empowered to take a decision without resorting to further inquiries.

The decision in the above case would be taken by a Committee of officers at appropriate level to be constituted for this purpose by the Managing Director. The reasons for the decision would be recorded in writing. (Rule-19 of the General Conditions of Service Rules).

48.EMPLOYEES ON DEPUTATION FROM THE CENTRAL GOVERNMENT OR THE STATE GOVERNMENT, ETC.

- 47.1 Where an order of suspension is made or Disciplinary proceeding is taken against an employee, who is on deputation to the Corporation from the Central or State Government, or another public undertaking, or a local Authority, the Authority lending his/her services (hereinafter referred to as the 'Lending Authority' shall forthwith be informed of the circumstances leading to the order of his/her suspension, or the commencement of the Disciplinary proceeding, as the case may be.
- 47.2 In the light of the findings in the Disciplinary proceedings taken against the employee: -
 - (a) If the Disciplinary Authority is of the opinion that any of the minor penalties should be imposed on him/her, it may pass such order on the case as it deems necessary after consultation with the Lending Authority; provided that in the event of a difference of opinion between the Disciplinary and the Lending Authority, the services of the employee shall be placed at the disposal of the lending Authority.

- (b) If the Disciplinary Authority is of the opinion that any of the major penalties should be imposed on him/her, it should replace his/her services at the disposal of the Lending Authority and transmit to it the proceedings of inquiry for such action as it deems necessary.

48.3 If the employee submits an appeal against an order imposing a minor penalty on him/her under Sub-rule 48.2 (a) above, it will be disposed of after consultation with the Lending Authority: Provided that if there is a difference of opinion between the Appellate Authority, and the Lending Authority, the services of the employee shall be placed at the disposal of the Lending Authority and the proceedings of the case shall be transmitted to the Authority for such action as it deems necessary.

49.DISCIPLINARY PROCEEDING AFTER SUPERANNUATION.

- 48.1 The employee against whom Disciplinary proceeding have been initiated will cease to be in service on the date of superannuation, but the disciplinary proceedings instituted against him/her, while he was in service, whether before his/her retirement or during his/her re-employment, shall after retirement of the employee be continued, as if the employee had continued in service until the proceedings are concluded and final order passed in respect thereof.
- 48.2 Such employee will not be entitled to receive any pay and/ or allowances after the date of superannuation/ retirement. He/She will also not be entitled for the payment of any gratuity and leave encashment benefits till the proceedings are completed and final orders are passed thereon. In case, the employee, as a result of the disciplinary proceedings instituted against him/her, is found guilty of offences/ misconduct as mentioned in sub-section (6) of Section-4 of the Payment of Gratuity Act, 1972, or to have caused pecuniary loss to the Company by misconduct or negligence, during his/her service including service rendered on re-employment after retirement, the Disciplinary Authority may order recovery from gratuity of the whole or part of any pecuniary loss caused to the Company. However, the provisions of Section 7(3) and 7(3A) of the Payment of Gratuity Act, 1972, shall be kept in view in the view in the event of delayed payment, in case the employee is fully exonerated. However, payment of his/her EPF contribution will not be affected with the Disciplinary proceedings.

(As per Hon'ble Supreme Court of India decision in the case of Sh. Ramesh Chandra Sharma Vs. Punjab National Bank and GOI, CVC Circular No. 44/12/07 dated 28.12.2007).

PART IV – APPEALS

50.APPEALS

- 49.1 An employee may appeal against an order imposing upon the employee any of the penalties specified in Rule 40 or against the order of suspension referred to in Rule 37.
- 49.2 The appeal shall lie to the authority specified in the Schedule - A.
- 49.3 An appeal shall be preferred within one month from the date of communication of the order appealed against. The appeal shall be addressed to the Appellate Authority specified in the schedule and submitted to the authority whose order is appealed against. The authority whose order is appealed against shall forward the appeal together with its comments and the records of the case to the appellate authority within 15 days. The appellate authority shall consider whether the findings are justified or whether the penalty is excessive or inadequate and pass appropriate orders within three months of the date of appeal. The appellate authority may pass order confirming, enhancing, reducing or setting aside the penalty or remitting the case to the authority which imposed the penalty or to any other authority with such direction as it may deem fit in the circumstances of the case.
- 49.4 Provided that if the enhanced penalty which the appellate authority proposes to impose is a major penalty specified in clauses (f) to (j) of Rule 40 and an inquiry as provided in Rule 42 has not already been held in the case, the appellate authority shall direct that such an enquiry be held in accordance with the provisions of Rule 42 and thereafter consider the record of the inquiry and pass such orders as it may deem proper. If the appellate authority decides to enhance the punishment but an enquiry has already been held as provided in Rule 42, the appellate authority shall give a show cause notice to the employee as to why the enhanced penalty should not be imposed upon the employee. The appellate authority shall pass final order after taking into account the representation, if any, submitted by the employee.

51.REVIEW

- 50.1 Notwithstanding anything contained in these rules, the Reviewing Authority as specified in the schedule may call for the record of the case within six months of the date of the final order and after Reviewing the case pass such orders thereon as it may deem fit.
- 50.2 Providing that if the enhanced penalty, which the Reviewing Authority proposed to impose, is a major penalty specified in clauses (vi), (vii), (viii), (ix) and (x) of Rule 40.1 and on inquiry as provided under Rule 42 has not already been held in the case, the Reviewing Authority shall direct that such an inquiry be held in accordance with the provisions of Rule 42 and thereafter consider the record of the inquiry and pass such order as it may deem proper. If the Reviewing Authority decides to enhance the punishment but an inquiry has already been held in accordance with the provisions of Rule 42, the Reviewing Authority shall give show cause notice to the employee as to why the enhanced penalty should not be imposed upon him. The Reviewing Authority shall pass final order after taking into account the representation, if any, submitted by the employee.

52.SERVICE OR ORDERS NOTICE, ETC.

Every order, notice and other process made or issued under these rules shall be served in person on the employee concerned or communicated to him/her by Registered Post at his/her last known address or his last known/available e-mail address or publishing Notice on DMRC's official website.

53.MODEL TIME LIMIT FOR DISCIPLINARY PROCEEDINGS

A model time limit for the Disciplinary proceedings is prescribed below for timely disposal of Disciplinary cases: -

SN	Proceedings	Model Time Limit
1	Disposal of minor penalty proceedings	Within 02 months from the date of issuance of charge-sheet
2	Disposal of major penalty proceedings	Within 04 months from the date of issuance of charge-sheet
3	Review of Suspension	Before expiry of 90 days of suspension
4	Appeal by employee against the penalty imposed upon him/her	Within one month from the date of communication of the Order of Disciplinary Authority
5	Disposal of Appeal by the Appellate Authority	Within 03 months from the date of appeal
6	Revision	Within 06 months from the date of final order

54.HONORARIUM TO THE ENQUIRY OFFICER/ PRESENTING OFFICER & ASSISTING OFFICIAL

53.1 FOR DMRC SERVING OFFICERS & STAFF:

In order to compensate the officers and staff involved in the D&AR inquiry in major penalty charge-sheet cases, in addition to their assigned duties, the following rates of honorarium per inquiry are prescribed, subject to amendments from time to time: -

i. Enquiry Officer	- ₹4500/-
ii. Presenting Officer	- ₹3000/-
iii. Assisting Official	- ₹1500/-

(For secretarial work)

53.2 FOR EXTERNAL INQUIRY OFFICER (RETIRED):

The rates of honorarium for External Enquiry Officers are prescribed, subject to amendments from time to time, as under-

(i)	If, number of witnesses is 3 or less	- ₹20,000/-
(ii)	If, number of witnesses is more than 3	- ₹25,000/-

In addition to the above, the Enquiry Officer will be provided transport facility for local movement and secretarial assistance or 25% of the above prescribed honorarium towards the same.

53.3 The terms and conditions for the honorarium, subject to amendments from time to time, shall be as under: -

- a. These rates will be applicable for retired / external inquiry officers only.
- b. Before the payment is received it is the responsibility of the IO to ensure that all case records and inquiry report (two ink signed copies) properly documented and arranged is handed over to the Disciplinary Authority by the IO.
- c. The report returns findings on each of the Article of Charge which has been enquired into and should specifically deal and address to each of the procedural objections, if any, raised by the charged officers as per the extant rules and instructions.
- d. Reduction of honorarium by 50% in case of delay in completion of enquiry beyond 4 months from the date of appointment as IO, which is not due to non-cooperation of the charged officer or due to stay order.
- e. The number of Disciplinary cases shall be restricted to 12 cases in a year with one Inquiry Officer, with not more than 4 cases pending at a time for retired officers.
- f. The retired officer appointed as IO shall maintain strict secrecy in relation to the documents, he/she receives or information/ data collected by him/her in connection with the enquiry and utilize the same only for the purpose of inquiry in the case entrusted to him/her. No such documents/ information or data are to be divulged to any one during the inquiry or after presentation of the enquiry report. The IO entrusted with the inquiry will be required to furnish an undertaking to maintain strict secrecy and confidentiality of all records/ documents/ proceedings etc.
- g. The 25% of the honorarium towards transportation and secretarial assistance shall be disbursed on the basis of self-certification of expenses by the IO.

54. POWER TO RELAX TIME- LIMIT AND TO CONDONE DELAY

Save as otherwise expressly provided in these rules, the Authority competent under these rules to make any order may, for good and sufficient reasons or if sufficient cause is

shown, extend the time specified in these rules for anything required to be done under these rules or condone any delay.

55. SAVINGS

- 56.1. Nothing in these rules shall be constructed as depriving any person to whom these rules apply, of any right of appeal which had accrued to the employee under the rules, which have been superseded by these rules.
- 56.2. An appeal pending at the commencement of these rules against an order made before the commencement of these rules shall be considered and orders thereon shall be made, in accordance with these rules.
- 56.3. The proceedings pending at the commencement of the rules shall be continued and disposed as far as may be, in accordance with the provisions of these rules, as if such proceedings were proceedings under these rules.
- 56.4. Any misconduct, etc., committed prior to the issue of these rules which was a misconduct under the superseded rules shall be deemed to be a misconduct under these rules.

56. INTERPRETATIONS/ RELAXATIONS/ DELETION/ MODIFICATION

In case of any doubt or dispute regarding interpretation of these rules, the decision of Managing Director shall be final. He may also have the powers to relax, delete/ modify/ revise etc. of any of the item of the provisions of these rules, found necessary in future, for reasons to be recorded in writing.

RULE 41: SCHEDULE – A

Sl. No.	Category of employee	Penalty	Disciplinary Authority	Appellate Authority	Reviewing Authority
1.	Director / MD	All Penalties	BOD	--	BOD
2.	EDs/HODs	a) Major penalties as defined in Rule 40 and the penalty of withholding of promotion	MD	Chairman	BOD
		b) Other minor penalties as defined in Rule 40	Director	MD	Chairman

3.	Dy. HODs	a) Major penalties as defined in Rule 40 and the penalty of withholding of promotion	Director	MD	Chairman
		b) Other minor penalties as defined in Rule 40	Director	MD	Chairman
4.	Executives Manager/ Assistant Manager	a) Major penalties as defined in Rule 40 and the penalty of withholding of promotion	ED/GM	Director	MD
		b) Other minor penalties as defined in Rule 40	Sr. AGM	ED/GM	Director
5.	Sr. Supervisor ₹ 50000 – 160000 & ₹ 46000 – 145000 (IDA) and equivalent CDA grades	a) Major penalties as defined in Rule 40 and the penalty of withholding of promotion	Dy. HOD	HOD (ED/GM)	Director
		b) Other minor penalties as defined in Rule 40	Dy. HOD	HOD (ED/GM)	Director
6.	Supervisor ₹ 40000 – 125000 & ₹ 37000 – 115000 (IDA) and equivalent CDA grades	a) Major penalties as defined in Rule 40 and the penalty of withholding of promotion	Dy. HOD	HOD (ED/GM)	Director
		b) Other minor penalties as defined in Rule 40	Manager	Dy. HOD	HOD (ED/GM)
7.	Non Supervisor - ₹ 35000 – 110000 (IDA) or below and equivalent CDA grades	a) Major penalties as defined in Rule 40 and the penalty of withholding of promotion	AM/Manager	Dy. HOD	HOD (ED/GM)
		b) Other minor penalties as defined in Rule 40	AM/Manager	Dy. HOD	HOD (ED/GM)

Chapter - C

Pay & Allowances Rules



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PAY&ALLOWANCES AND OTHER BENEFITS/ENTITLEMENTS ADMISSIBLE TO DMRC EMPLOYEES

1. (a) Pay-Scales w.e.f. 01.01.2017:

The Pay-scale (IDA) in DMRC are as under: -

S.N	Designation	Pay-scale (Rs.)		Status
Non-Executive				
1	Unskilled	16000-50000		Non-Supervisor
2	Semi-skilled	20000-60000		
3	Skilled Maintainer	25000-80000		
4	Maintainers and Assistants	35000-110000		
5	Supervisor-II	37000-115000		Supervisor
6	Supervisor-I	40000-125000		
7	Sr. Supervisors –II	46000-145000		
8	Sr. Supervisor-I	50000-160000		
Executive				
1	Asst. Manager	50000-160000		Executive
2	Manager	60000-180000		
3	Dy. General Manager	70000-200000		
4	Sr. Dy. General Manager	80000-220000		
5	Jt. General Manager	90000-240000		
6	Addl. General Manager/Sr. Addl. General Manager*	100000-260000		
7	General Manager/Sr. General Manager Chief General Manager Sr. General Manager*	120000-280000		
8	Executive Director	150000-300000		
9	Directors	180000-340000		Functional BOD
10	Managing Director	200000-370000		

- * The Executive on completion of three years service at AGM level will be eligible for a special allowance of Rs.2500/- per month subject to APAR grading and will be designated as Sr. AGM. HODs designated as CGM will be eligible for a special allowance of Rs.2500/- per month subject to fulfilment of service requirement and APAR grading.
- * Officer joining in DMRC after Resignation/Superannuation from HAG is designated as Sr. General Manager. This however would not render them senior to other General Manager/Chief General Manager ahead of them in the seniority list.

- ** Time bound ad-hoc promotions/ work profile shall remain unchanged, however with certain service benefits shall be at par as admissible to Supervisors in the grade.
Note:- Those deputationist, who are in CDA/IDA scales in their parent organization will continue in CDA/IDA at the time of joining DMRC.
(Ref. Office Order No. PP/2647/2018, dated 27/09/2018)
***(O.O. No. PP/2927/2019 dated 03.12.2019)**

(b) Fixation of pay

- (i) The initial basic pay of an employee appointed to a post in the Corporation will be fixed at the minimum of the scale of the post to which he is appointed.
- (ii) When an employee is promoted/appointed to a higher post or grade, his initial pay in the new scale of pay will be fixed as below:

At the stage next above the pay notionally arrived at by increasing his Basic Pay in the lower grade by one increment subject to the condition that the pay in the higher post is not less than the minimum of the scale of pay prescribed for it and does not exceed the maximum of the scale.

Note:

- (a) **If the employee is drawing pay at the maximum of the lower scale at the time of promotion then his pay will be increased notionally by adding one increment(last increment in the lower scale) and then fixed at the stage next above in the higher scale;.**

OR

- (b) Pay on promotion/appointment to higher grade may be fixed, on option, initially at the minimum of promoted grade or if his basic is higher than minimum of the promoted grade, he will continue to draw the same pay. If he has exercised any option for fixation with effect from the date of next increment, then his pay may again be re-fixed on the date of next increment in the scale of pay of the lower post as per (a) above.

If the pay is fixed under (b) above, the next date of date of increment will fall due on completion of 12 months qualifying service from the date, pay is re-fixed on the second occasion. Option for this has to be exercised within one month of the date of promotion for fixation of pay either under rule (a) or (b) above. The option once exercised shall be final.

- (iii) If an employee had previously been promoted to his higher scale and later reverted, then on re-promotion, his initial pay will be fixed at a stage not less than that drawn on the last occasion in the higher scale and the period (s) for which the pay had been drawn shall count for the purpose of drawl of annual increment in the higher scale.
- (iv) Any special pay or officiating pay paid to an employee will not be taken into account for the purpose of fixation of pay in the higher grade unless the Management permits the reckoning of such special pay/allowance in an individual case taking into account the special circumstances pertaining to it.

(v) When an employee promoted to a post draws a lower rate of pay in that post than another employee junior to him in the lower grade and promoted subsequently to the same or identical higher post, the pay of the senior employee in the higher post will be stepped up to a stage equal to the pay of the junior employee in that higher post. This will be done with effect from the date of promotion of the junior employee and be subject to the following conditions:

- (a) Both the junior and senior employee should belong to the same seniority group and the posts to which they have been promoted should be in the same channel of promotion and the two scales of pay should be identical.
- (b) If the junior employee's pay happens to be fixed at a higher stage by virtue of advance increment granted in the lower post or due to ad-hoc promotion, then this rule will not be invoked to step-up the pay of the senior employee.
- (c) The following instances/events wherein juniors draw more pay than seniors, do not constitute anomaly and therefore, stepping up of pay would not be admissible in such events:-
 - 1. Where a senior proceeds on Extra Ordinary Leave which results in postponement of his Date of Next Increment in the lower post and consequently he starts drawing less pay than his junior in the lower grade itself. He, therefore, cannot claim pay parity on promotion even though he may be promoted earlier to the higher grade than his junior (s);
 - 2. If a senior forgoes/refuses promotion leading to his junior being promoted/appointed to the higher post earlier and the junior draws higher pay than the senior;
 - 3. If the senior is on deputation while junior avails of the ad-hoc promotion in the cadre, the increased pay drawn by the junior due to ad-hoc/officiating and/or regular promotion following such ad-hoc promotion in the higher posts vis-à-vis senior, is not an anomaly in the strict sense of the term;
 - 4. If a senior joins the higher post later than the junior, for whatsoever reasons, whereby he starts drawing less pay than the junior. In such cases, senior cannot claim stepping up of pay at par with that of his junior;
 - 5. If a senior is appointed later than the junior in the lower post itself whereby he is in receipt of lesser pay than the junior, in such cases also the senior cannot claim pay parity in the higher post if he draws less pay than his junior though he may have been promoted earlier to the higher post.
 - 6. Where an employee is promoted from the lower post to a higher post, his pay is fixed with reference to the pay drawn by him in the lower post and due to his longer length of service in the lower grade, his pay may get fixed at a higher stage than that of a senior direct recruit appointed to the same higher grade and whose pay is fixed under a different set of rules.
 - 7. Where a senior is appointed in a higher post on ad-hoc basis and is drawing less pay than his junior who is appointed in the same cadre and in same post on ad-hoc basis subsequently, the senior cannot claim pay parity with reference to the pay of that junior since the ad-hoc officiating service in higher post is reversible.
 - 8. Where a junior gets more pay due to additional increments earned on acquiring higher qualifications.

9. The instances/events mentioned above are only illustrative and not exhaustive. Cases would need to be dealt with as per the applicable rules and regulations.

- (vi) Pay of an employee on deputation with the Corporation will be fixed in accordance with the rules laid down for the purpose by the organization from where he is taken on deputation so long as he continues to remain on deputation. On permanent absorption in the Corporation, his pay will be re-fixed in accordance with the rules of the Corporation.
- (vii) The payment of deputation allowance will be allowed in DMRC upto deputation tenure, in terms of office order No. PP/2534/2018, dated 09/01/2018 in line with DoPT circular dated 16/08/2017.
- (viii) In accordance with office order No. PP/1214/2011, dated 07/03/11, all fresh joining on direct recruitment, immediate absorption/permanent absorption etc., in DMRC will be taken in IDA scales only.

The pay of deputationists will be fixed as under:

- (a) When the pay scale in the parent cadre and that attached to ex-cadre post are based on same index level and DA pattern is also same, the pay may be fixed under the normal fundamentals Rules.
- (b) The officers and staff who have joined DMRC/ will join on deputation will be eligible for the following only:
 - (i) Deputationists drawing CDA pay scale in parent department will draw Parent Department Pay plus Deputation Allowance only. The DMRC IDA pay scale will not be applicable to such deputationists.
 - (ii) Deputationists drawing IDA pay scale in parent department will draw Parent Department Pay plus Deputation Allowance and perks of their parent department. The DMRC perks (@31.5% of Basic Pay) will not be applicable to such deputationists.
 - (iii) If any revision of pay scale takes place in the Parent Cadre of the deputationists on account of promotion/other cases, the same will be only extended in DMRC.
 - (iv) No higher pay scale/ promotion will be granted to the deputationists during their deputation tenure with DMRC. This will be applicable in case of all existing deputationists also. This is in partial modification to item no ii of this office order no. PP/1564/2013 dated 15/02/13 on revision to rules on cadre formation, absorption, promotion and seniority etc.
(Ref: O.O. No. PP/1486/2014 dated 24.09.2014, O.O. No. PP/1214/2011 dated 07.03.2011, O.O. No. PP/2534/2018 dated 09.01.2018, O.O. No. PP/3194/2022 dated 23.06.2022)
- (c) Further, the deputation (duty) allowance admissible shall be at the following rates:
 - (i) 5% with a ceiling of Rs. 4500/- per month within the same station & 10% with a ceiling of Rs. 9000/- per month for deputation involving change of station.

- (ii) The ceiling will further rise by 25% each time when DA increases by 50%.

(Ref: O.O. No. PP/2534/2018 dated 09.01.2018)

(b) Annual Increment:

- (i) Granted @ 3% of the Basic pay rounded off to the next multiple of Rs.10/-, on 1st January or 1st July every year for employees in IDA pay scale. In case of calculation of increments under revised pay structure, paise should be ignored, but any amount of a rupee or more should be rounded off to next multiple of 10.
- (ii) To illustrate, if the amount of increment comes to Rs.900.70 paise, then the amount will be rounded off to Rs.900, if the amount of increment works out to be Rs.901, then it will be rounded off to Rs.910.
- (iii) The employees who join DMRC between January to June are granted increment on 1st January and employees who join DMRC between July to December are granted increment on 1st July every year.
- (iv) For employees in CDA pay scales the increment is granted @ 3% on 1st January or 1st July every year.
- (v) Leave without pay (if it is not on medical grounds) and period of suspension will not be counted for arriving at date of increment and get retarded unless in the case of suspension the competent disciplinary authority decides/ specifies otherwise. The date of increment of employees who join DMRC on deputation or immediate absorption basis will be protected as per their increment date in parent department. Further, in case of direct recruitment (lateral recruitment), the date of increment is protected if the employee joins in the same pay scale without any break in service.

- (c) Stagnation Increment:** - Maximum 3 stagnation increments @ 3% of Basic pay rounded off to the next multiple of Rs.10/- after every two years, upon reaching the maximum of pay scale provided that employee gets APAR rating of "GOOD" or above.

(Ref: - Office Order No. PP/2647/2018, dated - 27/09/2018)

- (d) Officiating Pay:** -Officiating Pay will be governed as contained in DoP&T's Office Memorandum No.1/4/2017-Estt (Pay-I), dated 28/02/2019, whenever Officers are designated to officiate on a higher post, in administrative exigencies.

(Ref: - Office Order No. PP/2647/2018, dated 27/09/2018, Office Order No. PP/3121/2021, dated 12/08/2021)

2. **Dearness Allowance:** -Admissible on IDA (Industrial Dearness Allowance) pattern, which is revised 4-times in a year, on 1st April, 1st July, 1st October and 1st January every year. In CDA, the DA is revised twice a year i.e., on 1st January and 1st July every year.
(Ref: - Office Order No. PP/2647/2018, dated 27/09/2018)
3. **Perks:** -The perks are admissible subject to a maximum ceiling of 31.5% of the Basic pay. The employees on joining DMRC or conversion to IDA pay scales has to fill up the form under "Cafeteria Approach" in the prescribed format to give his/her option. The following shall form part of the cafeteria limited to 31.5% of basic pay w.e.f. date of joining or starting of coming financial year.

S.N.	Item Name	% of basic pay
1	Canteen Allowance / Meal Vouchers	3.5%
2	Newspaper / Professional Literature Reimbursement	3.5%
3	Children Education Reimbursement	7%
4	Hostel Subsidy	7%
5	Electricity Reimbursement (below HOD)	3.5%
6	Professional Updation Allowance	7%
7	Club Membership (below Director)	7%
8	Entertainment (below HOD)	3.5%
9	Outdoor Medical	14%
10	Washing Allowance	3.5%
11	Conveyance / Transport Allowance	7%
12	Reimbursement of Expenditure on Vehicle Repair and Maintenance	7%
13	Driver Allowance (for those Entitled for Car Advance)	3.5%
14	Gardener Allowance	3.5%
15	Creche Reimbursement	3.5%
16	House Upkeep Allowance	3.5%
17	Self-Development Allowance	7%
18	Other Allowance	Upto 10.5%
19	Additional Transport Allowance (For Persons with Disabilities)	7%

(Ref: - Office Order No. PP/2647/2018, dated 27/09/2018)

- 3(A). Where both husband and wife are employed in DMRC, only one of them will be eligible to avail the following perks& privileges of the Corporation:
- Lease facility
 - TADK
 - TADK allowance
 - Landline telephone facility
 - Reimbursement of electricity charges for JAG and above level (Residential)
 - Indoor / Outdoor medical facility
 - Children educational benefits

- (viii) Any other benefits under Staff Welfare Scheme except birthday and marriage gifts
(Ref: - Office Order No. PP/699/2007, dated 05/12/2007&Office Order No. PP/2072/2015, dated 21/09/2015)

4. House Rent Allowance:-

S. N.	Revised Classification of Cities/ Towns	Rates of HRA admissible (% of Basic Pay)
1	X (Previously classified as A 1)	24%
2	Y (Previously classified as A, B1 & B 2)	16%
3	Z (Previously classified as C)	8%

Rate of HRA will be revised to 27%, 18% & 9% for X, Y and Z class cities respectively, when IDA crosses 25% and further revised to 30%, 20% and 10% when IDA crosses 50%.

(Ref: O.O. No. PP/2072/2015 dated 15.03.2022, O.O. No. PP/2647/2018 dated 27.09.2018)

5. The transport facility for Project and O&M Executive shall be as given below:

(A) Company Car facility:

S. No.	Level	Posted at site	Posted at Metro Bhavan/NBCC/O&M
1	ED/ HODS	Independent AC-vehicle with ceiling of 2000 kms per month	Independent AC-vehicle with ceiling of 1500 kms per month
2	Dy. HODs	Independent vehicle with ceiling of 2000 kms per month	Independent vehicle with ceiling of 1500 kms per month
3	AM/ Mgrs	Vehicle on twin sharing basis upto 3000km per month	

Any use over and above will be treated as private use of vehicles, for such private use, the concerned officer will have to make the payment of bill charges @ Rs.4/-per km used.

(B) Self-Car facility:

The Executives who are eligible for a vehicle as per the existing transport policy of the company and are posted at Metro Bhavan, NBCC, Ashoka Road Office, and are not required to visit site frequently as well as officers of Finance department posted at site and officers of O&M department can use their personal vehicle for official purpose against the reimbursement of expenses as detailed below: -

Level	Per Month Re-imburement Limit
-------	-------------------------------

ED/CGM/ SGM /GM (AC 2000 Kms)	Rs. 45000/-
CGM/ SGM /GM (AC 2000 Kms)	Rs.40000/-
JGM/AGM/Sr.AGM (Non-AC 1500 Kms)	Rs. 30000/-
DGM/Sr.DGM (Non-AC 1500 Kms)	Rs.25000/-
Manager & AM (Non-AC 3000 Kms on twin sharing basis)	Rs. 20000/-

For claiming reimbursement against use of personal vehicle, the executives can use either the vehicle registered in their name or in the name of their spouse (as per the name of the spouse mentioned in the personal file of the officer concerned) for official purpose.

(Ref: O.O. No. PP/1864/2014 dated 17.10.2014, O.O. No. PP/1885/2014 dated 09.12.2014 & O. O. No. PP/2925/2019 dated 03.12.2019 &).O. NoPP/3366/2023 dated 20/10/23)

6. Gazetted/ National Holidays Allowance: -

The Non-executive employees of O&M, who perform roster duty on National/ Gazetted holiday will be given allowance at the rate of 1.2 times of the day's ordinary Basic Pay of the employee.

(Ref: O.O. No. PP/2647/2018 dated 27.09.2018)

7. Night Duty Allowance:-

The Non-executive employees of O&M who perform roster duty and Executives upto the level of Manager in O&M, performing night duty will be given allowance at the rate shown below:

S. N.	DMRC-IDA Pay Scale/Equivalent CDA scale (Rs.)	Revised Rate (Rs.)
1	16000-50000	225/-
2	20000-60000	
3	25000-80000	
4	35000-110000	
5	37000-115000	300/-
6	40000-125000	
7	46000-145000	
8	50000-160000 (Non-Executive)	320/-
9	50000-160000 (Executive)	390/-
10	60000-180000	

(Revised w.e.f. 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019)

- (b) Partial Night Duty to Train Operators- It is strictly on the basis of reporting timing recorded for 'sign on' and 'sign off' and the rates is as under:

Sign Off	Sign On	Quantum of Night Duty Allowance
After 2200 to 2300 hrs	After 0501 to 0600 hrs	@25% of applicable NDA

After 2301 to 2400 hrs	After 0401 to 0500 hrs	@ 40% of applicable NDA
After 2401 hrs	Before 0400 hrs	@60% of applicable NDA

The payment of Night Duty Allowance (NDA) will be made maximum for 18 nights per month in case of exigency. Further, concerned controlling officers at DGM level will keep a watch so that deployment of staff on night duty beyond two weeks may be resorted to only in extreme exigencies of work.

(Revised w.e.f 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019)

8. Hard Duty/ Kilometre Allowance:

Hard Duty Allowance based on 'Sign On' will be replaced with "Kilometrage Allowance". The conditions for Kilometrage Allowance shall be as under: -

- (i) A flat rate of Rs.3/- per km. as Kilometrage Allowance will be paid to train operators and no amount as per 'Sign On' basis will be applicable to them henceforth.
- (ii) However, the train operators who are called for protection/ stabling duties etc., will be paid Rs.100/- per 'Sign On'.
- (iii) The train operators operating train in Airport Line is eligible for Kilometrage Allowance at the rate of Rs. 2.1/- per km.

(Revised w.e.f 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019)

9. Consolidated Daily Allowance For Project Employees: -

The officers and staff posted at project sites are eligible for CDA. Such officer and staff who are posted at corporate office etc. and are required to visit site on more than 15 working days in a month will also be eligible for CDA at par with site employees. HODs should strictly ensure the same while recommending the cases for CDA.

The rates of CDA are as under w.e.f. 01.12.2019:-

S. N.	Employee Category	Admissible CDA Rate Per Month
1	Manager	4500/-
2	Asstt. Manager	3750/-
3	Sr. Supervisor (Rs.50000-160000/-)	3375/-
4	Supervisor (Below Rs.50000/-)	3000/-
5	Surveyors	3000/-
6	Non- Supervisor	2250/-

(Revised w.e.f 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019 & Revised w.e.f. 01.10.2019 for Non-executive vide O.O. No. PP-2897/2019 dated 04.10.2019)

10. Vehicle Allowance To Supervisors Posted At Project Sites:

Vehicle Allowance @ Rs.4500/-per month is admissible to the Supervisors, who are posted at project sites and using their own vehicle for site work. The vehicle allowance will be paid to only such supervisors, who are eligible for CDA. The vehicle allowance has been extended to the Surveyors also at par with Supervisors as a special case.

(Revised w.e.f 01.10.2019 vide O.O. No. PP-2897/2019 dated 04.10.2019 & O.O. No PP/3366/2023 dated 20/10/23)

11. Re-Imbursement For Employment Of TADK:-

The re-imbursement to Dy. HODs (Project and O&M) for TADK will be made @ Rs.14500/-per month. Those HODs and above level officers who are availing the TADK re-imbursement in lieu of engaging a TADK will also be eligible for this re-imbursement.

(Revised w.e.f 01.01.2023 vide O.O. No. PP-3244/2023 dated 16.01.2023)

12. Miscellaneous Allowance For Executives:-

(I)Reimbursement Of Office Expenses For Executives: - Allowance at the following rates a perk at the following rates on self-certification basis:-

-Directors & CVO	- Rs.10000/-per month,
- EDs	- Rs.8700/- per month,
- CGMs	- Rs.8000/-per month,
-GMs/SGMs	- Rs.6000/-per month,
- Dy HODs	- Rs.3000/-per month,

(Revised w.e.f 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019)

(II) Electricity bill reimbursement:

-Directors & CVO	-750 Units per month or 60% of unit consumed (whichever is more)
-Executive Directors & CGMs	-600 Units per month,
-HODs	-500 Units per month,
-Dy.HODs in CDA	-300 Units per month.

(Ref: O.O. No. PP/567/2006 dated 28.12.2006, O. O. No. PP/1658/2013 dated 27.08.2013& O. O. No. PP/1811/2014 dated 18.07.2014)

(III) Newspaper/ Magazine Allowance (only for CDA employees):

-Directors & above	-Rs. 1100/- per month.
-GM	-Rs. 850/- per month.
-AGM	-Rs. 500/- per month.
-JGM/Sr.DGM/DGM	-Rs. 500/- per month.
-Manager/AM	-RS. 500/- per month.

(Revised w.e.f. 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019)

(IV) Medical outdoor reimbursement (only for CDA employees):

-Directors & above	-Rs 3125/- per month.
-ED / HOD	-Rs. 2500/- per month.
-Dy. HOD	-Rs. 2190/- per month.
-Manager / AM	-Rs. 1750/- per month

(Revised w.e.f. 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019)

(V) Children Education Allowance:

- (a) Employees drawing pay in CDA scale are entitled for Children Education Allowance @ Rs. 2250/- per month per child subject to a maximum for two children. Employee can draw the allowance on yearly basis. The annual ceiling limit for reimbursement of Children Education Allowance will be Rs.27000/- per child. Whenever DA goes up by 50%, CEA rates/ceiling would be automatically raised by 25%. The annual ceiling for reimbursement of Education Allowance for disabled children of Government employees has been revised to Rs. 54000/-per annum per child and the rates of Hostel subsidy for disabled children of Government employees is revised to Rs.81000/-per child per annum.
- (b) The rates of Special Allowance for child care to women with disabilities stands revised to Rs.1500/- per month.
- (c) The grant of Children education allowance to the employees in CDA pay scale will be regulated as per extant rules applicable to Central Government employees vide DOPT's Office Memorandum No.A-27012/02/2017-Estt. (AL) dated 16th Aug 2017.

(Ref: O.O. No. PP/2534/2018 dated 09.01.2018)

NOTE-For employees, drawing pay in IDA scales, Education Allowance is already a part of 31.5% perks.

- (VI) Furnishing of offices at residence:** -Directors/EDs/HODs are entitled to reimburse the cost of furniture/furnishing items for setting up a small office at their residence as per the following limits:-

S. N.	Designation	Ceiling Amount(Rs.)
1	Directors	3,00,000/-*
2	ED	1,25,000/-
3	CGM/GM	1,00,000/-

- * Directors are entitled for replacement of one third of the assets i.e. upto a maximum amount of Rs. 1 Lac after every three years and thereafter every block of three years towards furnishing of office at residence.
- Admissible once during service in DMRC.

- All items (except consumable), purchased under the scheme of the furnishing of the office at residence of HoDs & EDs, once purchased shall be fully depreciated in the year of purchase. No recovery shall be made on account of depreciation, etc., for the remaining period.
- In case of the demise of ED/HoD while in service, the family of the deceased executive shall be allowed to retain the assets covered under the office at residence, without any payment.
- Items viz. Sofa, table, side table, rake, almirah, curtains, carpet, Desktop computer, I-pad, TV-set and refrigerator may be purchased for residential office.
- There-imbursement will be made on submission of the proof of purchase.

(Ref:O.O. No.PP/1574/2013 dated 11.03.2013, O.O.No.PP/2449/2017 dated 25.07.2017, office Note No. DMRC/PERC/6/2016 dated-05.05.16 & O.O. No. PP-3317/2023 dated 13.07.2023)

(VII) Provision of AC and Invertor to HODs: HODs are entitled for re-imbursement of actual amount incurred subject to a maximum Rs.30000/- for purchase of one AC (split/window with stabilizer), once in 4 years, on production of documentary evidence of the same.

HODs staying outside Metro Enclave are permitted to procure one inverter at the official residence. Actual amount incurred for the same subject to maximum of Rs.15000/-will be reimbursed on production of documentary proof of the purchase of the same. The life of inverter will be considered 4 years.

- The battery of the inverter may be replaced after every two years and on production of the bill a maximum amount of Rs.7000/- may be reimbursed for the same.
- In Case the officer leaves the organization before the period of 4 years, he has to pay the Corporation the depreciated value of equipment.

(Ref: O.O.No.PP/1668/2013 dated 11.09.2013)

13. Cash Incentive For Presentation Of Papers At National &International Level:

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If a presentation is co-authored/ presented by one or more employees at national or international level, a cash incentive of Rs.1000/- and Rs.5000/-respectively is to be distributed among the co-authors equally.

(Ref: O.O. No. PP/974/2009 dated 21.08.2009)

14. Entitlement For Leased Accommodation: -

(a) For Executive: The lease entitlement and lease rent recovery for Delhi & NCR towns is admissible at the following rates: -

S.N.	Level	Lease amount entitled for Delhi & NCR Per month (Rs.)	Lease rent Recovery Per month (Rs.)
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1	Asstt. Manager	20000/-	1210/-
2	Manager	20000/-	1380/-
3	DGM/Sr. DGM	23300/-	1520/-
4	JGM/AGM	28400/-	1520/-
4	GM/CGM	30000/-	1730/-
5	ED	31700/-	1960/-
6	Director	45000/-	2590/-
7	Managing Director	50000/-	2880/-

(a1) Lease & Lease Rent Recovery for Mumbai*/Other cities: -

S.N.	Level	Lease amount entitled for Mumbai** Per month (Rs.)	Lease amount entitled for other cities Per month (Rs.)	Lease rent Recovery Per month (Rs.)
1	Asstt. Manager	40293/-	15000/-	970/-
2	Manager	40293/-	15000/-	1110/-
3	DGM/Sr. DGM	56386/-	17640/-	1220/-
4	JGM/AGM	56386/-	21720/-	1220/-
5	GM/CGM	72479/-	23000/-	1380/-
6	ED	72479/-	24360/-	1560/-

- Company Lease rate for non-executives stands revised to 45% of the revised basic pay w.e.f. 01.04.2018

** 3% increase in every financial year for executives.

*** For Mumbai's lease, monthly Maintenance Charges as per actual, or, a maximum Rs. 5000/- and Rs. 3000/- to executives & non-executives respectively. Components as Maintenance Charges (the expenditure on maintenance of common area of the society) are as under:-

1. Common Area Water Charges
2. Common Area Electricity Charges
3. Lift maintenance charges
4. Horticulture Charges
5. Common Parking Area Maintenance Charges
6. Security Charges
7. Repair Fund
8. Club Maintenance Charges

9. Kid's Play Area Maintenance Charges

(The components of Property Tax, Water Charges, Sinking Repair Fund, Major Repair Fund, Education Fund. etc. shall not be considered under Maintenance Charges)

(Ref: O.O. No. PP/2647/2018 dated 27.09.2018, O.O No. PP/2040/2015 dated 17.08.2015, O.O No. PP/2663/2018 dated 16.10.2018 , Note No. DMRC/LM/Sec-20/99/2020 dated 27.01.2020, O.O No. PP/3232/2022 dated 07.12.2022,& O.O No. PP/3241/2022 dated 03.01.2023)

(b) License Fee Recovery from DMRC employees occupying Staff Quarter:

S.N.	Type of quarter/flat	License Fee recovery per month (Rs.)
Shastri Park, Najafgarh, Yamuna Bank, Sarita Vihar, Gurgaon, Ajrona, Mukundpur, Mundka & Bahadurgarh		
1	Type II	280
2	Type III	550
3	Type IV & Transit-Exe	730
Pushp Vihar, Vidhan Sabha & New Ashok Nagar		
1	XEN level	730
2	Dy. HOD level/Type-V	1090
3	HOD level	1630
4	Director level	2350
5	MD's flat	2540

(Ref: O. O. No. PP/986/2009 dated 08.12.2009, O. O. No. O&M/HR-272 of 2021 dated 06.09.2021)

15. Mobile/Telecom Facility:-

(a) Landline phone/Broadband (Residential) facility connectivity-

S.N.	Category	Per month ceiling limit (Rs.)	Remarks
1	Directors	No limit	Includes all types of calls (Local, STD, ISD) and data usages with broadband connectivity.
2	ED/HOD	2500/-	Includes all types of calls (Local, STD, ISD) and data usages with broadband connectivity.
3	AGM/JGM/Sr.D GM/DGM	1600/-	Includes all types of calls (Local, STD) and data usages with broadband connectivity within the ceiling limits. ISD with DE/DO's approval
4	Manager/AM	700/-	
5	Supervisors/PAs	600/- Re-imbursement only	Entitlement for residential landline is withdrawn. However, this facility shall be continued for existing approvals. As

6	Drivers of Directors	Rental Only, i.e. Rs.250/- + taxes	a special case this facility may be provided with the approval of DO/DE
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(b) Mobile phone connectivity-

S.N.	Category	Per month ceiling Limit (Rs.)	Remarks
1	Directors	No limit	With STD, ISD, International and National roaming with data usages.
2	ED/HOD	2000/-	Includes all types of calls (Local, STD, ISD, National and International roaming, data usages etc.) within the ceiling limit. Exceeding ceiling limit with DE/DO's approval.
3	AGM/JGM/ Sr.DGM/DGM	1000/-	Includes all types of calls (Local, STD, National roaming, data usages) within the ceiling limit. Exceeding ceiling limit with DE/DO's approval.
4	Manager/AM	700/-	
6	All Supervisors including Pas in supervisory grade	600/-	
7	Drivers of Directors	500/-	Includes only local calls and SMS.
8	Shift Mobile Phone for all categories	1500/-(min. required featured handset will be provided)	

- In order to avail the GST benefit all the official numbers (already provided/will be provided) have been converted in COCP (Company owned Company Paid) category and no individual reimbursement of mobile bill is allowed.

(Ref: Note dated 21.03.2013, Residential Land Line & Mobile Telecom Policy dated 03.08.2015, Note No. DMRC/S&T/O&M/Official Mobile Phone/2019/01 dated 20.12.2019, Note No. DMRC/S&T/Official Mobile Phones/2019/02 dated 20.12.2019, Note No. DMRC/S&T/Official Mobile Phones/2019/03 dated 23.12.2019)

(b) Mobile Handset-

Mobile handset may be purchased by the user himself and re-imbursement of the cost will be made as per the following ceiling limit:-

S.N.	Category	Ceiling limit for cost re-imbursement(Rs.)
1	Directors	No limit
2	ED/HOD	20,000/-
3	AGM/JGM/Sr. DGM/DGM	10,000/-
4	Manager/AM	7000/-

5	Supervisors & below*	5000/-
6	Shift Mobiles for all categories will be provided by DMRC.	Minimum required featured handset will be provided.

- For cases covered under SOP M12

(Residential Land Line & Mobile Telecom Policy dated 03.08.2015, & Policy dated 18.07.2013)

(d) Laptop Policy:

The executives of AM, Manager, Dy. HOD and above are eligible for procurement of laptop on re-imbursement basis or through IT department as per the following ceiling limits:

Eligibility	Cumulative cost ceiling for a Laptop including OS with one year warranty (All inclusive costs)	Cumulative ceiling amount for Repair & Maintenance including warranty extensions (All inclusive costs)
Manager/AM	Rs.40,000/-	Rs.15,000/-
Dy. HOD	Rs.55,000/-	Rs.20,000/-
ED/HOD/CG M	Rs.65,000/-	

The detailed procedure order for procurement, maintenance etc. of Laptop are mentioned in the revised Laptop policy, dated 05.07.2023.

16. Honorarium For D&AR Enquiry:

The officers and staff doing the D&AR enquiry in major Penalty Charge-sheeted cases, in addition to their assigned duties, will be entitled for the honorarium at the following rates:-

- i. Enquiry Officer - Rs.4500/-
- ii. Presenting Officer - Rs.3000/-
- iii. Assisting Official to I.O. - Rs.1500/-

The committee appointed to look into the harassment cases of female Executives and Non-executives will also be paid as per the above policy.

(Ref: O.O. No. PP-1300/2011 dated 05.09.2011)

17. Entitlement For Purchase Of Briefcase For Official Use:-

Entitlement for briefcase/ ladies carrying cases for officers and staff is as under: -

S.N.	Category/Grade	Entitlement (Rs.)	Remarks
1	Supervisors/ Inspectors and other Non-executive	2500/-	With approval of concerned HOD
2	Manager/ AM	3750/-	

3	Dy. HODs	5000/-	Not require any sanction
4	HODs/ GMs/EDs/CGM	6250/-	

- The life of briefcase is to be taken as three years, after which the officer will be entitled for new briefcase without surrendering the old one.
- The briefcase (being consumable), once purchased by the employee shall be fully depreciated on the date of purchase and the employee (executive/non-executive) shall be allowed to retain the briefcase without making any payment if his/her employment with DMRC is completed before the expiry of three years from the date of the purchase of the briefcase.

(Revised w.e.f 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019 for executives & Revised w.e.f. 01.10.2019 for non-executive vide O.O. No. PP-2897/2019 dated 04.10.2019, O.O. No. PP-3317/2023 dated 13.07.2023)

18. Conveyance & Refreshment For Working Beyond Office Hours And On Holidays / Sundays:-

In exigency of work and in inescapable situations only, the Non-Executive staff booked for Sundays/Holidays and for early coming or late going in normal working days, will be entitled for conveyance and refreshment as given below:-

S. N.	Category	Revised
1	All Non-Executive (Except for Vehicle Drivers)	Rs. 170/- per day for stay beyond office hours or attending office early and Rs. 340/- per day for attending office on holidays/Sunday. The maximum limit of reimbursement shall be Rs. 2700/- per month.
2	Vehicle Driver (duty hour 8:30 am to 18:30 pm)	Rs. 245/- per day for stay beyond office hours or attending office early and Rs. 370/- per day for attending office on holidays/Sunday. The maximum limit of reimbursement shall be Rs. 4500/- per month.

- The above will be applicable only for non-executive employees.
- Proper register for booking of staff will be maintained.
- Claim will be scrutinized by Dy.HOD.
- Persons covered under CDA will not be entitled for the above.
- Non-executive consultant and re-employed working on re-employment/ consultants/ contract basis are also eligible for reimbursement.

- The Consultant Executives (AM/Manager level) are also eligible for reimbursement up to a maximum limit. of Rs.2000/-p.m.

(Revised w.e.f 01.12.2019 vide O.O. No. PP-2964/2020 dated 11.02.2020, O.O No. PP/2056/2015 dated 01.09.2015-for Consultant AMs/Managers)

19. Shifting Allowance:-

In case of shifting of household from private quarter to leased accommodation or in staff quarter, Shifting allowance will be admissible at the following rates, only once in the service life:-

S.N.	Pay Scale	Shifting allowance Reimbursable (Actual/ Subject to a maximum of Rs.)
1	Rs.50000-160000/- and above (Executive)	16000/-
2	Supervisors	8000/-
3	Non Supervisors	5000/-

(Revised w.e.f 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019 & Revisedw.e.f 01.10.2019 for Non-executive vide O.O. No. PP-2897/2019 dated 04.10.2019)

20. Incentive on Acquiring Higher Qualification: -

The employees who pursue educational qualification after joining DMRC and with prior permission from organization will be entitled for the incentive at the following rates, subject to obtain 60% marks or equivalent grade:-

S.N.	Level of qualification attained	Qualification	Incentive (Rs.)
1	Degree and above level	Ph.D.	10000/-
		Post-Graduation	10000/-
		Graduation	8000/-
2	Diploma level	PG Diploma (2 Years)	6000/-
		Diploma (3 Years)	4000/-
		Diploma (less than 3 years, approved by Govt. body)	Proportionate of 3 years course(not less than 6 months period) subject to a minimum Rs.1000/-
3	School level	Higher Secondary	2500/-
		High School	1500/-

(Ref: O.O. No. PP-409/2005 dated 19.10.2005)

21. Honorarium For LDS/Open Market Examinations: -

- (a) **Open Market Examination:** - Executives and staff deployed in open market written examination are entitled for the honorarium as given below-

S.N.	Category	Honorarium @ rate (Rs.)
1	Dy. HOD & above	2500/-
2	Executive, AM/Mgr.	2000/-
3	Supervisors & below	1600/-

As per practice in vogue, in addition to the above, the Executives shall be eligible for transportation facility. In case of non-availability of transportation, Conveyance @Rs.750/- and Rs.850/- or actual expenditure, whichever is less, will be given to the Executives residing in Delhi and NCR, respectively, against their claim.

- (b) **Limited Departmental Selection:** - Executives and staff deployed in LDS written examination are entitled for the honorarium as given below: -

S.N.	Category	Honorarium @ rate (Rs.)
1	HOD	1875/-
2	Dy. HOD	1250/-
3	Below Dy. HOD & other staff	1000/-

As per practice in vogue, in addition to the above, the Executives shall be eligible for transportation facility. In case of non-availability of transportation, Conveyance @Rs.750/- and Rs.850/- or actual expenditure, whichever is less, will be given to the Executives residing in Delhi and NCR, respectively, against their claim.

(Revised w.e.f. 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019)

- (c) **Question Paper Setting:** - Officers prepare question papers for LDS/LDCE for online examinations are entitled for honorarium at the following rates: -

i. **Limited Departmental Competitive Examination (LDCE):**

LDCE			
S.N.	Category	Pap-I MCQ	Paper-II MCQ
1	HOD	5000/-	2500/-
2	Dy. HOD	4000/-	2000/-

ii. **Limited Departmental Selection (LDS):**

LDS		
S.N.	Category	Paper-I MCQ
1	HOD	5000/-
2	Dy. HOD	4000/-

(Ref: O.O No. PP/2216/2016 dated 25.05.2016)

22. Honorarium for Delivering Lecture As Guest Faculty: -

The rates for delivering lectures in DMRA or in any other training programme/ seminar/ workshop, organized with the approval of competent authority, will be as under:-

S.N.	Category	Lecture in DMRA(Rs.)
1	MD & Director	1600/-
2	ED	1350/-
3	HOD	1250/-
4	Dy. HOD	900/-
4	AM/Manager	550/-
5	Non-executive	450/-

- If the lecture is of two hours duration, the amount admissible will be 50% more than the above rates.
- This will be subject to overall ceiling of an amount equivalent to 20% of the Basic Pay of the concerned official in a particular month for delivering lectures as a guest faculty.
- Dean/DMRA, will approve the honorarium before sending to Finance, for making the payment on quarterly basis.

(Revised w.e.f. 01.12.2019 vide O.O. No. PP-2925/2019 dated 03.12.2019 & Revised w.e.f. 01.10.2019 for Non-executive vide O.O. No. PP-2897/2019 dated 04.10.2019)

23. Outstation Allowance: -

- Outstation Allowance for the Existing Consultancy @ 25% for posting in Patna for consultancy division.
- For the Consultancy Assignment/Project Implementation/O&M Projects w.e.f. 19.05.2023 the grant of incentive for joining the consultancy assignment (except those re-employed, consultants and those promoted on adhoc basis) shall be governed, in accordance with the rates (as in the HRA payment rules), as indicated below:

Classification of Cities/Town	Rate of Incentive
X	25%
Y	15%
Z	10%

(Ref: Note No. DMRC/89/MD/Note/5/11 dated 09.05.2011, O.O. No. PP-2647/2018 dated 27.09.2018, O.O. No. PP-3288/2023 dated 19.05.2023)

24. (A) Foreign Pay & Allowance:

The pay, allowances and other benefits of executives (grade-wise) posted on foreign assignment shall be regulated as mentioned below (Currency in US \$)

S.N.	Particulars	AM	Manager	DG M	Sr. DG M	JG M	AG M	HO D	ED	Director	MD
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1	Foreign Salary/ Month	241 5	2678	2993	3255	3518	3885	4410	504 0	6248	729 8
2	Escalation/ Increment	3% per annum (w.e.f. the start date of GC assignment of the official.)									
3	Entertainment/ Misc expenditure per month	135	155	170	185	200	220	250	290	355	415
4	Per Diam allowance										
	(i) Short-term assignments	55	65	70	75	80	90	100	115	145	165
	(ii) Long-term assignments	45	50	55	60	65	75	80	95	115	135
	Note: For assignments in Asian Countries, the per DIAM charges will be reduced by 25%										
5	Accommodatio n Charges/day										
	(i) Short-term assignments	65	75	85	90	100	110	120	140	170	200
	(ii) Long-term assignments	45	50	55	60	65	75	80	95	115	135
	Note: 1.For assignments in Asian Countries, the accommodation charges will be reduced by 25%										
	2. The accommodation charges will be paid on submission of original receipt upto maximum of above limits										
6	Telephone per month	55	65	70	75	80	90	100	115	145	165
	Note: If the telephone facility is provided by the Client/ GC/ Consortia the										

	same will not be payable										
7	Transportation	To be provided by GC									
8	Ex-gratia	Payable as per Company Rules									
9	Home Leave Passage	As per GC contract terms									

10	Service bond with company	To serve company during the entire term of GC assignment of the official and one year thereafter or to pay Rs.15 lakhs
11	Children education Allowance (foreign)	Actual expenses reimbursed by the company subject to 10% recovery from total bill for education expenses incurred for study for children in the country of assignment for upto two children and upto class 12 only
12	Income tax payable in India	Concerned employee
13	Income tax payable in Foreign country	As issued by the company vide Note no. DMRC/Fin/Estt./Dhaka/2014-15 dated 16.02.2015. Employee needs to mandatorily follow the Circular No. DMRC/PERS/16/2017 dated 07.04.2017
14	Residential accommodation in India	Can retain DMRC accommodation or avail HRA throughout the period of foreign assignment
15	Medical insurance/ facilities – abroad	As per DMRC policy
16	Medical insurance/ facilities - India	As per DMRC policy
17	Leave	3 NH of India and closed holidays as followed by the JV partner, EL, HPL and commuted leave shall be allowed as per DMRC Rules

Note: Short-term Assignment—Means any assignment of less than or equal to 90 days.
Long-term Assignment---Means any assignment of more than 90 days.

(Ref: Office Note No. DMRC/PERS/14/2013 dated 26.11.2013 ,Note no. DMRC/Fin/Estt./Dhaka/2014-15 dated 16.02.2015 , Circular No. DMRC/PERS/16/2017 dated 07.04.2017 & Office Order No. PP/2754/2019 dated 31.01.2019)

1. **Per Diem Allowance** – The per Diem allowance shall be as per Office Note No. DMRC/Pers./14/2013 dated 16.09.2013, 02.12.2013 and Office Order No.PP/3077/2021 dated 02.02.2021. However, the upper limit of Per Diem Allowance is restricted to USD 60 for employees posted on foreign assignment on short term and long-term basis irrespective of the amount paid by foreign client to DMRC, with effect from 02.02.2021.
2. **Accommodation Charges** – Normally the accommodation will be provided by the foreign client. However, wherever it is not provided, the accommodation charges per day will not exceed the amount payable by the foreign client to DMRC for the concerned project.
3. **Facility of TADK** – Wherever TADK has been provided and the officer is keeping his family in India, the TADK will be allowed to continue during the period of foreign assignment. However,

wherever the officer has taken his family to the foreign country, the allowance in lieu of TADK will be limited to his entitlement in India, i.e. Rs. 14500/- per month.

4. **Self Vehicle facility and Entertainment allowance- (Ref: Note no. DMRC/PERS/14/2019 dated 10.07.2019)**

S. N .	Post	Revised IDA scale INR	Foreign Salary/ Month	Entertainment / Misc. per month	Per DIAM allowance Short/ Long term	Accommodation charges per day	Telephone per month
Non-Executive		INR	USD	USD	USD	USD	USD
1	Supervisor-II	37000-15000*	1500	75	30/20	40/20	30
2	Supervisor-I	40000-125000*	1550	85	35/25	40/25	35
3	Sr. Supervisor-II	46000-145000*	1750	100	40/30	50/30	40
4	Sr. Supervisor-I	50000-160000 (Non-Executive)*	2050	115	45/35	55/35	45
* In addition to the above, the following will also be admissible:" Whenever in foreign country, if DMRC provides the facility of free guest house in the city of foreign assignment, 25% of the accommodation fee in local currency payable as per circulars dated 16/09/13 & 02/12/13 will be paid to the DMRC personnel deployed as expats and availing the facility of free guest house, to compensate them for their shared living".							
5	Transportation	To be provided by GC					
6	Ex-gratia	Payable as per Company Rules					
7	Home Leave Passage	Pay and Allowance for leave availed during the foreign assignment shall be in the Indian salary i.e. IDA/CDA/Consolidated fee as the case may be.					
8	Service bond with company	To serve company during the entire term of GC assignment of the official and one year thereafter or to pay Rs.15 lakhs					
9	Children education Allowance (foreign)	Ceiling amount is 15% of fixed salary/ month of employee towards children education allowance up to class 12th subject to the production of original tuition fee receipts.					
10	Income tax payable in India	Concerned Employee					
11	Income tax payable in Foreign country	As issued by the company vide Note no. DMRC/Fin/Estt./Dhaka/2014-15 dated 16.02.2015. Employee needs to mandatorily follow the Circular No. DMRC/PERS/16/2017 dated 07.04.2017					

1 2	Residential accommodation in India	Can retain DMRC accommodation or avail HRA throughout the period of foreign assignment.
1 3	Medical insurance/facilities – abroad	Overseas Mediclaim Policy provided to the employees at DHAKA is having an exclusion clause according to which full amount of OPD medical claims are disallowed upto 100USD. In addition to the above, the following will also be admissible. The amount of medical claim disallowed by the Insurance Company as per the exclusion clause shall be reimbursed by DMRC subject to submission of documentary proof in line with DMRC medical policy.
1 4	Medical insurance/facilities - India	As per DMRC Policy
1 5	Leave	3 NH of India and closed holidays as followed by the JV partner, EL, HPL and commuted leave shall be allowed as per DMRC Rules. If an employee is going on sanctioned leave from the foreign country then he will be paid as per home salary for the leave period.
1 6	Travel for family	The officers who are required to stay for longer period, will be eligible for reimbursement of one economy class airfare for spouse and two unmarried children below 25 years of age for every 12 months with minimum deployment of 12 months period in that year.

(Ref: O.O. no. PP/1974/2015 dated 24.04.15 & O.O. no. PP/1976/2015 dated 27.04.15)

B. Procedure order for payment of Foreign Travel Advance on official tour:

COMPENSATION FOR STAY AND PERSONAL EXPENSES FOR TOUR ABROAD

When an employee of the corporation is required to undertake journeys to and stay in a foreign country on business of the corporation, he will be provided with air ticket for travel to and from that country. In addition, he will be paid cash allowance in foreign currency or travellers'cheques or in Indian rupees travellers'cheques in accordance with the regulations framed by the RBI and as per the rates adopted by DMRC from time to time. In addition, he is entitled to get reimbursement of charges incurred on entitled mode of transport from residence to airport and airport to residence.

Procedure order for payment of Foreign Travel Advance on official tour:

The payment of foreign travel advance to DMRC officials proceeding on foreign tour for official work will be regulated as under:

1. Foreign TA advance will be given in two components; viz., consolidated per diem allowance and per diem allowance at a fixed rate depending on the country proposed to visit.
2. **Consolidated per diem Allowance:**
 - a. It will, inter alia, cover expenditure on hotel room rent; officials telephones calls, officials intra city transport and other contingent expenditure.
 - b. Consolidated per diem allowance will be paid on the basis of 24-hours day for part of the day also, full consolidated per diem allowance will be paid, the clock will start from the time of disembarkation at the destination.
 - c. On return from tour, the officials will render account for all items other than per diem allowance admissible for the country as per MEA rates. The supporting vouchers for hotel charges and wherever possible for all other items like telephones calls and other contingent expenditure will be submitted with TA bill.
3. **Per Diem allowance:**
 - a. For the purpose of calculating per diem allowance, the day will be taken from mid-night to mid-night and the clock will start from the time of disembarkation at the destination.
 - b. Per Diem allowance will be governed by the rates prescribed for the particulars county by the Ministry of External Affairs. However, in case of HOD's and above levels, the 25% cut has been restored back vide this office note No DMRC/PERS/16/2006, dated 23/03/06.
 - c. Wherever the hotel charges include breakfast charges, the per diem allowance shall be reduced by 10%.
 - d. The payment of per diem allowance will be admissible as under-

S.N.	Details	Admissibility
1	For a stay of less than six hours	NIL
2	For a stay of more than six hours but up to twelve hours	50% of per diem rate
3	For a stay of more than twelve hours	100% of per diem rate

- e. Per Diem Allowance will also be paid as per above rates for the journey time/stay on either side.
- f. Total per Diem Allowance including that of journey time will, however, not exceed the total no. of days spent outside India.
4. Expenses on entertainment will not be reimbursed except when sanctioned with specific approval of MD.
5. The amount taken as advance should be settled within one month from the date of drawing the advance.
6. The per diem allowance for the stop over stay, if any, between the originating & destination countries will be paid as per para 3(d) if such stay is unavoidable because of non-availability of connected flight. Per Diem allowance is not payable for the time spent during normal course of journey. In this case, it will be governed by para 3(a) above.

The following rates of per diem allowance (consolidated per diem allowance) are admissible per day for DMRC officials visiting aboard on official account:

Category	Consolidated PD (per day)	Remarks
CM, MD & Directors	\$400	This is inclusive of hotel and other incidental charges. In addition to the above, fixed rate of per diem allowance applicable to different countries is paid.
SAG	\$ 300	
SG/JAG	\$ 240	
Executives (SS/JS)	\$ 200	
Non-executives (Supervisors)	\$ 150	
Non-executives (Non-supervisors)	\$ 125	

DA admissible for foreign tours other than training:

Officer Drawing Pay	DA admissible for 1 st 14 days	DA admissible for next 14 days	DA admissible for 28 days onwards
Rs.8500/-PM and above	Full rate as prescribed	75% of the full rates	60% of the full rates
Rs.3300/- to 8499/-PM	75% of full rate prescribed	75% of the full rates	60% of the full rates
Below Rs.3300/-PM	33% of full rate prescribed	75% of the full rates	60% of the full rates

DA admissible for foreign training:

SLABS	Executive	Non-executive
1 st 14 days @ full rates	\$ 56.25	\$ 42.19
2 nd 14 days @ 75% of the full rates	\$ 42.19	\$ 31.64
28 days onwards @ 60% of the full rates	\$ 33.75	\$ 25.31

Foreign exchange to Non-DMRC officers for tours abroad: - The full amount of foreign exchange required for the foreign tour for non-DMRC employees shall be released only to the accompanying DMRC officer as per the entitlement. On return from the foreign tour, the accompanying DMRC officer shall render the accountable to DMRC.

GENERAL

Travel and Daily allowance as are admissible under these rules are not to be treated as a source of profit or additional income as they are in the nature of compensation for expenses incurred on a reasonable basis for the purpose of essential travels undertaken by the employee. Every employee should use the same discretion and judgement in incurring these expenses economically as he would exercise when he undertakes travel on his own account.

25. Fee Of Post Retirement Contractual Employment (PRCE):-

The fees of Consultants/Re-employed/Contract/Self-contract employees of DMRC are as under:

(a) Fee of Consultants:-

S.N.	Revised CDA grade held at the time of retirement	Fee per month (Rs.)
	<u>Advisors</u>	
1	Officer retired in Level 17 (Rs.2,25,000/- or equivalent IDA grade 2,00,000-3,70,000 IDA	94700
2	Officer retired in Level 16 (Rs. 205400-224400) or equivalent IDA grade Rs. 180000-340000 IDA	91400
3	Officer retired in Level 15 (Rs. 182200-224100) or equivalent IDA grade 150000-300000 IDA	85400
4	Officer retired in Level 14 (Rs. 144200-218200) (GP-10000) or equivalent IDA grade Rs. 120000-280000 IDA	74600
	Consultants	
5	Officer retired in Level 13A (Rs.) (GP-8900) or equivalent IDA grade Rs. 100000-260000 IDA	66500
6	Officer retired in Level 13 (Rs. 123100-215900) (GP-8700) or equivalent IDA grade Rs. 90000-240000 IDA	59600
7	Officer retired in Level 12 (Rs. 78800-209200) (GP-7600) or equivalent IDA grade Rs. 80000-220000 IDA &Rs. 70000-200000 IDA	46600
8	Officer retired in Level 11 (Rs. 67700-208700) (GP-6600) or equivalent IDA grade Rs. 60000-180000 IDA	41100*
9	Officer retired in Level 10 (Rs. 56100-177500) (GP-5400) / Level 9 (Rs. 53100-167800) (GP-5400)/G.B/Level 8 (Rs. 47600-151100) (GP-4800)or equivalent IDA grade Rs. 50000-160000 IDA	31900
	Consultants (Non-Executive)	
10	Supervisor retired in equivalent IDA grade 50000-160000 IDA	30900
11	Supervisor retired in Level 7 (Rs. 44900-142400) (GP-4600) Or equivalent IDA grade 46000-145000 IDA	27900
12	Supervisor retired in Level 6 (Rs.35400-112400) (GP-4200) Or equivalent Pre revised (Rs.5500-9000)/ (Rs.5000-8000) or equivalent IDA grade Rs. 40000-125000 IDA	24000
13	Supervisor retired in equivalent IDA grade Rs. 37000-115000 IDA	21200
	Consultants (Supporting Staff)	
14	Supporting Staff in Level 5 (Rs. 29200-92300) (GP-2800)	18900
15	Supporting staff in Level 4 (Rs. 25500-81100) (GP-2400) or equivalent or equivalent IDA grade Rs. 35000-110000 IDA	16700

16	Supporting staff in Level 1,2 & 3 (Rs. 21700-69100) (GP-2000)/Rs.19900-63200 (GP-1900)/ Rs.18800-56900 (GP-1800) or equivalent IDA grade Rs. 25000-80000, Rs. 20000-60000, Rs. 16000-50000 IDA respectively	12700
17	Consultant on retainership fee basis	13500

***Retired Sr.PPS and above levels engaged as consultant PAs will get a maximum of this fee only.**

A. Fee for Re-employed personnel

The fee of Re-employed employees has also been approved for revision on the following terms and conditions:-

- 1) All re-employed employees posted Outstation, shall be paid consolidated fee, as shown below for Delhi and outstation office, w.e.f 01/04/2023.
- 2) Lease/HRA (as applicable), i.e @27%, @18% and @9% for X, Y and Z class city respectively, of the consolidated fee will be paid to all re-employed employees over the consolidated fee.
- 3) Re-employed employees drawing company lease will have to forgo HRA amount and draw company lease at the existing rate, along with HRR recovery, as in vogue.
- 4) Those joining afresh on re-employment basis, shall not be eligible for company accommodation. However, such re-employed employees continuing with DMRC company accommodation, shall have to forego the HRA/Lease i.e., 27%, 18% or 9% of the fee.

(b) Fee for Re-employed

S.N.	Pay scales in CDA/IDA	Consolidated fee (Rs.)	
		Delhi	Outstation office
1	Officer retired in Level 15 (Rs. 182200-224100) or equivalent IDA grade 150000-300000 IDA	165900	182500
	Officer retired in Level 14 (Rs. 144200-218200) (GP-10000) or equivalent IDA grade Rs. 120000-280000 IDA		
2	Officer retired in Level 13A (Rs.131100-216600) (GP-8900) or equivalent IDA grade Rs. 100000-260000 IDA	142300	156500
3	Officer retired in Level 13 (Rs. 123100-215900) (GP-8700) or equivalent IDA grade Rs. 90000-240000 IDA	127400	140100
4	Officer retired in Level 12 (Rs. 78800-209200) (GP-7600) or equivalent IDA grade Rs. 80000-220000 IDA & Rs. 70000-200000 IDA	99800	109700
5	Officer retired in Level 11 (Rs. 67700-208700) (GP-6600) or equivalent IDA grade Rs. 60000-180000 IDA	87800	96600

6	Officer retired in Level 10 (Rs. 56100-177500) (GP-5400) / Level 9 (Rs. 53100-167800) (GP-5400)/G.B/Level 8 (Rs. 47600-151100) (GP-4800) or equivalent IDA grade Rs. 50000-160000 IDA	68300	75100
7	Supervisor retired in equivalent IDA grade 50000-160000 IDA	66000	72600
8	Supervisor retired in Level 7 (Rs. 44900-142400) (GP-4600) Or equivalent IDA grade 46000-145000 IDA	59800	65700
9	Supervisor retired in Level 6 (Rs.35400-112400) (GP-4200) Or equivalent Pre revised (Rs.5500-9000)/ (Rs.5000-8000) or equivalent IDA grade Rs. 40000-125000 IDA	51100	56200
10	Supervisor retired in equivalent IDA grade Rs. 37000-115000 IDA	45400	50000
11	Supporting Staff in Level 5 (Rs. 29200-92300) (GP-2800)	40300	44300
12	Supporting staff in Level 4 (Rs. 25500-81100) (GP-2400) or equivalent or equivalent IDA grade Rs. 35000-110000 IDA	35700	39200
13	Supporting staff in Level 1,2 & 3 (Rs. 21700-69100) (GP-2000)/Rs.19900-63200 (GP-1900)/ Rs.18800-56900 (GP-1800) or equivalent IDA grade Rs. 25000-80000, Rs. 20000-60000, Rs. 16000-50000 IDA respectively	27100	29800

Illustration on the fee of re-employed (HoD) level:-

- Delhi- Consolidated fee+27% HRA=(Rs.165900+Rs.44793)=Rs.2,10,693/-
- Mumbai-Consolidated fee+27% HRA=(Rs.182500+Rs.49275)=Rs.2,31,775/-
- Patna- Consolidated fee+18% HRA=(Rs.182500+ Rs.32850)=Rs.2,15,350/-

The applicable perks and allowances like Vehicle, telephone reimbursement, Phone, TADK, etc., will continue as per existing policy.

(Ref: O.O.no.PP/2646/2018 dated 27.09.2018, O.O. no.PP/3273/2023 dated 05.04.2023 and PP/3356/2023 dated 18/10/23)

- 26. Special Allowance For DMRA:** -The employees posted at DMRA and Consultancy Wing are eligible for three increments without the effect of deduction of 12% PF on these Increments. For Consultancy Wing, it is applicable from 01.03.2021. These 3-Increments amount will be uniform and will have no relation with Annual/Promotional Increments. (The grant of three

increments, as incentive, to the Officials posted in the Consultancy Wing, shall stand suspended w.e.. 01.08.2022, till further order.)

(Ref: O.O. No.PP/2647/2018 dated 27.09.2018, Note No. DMRC/Trg. Instt/Faculty_reqmt/2019 dated 10.05.2019, O.O. No.PP/3077/2021 dated 02.02.2021 & O.O. No.PP/3198/2022 dated 13.07.2022)

- 27. Special Allowance To Vigilance Department:** -The employees of Vigilance Department are eligible for Two increments without the effect of deduction of 12% PF on the two Increment.

(Ref: O.O. No.PP/2647/2018 dated 27.09.2018)

- 28. Birthday Gift:-**

Gift of Rs. 2000/- is given on birthday to every employee annually. It is released with the salary of previous month of Employees' birth.

- 29. Subsistence Allowance: -**

An employee under suspension shall be entitled to draw subsistence allowance equal to 50% of his basic pay provided the disciplinary authority is satisfied that the employee is not engaged in any other employment or business or profession or vacation. In addition, he shall be entitled to Dearness Allowance admissible on such subsistence allowance and any other compensatory allowance of which he was in receipt on the date of suspension provided the suspending authority is satisfied that employee continues to meet the expenditure for which the allowance was granted.

When the period of suspension exceeds six months, the authority, which made or is deemed to have made the order of suspension, shall be competent to vary the amount of subsistence allowance for any period subsequent to the period of the first six months as follows:

The amount of subsistence allowance may be increased to 75% of basic pay and allowance there on, if in the opinion of said authority, the period of suspension has been prolonged for reasons, to be recorded in writing, not directly attributable to the employee under suspension.

The amount of subsistence allowance may be reduced to 25% of basic pay and allowance there on, if in the opinion of the said authority, the period of suspension has been prolonged due to the reasons, to be recorded in writing, directly attributable to the employee under suspension.

- 30. Secretarial Expenses To Conciliator/Arbitrator:-**

The Personal Assistants/staff who assist the HOD and Dy. HOD level officers of DMRC appointed as Conciliator/Arbitrator will be paid a fee of Rs.1000/- for secretarial duties performed by them. The fee would be shared equally by both DMRC and the other party to the dispute.

The Conciliator/Arbitrator should appoint one staff member/PA to whom the secretarial charges would be payable and must record the name of such staff/PA in the minutes of conciliation/arbitration proceedings.

(Ref: Circular No. DMRC/Legal/Arbitration Fee/2012 dated 20.06.2012)

31. Interpretation/Relaxation/Deletion/Modification:

The decision of the Managing Director of the Corporation, on all interpretations and relaxations to these rules, will be final. He may also relax any of the provisions of these rules in individual cases of hardship for reasons to be recorded in writing.

Chapter - D

Travelling Allowance / Daily Allowance (TA/DA)



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TRAVELLING ALLOWANCE/DAILY ALLOWANCE

(TA/DA)

1. OBJECTIVE

These Rules are designed to provide monetary compensation to the employees, when they are required to go out of their headquarters on tour of duty on the Corporation's official business or work or a re-transferred to a new place of work, to meet the expenses of travel, stay, food, etc., and in the case of transfer or relocation of the employee and his family.

2. SCOPE AND APPLICABILITY

These Rules apply to all regular employees of the Corporation and those on probation, extension and re-employment including those who are on deputation from a government department or other Public Sector Undertakings. These Rules are not applicable to casual and daily rated employees and those engaged on contract basis unless all or any of these provisions are specially made applicable to them with the specific approval of the Managing Director of the Corporation.

3. DEFINITION

- i. "Controlling Officer," means the officer or authority empowered to authorise the tour of duty of the employee or on his transfer.
- ii. "Family means an employee's spouse, children (son below the age of 25 years or till get married or employed, whichever is earlier and daughter till married or employed) and wholly depended parents upon the employee.
- iii. "Pay" means the basic pay.
- iv. "Tour of duty" means the visit of the employee from his head quarters office to another place on the corporation's official business or work.

Note:- Travels for the purpose of appearing in official enquiries, selections or interviews conducted by the corporation, etc. will be treated as tour on duty.

- v. "Transfer" means the movement of employee from the headquarters at which he is posted to another station so that the new station becomes his new headquarters temporarily or permanently.

4. **CLASSIFICATION**

For the purpose of these rules, the employees of the corporation are classified into the following grades according to the range of pay in which they are at the time of tour on duty or transfer:-

Level	Revised CDA Pay Band	Grade Pay	Revised IDA Grades
Non Supervisor	5200-20200	1800	16000-50000
		1800	20000-60000
		2000	25000-80000
		2400	35000-110000
Supervisor	9300-34800	4200	37000-115000
		4200	40000-125000
		4600	46000-145000
		4800	50000-160000
Asst. Manager	15600-39100	5400	50000-160000
Manager		6600	60000-180000
DGM		7600	70000-200000
Sr. DGM	New Grade		80000-220000
JGM	37400-67000	8700	90000-240000
AGM		8900	100000-260000
HOD		10000	120000-280000
ED			150000-300000
Directors			180000-340000
MD			200000-370000

5. **CONTROLLING OFFICERS**: - For the purpose of journeys on tour by different categories of staff, the controlling officers are as stipulated in SOP.

6. **MODE OF TRAVEL FOR JOURNEY ON TOURS OF DUTY BY AIR/RAIL/ROAD/STEAMER**

6.1 The following modes of travels are authorised for employees of different grades while they undertake journeys on tour of duty and if they are not provided the requisite tickets for these journeys by the Corporation, they may claim reimbursement of the expenses incurred by them on this account-

<u>Pay Scale</u>	<u>Entitlement</u>
MD/TMM/CVO	By Air (Domestic "Highest Class, International" First Class" Rail: Highest class. Road: Actuals.

ED/CGM	By Air (Domestic "Highest Class, International" Business Club Class") Rail: Highest class. Road: Actuals by AC Taxi
HODs in Pay Scale Rs. 120000-280000	By Air (Domestic "Y" Class, International "Business Club Class") Rail: AC-1Class. Road: AC Taxi NOTE: (1) Entitlement to travel on duty for GM level on deputation to DMRC shall be as per their entitlement in their parent department and for GM level regular officer of DMRC with Basic Pay Rs. 175000/- and above, shall be entitled for Air Travel by Business Class.
Rs. 70000-200000 and above but less than Rs. 120000-280000	By Air (Economy Class) Rail-1st AC (Rajdhani:2nd AC, Shatabdi: CC) Road: Actuals fare by Taxi
Rs. 50000-160000 (Exe) and above but less than Rs. 70000-200000	By Air (Economy Class) Rail-2nd AC (Rajdhani:3rd AC, Shatabdi: CC) Road: Taxi
Rs. 35000-110000 and above and upto Rs. 50000-160000 (non-Exe)	Rail-First Class/ Rajdhani:3rd AC, Shatabdi: CC) Road: AC Bus
Rs. 25000-80000 and above but less than Rs. 35000-110000	Rail-First Class/AC 3 tier Road: AC Bus
Below grade Rs.25000-80000	Rail- 2nd Sleeper Road- By ordinary bus

6.2 An employee, while on tour is entitled to get, besides fare, hotel charges and TA, reimbursement of expenditure incurred by him on the following counts:-

- i. Travel cost from his residence to airport/railway/bus station at the time of proceeding on tour and on returning to residence from the above points.
- ii. Travel cost from airport/railway/bus station to the place of stay at the tour station and back to the above points.
- iii. Charges on local tour within the tour station.
- iv. In case of road travel between places connected by rail/air, travel by any means of public transport/own transport is allowed provided the total fare does not exceed the train fare by the entitled class.
- v. Reimbursement of actual reservation including tatkal charges/cancelation charges and bedding charges levied by railways/IRCTC while travelling by rail on official tour is admissible.
- vi. For places not connected by rail, reimbursement will be restricted to their entitlement mode of transport as per the prescribed rates issued by the Director of Transport of the concerned state or of the neighbouring states or DMRC approved rates (as per the tendered rate by the transporter).
- vii. TA advance on official tours can be availed upto 90% of the estimated expenditure.

- viii. Any expense in excess to the individual eligibility incurred on transport only during official tours over and above will be admissible for payment after the specific approval of Concerned Director.
- ix. The powers to permit an employee to travel in the immediate next higher mode of category while on official tour will continue to be with the Director concerned.

Note:-

- i. Travel by AC III-Tier Sleeper will be permissible in trains in which FC or AC Chair car accommodation is not provided.
- ii. All Company employees who are entitled to travel on tour/transfer by First Class/ AC III-Tier Sleeper/AC Chair Car may travel by AC2-Tier Sleeper where any of the trains connecting the originating and destination stations concerned by the direct shortest route do not provides these three classes of accommodation.

- 6.3** The employees, who are required to travel on official work within the headquarters station, are entitled to travel by the following modes and claim reimbursement on actual:
Entitlement to travel at official work:-

<u>Pay Scale</u>	<u>Mode</u>
Rs.120000-280000 and above but below TMM	Taxi (AC)
Rs.50000-160000 (Exe) and above but less than Rs. 120000-280000	Taxi
Rs.25000-80000 and above upto Rs.50000-160000 (Non-Exe)	3 Wheeler
Below grade Rs.25000-80000	Bus

- 6.4** An employee proceeding on journey on tour under these rules may be granted advance to meet the cost of travel and other reimbursable expenses. A bill for adjustment of the actual expenses against the advance should be submitted within one month of completion of the journey. Otherwise the advance will be liable to be recovered from the salary of the employee. All advances on account of tour etc. Are to be settled immediately on completion of journey (within 30 days) failing which simple interest @ 10%per annum will be charged till the unspent money is deposited back for entire period, i.e., from date of its drawl.
- 6.5** Mileage allowance for road journeys shall be regulated at the following rates in places where no specific rates have been prescribed either by the Director of Transport of the concerned state or of the neighbouring states:

<u>Description</u>	<u>Applicable rates while on official tour</u>
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For Journey performed by own car/ taxi	Base fare Rs. 25/- for 1 KM and onwards Rs. 16 per km for AC Taxi/Car Base fare Rs. 25/- for 1 KM and onwards Rs. 14 per km for Non-AC Taxi/Car
For Journeys performed by auto rickshaw/own scooter	Base Fare- Rs. 25/- for 1.5km Onwards-Rs. 9.5/- per km.

(Ref:O.O. No. PP-2925/2019 dated 03.12.2019 & O.O. No. PP-2765/2019 dated 15.02.2019)

- i. Notwithstanding above, actual road mileage as incurred by the employee while on official tour is reimbursable against submission of taxi/auto rickshaw receipt clearly indicating distance travelled (from & to) with the approval of HODs in respect of employees upto Manager level and on self certification basis for Dy. HODs and above. However, if it is claimed on self certification basis, without any receipt/bill, a statement showing the details of local journey undertaken (from and to), distance travelled, mileage/KM and total amount paid may be got approved from concerned Director and to be enclosed with TA claim. If no bill could be produced for the journey performed, the payment will be regulated as per the revised rates applicable.
- ii. Toll tax/parking charges shall be reimbursed on actual basis against submission of proof while on official tour.
- iii. The employee upto Manager level, while on official tour outside headquarters may avail full day taxi with the approval of HOD and on self certification basis for Dy. HODs and above.
- iv. When the employee on official tour with the approval of competent authority, travel on his own vehicle, he/she shall be paid least of actual road mileage or claim as per the entitled class of travel by a train.

7. COMPENSATION FOR STAY AND PERSONAL EXPENSES WITHIN INDIA

- 7.1** When the employees of the corporation proceed on tour for duties outside and are required to be away beyond the municipal/city limits, then they are entitled to be compensated by payment of daily allowance at the rates indicated below. If any employee, while on tour makes his own arrangement for his stay and foregoes his entitlement of Hotel stay, he/she will be paid a Composite TA, which will be 50% more than the normal TA applicable for that station.

<u>Organization</u>	<u>Level</u>	<u>DA rates</u>
DA Rates (A 1 cities)	MD/TMM	1400/-per day
	EDs/CGMs/ SGMs & GMs	1200/- per day
	DGM/Sr. DGM/JGM/AGM	1000/-per day
	Mgr./AM	900/-per day

	Rs. 25000-80000 and above upto highest non-executive cadre	800/-per day
	Below Rs. 25000-80000	500/-per day

If free breakfast is availed by the employee while on tour, DA shall be reduced by 25%, if all three meals are availed then DA shall be reduced by 50% of the entitlement.

Executive (GM & above), who are entitled to travel on duty by business class on tours within the country, if they opt to perform their official journey by Economy class, such officers will be paid cash incentive of Rs. 2500/- per single inland journey for travelling by Economy class, to compensate for the facilities like business lounge etc., which is part of Business Class travel. However, Economy class incentive will be Rs. 1250/- on for the cities falling in States of UP, Rajasthan, Haryana, Punjab, Himachal Pradesh, J&K, Uttarakhand, MP & Bihar.

(Ref: O.O. No. PP-1801/2014 dated 02.07.2014 & O.O. No. PP-2925/2019 dated 03.12.2019)

Composite TA: will be 50% more than the normal TA.

7.2 The following further conditions shall apply in regard to the payment of daily allowance indicated above:

- i. The period of absence will be counted from the time the employee leaves his station of his work i.e., the headquarters station and till the time he returns to the same station.
- ii. Payment of daily allowance will be regulated according to the absence from headquarters from midnight to midnight and as under:
For absence of upto 6 hours -30%
For absence of more than 6hours to 12 hours -70%
For absence over 12 hours -100%
- iii. Full daily allowance will be payable for a continuous halt of upto first 30 days at one station. If the halt exceeds 30 days continuously at one station, then the daily allowance will be granted at the rate of 50% of the full rate applicable to the particular station for the period upto 90 days, with the exception that in special cases, full daily allowance will be payable with the specific approval of MD or a functional Director, taking into account the merit of each case. For halts beyond 90 days and upto 120 days continuously at one station, daily allowance at the rate of 50% of the full rate will be granted with the approval of HOD under whom the employee works.
- iv. Daily allowance will be payable for holidays falling during the tour but not for the days availed of as leave by the employee.
- v. For journey period daily allowance would be payable only at the rates shown under column 3 of the table at item 7.1 above.
- vi. Journey performed on duty within local Municipal limit & NCR city/urban agglomeration in which the duty point of an employee is located will be regarded as "Local journey" and actual transportation charges only shall be paid but, if Hotel stay is required, Hotel charges will be

provided as per eligibility, with special approval of HOD for non-executives and Director for Executives.

- 7.3** If in addition to the above, the employees are required to stay at the tour station for one or more nights, they are also entitled to lodging charges, the maximum rates exclusive of taxes of which are also indicated below.

Grade (IDA)	Revised rates of Hotel	
	‘X’ class cities	‘Y’ & Z class cities
MD/TMM	Hotel-Actual lodging charges	
ED/CGM	10,000/-	8,000/-
GM	9,000/-	7,200/-
DGM/Sr.DGM/JGM/AGM	6,800/-	5,500/-
Mgr./AM	4,500/-	3,600/-
Rs. 25000-80000 and above up to highest non-exe cadre	2,300/-	1,900/-
Below Rs.25000-80000/-	1,700/-	1,400/-

In the exceptional circumstances when the return journey is to be performed on the same day, in such cases the above rates are applicable subject to prior approval of Director for officers and staff upto the level of HOD.

(Ref :O.O. No. PP-2925/2019 dated 03.12.2019&O.O. No. PP-3254/2023 dated 03.03.2023)

8 ENTITLEMENT ON TRANSFER

- 8.1** He shall be entitled to reimbursement of expenses for journey for himself and his family, as per entitlements defined under item 6 above. (Claim should be submitted in the attached Format)

8.2 COMPOSITE TRANSFER GRANT

“CTG is to be paid @ 80% of the last month basic pay in case of transfer involving a change in of station located at a distance of or more than 20 kms from each other. In case of transfer to a station which are a distance less than 20 kms from the old station and of transfer within the same city/NCR, one third of the composite transfer grant will be admissible, provided actually change of residence is involved.” It will be granted to the employee, if he/she submits anyone of the address proof as mentioned below:-

- Lease/Agreement papers, made with house owner.
- Change of address of gas connection.
- Change of telephone address in case of landline phone.
- Allotment of a DMRC staff quarter/flat-

(Ref: OFFICE ORDER NO-PP/2715/2019 dated 07.01.19)

8.3 TRANSPORTATION OF PERSONAL EFFECTS

The expenses incurred by an employee on transportation of his personal effects on Transfer/Superannuation will be reimbursed to the limit of ceiling as shown below:

S.N .	Pay Scale	Personal effects that can be carried (maximum entitled weight)	Revised rate Rs. @ per km by Road/Train
1	MD and Directors	Full Four wheeler wagon or 8000 kg. by goods train or one double container or by road	Rs. 50/- per km
2	Rs. 37000-115000 and above but below directors	Full Four wheeler wagon or 6000 kg. by goods train or one single container or by road	Rs. 50/- per km
3	Rs. 35000-80000 and below	1500 Kg by goods train or by road	Rs. 15/- per km

*The rates are post 7th CPC and further revision of transportation of personnel effect will automatically increase with the increase in rates as per Central Govt. Rule and no separate order will be issued.

(DMRC Personal effect & Govt Personal effect OFFICE ORDER NO.PP/2016/2015, dated 13.07.15 & approval dated 07.10.2022 on E-office Computer No. 40276)

8.4 TRANSPORTATION OF CONVEYANCE

The scales for transportation of conveyance of an employee on transfer at the corporation expense will be as follows:

Pay Scale	Scale
Grade pay Rs.5400 CDA/50000-160000 IDA (Executive) and above	One motor car, or one motor cycle/scooter
Less than Grade pay Rs.5400 CDA/20600-46500 IDA	One motor cycle/scooter/moped or one bicycle

The rates for transportation of Motor Car/Scooter/Cycle by road on transfer shall be as under:

(I) **WHEN THE CONVEYANCE IS SENT UNDER ITS OWN PROPULSION**

Between places connected by rail	Between places not connected by rail
Prescribed rates limited to expenditure on transportation by passenger train on rail	Prescribed rates

Where the conveyance is sent under its own propulsion and the employee does not travel in car, he/she will be entitled to separate fares by rail/air or to a separate road mileage for himself/herself. However, when the employees' travels in his/her own car, he/she will not be entitled to any separate fare by train/air. Appropriate mileage allowance will be admissible for the members of his/her family, if they travel otherwise than by the conveyance being transported under its own propulsion.

(II) WHEN CONVEYANCE IS SENT LOADED ON A TRUCK

Between places connected by rail	Between places not connected by rail
Actual expenses limited to prescribed rates or expenditure on transportation by passenger train on rail, whichever is less	Actual expenses limited to prescribed rates

***Prescribed rates means, the rates notified by the concerned Directorate of Transport, for various modes of transport, at the starting point.**

- 8.5** An employee on transfer may be allowed an advance, in addition to Composite Transfer Grant, not exceeding one month's basic pay. The advance shall be interest free and recoverable in three equal monthly instalments from the salary of the employee.

9. TRAVELLING ALLOWANCE ENTITLEMENT FOR RETIRING EMPLOYEES

- 9.1** When an employee retires after a minimum of 10 years of employment including the service rendered in the governments/PSUs before joining the corporation or his employment ceases on account of his death or medical incapacitation, then he and or his family will be entitled to claim reimbursement of expenses incurred by him or his family on travel as per entitlement under Rule 6.1 for himself and/or his family for proceeding to home town or to place where he intends to settle in India and other expenses as below.

9.2 TRANSPORTATION OF CONVEYANCE ON RETIREMENT

The expenditure on transportation of conveyance by Corporation servants on their retirement shall be reimbursed provided the possession of conveyance by them while in service at their last places of duty should have been in public interest.

9.3 COMPOSITE TRANSFER GRANT ON RETIREMENT

An employee on his retirement is entitled to get Composite Transfer Grant equal 80% of the one month's basic pay last drawn if he wants to settle down at a place other than the last station of his duty located at a distance of or more than 20 km. to meet the transfer incidental and road mileage for journeys between the residence and the airport/railway station/bus stand, etc. at the old and new stations. If an employee on his retirement wants to settle at the last station of duty itself or within a distance of less than 20 km may be paid the composite transfer grant equal to

one-third of the 80% basic pay last drawn by them, subject to the condition that a change of residence is actually involved.

10. **COMPOSITE TRANSFER GRANT on Joining of Directors**

CTG and re-imbursement of expenditure of personal effects are applicable to the Directors who join DMRC from other organizations, in case they do not get such facilities from their previous organization.

(Ref: OFFICE ORDER NO-PP/1685/2013 dated 17.10.2013)

11. **TRAVEL FOR MEDICAL EXAMINATION/ TREATMENT**

If the medical practitioner treating the employee or any member of his/her family eligible for the benefits under the medical rules of the corporation recommends a journey to be undertaken by the person under treatment to another place for the purpose for specialized treatment at a hospital or a clinic, then the expenses incurred on the to and fro journey for the patient and an attendant if need be will be reimbursed subject to the travel being made by the mode and class (not higher than first class/3tier AC) as admissible for journeys on tour by the employee.

12. **INTERPRETATION/RELAXATION/DELETION/MODIFICATION**

The decision of the Managing Director of the Corporation, on all interpretations and relaxations to these rules, will be final. He may also relax any of the provisions of these rules in individual cases of hardship for reasons to be recorded in writing.

DELHI METRO RAIL CORPORATION LTD.
(A Joint Venture of Government of India & Govt. of Delhi)

TOUR TRAVELLING ALLOWANCE BILL

Name: _____ Employee No: _____ Headquarter: _____
Designation: _____ Grade: _____

Basic Pay: _____

Purpose: **Official**

1. Certified that I was on tour from—____(Hrs.)____(Date) to (Hrs.) ____ (Date) & that I travelled by the class & mode of conveyance as indicated below:

Departur e Date	Arrival Date Time Station	Mode of conveyanc e	Class	Amoun t Of fare	Remarks
				Ticket Arranged by DMRC/Self	
				Ticket Arranged by DMRC/Self	

[Boarding passes
attached at annex
1]

2. I was treated as Guest & was provided the facilities asunder.

[A] Free Lodging & Boarding
Station Date _____

[B] Free Boarding or Lodging only
station Date _____

NA

3. Details of Conveyance charged incurred

Date	Station	Place visited/Distance Travelled		Amount Claimed (Rs.)	Remarks
		From	To		
		Total			

4. I stayed in Hotel for which I was charged as follow. {Bills are to be enclosed}

Station	Name Of Hotel	Period of stay	Amount charged	Remarks
		From To	towards lodging only	

N/A

5. Daily Allowance entitlement.

a) Halt At

Station	No. of Days	Rate of DA(Rs.)	Amount Rs.
---------	-------------	-----------------	------------

Total

- a) Journey Time
- b) Total
- c) Leave/CL if any availed
- d) Total No. of days for which DA is claimed

6. Calculation of T.A

[i] Fare	Nil
[ii] Conveyance Charges	Rs.
Other claims [Details to be furnished Hotel Charges and voucher attached wherever possible]	
[iii] Daily Allowances	Rs.
[iv] Total	Rs.

Signature of the Employee

Dated:

_____ -N/A- _____ being unspent T.A. remitted back to the company
vide MR No. _____ -Dated _____

Controlling Officer

FOR USE IN ACCOUNTS DEPARTMENT

Passed for Payment/Recovery for Rs.....
Rupees.....

Accounts Asstt.

Account Officer

Enclosures:-

1. Original Tax Invoice of Ticket Travelled (Bus/Train/Airways/Roadways) If travelled through roadways then Toll Charges Receipt be Enclosed.
2. Whether stayed at Hotel by self/Hotel provided by Guest/Company's Guest House/Visiting Company's Guest House.
3. Original Tax Invoice of Hotel if availed.
4. Original tax Invoice of Taxi/Auto if availed (As per Entitlement) and duly certified by

Competent Authority as per DMRC TA Rules.

5. Separate Approval from Competent Authority if Full Day Taxi availed (As per TA Rules Para 6.5(3)).
6. Whether DA Rate claimed As Per DMRC Rate and Rules or not.

Chapter - E

Medical Attendance Rules



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DMRC MEDICAL ATTENDANCE RULES

These Rules shall be called the “DMRC Medical Attendance Rules”.

1. OBJECTIVE:

These Rules are designed to provide a certain measure of social security and insurance to employees and their family members against various types of illnesses, which may befall them during employment.

2. SCOPE OF APPLICABILITY:

These Rules shall apply to all:-

- (i) Regular employees of the company and those on probation or extension.
- (ii) Those, who are on deputation from a Government Department or other PSUs, who opt to be governed by these Rules instead of by the rules in force in their parent organisation, within a month of joining the company.
- (iii) Employees who have been offered long term contract in regular pay scales/consolidated fee and those working on temporary /ad-hoc basis on a scale of pay (O.O. No. PP/1326/2011 dated 17.10.2011).
- (iv) A superannuated employee, only if, he/she has superannuated/ completed their tenure appointment from DMRC after putting in a minimum of 5 years’ service including uninterrupted deputation period, if any, along with the condition that one has served for a minimum period of 15 years in a Government Department/PSU/DMRC (all put together) on the date of superannuation.
- (v) Spouse of the deceased employee if the spouse /dependants of the deceased employee are not eligible for consideration for employment in DMRC under Compassionate Appointment Policy and fulfilling other Criteria as per DEFHS.

EXCLUSIONS: These Rules are not applicable to casual, daily rated employees and those engaged on Re-employment/Contract basis as Consultants after superannuation, etc.

3. DEFINITION

- 3.1 “Authorized Medical Attendant” (AMA) means any qualified medical practitioner in Allopathic, Ayurvedic or Homoeopathic (and not Unani) system of medicine, whether in the service of the company or practicing medicine elsewhere and acceptable to the company. Indoor treatment of DMRC employees in Nominated Ayurvedic/Homeopathic Hospitals shall not be reimbursable as in these nominated Ayurvedic/Homeopathic Hospital/Clinic, treatment facility is limited to outdoor treatment/clinical examination only (O.O. No. No. PP/1684/2013 dated 17.10.2013 & O.O. No. No. PP/1824/2014 dated 12.08.2014).
- 3.2 ‘Family’ means an employee’s spouse, children (son below the age of 25 years or till they get married or employed; whichever is earlier, unmarried daughter but not employed and dependant on the employees) and widow mother/parents of the employee only, who is wholly dependent upon the employee and does not have independent income more than 15% of the basic pay of the employee or the amount arrived by adding minimum pension/family pension of Rs. 9000/- (excluding the element of additional pension of old pensioners) and the dearness relief

admissible to the pensioner/family pensioner thereon, rounded off to the nearest ten rupee figure, whichever is more. (O.O. No. DMRC/PERS/14-A/2018 dated 30.11.2018).

Note:-

- (a) If both husband and wife are employees of the company, only one of them may avail of the benefits of these rules for the family accordingly to their option. However, dependent widow mother of both will be included independently for the purpose of these benefits, subject to the other conditions for their inclusion being satisfied.
- (b) Employees are required to submit a declaration in the form given in **Annexure-‘A’** in order to claim medical reimbursement.
- (c) If spouse of the employee is employed with any Government organization/PSU/Autonomous bodies/ Local Bodies, the employee will have the choice for declaring separate dependency for claiming medical and LTC facilities; either completely (Medical + LTC) from DMRC or separately LTC from DMRC and Medical from spouse's organization or vice versa.
- (d) The options once exercised for LTC will be valid for the complete block of 4 years for LTC and mid way change of facilities, will not be entertained.
- (e) For medical, no change will be allowed within one year.
- (f) Employee can have separate dependency for medical and LTC for claiming the same either from DMRC or from Spouse's organization. However, the employee will ensure that the claim is not duplicated. Frequent change of dependency for Medical and LTC will not be entertained. The employee will have to submit necessary certificate from spouse's organization. (O.O No: DMRC/HR/O&M/393/2023 dated 29.08.2023)

3.3 “Sanctioning Authority” with reference to the exercise of any powers under these Rules means the officers or the authority to whom such powers are delegated in accordance with the schedule of delegation of powers and/or any other order issued in general or in particular.

4. MEDICAL BENEFITS

The employees of the Corporation to whom these Rules apply will be eligible to be paid the expenses incurred by them from time to time during the course of their employment on the medical treatment for themselves and their family subject to the stipulations and monetary limit prescribed in these rules.

- 4.1 The employees drawing CDA pay scales shall be eligible for medical benefits at par with employees of IDA pay scales.
- 4.2 The following fixed amount for outdoor treatment will continue to be reimbursed to CDA Pay Scale Employees.

Grade	Rates
Director & above	Rs. 3125/- p.m.
ED, HOD & AGM	Rs. 2500/- p.m.
JGM & DGM	Rs. 2190/- p.m.
Managers	Rs.1750/- p.m.
Asstt. Managers	

(Ref: O.O. No. HR/O&M/346/2022 dated 18.11.2022)

5. MEDICAL TREATMENT COVERED UNDER THESE RULES

Medical treatment covered under these rules will include the following treatment taken from the Nominated/Government hospitals/labs/clinics:-

- (a) Indoor treatment/Day Care treatment
- (b) Pathological Tests/Diagnostic investigation/procedures
- (c) Dental treatment
- (d) Ophthalmic treatment
- (e) Prolonged (disease) treatment
- (f) Annual Comprehensive Health Check Ups.

6. ADMISSIBILITY OF REIMBURSEMENT

6.1 The Monetary Ceiling limit for reimbursement, are as follows:

S.No.	Medical Treatment	Re-imbursement admissible
1.	Indoor treatment taken from the nominated/Govt. hospital	100%
2.	Pathological Tests/Diagnostic investigation procedures	90%
3.	Dental treatment	90% (Annual ceiling Rs. 100,000/-)
4.	Ophthalmic & Prolonged disease treatment	90%

6.2 For the treatment/ advanced specialized treatment in IPD taken for certain types of very serious ailments such as those listed below, full reimbursement can be made with the approval of Director/Finance, irrespective of the medical institution where from the treatment is taken but advanced/specialized medical facilities should be available in such institution for the diseases.

- (a) Cancer
- (b) AIDS
- (c) Kidney or Liver failure and transplantation (ED/HR Office Note dated 04.08.2010)
- (d) Heart bypass surgery and other surgical and non-surgical interventions on the heart.

6.3 Prolonged Treatment

(a) A few diseases are categorized as special disease/illness for which approval for prolonged treatment is required and re-imbursement is made @ 90%, subject to approval of HOD (HR). The list of 25 such diseases is given hereunder:-

- 1) Tuberculosis,
- 2) Hypertension,
- 3) Diabetes mellitus- not controlled by diet therapy,
- 4) Coronary artery disease/disorder,
- 5) Bronchial asthma,
- 6) Epilepsy,
- 7) Hypo or Hyperthyroidism (Thyroid),
- 8) Arthritis,

- 9) Allergy,
- 10) Thalassemia,
- 11) Parkinson's disease/Multi-system atrophy,
- 12) Autism,
- 13) Neurological disorders,
- 14) Hyper Cholesterolemia (High Cholesterol),
- 15) Osteoporosis (Brittleness of Bones),
- 16) Primary Sclerosis Cholangitis.
- 17) Auto Immune HemolyticAnemia.
- 18) Glucoma.
- 19) ITP (Immune Thombocytopenia).

(b) The follow up OPD for the below IPD treatment, from the medical institution wherein the IPD treatment has been taken, or from any nominated hospital or Govt. Hospital or Medical Consultants of DMRC will be reimbursed under Para 6.3 (Prolonged Treatment) @ 90%. (Ref: O.O. No. HR/O&M/134/2023 dated 10.04.2023)

- 20) Cancer,
- 21) AIDS,
- 22) Kidney failure and transplantation,
- 23) Liver failure and transplantation,
- 24) Heart bypass surgery ,
- 25) Other surgical and non-surgical interventions on the heart.

The validity of approval of HOD (HR) is restricted to two years or completion of treatment, whichever is earlier. After 2 years if the treatment is still continuing, the employee will have to obtain a fresh approval of the Director on prescribed format for such treatment (**Annexure-“B”**).

- (c) The doctor's certificate for applying for approval of HOD (HR) for a disease requiring prolonged treatment should be only from one of the nominated /approved hospitals of DMRC or DMRC's consultant Doctor's/Government Hospitals.
- (d) It may be noted that treatment covered under prolonged diseases shall be entertained if treatment is taken from one of the approved hospital/clinic/Government hospital of Delhi/NCR etc only and not otherwise (O.O. No. No. PP/950/2009 dated 09.07.2009)
- (e) Reimbursement claim for the prolonged treatment will be made based on the initial prescription for the period of approval by the HOD (HR). But in case of change in the medicines/treatment prescribed by the treating doctor for prolonged treatment, the claim will be entertained only if the doctor's revised prescription is enclosed.
- (f) The employee is required to submit the prescription, clearly containing the names of medicines and doses required for the treatment of prolong disease at the time of approval. In case of change of medicines during the course of treatment, fresh prescription along with the old prescription, bearing clear diagnosis of the prolong disease should be submitted. (Note No: DMRC/O&M/HR/Medical/2013 dated 09.12.2013).

(g) In the case of prolonged treatment, consultation charges shall be reimbursable of disease covered under para 6.3 of the master Circular on DMRC Medical Attendance Rules. (O.O. No. PP/1883/2014 dated 09-12-2014).

(h) Employee can claim medical bills of prolong treatment by applying on prescribed format (**Annexure “C”**).

6.4 Chemotherapy/ Radiation Therapy: The expenses of OPD procedure for chemotherapy & radiation shall also be reimbursable to the employees in case of Cancer treatment. This facility will also be extended to dependent parents/widow mother in case of Cancer treatment.(O.O. No: PP/2459/2017 dated 11-08-2017)

6.5 No reimbursement shall be made for expenditure incurred on vitamins, nutritional supplements, etc. except when prescribed/certified by the doctor to the effect that such item/s are absolutely necessary for treatment of specific disease for restoration of normal health/cure of disease. Treatment pertaining to infertility and Assisted Reproductive Techniques, related path tests/diagnostic investigations/procedure are not covered under medical facilities. (Circular No: DMRC/O&M/HR/Med. Corr/2007 dated 05-06-2007)

6.6 In Vitro fertilization (IVF):-

The Re-imbursement of IVF Treatment expenses will be as under:-

- (i) The IVF procedure may be allowed for the beneficiaries of DMRC medical rules (female employees/spouse of male employees) based on the Medical recommendation of gynaecology expert of DMRC's Nominated Hospital/Govt. Hospital who will inter-alia certify that there is a clear evidence of failure of conventional treatment before recommending IVF procedure.
- (ii) The age of women undergoing IVF treatment procedure should be between 21& 39 years.
- (iii) The woman has to be married and living with her husband.
- (iv) The IVF treatment procedure will be allowed only in cases of infertility, where the couple has no living issue.
- (v) Re-imbursement of expenditure incurred on IVF procedure will be allowed up to a maximum of 3(three) fresh cycles.
- (vi) An amount not exceeding Rs.65,000/- per cycle or the actual cost, whichever is lower, will be allowed for reimbursement. This amount will be inclusive of the cost of drugs and disposables and monitoring cost during IVF procedures.
- (vii) As IVF treatment is a planned procedure, reimbursement can be considered only, if prior approvals obtained by the employee for undergoing the IVF treatment.
- (viii) There will be only one time permission for availing IVF treatment consisting of three cycles in total, which would be admissible to the beneficiary. DMRC shall obtain an undertaking from the applicant that he/she has not claimed the reimbursement earlier from DMRC in the past and will not claim it in future(Ref: O.O. No. PP/1670/2013 dated 19.09.2013).
- (ix) Approval for IVF treatment shall be given only if employee is not having any living child.
- (x) Competent Authority for approval of request of IVF treatment , is Dy.HOD (HR). (OO NO: HR/O&M/306/2023 dated 13.07.2023)

- 6.7** No re-imbursement of medical bills for the treatment taken from outstations will be entertained except in case of an emergency or Indoor (IPD) Treatment. In such cases, the treatment should be taken from a reputed hospital preferably from a Govt. Hospital as far as possible and an emergency certificate in case of emergency/discharge summary in case of IPD treatment for taking treatment, should be obtained from the treating doctor and attach with the medical bills for reimbursement. The employee concerned should mention detailed circumstances necessitating outstation treatment while submitting the medical bills for reimbursement. The reimbursement claims for treatment taken in non-nominated hospitals even in emergency and outstation treatment (Except delivery cases), shall be restricted to CGHS approved rates or actual, whichever is less. (Office Order NO: PP/2148/2015 dated 22.01.2016)
- 6.8** Any treatment (Indoor/IPD) taken from outstation for dependent parents will be reimbursed as per CGHS rates of that particular area/state. (Ref: O.O. No. PP/2389/2017 dated 12.05.2017).
- 6.9** Re-imbursement for any joint replacement of the employee, on the prescription of the Doctor of nominated hospital and Govt. Hospital, is permissible but shall not be admissible for any other dependent family members of the employee (O.O. No. HR/O&M/134 dated 10.04.2023).
- 6.10** Re-imbursement of charges of animal bite, etc. vaccination will be made under DMRC Medical Attendance Rules, if the vaccination is taken from a DMRC nominated Hospital/Government Hospital. (Ref: O.O. No. PP/2721/2019 dated 17.01.2019)
- 6.11** Re-imbursement of charges of speech therapy in Nominated Hospitals shall be reimbursable subject to the limit of Rs.385/- only per sitting (O.O. No. PP/1710/2013 dated 10.12.2013).
- 6.12** Charges of any surgical intervention/plaster done in nominated Hospitals, even if admission is not required, shall be reimbursable. (Ref: O.O. No. PP/1745/2014 dated 03.03.2014)
- 6.13** During indoor treatment of Covid 19, cost of PPE Kits per visit with ceiling limit of Rs. 6000/- or actual whichever is lower, shall be reimbursed. Also, cost of consumables/Face Mask/Hand Sanitizers/Miscellaneous items during entire hospitalization for Covid19, shall be reimbursed up to Rs. 2000/- only or actual basis, whichever is less(Ref: Office Order No: HR/O&M/473 dated 23-11-2020)
- 6.14** For positive cases of COVID 19 :-
- (a) Bills of IPD/Indoor treatment taken from non-nominated hospitals shall be reimbursed. The reimbursement shall be restricted to the rates of Sir Ganga Ram Hospital or hospital rates, whichever is less.
- (b) For treatment of COVID 19 under OPD treatment/ Home Quarantine, cost of pathology/ Diagnostic test (COVID test and other COVID related path/ Diagnostic test) from non nominated hospital shall be reimbursed at the rate of 90% of the bill.
- (Ref: O.O. No. HR/O&M/219/2022 dated 05.07.2022)*

7. IPD (INDOOR TREATMENT)/ HOSPITALISATION:

- 7.1** Full re-imbursement of admissible expenditure incurred on hospitalisation in a nominated hospital as per the list approved, will be made to the employee. A list of nominated hospital is uploaded at DMRC intranet. This list is amended from time to time. The expenses incurred on minor operations/procedures in a nominated hospital for which hospitalisation is not required will also be reimbursed at the rate indicated in Para 6.1 (1). Moreover, full reimbursement shall be made in case of “injury on duty” and for any ailment for which indoor treatment is taken from a Government hospital.

The Sanctioning authority for reimbursement of medical bills are as under: (OO. PP/2846/2019 dated 28.06.2019)

S. No.	Reimbursement Amount	Sanctioning Authority
1.	Up to Rs. 1,00,000/-	AM/Manager (Finance)
2.	From Rs. 1,00,001/- to Rs. 3,00,000/-	Dy.HOD/Finance
3.	Above Rs. 3,00,000/-	HOD/Finance

(Ref: O.O. NO: HR/O&M/02/2021 Dated 12.01.2021)

It has been decided that the reimbursement claims for treatment taken in non-nominated hospitals in case of emergency & outstation treatment, shall be restricted to CGHS rates or actual whichever is less. For emergency, employee has to submit certificate from the Doctor of the hospital that the patient had to be admitted in emergency.

- 7.2** **The cost of life saving devices used during treatment/surgery will also be reimbursed as per CGHS rates to the employee, spouse, children and dependent widow mother, if the same has been availed from a nominated hospital and under doctor’s prescription. Items not covered under CGHS rates will not be reimbursed.** (O.O. No. HR/O&M/134/2023 dated 10.04.2023).
- 7.3** Cost of Hospitalization will include pre- and post-admission treatment, OPD charges and resultant cost of medicine subject to certification by the hospital on prescribed performa (**Annexure “D”**) that such OPD charges and pre/post admission treatment was part of the indoor treatment, subject to maximum limit of 3 months on each side. Reimbursement of pre-post hospitalization is not applicable in the case of dependent parents .It is also made clear that this provision is not applicable in the case of emergency treatment if the patient is admitted for less than 24 hours (Ref: O.O. No. PP/2161/2016 dated 15.02.2016). Further, in case of pregnancy/delivery, regular check-ups and treatment continues and therefore, for treatment taken during the period of 3 months before & after delivery, no certificate is required.
- 7.4** (i) The entitlement for re-imbursement of room charges for indoor treatment (in hospital empanelled on Hospital Rates) is as below:-

S. N.	Designation	Admissible room rent per day(Rs.)	Entitlement of the accommodation	Treatment entitlement*
1.	MD/Directors	18,000/-	Suite/Deluxe Room	NH
2.	ED/HoDs	15,000/-	Deluxe Room	SNH
3.	Sr.AGM/AGM/JGM/Sr. DGM	11,250/-	Single Room	SNH
4.	DGMs/Managers/Assistant Managers/Sr. Supervisors	8,400/-	Single Room	SNH
5.	Supervisors	6,750/-	Two/three bedded Room	SP
6.	Non-Supervisors	4,800/-	Economy/General Ward etc	SP

*NH- Nursing Home, SNH-Semi Nursing Home, SP-Semi Private
(Ref: O.O No.HR/O&M/196/2023 Dt.17.05.2023)

For re-imbursement of indoor treatment for various diseases/procedures, the different categories will be considered as per their room entitlement, i.e., the Non-Executives will be eligible for re-imbursement at SP rates, the Dy.HOD/Managers/AM/Sr. Supervisors, at SNH rates and HOD and above levels at NH rates. In case of those hospitals, where there is only one rate for various treatment/procedures, all categories of personnel will get re-imbursement of indoor treatment at a uniform rate.

(ii) Some Hospitals have been empanelled on CGHS rates for certain services. In such Hospitals, for services available to DMRC employees on CGHS rates, room entitlement under IPD treatment, are as under:

Sr. No.	Pay Scale (Rs.)	Room Entitlement	Current rates
1	Upto Pay Scale Rs. 35,000-1,10,000/-	General Ward	Rs. 1500/- per day
2	Between Pay Scale Rs. 37,000-1,15,000/- to Rs. 40,000-1,25,000/-	Semi Private Ward	Rs. 3000/- per day
3	Between Rs. 46,000-1,45,000/- to Rs. 1,50,000-3,00,000/-	Private Ward	Rs. 4500/- per day

(iii) Under Indoor treatment, there will be no restriction of CGHS facility for Board Level Executives i.e. MD and Directors (Including Ex-MD/Ex Director and their dependent family members). MD & Directors (including retired MD & Directors) and their dependent family members shall be eligible for medical facilities as per DMRC eligibility/entitlements at hospital

approved rates along with applicable discounts in all nominated hospitals. (O.O. No: HR/O&M/318 /2023 dated 20.07.2023)

7.5 For the period of treatment in Intensive Care Unit (ICU) of the hospital, re-imbursement will be made at the rate of **Rs. 4000/- per day**, in addition to the room charges. (OO. No: HR/O&M/196/2023 dated 17.05.2023)

7.6 Reimbursement of delivery charges from outstation/Non Nominated Hospital

1. Medical bills of delivery charges from the nominated hospitals of DMRC employee (pan India) will be reimbursed as per approved rates with hospitals.
2. Medical bill for delivery charges from the non-nominated hospitals (pan India) will be reimbursed as per actual or maximum Rs.25,000/- for normal delivery and Rs. 50,000/- for LSCS (Inclusive of all charges during indoor treatment) whichever is lower. They will be eligible for reimbursement for pre-post hospitalization treatment cost at CGHS Rates. (O.O. No: HR/O&M/134/2023 dated 10.04.2023)

8. MEDICAL ADVANCES

In exceptional cases advance required by individual employees on account of grave hardship to meet the expenditure in connection with indoor treatment in emergent cases can be given on the recommendation of the doctor from a nominated/Government hospital. The medical advance will be entertained only if the amount of expenditure is above Rs. 10,000/-. 80% of the total estimate will be paid as medical advance and rest 20% has to be borne by the employee.

The Medical Advance i.e (80% of estimate) will be given including Rs.2 Lakh cashless, for hospital having cashless facility.

The sanctioning authority for Medical Advance is given as under:-

S.No.	MEDICAL ADVANCE (Rs.)	SANCTIONING AUTHORITY
1.	Up to Rs. 3,00,000/-	Dy. HOD (HR)
2.	From Rs. 3,00,001/- to Rs. 6,00,000/-	HOD (HR)
3.	Above Rs. 6,00,000/-	Director(Finance)

(Ref: O.O. No. HR/O&M/134/2023 dated 10.04.2023)

The medical advance should be settled within 30 days of drawl of the advance. The bills of the hospital along with all necessary documents are required to be submitted within one month's time after the completion of treatment failing which simple interest @ 10% per annum will be charged on unspent money till it is deposited back, for entire period i.e. from the date of drawl: (Ref: O.O. No. PP/1249/2011 dated 13.06.2011)

9. CASHLESS MEDICAL FACILITIES

- 9.1. With a view to improve the medical facilities in DMRC, the Management has decided to start Cashless Indoor Treatment facility for employees. For list of empanelled Hospitals for Cashless Medical Facility, employees may refer DMRC Intranet Site.
- 9.2 Entitlement of accommodation will be as per Para 7.4 above. In case of non-availability of the entitled accommodation, employee may get treatment in the lower category of accommodation, employee may take a room upto his/her entitled amount and excess rent, if any, will be borne by the employee. Further, the employee should ensure that he/she avails treatment as per his/her entitlement, and in no case treatment in a higher type will be admissible.
- 9.3 All the employees of DMRC (Other than exceptional employees who are covered under insurance taken by DMRC) who are availing the Cashless Medical Facility the concerned employee will have to furnish a certificate on the prescribed format enclosed at Annexure “E” immediately on discharge from the Hospital. It is mandatory to submit this certificate in HR branch duly filled in & completed in all respect and forwarded through the concerned HOD within a week after being released from the Hospital failing which the ~~Cashless~~ Medical Card issued to the employee concerned will be frozen. (O.O. No: PP/2369/2017 dated 17-04-2019)

9.4 General instructions for availing Cashless Medical Facility:-

- (i) **Admissibility:** This facility will be admissible to regular employees, deputationists who have opted medical facility from DMRC, long term contractual employees in regular pay-scales and their families only (as per DMRC Medical Rules).
- (ii) **Limit:** This facility is admissible only up to Rs. 2,00,000/- for one treatment. (O.O. No:)
(Note) (i) If both husband and wife are employed in the Corporation, only one of them may avail the benefits of these Rules for the family according to their option. However, dependent widow mother of both will be included independently for the purpose of these benefits.
(ii) All employees are required to submit a declaration in the Form given in Annexure –‘A’ for medical bill reimbursement.
- (iii) Cashless medical treatment facility may be availed for indoor treatment only from nominated Hospitals.
- (iv) **Issue of Medical ID Card:** Employees, who want to avail the medical facility, may apply through ESS and get his/her Medical card.
- (v) **Validity of Medical ID Card:** The Medical Identity Cards will be valid till he/she is in service in DMRC only. In case, employee remains absent from duty for more than 15 days, without approval of competent authority, his/her card shall be cancelled and intimation of such cards will be given to the Hospitals on first day of succeeding month. Such employees should not avail the cashless medical facility/Medical Facility, failing which he/she will be liable to be taken up under D&AR rules. The Hospital will also communicate within 24 hours regarding Hospitalization of DMRC employee, through email/fax, so that the employee’s attendance status may be scrutinised.
- (vi) **Misuse of Medical ID Card:** Any false declaration for obtaining medical identity card or misuse of medical identity card will entail cancellation of the card and major D&AR action will be initiated against the employee. In such case, further issuance of card to him will be barred.

The Labour Welfare Inspectors and/or Vigilance Inspectors may visit the Hospital for verification of the dependents.

(vii) **Return of Medical Card:** Employee leaving the organisation will have to return the medical identity card to HR office, while obtaining “No Dues Certificate”. In case of non-return, all dues of the employee will be kept withheld.

(viii) The following treatments are not covered under the Cashless Medical Facility:

(a) **No organ transplant/artificial organ implant:** In no case, organ transplant or artificial organ implant including knee replacement will be allowed through the cashless treatment facility. In case of indoor treatment of cataract, the upper cost ceiling for the IOL (Intra Ocular Lens) is fixed at Rs.15,000/-.

(b) **Infertility treatment:** Indoor treatment taken for infertility is not reimbursable and in case employee avails cashless medical facility for the same, bills shall not be reimbursed to him/her.

(c) Further, this facility shall not be available for cosmetic procedures, dental treatment, comprehensive medical health check-up or any other kind of outdoor treatment.

(ix) **Procedure for availing the facility:** The employee will carry his ID card and Medical Identity Card with him/her, while approaching the Hospital for indoor treatment. The Hospital will keep a photo copy of both cards and will provide treatment after due scrutiny of the employee or his/her dependent.

9.5 The employees who intend to avail the cashless medical facility should carry his/ her ID Card and Medical Card and Produce at Counter of Corporate Desk/Admission Desk of the Hospital.

9.6 After availing cashless medical facility the concerned employee will have to furnish a certificate on the prescribed format enclosed immediately on discharge from the Hospital. Copy of this certificate is to be submitted in HR branch duly forwarded through the concerned HOD within a week after being discharged from the Hospital, failing which the Cashless Medical Card issued to the employee concerned will be frozen.(O.O. No. PP/2369/2017 dated 17/04/2017).

9.7 In case of non-submission of certificate within 7 days after the completion of cashless treatment will result in recovery from salary of the employee, till the cashless amount is recovered subject to recovery amount not exceeding 50% of net salary.(O.O. No: HR/364/2020 dated 08-09-2020)

10. OPD /OUTDOOR TREATMENT:

10.1. TREATMENT

The re-imbursement for dental treatment will be made maximum at the following rates:-

S.No.	DENTAL PROCEDURE	ACTUALS SUBJECT TO A MAXIMUM OF
1.	Root Canal Treatment (RCT)- Anterior	Rs.2930/-

2.	Root Canal Treatment (RCT)- Posterior	Rs.4350/-
3.	Composite Filling	Rs.2000/-
4.	Crowning per unit	Rs.3300/-
5.	Extraction per tooth	Rs. 590/-
6.	Extraction of fractured/decayed tooth	Rs.1100/-
7.	Surgical extraction of tooth	Rs.2930/-
8.	Tooth implantation (per tooth)	Rs. 25000/-
9.	Ceramic Crown	Rs.10,250/- Per tooth

The above ceiling for re-imbursement of charges for dental treatment will be subject to the following additional conditions:

- (i) The treatment shall be taken from any of the DMRC nominated/approved Hospital/Dental Clinic only.
- (ii) The maximum amount to be reimbursed to an employee, for self and family members, in a financial year for dental treatments shall be limited to a maximum of **Rs. 1,00,000/- (Rs. One Lakh) only**.
- (iii) Reimbursement for tooth implantation is allowed for self & spouse only and no prior approval would be required for the same (O.O. No. PP/2548/2018 dated 19.02.2018).

Exclusions: Charges for the supply of dentures, cleaning, polishing of teeth, filling of teeth with gold/or other expensive materials or the dental treatment such as orthodontic treatment for cosmetic reasons are not reimbursable.

10.2. OPHTHALMIC TREATMENT

Fees charged for routine testing of eye sight will be reimbursed only once in two years, unless it is done during the interim period on the advice of an eye specialist. In case of cataract operation, the upper cost ceiling of the IOL (Intra Ocular lens) is fixed at **Rs. 15,000/-** only (Ref: O.O. HR/O&M/134/2023 dated 22.01.2013).

10.3. PATHOLOGICAL AND OTHER DIAGNOSTIC INVESTIGATIONS & PROCEDURES.

- (i) Expenses incurred on pathological, radiological and other investigations/diagnosis would be reimbursed if the same is done on the advice of an authorised medical attendant of the nominated or Government hospital & Medical Consultant of DMRC and is undertaken in nominated labs of DMRC. **Expenses incurred on pathological, radiological and other investigations/diagnosis conducted in non-nominated hospitals/lab will be reimbursed at CGHS rates, if the consultation has been obtained from a nominated hospitals or**

Government hospital or Medical Consultant of DMRC. (OO NO: HR/O&M/134/2023
Dated 10.04.2023)

(ii) All consultation charges are part of outdoor medical re-imburement being paid in the form of perks with salary. Hence, no consultancy charges shall be reimbursed separately.

11. MEDICAL FACILITY TO DEPENDENT PARENTS OF THE EMPLOYEES.

The dependent parents of the employees are included for medical coverage as per the Office Order No. DMRC/PP/1910/2015 dated 23.01.2015. The conditions for availing medical facilities for parents will be as under:-

11.1 Inclusion of parents for medical facility:

Employees intend to avail medical facility for dependent parents who are residing with them, may submit their application through ESS. For renewal of dependency of parents, employee may submit application on prescribed format (**Annexure “F”**).

11.1.1 Employees, who intend to avail medical facility for parents are required to upload on ESS/submit (In case of renewal) any of the following documents in support of the parents’

11.1.2 income: -

- (i) Pension Pay Orders of parent/s with pension A/c Pass-book, in case of retired Govt. / State Govt/Semi Govt/PSU employee/s.
- (ii) In case, employee’s parent/s have own business, non-regular income, the employee will submit Income Tax Return or an Income Certificate issued by local authorities (BDO/SDM).
- (iii) If parent/s working in non-Govt. organisation, the employee will submit their latest Income Tax Return.
- (iv) If parents hold BPL Card/Old-age pension certificate, a copy of the same may be submitted.
- (v) The dependence certificate must be renewed after every three years in the month of January, with latest income proof etc and widow pension pay order in case of widow mother if applicable and income tax return as said above, failing which medical facility will be discontinued. In case of change in income, employees are required to inform the HR Department regarding revised/increased income. Failing which, he/she can be liable for action under Conduct, Discipline & Appeal Rules.

11.1.2. If, parents are availing medical facility from any other Govt. sources, such as CGHS, State Govt. health services, Govt PSUs, Defence (CGHS) etc. or availing as dependent on sibling of the employee will not be eligible for medical facility from DMRC.

11.1.3 Female employees shall have the choice to include either her parent or parents-in-law for the purpose of availing of the medical facility, subject to the condition of residence and dependence.

11.1.4 Proof /documents in regard to Residence:

- (i) Aadhaar card
- (ii) Voter ID card
- (iii) Passport copy

- (iv) Ration Card (no self-declaration and affidavit will be valid).

11.1.5 Proof/Document in regard to dependency not claimed by siblings:

If the siblings are employed with Government organisation, a declaration on letter head of that organisation regarding not availing medical facility will have to be submitted.

11.1.6 Proof/Documents in regard to income:

The above mentioned proof/documents will be required for establishing dependency for parents/widow mother. However, the requirement of criteria of income proof issued by competent authority of Delhi or NCR for establishing the dependency of parents/widow mother has been relaxed and income certificate/income proof/ITR of any State will now be acceptable as proof of income / income certificate, for claiming reimbursement for parents/widow mother.

11.1.7 Dependency of widow mother:

The documents mentioned above will be required even for showing of dependency of dependent widow and death certificate of father is also required.

In addition to above the procedures of medical advance/settlement of bills will be as per the points below:

- (i) Proper break-up of the treatment and the cost incurred for such treatment.
- (ii) Diagnosis done by the doctor and the procedure to be followed.
- (iii) In case of advance the proper estimate should be signed by the hospital along with the name, designation of the signing authority.

11.1.8 The widow mother will henceforth be eligible for all the medical facilities as available prior to issue of the office order dated 26.03.2015. The documents required in support of income/residency (i.e. residing with employee) for dependent widow mother and conditions for reimbursement o

11.1.9 f medical bills will be same as in case of normal dependent parents.

11.2 Reimbursement of medical bills of parents:

Admissibility of reimbursement of medical bills of dependant parents is as under:

11.2.1 Treatment taken from outstation:

Any treatment taken from outstation for dependent parents will be reimbursed as per CGHS rates of that particular area/State.

11.2.2 Medical treatments not covered: In addition to other restricted procedures, the following medical treatments/expenses shall not be covered under medical provisions to parents:-

- Cost of artificial medical equipment's such as BP monitor, Glucometer/strips, nebulizer, C-Pap etc.),
- Prolonged/OPD treatments,
- Other OPD/Diagnostic procedures,
- Dental treatment (admissible to widow mother)
- Pre-Post Hospitalization Cost.

- **Cost of various devices used (Life saving or otherwise)**

11.3 Cashless medical facility for dependant parents: Employees may avail cashless medical facility for parents also after inclusion of the names of parents in their Medical ID Cards.

11.4 Before taking indoor treatment, the employees will ensure admissibility of treatment and their entitlement of accommodation. In case, treatment is taken in higher category of accommodation, re-imbursement will not be made to the employee unless the employee obtains and submits an estimated bill of his entitlement form the hospital for recovery of excess amount, failing which 40% of amount (excluding medicine cost) will be recovered from the employee for higher category of accommodation. This will be applicable for treatment taken by the employees and their other family members.

(Ref: O.O.No: PP/1956/2015 dated 26-03-2015 & O.O. No: PP/2504/2017 dated 05-12-2017 & O.O. No: PP/2389/2017 dated 12-05-2017 & O.O. No: PP/2692/2018 dated 30-11-2018)

12. COMPREHENSIVE HEALTH CHECK UP

Both the male & female employees/their spouses (Including retired employees and their spouse and spouse of deceased employee eligible for Medical Facility), who are above 40 years of age are eligible to avail the facility of annual comprehensive health check-up (O.O No. PP/1628/2013 dated 03.07.2013) once in a calendar year.

- (i) The charges will be borne by DMRC on a monthly basis against the bill raised by these hospitals. Those, who wish to undergo the comprehensive medical health check-up have to take an authority letter from HR Corporate Office and fix an appointment with the concerned hospital well in advance.
- (ii) On the day of health check-up they have to report the hospital empty stomach at around 08.30 a.m.
- (iii) List of approved/Empanelled hospitals for comprehensive Medical Health Check-up of DMRC employees and their spouse is available on DMRC Intranet Site. Employee may refer the same.
- (iv) Validity of empanelment of Hospitals are mentioned in respective Circulars and consolidated list of Empanelled Hospitals on DMRC Intranet Site. Amendments are made in the List of Empanelled Hospitals from time to time.
- (v) The Annual Comprehensive Medical Health Check-up for self and spouse will be allowed to superannuated employees, who are eligible for post-retirement medical benefit scheme in DMRC nominated hospitals. (O.O No. PP/1364/2011 dated 28.12.2011).
- (vi) Employee can also avail Annual Comprehensive Health Checkup Facility from any hospital (Other than the nominated Hospital for Health Check Up) for self and spouse, as per eligibility. However, their claims will be reimbursed @ ₹3,200/-(for males) and ₹4,000/-(for females) or actuals, whichever is less. The prescribed test for male and female for Annual Comprehensive Health Check Up is attached at annexure “A”. (O.O. No: HR/O&M/386/2023 dated 24.08.2023)

13. POST RETIREMENT MEDICAL (PRM) FACILITY

13.1. Eligibility:

An employee on superannuation (at the age of 60 years) shall be entitled for reimbursement of expenditure incurred on indoor for self and spouse at the same rate as applicable to regular employees of equal level.

13.1.1 An employee on superannuation (at the age of 60 years) shall be entitled for claiming Rs.20,000/- on outdoor treatment, for self and spouse as specified under item 13.2.

13.1.2 Directors & MD on completion of tenure appointment shall be entitled for reimbursement of expenditure incurred on indoor treatment for self and spouse at the same rate as applicable to Directors & MD level respectively. They shall also be eligible for claiming Rs.20,000/ on outdoor treatment, for self and spouse as specified under item 13.2.

13.1.3 Required service length for Post Retirement Medical Facilities shall be as under:

(a) For Board level Executives: Board level executives (without any linkage to 15 years of service) will be eligible for post retirement medical facilities upon completion of their tenure or upon attaining the age of retirement whichever is earlier.

(b) For Other Than Board Level Employees: Other than board level employees will be eligible for post retirement medical facilities if he/she has superannuated/taken voluntary Retirement from DMRC after putting in a service of 05 years including uninterrupted deputation period if any, along with condition that one has served for a minimum period of 15 years in Government Department/PSU/DMRC (all put together) on date of superannuation.

(OO No: HR/O&M/2021/325 dated 21.10.2021)

13.1.4 Employee in case of his/her retirement on medical incapacitation before superannuation or completion of tenure appointment of a Director and MD, shall be entitled.

13.1.5 The spouse of the eligible superannuated deceased employee, if any, shall continue to be eligible for the above facility.

13.1.6 In case of voluntary retirement of permanent employee of the Corporation, by giving notice of not less than three months in writing to the Appropriate Authority, after he/she has attained the age of 58 years and has rendered 15 years of service in a Government/PSU/DMRC, put together, as on the date of voluntary retirement, and must have also, put in a minimum of 5 years of service, in the corporation, the Post-Retirement Medical facility shall stand extended. (Ref: 0.0. No.: PP/3067/2021 Dated 07.01.2021).

13.1.7 Contract and Re-employed employees shall not be counted for PRM facility.

13.1.8 For consideration of residency of 05 years completed service in DMRC, provision of rounding off the service beyond 15 days in the last month to count as full month, shall be adopted. The same criteria shall be adopted for voluntary retired employees and spouses of deceased employee under Deceased Employee Family Health Scheme (DEFHS). (O.O.No: HR/HR/O&M/298/2021 dated 29.09.2021)

13.2. Facilities under PRM.

13.2.1 The Superannuated employees are eligible for indoor and outdoor medical facility as shown below:

- (a) Indoor hospitalization including pre and post hospitalization as per policy of DMRC.
- (b) The superannuated employees are eligible for claiming Rs. 20,000/- (Annually) for Outdoor Medical Claims like Doctor Consultation, Medicine, Pathological test, dental, etc. on self certification basis.

13.2.2 The claims for Outdoor Medical Facility under PRM can be made annually. The claim for the financial year April to March for the preceding year may be submitted in April. The claims should be sent along with a copy of the Superannuation Medical Card to HR Department, DMRC.

13.2.3 For any period less than 12 months in the financial year, pro-rata payment for Outdoor Medical facility shall be made.

13.2.4 No advance payment shall be applicable in case of Post Retirement Medical facility. However, cashless facility up to a limit of Rs. 50,000/- only shall be allowed in case of indoor treatment taken from nominated hospitals. The superannuated employee should ensure to settle their cashless bill with DMRC.

13.2.5 Under PRM, eligible superannuated employees should avail medical facility from nominated hospitals only, wherever nominated / available in the City. However, for places / city where hospitals are not nominated the superannuated employees can avail medical treatment facility from any non nominated hospitals.

13.2.6 The reimbursement for indoor medical treatment availed from non-nominated hospital under PRM, under clause (b) above (i.e. where nominated hospitals are not available), shall be paid as per actuals or rates of Sir Ganga Ram Hospitals, whichever is lower.

13.2.7 The Annual Comprehensive Medical check up facility (Self and spouse) will however be outside the Indoor and Outdoor Medical facility.

13.2.8 The Superannuated employees can view the policy available for superannuated employees through internet under "Quick Links" at DMRC web page.

14. DECEASED EMPLOYEE'S FAMILY HEALTH SCHEME (DEFHS)

DEFHS has been approved for introduction in DMRC w.e.f. 01.04.2020.

14.1. Eligibility:

14.1.1 This facility will be extended to only spouse of such deceased employees, who have rendered 15 years of service in a Government/PSU/DMRC, put together, and has rendered a

minimum of 5 years of service, in the corporation. For consideration of residency of 05 years completed service in DMRC, provision of rounding off the service beyond 15 days in the last month to count as full month, shall be adopted. (O.O. No: HR/HR/O&M/PRM/2021 dated 29.09.2021)

14.1.2 This facility will be extended to spouse only if the spouse /dependants of the deceased employee are not eligible for consideration for employment in DMRC under Compassionate Appointment Policy and subject to fulfillment of clause under item 14.1.1.

14.1.2 This facility will also be extended in such cases, wherein, the compassionate appointment is rejected after consideration and subject to fulfillment of clause under item 14.1.1.

14.1.3 In case the Spouse of the deceased employee gets employment with other Government Organization, in such cases, he/she shall not be eligible for medical facilities from DMRC from the date of employment.

14.1.4 If compassionate appointment is given to the dependents of deceased employee, then medical facilities will be extended as per entitlement of the appointee to a particular post and the medical facility for spouse of the deceased, shall be withdrawn.

14.1.5 The spouse of the deceased employee after becoming member of DEFHS, will submit life certificate every year in April and will submit an undertaking along with claims that he/she is not in employment in any Govt. Organization.

14.2. Medical Facilities:

14.2.1 The spouse of deceased employee (death in service) shall be entitled for reimbursement of expenditure incurred on indoor treatment including pre-post hospitalization at the same rate as per entitlement of the deceased employee. The medical facility will be extended lifelong for the spouse, irrespective of any age.

14.2.2 He/she will be eligible for claiming reimbursement @ Rs.20,000/- annually towards outdoor medical treatment, i.e. Path test/Consultancy/Cost of medicines, on self certification basis . However, claimant shall retain the bills up to 3 years and should be able to produce on demand. (OO No: HR/O&M/249/2022 dated 05.08.2022)

14.2.3 He/she will be eligible for Annual Comprehensive Health Checkup if his/her age is 40 years or above.

14.2.4 No medical advance and credit facility, shall be provided.

14.2.5 Medical bills will only be reimbursed on claim basis.

14.2.6 This facilities will be extended only after the spouse of the deceased employee becomes member of Deceased Employee's Family Health Scheme (DEFHS) and medical card is issued. Medical bills pertaining to period after issuance of this policy, will only be admissible for reimbursement.

14.2.7 The provision of the Policy, shall be applicable w.e.f. 01.04.2020 i.e. death occurred on or after the 1st April, 2020.

14.2.8 Spouse of the deceased employee is advised to submit the application on prescribed performa (Annexure "I") for medical facility to the HR Department.

15. FEE FOR RE-ISSUE OF MEDICAL CARD/ POST-RETIREMENT MEDICAL CARD/ DEFHS CARD.

For reissue of medical card/ Post-retirement medical card/ DEFHS card, employee/ Retired employee/ family of deceased employee is required to deposit fee of Rs.100/-. In addition to fee, following documents shall be submitted.

1. Application for re-issuance of medical card.
 2. Copy of FIR in case of lost medical card.
 3. Submission of card in case of damage.
- (O.O. No: HR/O&M/270/2022 dated 31.08.2022)

16. SOP FOR INCLUSION/ DELETION/ RENEWAL OF DEPENDENT FAMILY MEMBERS:

Following SOP shall be used for inclusion of dependent family members.

Sr.No.	Items	Approving Authority
1	Inclusion of dependent family member (Spouse & Children)	Dy.HOD(HR)
2	Approval for inclusion and renewal of validity of dependent family members (Dependant Parents including widow mother)	GM/HR

16.SUBMISSION OF BILLS:

Bill should be claimed within 6 months of the date of issue of the Bills.

18. DMRC PART TIME MEDICAL CONSULTANTS

(i) For the purpose of medical facilities at workplace and DMRC staff colonies, part time medical consultants (Doctors) are engaged in DMRC, which include physician/a lady doctor/a homoeopath. **In addition, Experts in various medical fields from premier hospitals are invited to provide consultation from time to time consultation to DMRC employees.**

(ii) Competent Authority for approval of Consultant Doctor on contractual basis, shall be Director/Finance. (OO No: HR/O&M/306/2023 dated 13.07.2023)

19. RE-IMBURSEMENT OF MEDICAL EXPENSES

19.1 To claim the re-imbursment, an employee has to submit the following documents along with his claim:-

- a) Application on prescribed format (**Form “G”**)
- b) Discharge summary given by the hospital
- c) Detail bills along with cash receipts in original, duly self verified.
- d) In case of hospitalization packages, detail break-up of the entitled category especially from room rent.
- e) In case of cataract operation, cost of IOL charges should be mentioned clearly.
- f) Pre/post hospitalization certificate, wherever required.
- g) All prescriptions along with medicine bills as per check list (**Annexure “H”**)
- h) Declaration for dependents as per **Annexure-“A”**
- i) Emergency certificate, where required
- j) Duly checked and forwarded by concerned controlling officer(O.O. No. PP/1408/2012 dated 14.03.2012 & O.O. No. PP/1599/2013 dated 29.04.2013).

Reimbursement of expenses of any item, which is not covered in these rules, shall be dealt with on merit as per Govt. of India’s Rules, with specific approval of **Director (Finance)**.

19.2 Detailed checklist is placed at **Annexure “H”**. Employees are requested to send their claims as per checklist.

19.3 There are provisions of discounts and separate concessional packages in some of the nominated hospitals on various treatments (including lab tests, room rent, radiology services, hospitalization etc.). The employees availing treatment for self or for any member of their family should produce their Identity Card and Medical card & avail these discounts. If they fail to avail the discount or special concessional rates for medical services obtained from nominated hospitals, their claims will be reduced to the extent of discounts/concession before processing for reimbursement.

20. INCOME TAX EXEMPTION ON MEDICAL RE-IMBURSEMENT

In the list, the nominated hospitals/Clinics/Path Laboratories/Diagnostic Centres are classified into two categories: -

- (a) Those having exemption u/s- 17(2)(II)(b) of IT Act.
- (b) Those not having exemption under the above-mentioned IT Act.

The re-imbursements made to employees or directly to the hospitals (including dispensary/clinic/nursing home) which is approved by the Chief Commissioner of IT having regard to the prescribed guidelines in connection with the medical treatment of the employee or any member of his/her family for treatment of prescribed disease or ailments specified under Section 17(2)(ii)(b) of the Income Tax Act will not be treated as perquisites. (Ref: O.O. No PP/1329/2011 dated 25.10.2011)

Employees taking indoor treatment from outstation hospital may obtain Income Tax Exemption Certificate, if concerned hospital is having it, and will submit the same along with their claim to avail exemption where ever eligible on reimbursement.

Note: The nomination of Hospitals/Clinics/Path Labs/Diagnostic Centre’s is subject to change. It is advised to confirm the status of nomination of hospital before taking treatment.

21. INTERPRETATION/RELAXATION/DELETION/MODIFICATION

The Managing Director/Director (Finance) has the power to interpret these rules and in case of doubt/dispute his/her decision will be final. He/she may also relax the provisions of these rules in individual cases of hardship for reasons to be recorded in writing.

APPLICATION FOR MEDICAL RE-IMBURSEMENT

(As per O.O. no. PP/1599/2013 dated 29.04.2013)

1. Name of the employee.....Design.....Deptt.....
2. Employee No..... Pay-Scale Rs.....
3. Re-imbursement claim made for – Indoor / Dental/ Ophthalmic/Injury on Duty/Pre-post Hospitalization treatment/ pathological test/prolong treatment.
4. Contact No.- Mob.....Ph. No. / Extn.....
5. E-mail ID:.....
6. Re-imbursement taken for treatment of –Self/ Spouse / Son*/Daughter*/Widowed mother/(*below 25 years of age or till he/she gets married or employed, whichever is earlier).
 Name.....Relation.....Age.....
 Name.....Relation.....Age.....
 Name.....Relation.....Age.....
7. Whether declaration (as per Annexure – ‘A’ of med. Rules) showing dependents, attached-.....
8. Treatment taken from.....
9. Whether hospital is Nominated/Non-nominated/Out-station/Govt Hospital
 (i) If, non-nominated, is the Emergency certificate enclosed?.....
 (ii) If Outstation, Name and Address of Hospital.....
10. Date of admission / discharge...../.....Period of hospitalization.....days.
11. Diagnosis / Disease.....
12. Amount of claim Rs.....
13. Whether cashless facility is availed:
 (i) Yes.....amount.....(ii).No.....
14. Whether Medical Advance drawn (if yes mention the amount) Rs.....
15. For Indoor medical bills, detailed break-up of package along with discharge summary duly stamped and signed by Hospital authority, is enclosed.....
16. For all lab tests a self certified copy of investigation reports and prescription is enclosed.....
17. Discount offered by hospital / Path lab, if any.....
18. Whether treatment is taken as per entitlement.....
 (i) If not, reason for it.....

(Attached all bills in original duly verified, prescription advising medicines/pathological test and summarized as on the reverse.)

Summary of Bills

S.N.	Description of expense/bill	Bill No.& date	Amount (Rs.)	Remarks (if any)
1				
2				
3				
4				
5				
6				
7				
Total				

- (1) I hereby certify that all the above bills are true and correct.
(2) It is also certified that my spouse is a housewife/working in.....
and she / he is not claiming medical re-imbursement from there.
(3) Claims submitted are not older than six months.

Date:.....

(Signature of the employee)

Controlling Officer

Designation

HR Branch

Medical claim of Emp. No.... with HR Serial No.....dated.....for Rs.....
has been verified in HR Deptt. With regard to his/her entitlement / eligibility and necessary certificate
is duly forwarded to Establishment (Finance) for re-imbursement as per extant DMRC medical
Policy.

AM/Manager(HR)

OA/HR

Accounts Branch

- (1) Amount of claim for re-imbursement Rs.....
(2) Amount not admissible Rs.....
(3) Amount to be reimbursed Rs.....

Manager/F&E

A/Accounts

Annexure-“A”

DECLARATION FOR CLAIMING RE-IMBURSEMENT MEDICAL EXPENSES

Name.....Desig.....

Emp. No.....

The members of my family and other dependents for whom I shall be claiming re-imbursement of medical expenses are as under:-

S.N.	Name	D.O.B.	Age	Relationship	Residing with me	Marital status

My wife / husband is employed in..... is not employed and she / he will / will not claim re-imbursement from DMRC or her / his employer / and she / he will not available the medical facilities available to her / him from any other source.

Certified that the Persons (s) for whom re-imbursement will be claim is / are wholly dependent upon me and residing with me.

Please enclose a copy of certificate from employer for not claiming medical / LTC facility from the employer of the spouse.

Dated:

Signature of the employee

Name.....

Annexure-“B”

FORMAT FOR SEEKING APPROVAL FOR PROLONGED TREATMENT

(As per O.O. No. PP/950/2009 dated 09.07.2009)

No. DMRC/Estt./Prolonged Treatment/2020

Dated:

1. Name of the Employee :
2. Designation :
3. Ernp. No. :
4. Mobile No. and Email Id :
5. Name of the patient :
6. Relationship with the patient :
7. Name of disease :
8. Hospital in which under treatment :

Name & Signature of the employee

Doctor's Recommendation:

(Doctor's Prescription should be attached separately)

Annexure "C"

Performa for claim of medical bill of prolong treatment

Name of Employee:

Emp. No.:

Designation:

Department:

Wing (Project/O&M):

Name of Patient:

Relationship:

Contact No.:

E-mail ID:

Date of last claim of Medicine Bill.....

Amount of last claim of Medicine Bill.....

(A) Details of consultancy and Path Test

S.N.	Claims	Date	Bill No.	Amount(Rs.)
1.	Consultancy			
(i)				
(ii)				
(iii)				
2.	Pathology Tests			
(i)				
(ii)				
(iii)				
Total (1+2)				

(B) Medicine Bill:

(Medicine bill of prolong treatment shall be reimbursed for maximum two months at a time)

S.N.	Medicine Name (In capital letter)	Reference (Prescription's date)	Dose per day (OD/BD/etc.)	No. of days for which medicine is prescribed	No. Of days for which medicine is purchased	Quantity (In No. of tablets)	Amount (Rs.)
Total							

Undertaking:

- (i) I hereby declare that the above statements are true and correct to the best of my knowledge and belief.
- (ii) I am fully aware that submission of false claim/claims for excess purchase of medicine/claim of medicine which are not related to disease for which approval for prolong treatment has been given, is a misconduct under DMRC service rule. In case of false/fraudulent claims, DMRC can take suitable disciplinary action against me.
- (iii) I have enclosed copy of approval of prolong treatment.

Date

Signature:
Name of Employee:
Emp. No:

Signature of Controlling Officer:
Name of Controlling Officer:
Emp. No. & Designation

HR Department

Finance Department

Annexure “D”

PRE- POST HOSPITALIZATION CERTIFICATE

Sub - Pre- Post Hospitalization Certificate.

This is to certify that Sh./Ms. _____ (Name of patient), S/o, D/o, H/o,
W/o _____, was admitted from _____ to _____ (Dates) for
the treatment of _____ (Name of disease) in
_____ (Name of hospital).

(A) Details of claim of Pre Hospitalization.

S.N.	Claims	Date	Bill No.	Amount
------	--------	------	----------	--------

1.	Consultancy			
(i)				
(ii)				
(iii)				
(iv)				
2.	Pathological Tests			
(i)				
(ii)				
(iii)				
(iv)				
3.	Medicines			
(i)				
(ii)				
(iii)				
(iv)				

(Attach separate sheet if required)

(B) Details of claim of Post Hospitalization.

S.N.	Claims	Date	Bill No.	Amount
1.	Consultancy			
(i)				
(ii)				
(iii)				
(iv)				
2.	Pathological Tests			
(i)				
(ii)				
(iii)				
(iv)				
3.	Medicines			
(i)				
(ii)				
(iii)				
(iv)				

(Attach separate sheet if required)

Name of Employee-
Desig. & Emp. No.-
Contact No.-
(To be filled by employee)

Date:

Signature & Stamp of Doctor
Annexure “E”

Reimbursement cum certificate for availing Cashless Medical facility

(To be submitted in HR branch within 7 days after availing cashless medical facility)

Certified that the undersigned has availed the cashless medical facility for indoor treatment of self/spouse/child/dependent father/mother/widow mother.....

Name of the patient (Shri/Smt)..... and relation with employee..... who was admitted in (Name of Hospital)..... from (admission date).....to (Discharge date)..... For treatment of

Further, it is certified that

A. Total bill amount raised by the hospital is Rs.....

B. Amount paid by me to the hospital is Rs.....

(All original receipts issued by the hospital against the payment made are enclosed which is mandatory)

C. Amount of advance (if any) taken from DMRC Rs.....

D. Net amount to be reimbursed to the undersigned after adjustment of advance taken from DMRC (if any) (B-C) Rs.....

Further, if there is any deduction on account of inadmissible amount, same may be done from the reimbursable amount and if it is not sufficient, the balance may be recovered from the salary of undersigned.

Signature of Employee

Name:

Designation:

Emp. No.:

Unit:

Place of working:

Mobile No.:

Signature & Name of Controlling Officer

Signature & Name of Concerned Dy. HOD

HR Department

Chapter F

DMRC LEAVE RULES



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DMRC LEAVE RULES

1. OBJECTIVES

The objective of these rules is to-

- 1.1 Afford mental and physical rest and relaxation to its employees periodically,
- 1.2 Grant freedom from official duties during periods of their sickness, maternity, etc, and,
- 1.3 Provide time off to them for attending to essential personal tasks and family responsibilities.

2. APPLICABILITY

These rules shall apply to all regular and temporary employees of the Corporation, those on probation, re-employed or on extension of service and such of the deputationists from Government Departments and Undertakings.

2.1 RIGHT TO LEAVE

- (i) Leave cannot be claimed as of right.
- (ii) When the exigencies of public service so require, leave of any kind may be refused or revoked by the authority competent to grant it.

2.2 REGULATION OF LEAVE

DMRC employee's claim to leave is regulated by the rule in force at the time the leave applied for and granted.

2.3 LEAVE NOT TO BE GRANTED IN CERTAIN CIRCUMSTANCES.

Leave may not be granted to DMRC employee whom a Competent Punishing Authority has decided to dismiss, remove or compulsorily retire from DMRC service.

3. COVERAGE

The following are the different types of leave, which can be availed of by the employees of the Corporation:

3.1 CASUAL LEAVE

- 3.1.1 Casual leave is granted for certain urgent and unforeseen situation. It is normally to be used in urgency/casualty and are not planned, usually it is same day or few days in advance.

- Casual Leave may be granted in units of half or full days as required by the employees. Lunch interval will be taken as the dividing time in the case of leave for half a day.
- Casual leave cannot be carried over to subsequent calendar years. Sundays and holidays falling within a spell of casual leave will not be charged on the casual leave account. However, casual leave cannot be granted in combination with special CL, earned leave and half pay leave.

3.1.2 The number of Casual leave eligible to an employee varies in accordance to his place of posting

- The employees posted at offices, working 5 days a week, are eligible for Casual Leave at the rate of 8 days in a calendar year.
- The field staff in O&M and at Project sites, working 6 days in a week, are entitled to casual Leave at the rate of 12 days in a calendar year.

3.1.3 Maintenance of Casual Leave

- All the leave including casual leave will be applied by regular/ contract/ deputationists/ re-employed (post retired contractual employees) in DMRC, through ESS and maintained in SAP.
- The record of casual leave is maintained by the Consultants on a card issued to them in the beginning of the year. The controlling officer / sanctioning authority should ensure that no tempering, disfiguring of entry on the card is done by the card holder. If lost, no new card will be issued and it will be presumed that the entire CL for the year have already been availed by the consultant. (Ref: O.O. No. PP/1359/2011 dated 20/12/2011).
- The Casual Leave would be admissible on pro-rata basis on joining DMRC mid-way.

3.1.4 The employees separating from the organisation midway in a year, will only be eligible for CL at pro-rata basis. In case, he/she has availed in excess, the same may either be adjusted with EL or recovery may be made.

(Ref: Office Order No. PP/43/99 of 1999, dated 14.12.99 and O.O. No. PP/1525/2012, dated 14.11.12)

3.2 SPECIAL CASUAL LEAVE

This leave, over and above the entitlement of 8 days of casual leave, may be sanctioned with the approval of concerned HOD in special circumstances as indicated below for a total of not more than 30- days in a year in all.

- Participation in training camp or rallies of Scouts & Guides.
- Participation in Republic Day parade/celebrations as members of
 - St. John Ambulance Brigade
 - in the events under orders of the Government
- Participation in sports contests and tournaments
- Attendance at Courts as jurors and assessors
- Attendance in meetings of technical and scientific institutions.
- For undergoing sterilisation operation under small family norms
 - 5 working days for the Male Govt. employees who undergo vasectomy operation under the family Welfare programme for the first time and the second time due to failure of the first time. (Sundays and closing holidays intervening should be ignored while calculating the period of special casual Leave.
 - 10 working days for the female Govt. employees who undergo Tubectomy operation or salpingectomy after Medical Termination of Pregnancy (MTP).
 - 3 working days for the male employees whose wives undergo either puerperal or non-puerperal tubectomy operation. (Special casual leave has to follow the date of operation)
 - 1 day for female employees where husband undergo sterilization operation
- Declaration of Bandh or imposition of Curfew disrupting the transport system, etc.
- Attending staff council meetings.
- All Persons with Disabilities who are employees of DMRC will be entitled for four days special casual leave, apart from casual leave.
- 10 days special casual leave may be granted to all Persons with disabilities who are employees of DMRC in a calendar year for the purpose of attending seminars, conferences and workshops, for which prior sanction shall be required.
(Ref: This Office order No. PP/2553/2018 dated 20/03/18)
- Special casual leave may be granted for blood donation or for apheresis (blood components such as red cells, plasma, platelets etc.) donation at licensed Blood Banks on a working day (for that day only) up to a maximum of 4 times in a year on submission of valid proof of donation.
- Special casual leave may be granted to the eligible employee for participation in general Elections (Lok Sabha, State assembly), if his office does not close on that particular day.

- Special Casual leave may be combined with any other kind of regular leave or Casual leave, but not with both. The Sundays, Saturdays and other holidays intervening during a spell of special casual leave will be included in it.

3.3 EARNED LEAVE

3.3.1 Earned Leave is the leave granted on full pay and allowances including perk allowance. It is credited to all eligible employees (regular/temporary/deputationists) at the rate of 30 days in a calendar year. This will be done in advance; 15 days of earned leave being credited on 1st January and 15 days on 1st of July at the commencement of each calendar half year.

- b. The Post retirement Contractual employees shall be eligible for one Special Leave per completed month. The special leave accrued to such employees during their contractual tenure will be carried forward to their new assignment, if any, as consultant, subject to no break in service in DMRC for utilization in the new tenure.

(Ref: O.O. No. PP/872/2009 dated 29.01.2009 & O.O. No. PP/2300/2016 dated 15.11.2016).

- c. Earned leave accounts of all the employees shall be maintained in two sections viz

- **Encashable Leave and**
- **Non-encashable Leave**

Fifty percent of the Earned Leave accrued on 1st of January of each year is apportioned under the above heads in the ratio of 50:50 and thereafter on 1st July another 15 days accrued will be credited in the same manner. Similar procedure will be adopted for crediting the leave accounts under sub rule 3.3.2 and 3.3.3. Any part or whole of encashable leave may be availed of as leave and it is not necessary that it should be encashed.

3.3.2 During the half yearly period, in which an employee is appointed, credit of earned leave will be at the rate of 2 ½ days per month of service and for this purpose, half a month or more will be reckoned as one month. Part of a month, less than 15 days, will be ignored.

3.3.3 Similarly during the calendar half year in which an employee is due to retire or proceeds on leave preparatory to retirement or resigns from service or is removed or dismissed from service or dies, recalculation will be made for crediting leave for that half year at the rate of 2 ½ days per month, half a month or more being taken as one month.

3.3.4 The credit of 15 days earned leave afforded in any calendar half year will be reduced by 1/10th of the period of extra ordinary leave during the previous half year subject to a maximum of 15 days. For this purpose, a fraction below half will be ignored and that of half or more will be reckoned as one day.

3.3.5 The maximum accumulation of encashable leave will be 150 days. There is no limit of accumulation of non-encashable leave in the account within the maximum limit of 300 days earned leave (Encashable and non-encashable). In case, accumulation of encashable leave exceed 150 days, additional leave earned shall be transferred to non-encashable leave account

within the overall maximum limit of 300 days (encashable and non-encashable). On superannuation an employee will be eligible for encashment of 300 days earned leave (encashable and non-encashable + Half pay leave without commutation) put together.

- 3.3.6 The maximum earned leave that can be granted at a time will be 120 days and in case leave is to be wholly availed outside India, this limit will be 180 days.
- 3.3.7 The leave at the credit of an employee at the close of the pervious half-year shall be carried forward to the next half year, subject to the condition that the leave so carried forward does not exceed the maximum limit of 300 days. However, earned leave exceeding 300 days up to 315 days will be shown as 300+15. The 15 days leave be availed during that half year only.
- 3.3.8 While limiting the maximum of 300 days, where the balance at credit is 286-300 days, further advance credit of 15 days on 1st January/1st July will be kept separately and set-off against the EL availed of during that half-year ending 30th June/31st December. However, if the leave availed is less than 15 days, the remainder will be credited to the leave account, subject to the ceiling of 300 days at the close of that half-year.
- 3.3.9 While affording credit, fractions of a day should be rounded off to the nearest day, e.g., 7 ½ days to be rounded as 8 days.
- 3.3.10 An employee on earned leave will be paid leave salary equal to the pay including special pay, deputation pay, personal pay, etc, drawn by him immediately before proceeding on leave and perks allowance including dearness allowances applicable to that pay.

(Ref: Office order No. PP/1788/2014 dated 06.06.14)

3.4 HALF PAY LEAVE

- 3.4.1 Half pay leave is credited to all eligible employees at the rate of 20 days per year. However, in the first instance, 20 days, or whatever proportionately accrues, will be credited at the end of the calendar year after initial appointment and then for the subsequent years, half pay leave will be credited at the beginning of the calendar year at the rate of 10 days in advance on 1st January and on 1st July of the year. A fraction of half a day or more being rounded off to the next higher number and less than half a day being ignored.

During the calendar year, in which the employee is due to retire or proceeds on leave preparatory to retirement or resigns from service or is removed or dismissed from service or dies, proportionate number of days of half pay leave calculated at the rate of 20/365 of the days of service during the year will be credited to the employee's half pay leave account.

- 3.4.2 There is no limit to the accumulation of half pay leave, but the maximum half pay leave that can be availed of at a time is 24 months.
- 3.4.3 An employee on half pay leave will be entitled to leave salary equal to half of the pay, special pay, deputation pay, personal pay, etc. drawn by him immediately before proceeding on leave and dearness and the other allowances applicable to that amount.

3.5 LEAVE NOT DUE

- 3.5.1 Except in the case of leave preparatory to retirement, leave not due may be granted to any regular employee of the Corporation who has completed one year of employment with the Corporation on medical grounds and with a certificate' from authorized medical authority when no other leave (except casual leave) is due to him.
- 3.5.2 The maximum limit of leave not due that can be granted to an employee is 360 days during the entire period of his employment with the Corporation. Out of this not more than 180 days at a time may be granted.
- 3.5.3 Leave not due is charged against the half pay leave that the employee may earn subsequently and he will draw leave salary during such leave on the same basis as in the case of half pay leave.
- 3.5.4 Leave not due will be sanctioned only when the sanctioning authority is satisfied that there is a reasonable prospect of the employee returning to duty on expiry of the leave and earning the amount of half pay leave that is sanctioned to him subsequently.
- 3.5.5 If an employee resigns from service, or is removed or dismissed or dies during the period of leave not due or thereafter before earning the requisite half pay leave, he shall be liable to refund the leave salary paid. This recovery can be effected from his/her other dues. An undertaking to this affect will be given by the employee while seeking such leave.

Note: i) Medical certificate not necessary for Leave not due (LND) in continuation of Maternity Leave.
ii) LND can be granted without medical certificate to an adoptive mother also.
iii) LND can be granted in continuation with child care leave without production of Medical certificate.

3.6 COMMUTED LEAVE

- 3.6.1 Commuted leave is the leave granted to eligible employees on medical grounds or to enable them to pursue an approved course of study i.e., a study accepted by the sanctioning authority to be in the Corporation's interest.
- 3.6.2 Commuted leave is granted by charging on the half pay leave account of the employee to the extent of double the amount of leave. The employee on commuted leave will thus draw leave salary to the same extent as in the case of earned leave during commuted leave.
- 3.6.3 Commuted leave may be granted even when the employee has credit of earned leave in his account.
- 3.6.4 Commuted leave will not be granted unless the sanctioning authority has reason to believe that the employee will return to duty on its expiry. If the employee intends to retire after expiry of the leave, the commuted leave will be treated as half pay leave and the excess amount drawn

on leave salary will be recovered. But if his retirement becomes necessitated on account of ill health incapacitating him from further service, such a recovery will not be made.

- 3.6.5 The maximum number of days of commuted leave that will be sanctioned for pursuing of an approved course of study is 90 days (180 days of half pay leave to be commuted during the entire period of employment).
- 3.6.6 i) Commuted leave up to 60 days without medical certificate to female Govt. servants on adoption of child.
ii) Medical certificate not necessary for commuted leave in continuation of maternity leave.

3.7 **EXTRA ORDINARY LEAVE**

- 3.7.1 “Extra Ordinary Leave” can be granted only in exceptional case, when no other kind of leave is due to the employee or when he/she applies for it specifically. The genuineness of the reason (including serious sickness like – Heart disease, Cancer, T.B. etc.) and the previous record of the employee, such as leave details and regularity of service should be taken into consideration before recommending the case for EOL”.
- 3.7.2 The sanctioning authority for Extra Ordinary Leave shall be: -
- 1.) HOD in case of Non- supervisors, applying first time (any extension, etc, may be put-up to Director concerned);
 - 2.) Directors in case of Supervisors and Executives up-to Manager level; and
 - 3.) Managing Director in case of Dy. HOD level and above.
- 3.7.3 Extra Ordinary Leave may be granted to regular employees only, after completion of 6 years of qualifying service with the corporation.

The maximum period of Extra Ordinary Leave, that can be granted in entire service career in two years. However, the admissibility of EOL shall be proportionate to the number of years of service put in by the employee, i.e. for every 5 years of service, 6 months of Extra Ordinary Leave can be eligible, subject to meeting the criteria laid down at (3.7.1), above.

Thus, in the exceptional circumstances only, where the situation is beyond the control of the employee, any relaxation can be considered by the competent authority (Director/MD as the case be, as per item No. 3.7.2, above), but on the merit of the case duly recommended by the sanctioning authority.

- 3.7.4 It will be considered as a case of deemed resignation, if, an employee has not reported to duty, even after the expiry of sanctioned Extra Ordinary Leave. This may be applicable on the expiry of very first occasion of sanction of stipulated Extra Ordinary Leave, rather than waiting for completion of 2 years of the entitled EOL.
- 3.7.5 Taking-up any private employment during the period of Extra Ordinary Leave will not be

permissible. Defaulters, if any, for taking up private employment will be taken up under DMRC Conduct, Discipline & Appeal Rules.

- 3.7.6 The period spent on Extra Ordinary Leave will not qualify for earning Ex-gratia/ Gift, increment or earning other kinds of leave including the incumbency period for time bound promotions.
- 3.7.7 During the period of Extra ordinary Leave, the employees will not earn any Earned Leave, Half Pay Leave, Increment, nor will this period qualify towards incumbency for qualifying for time bound promotions etc.
- 3.7.8 This period will also not be counted for qualifying service. As such while issuing certificate for working experience, the information regarding availing Extra Ordinary Leave should be mentioned in the Experience Certificate.
- 3.7.9 While writing APAR of such employee, who has availed long Extra Ordinary Leave, the performance appraisal may be done only in respect of the period wherein he has been on active duty for a period of more than 90 days during the year of assessment. To ensure this, the Controlling officer may keep a record of such employees who were on Extra Ordinary Leave during the relevant period. For this, HR Department may also issue such list on 31st March every year, and notify it in intranet.
- 3.7.10 Award of positive marks is strictly restricted for commendable contribution of the employee as laid down in the Rules on “Positive Discipline, Code of Conduct & Standard of Excellence”. The positive marks should be awarded to employees who had taken EOL for more than one month subsequent to the leave availed during the year concerned only in exceptional circumstances.
- 3.7.11 All cases of EOL must be routed through HR branch and only then competent authority may accord sanction. Once an employee joins after availing EOL, he shall first report to HR and then he will be directed for posting etc. to the concerned department.

(Ref: Office Order No. PP/1917/2015 dated 06.02.15)

3.8 WORK RELATED ILLNESS AND INJURY LEAVE

“Work Related Illness and Injury Leave” (WRIIL), which may be granted to a DMRC employee (whether permanent or temporary), who suffers illness or injury that is attributable to or aggravated in the performance of her or his official duties or in consequences of her or his official position.

WRIIL has following provisions:

- a) Full pay and allowances will be granted to all employees during the entire period of hospitalization on account of WRIIL.
- b) Beyond hospitalization, WRIIL will be governed as follows:
 - i) Full pay and allowances for the 6 months immediately following hospitalization and Half pay only for 12 months beyond that. The Half pay period may be commuted to full pay with corresponding number of days of half pay Leave debited from the employee's leave account. In case where hospitalization is not involved, payment/leave can be granted with the approval of HOD concerned.
 - ii) In the case of persons to whom the Workmen's compensation Act, 1923 applies, the amount of leave salary payable under WRIIL shall be reduced by the amount of Compensation payable under the Act.
 - iii) No EL or HPL will be credited during the period that the employee is on WRIIL.
- iv) The 'SOP' for grant of WRIIL shall be followed as under:
 - a) In case of all the Non-Executives- Full power of Concerned HODs
 - b) In case of all the levels of Executives (Upto HOD)- Full Power of Concerned Director's
- v) The WRIIL Leave has to be applied in ESS and an "Incident Report" has to be submitted along with the enclosed format as Annexure 'V' to HR.

(Ref: Office Order No.: PP/3227/2022, dated: 03.11.22, Office Order No.: HR/O&M/361/of 2022 dated: 15.12.22)

3.9 QUARANTINE LEAVE

- 3.9.1 Quarantine leave is leave of absence from duty necessitated by the presence of certain infectious disease in the family or household of the employee.
- 3.9.2 When the employee is himself (suffering from any infectious disease, quarantine leave is not granted but only leave of other kinds that may be admissible to him is granted.
- 3.9.3 Cholera, Plague, Diphtheria, Typhus fever, Cerebra-spinal Meningitis, Conjunctivitis or such other diseases as may have been declared to be infectious by the State Government or other authorities within the area under its administration may be treated as infectious disease for the purpose of grant of quarantine leave.
- 3.9.4 Ordinarily the quarantine leave will be granted up to a maximum of 21 days at a time but in exceptional circumstances it may be granted up to 30 days based on a certificate from Authorised Medical Attendant or Public Health Officer of the area.
- 3.9.5 Any leave in excess of that certified by the Authorised Medical Attendant or Public Health Officer will be treated as leave of other kind as may be due to the employee. The Quarantine leave can be combined with other kinds of leave.

3.9.6 An employee on quarantine leave will not be treated as absent from duty and his salary will not be affected.

3.10 MATERNITY LEAVE

3.10.1 a) Maternity leave will be granted to a female employee (regular/deputationists employees/long term contractual employee with regular pay scale) up to two children, for a maximum period of 182 days (i.e., 26 weeks), out of which not more than eight weeks shall precede the date of her expected delivery.

b) Maternity Leave will be granted for a maximum period of 12 weeks to a woman employee having more than two surviving children of which not more than 06 weeks shall precede the date of her expected delivery. (Ref: Office Order No.: HR/O&M-140/2022 dated: 25.04.2022)

3.10.2 Maternity leave may be granted on production of a certificate from an Authorized Medical Attendant.

3.10.3 Maternity leave not exceeding 45 days may also be granted to a female DMRC employee (irrespective of the number of surviving children) during the entire service of that female employee in case of miscarriage including abortion on production of medical certificate.

3.10.4 Any other kind of leave (except for Casual Leave) that may be due and admissible (including commuted leave for a period not exceeding 60 days and Leave Not Due) can be granted in continuation with Maternity Leave without the authority of a Medical Certificate, shall be increased to 2 years.

3.10.5 During maternity leave the employee will draw full leave salary as in the case of earned leave.

3.10.6 Maternity leave is not charged to any of the ordinary leave accounts.

Note: i) Maternity leave may be granted for induced abortion under the Medical Termination of Pregnancy Act.1971.

ii) No Special casual leave for Salpingectomy operation undergone with “induced abortion” –Since Govt. employee eligible for 6 weeks Maternity leave, she will not be entitled for additional 10 days Special casual leave who avail the facility of ML.

iii) No maternity leaves for threatens abortion.

3.10.7 Maternity Leave on adoption of child

(i) A female DMRC employees, with less than two surviving children, on valid adoption of a child below the age of one year may be granted “**Child adoption leave**”, by an authority competent to grant leave, for a period of 180 days immediately after the date of valid adoption.

(ii) During the period of child adoption leave, she shall be paid leave salary equal to the pay drawn immediately before proceeding on leave.

(iii) (a) Child adoption leave may be combined with leave of any other kind.

b) In continuation of the child adoption leave granted under sub rule (i), above, a female DMRC employees on valid adoption of a child may also be granted, if applied for, leave of the kind due and admissible (including leave not due and commuted leave not exceeding 60 days without production of medical certificate) for a period up to one year reduced by the age of the adopted child on the date of valid adoption, without taking into account child adoption leave as in following illustration: -

- if the age of the adopted child is less than one month on the date of adoption leave up-to one year may be allowed.

- If the age of the child is six months and above but less than seven months, leave up-to six months may be allowed.

-if the age of child is 9 months and above but less than 10 months, leave up-to 3 months may be allowed.

iv) Child adoption leave shall not be debited against the leave account.

(Ref: O.O. No. PP/820/2008 dated 13.10.2008, PP/1315/2011 dated 26.09.2011 & O.O. No. PP/1955/2015 dated 26.03.15)

3.11 PATERNITY LEAVE

The DMRC employees are eligible for grant of paternity leave for a period of 15 days during confinement or at the time of child birth of his wife on the following conditions:

- i. He should not have more than two surviving children.
- ii. During this leave period, salary equal to the pay drawn immediately before proceeding on leave shall be paid.
- iii. This shall not be debited to the leave account of the employee.
- iv. This leave can be combined with any other kind of leave as in the case of maternity leave (except casual leave).
- v. The Paternity Leave can be availed up-to 15 days before or within 6 months from the date of delivery in full only.
- vi. A male employee with less than two surviving children, on valid adoption of a child below the age of one year, may be granted paternity leave for a period of 15 days within a period of six months from the date of valid adoption.

Note- "Child" for the [purpose of this rule will include a child taken as ward by the government servant, under the Guardians and Wards Act, 1890 or the personal Law applicable to that government servant, provided such a ward lives with the government servant and is treated as a member of the family and provided such government servants has, through a special will conferred upon that ward the same status as that of a natural born child.]

(Ref: 0.0.No. PP/807/2008dated 15.09.2008 &O.O. No. PP/1955/2015 dated 26.03.15)

3.12 CHILD CARE LEAVE

- 3.12.1 Only confirmed regular women employees, with minimum two years of service in DMRC, having minor children may be granted Child Care Leave by an authority competent to grant leave for a maximum period of 2 years (730 days) during the entire service for taking care of up-to two children, whether for rearing or to look after any of their needs like school, examination, sickness etc.
- 3.12.2 However, it is stressed that CCL cannot be demanded as a matter of right and under no circumstances can any employee proceed on CCL without prior approval of the leave sanctioning authority. The leave is to be treated like the Earned Leave and sanctioned as such. Consequently, Saturday, Sunday, Gazetted Holidays etc. falling during the period of leave would be count for CCL as in the case of Earned Leave.
- 3.12.3 Only Confirmed female employees with less than 5 years' service in DMRC, who proceed on Child Care Leave will have to execute a bond to serve DMRC for a minimum period of 3 years after returning from Child Care Leave.
- 3.12.4 During the period of such leave, female employees shall be paid leave salary equal to the pay drawn immediately before proceeding on leave. However, she shall not be eligible to opt for perquisites and allowances under the cafeteria. In case of deputationists, they will be governed by their parent department policy on CCL. Child care leave may not be granted in more than 3 spells in a year. In case of single female DMRC employee, the grant of leave in three spells in a calendar year shall be extended to six spells in a calendar year. Child care Leave may not be granted for a period of less than five days at a time, after that the applicant will have to join back and then apply for further leave, if required. Child Care Leave shall not be debited against the leave account. Child care Leave may also be allowed for the third year as leave not due (without production of medical certificate). It may be combined with leave of the kind and admissible.
- 3.12.5 Child care leave shall not be admissible if the child is of 18 years of age or older. However, women employees with disabled children with an offspring of any age may avail Child Care Leave. Disabled child having a minimum disability of 40% is elaborated in the Ministry of Social Justice and Empowerment notification No. 16-18/97-NI. L dated 01.06.2001. Document related to handicap as specified in the notification as well as a certificate from the Government servant regarding dependency of the child on her would be required to be submitted by the employee.
- 3.12.6 If, a female employee, who has served a bond before availing CCL as per rule, resigns within a period of 3 years after availing of CCL, the total emoluments (i.e., Basic pay, applicable IDA, HRA, Perks, Ex-gratia/Special Festival Incentive) paid for the period of Child Care leave will be calculated towards total dues to be paid/ to be refunded by the female employee.
- 3.12.7 Exclusions-Child Care leave is not admissible to contractual/long term contractual,

post-retirement contractual and consultant employees;

- 3.12.8- NOTE- i) An employee on CCL may be permitted to leave headquarters with the prior approval of appropriate Competent Authority.
ii) LTC may be availed while an employee is on CCL.
iii) An employee on CCL may proceed on foreign travel, provided clearances from appropriate authorities are taken in advance.

(Ref: O.O. No. PP/820/2008 dated 13.10.2008, O.O. No. PP/847/2008 dated 10.12.2008, O.O. No. PP/1009/2009 dated 03/12/2009, O.O. No. PP/1026/2010 dated 19.01.2010, O.O. No. PP/1086/2010 dated 26.04.2010, O.O. No. PP/1326/2011 dated 17.10.2011 and O.O. PP/1987/2015 dated 22.05.15)

3.13 STUDY LEAVE

3.13.1 In Special circumstances study leave may be granted to an employee of the Corporation to enable him to undertake scientific, technical or managerial studies or to undergo special courses of interest.

3.13.2 Study leave shall be granted to-

- i) The regular employees who have rendered more than 03 (three) years of service in the corporation.
- ii) Those deputationists from the Government/PSUs who have been permanently absorbed in the Corporation.

(Ref. No.: Office Order No. PP/3139/2021 dated: 26.10.21)

3.13.3 The leave may be granted by the Competent Authority subject to exigencies of work after it is satisfied that the study/training course is directly related to the applicant's work and would be of a definite advantage to the interest of the Corporation.

3.13.4 Study leave out of India shall not be granted ordinarily for pursuing studies on subjects for which adequate facilities exist in India.

3.13.5 Study leave will also not be granted to an employee who is due to retire from the Corporation's service within three years of the date on which he is expected to return to duty after expiry of the leave.

3.13.6 If the leave is required for doing study outside India, Government regulations for release of foreign exchange involved are to be adhered to.

3.13.7 Competent Authority for sanction of leave

The Competent Authority for purpose of sanctioning study leave is the Managing Director.

3.13.8 Maximum period of leave

Ordinarily, the maximum amount of study leave, which may be granted for an employee shall be twelve months at any one time which may be extended under special circumstances up to 24 months at a stretch. However, the limit will be twenty-four months in all during one's entire service, if study leave is taken in different spells.

3.13.9 Combination of study leave with other leave

Study leave may be combined with other kinds of leave, but in no case grant of such leave, in combination with leave other than extra ordinary leave, should exceed absence of more than 28 months (36 months for study leading to Ph. D) which period includes vacations, if any. An employee, when granted study leave in combination with any other kind of leave, if he/she desires, may commence his/her study before end of any other kind of leave but the period of such leave coinciding with the course of study will not be counted as study leave.

3.13.10 Extension of study leave beyond course of study

In case, the course of study finishes before expiry of study leave sanctioned, the employee shall resume duty on conclusion of the course of study, unless the prior approval of the competent authority is obtained to treat the remaining period as ordinary leave.

3.13.11 Cost of fees for Study

The employee granted study leave shall ordinarily be required to meet the cost of fees paid for the study but in exceptional circumstances, Managing Director may sanction grant of such fees. This is subject to the condition that in no case the cost of fees be paid to the employee, who is in receipt of a scholarship or stipend from whatever source, or who is permitted to receive or retain, in addition to his leave salary, any remuneration in respect of part-time employment, permitted during study leave.

3.13.12 Execution of Bond

The employee of the Corporation who has been granted study leave or extension of such leave shall execute a bond in the form at Annexure III hereto, before the study leave granted to him commences.

3.13.13 Resignation and Retirement

In case an employee resigns or retires from service without returning to duty after a period of study leave or within a period of 3 years after such return to duty, he shall be required to refund the amount of leave salary, cost of fees and other expenses, if any, incurred by the Corporation and drawn by him for the period of study leave, together with interest thereon at rates in force at the time of resignation, etc. for Government loans from the date of demand, before his resignation is accepted or permission to retire is granted. Applicable GST or any other prevailing tax shall also be charged on refund/recovery amount. However, the Managing Director may relax this provision where the employee on return to duty from study leave is forced to retire from the service on medical grounds.

3.13.14 Leave Salary during Study Leave

The employee on study leave will be entitled to draw salary equal to the pay plus DA last drawn while on duty immediately before proceeding on leave. Any stipend, scholarship or remuneration in respect of any part time employment shall be adjusted, against the leave salary. He is also entitled to draw HRA for the first 180 days of study leave at the admissible rates from time to time, at the station from where he proceeded on study leave. Payment of HRA beyond 180 days will be subject to certification that the employee continued to retain the house at the same station (whether within its qualifying limits or in an adjoining area) from where he proceeded on study leave, paid rent for it and did not sublet the whole of it for the period for which HRA is claimed. He is further entitled to draw CCA for the first 120 days of study leave at the rates applicable from time to time at the station from where he proceeded on study leave. Further payment of CCA beyond 120 days of study leave will be subject to production of certificate that the employee or his family or both continued to reside for the same period for which CCA is claimed at the same station (whether within its qualifying limits or in an adjoining area) from where he proceeded on leave.

3.13.15 Study allowance payable for studies pursued outside India

A study allowance shall be granted to an employee who has been granted study leave for studies outside India for the period spent in pursuing a definite course of study at a recognized institution or in any definite tour of inspection of any special class of work, as well as for the period covered by any examination at the end of the course of study.

Where an employee has been permitted to receive and retain, in addition to his leave salary, any scholarship or stipend that may be awarded to him from a government or non-Government sources or any other remuneration in respect of any part-time employment.

- (a) No study allowance shall be admissible in case the net amount of such scholarship or stipend or remuneration (arrived at by deducting the cost of fees, if any, paid by the employee from the value of the scholarship or stipend or remuneration) exceeds the amount of study allowance otherwise admissible.
- (b) In case the net amount of scholarship or stipend or remuneration is less than the study allowance otherwise admissible the difference between the value of the net scholarship or stipend or any other remuneration in respect of any part-time employment and the study allowance may be granted by the authority competent to grant leave.

Study allowance shall not be granted for any period during which an employee interrupts his course of study to suit his own convenience:

Provided that the authority competent to grant leave or the Head of Mission may authorise the grant of study allowance for a period not exceeding 14 days at a time during such interruption if it was due to sickness.

Study allowance shall also be allowed for the entire period of vacation during the course of study subject to the conditions that –

- a) the employee attends during vacation any special course of study or practical training under the direction of the Corporation or the authority competent to grant leave, as the case may be; or
- b) In the absence of any such direction, he produces satisfactory evidence before the Head of the Mission or the authority competent to grant leave, as the case may be, that he has continued his studies during the vacation. Provided that in respect of vacation falling at the end of the course of study it shall be allowed for a maximum period of 14 days. The period for which study allowance may be granted shall not exceed 24 months in all.

3.13.16 Counting of Study Leave for promotion, seniority, increments, etc.,

Study leave shall count as service for promotion and seniority. It shall also count as service for increments and gratuity and PF provided the employee makes the requisite contribution to PF. The period spent on study leave shall not count for earning leave other than half pay leave period admissible.

4. ENCASHMENT OF LEAVE

- 4.1 Earned Leave is encashable by the eligible employees in the following circumstances and to the extent mentioned:
- 4.2 The full amount of earned leave and half pay leave (up-to 300 days) at credit in the account may be encashed-
 - When an employee retires on superannuation or after a period of extension or reemployment.
 - When an employee is permitted to retire prematurely or whose employment is terminated on other than disciplinary grounds, or,
 - When an employee dies while in employment.
- 4.3 During employment only the leave in the encashable leave account can be encashed once in a calendar year. An employee becomes eligible to encash leave only after completion of 2 years of qualifying service.
- 4.4 The deputationists from Government organisation who are permanently absorbed in the Corporation and employees recruited from other Public Sector Undertakings on regular basis, may encash their earned leave carried forward from the previous employer to the extent of 50% of such leave, provided that the monetary value of the earned leave is remitted to and received by the Corporation. The leave transferred from previous organization will be credited to his DMRC leave account @50:50 in Encashable and Non- Encashable leave.
- 4.5 An employee, who is dismissed, removed or compulsorily retired from employment on disciplinary grounds will not be eligible to encash his leave.
- 4.6 An employee who resigns or quits service before superannuation is eligible to encash 50% of the non-encashable earned leave available on the date of cessation of service, subject to a maximum of 75 days.

- 4.7 For the period of leave encashed, an amount equal to the total of basic pay, special pay and personal pay, etc, if any, and dearness allowance and interim reliefs, if any, admissible on the date of application will be paid. City Compensatory Allowance or House Rent Allowance will not be payable for encashment of leave.
- 4.8 The amount payable for encashment of leave will not be reckoned as wages/salary for purpose of overtime, provident fund, bonus, etc.
- 4.9 No deduction other than income tax will be made from the amount payable on encashment of leave to a serving employee, if the encashment is for a period of less than 30 days. If such encashment is for 30 days or more, monthly instalment of repayment of advances and other dues will be recovered at the rates of one instalment for each period of 30 days. In cases of retirement /resignation/ retrenchment or death, the Corporation's dues will be recoverable from the amount of encashment.
- 4.10 The PRCE /contract personnel working in DMRC are not eligible for encashment of leave lying at the credit on the date of completion of their tenure or during their service in DMRC, as available to regular employees of DMRC.
(Ref: Office Order. No. PP/798/2008 dated 28.08.2008)

5. GENERAL CONDITIONS FOR GRANT OF LEAVE AND ITS ENCASHMENT

- 5.1 Applications for leave and for encashment of leave will be applied through ESS.
- 5.2 Leave (or encashment of leave) cannot be claimed as a matter of right. Sanction for it will be accorded by the officer classified as the competent officer in the SOP for grant of leave, at his discretion.
- 5.3 Leave will be granted only after a Certificate is obtained from the office where leave account of the employee is maintained.
- 5.4 Unauthorized absence from duty will render an employee liable to disciplinary action. An authority competent to sanction him leave may, however, regularize his absence as leave with or without pay if he is satisfied that the absence was due to reasons beyond the employee's control.
- 5.5 Leave on medical grounds wherever admissible will be granted only on the recommendation and certificate obtained from an authorised registered medical attendant as defined in the Medical Rules of the Corporation. The leave sanctioning authority may sanction leave on medical grounds as has been applied for the type of leave up to a maximum 3 days without production of medical certificates, if he is satisfied on the genuineness of the request for leave.
- 5.6 Except in an emergency, applications for leave shall be made sufficiently in advance (normally seven days) of the date from which it is required to enable arrangements to be made for handling the job of the applicant during the period of leave.

- 5.7 Applications for extension of leave, if required due to unavoidable circumstances, shall similarly be made well in advance of the expiry of the leave already granted.
- 5.8 An employee who is granted leave on medical grounds will be permitted to return to his duties only if he produces a certificate of fitness to resume his duties by the Authorised Medical Attendant, who recommended his leave in the first place or any other Authorised Medical Attendant whose certificate is acceptable to the Corporation.
- 5.9 Holidays including restricted holidays may be allowed to be prefixed and suffixed to the leave.
- 5.10 An employee on resuming duty after expiry of the sanctioned leave will advise the date of resumption to the office maintaining the leave account.
- 5.11 DMRC employees get 30 days Earned Leave in a year, 15 under encashable and 15 under non-encashable heads. They can encash the leave at their credit under encashable head once a year without any upper limit (maximum of 150).
- 5.12. If an employee intends to visit any foreign country/abroad, which are purely personal without any sponsorship and not linked to any official visit, Ex-india leave may be granted on leave due and admissible, whether casual leave, earned leave, half pay leave, leave on medical grounds and extra ordinary leave. The leave for such visit (i.e., Ex-India Leave) should be got sanctioned from the Competent Authority as per the following SOP:
- i) In case of Non-Executives and Upto the level of AM/ Manager (upto 10 days)- Full power of Concerned HOD
 - ii) In case of AM/Manager (beyond 10 days) and Dy. HODs/HODs (for any duration)- Full Power of Director

(Ref: Office Order No. PP/874/20089 dated 04.02.2009 and O.O. No. PP/2843/2019 dated 27.06.2019)

6. RECALL FROM LEAVE

In case, the Corporation finds it necessary to recall an employee to duty before the expiry of the sanctioned leave, the employee shall return from leave to duty. If he is availing of his leave outside his headquarters, then he shall be eligible to be paid the cost of travel and other allowances as applicable for tours on duty from the time of the commencement of his journey and till his return to the headquarters and the period of leave not availed of shall be restored to his account.

7. PROCEDURE FOR AVAILING LEAVE BY EMPLOYEES

The procedure for availing leave by employees is laid down as under: -

- 7.1 Employee should proceed on leave/ Leave Headquarters, only after obtaining sanction from their controlling Officer/Authority competent to sanction the leave, failing which period of absence will not be regularized and it will be treated as unauthorized absence, amounting to 'break in service', leave without pay and further disciplinary action.
- 7.2 In case of sickness, employee will immediately inform his controlling officer over telephone and if his sickness is likely to prolong for more than 3 days, employee will send/ produce "Sick Certificate" from a medical practitioner, competent to issue such certificate, within 48 hours of his sickness to his controlling officer, failing which the employee will be treated as 'ABSENT' and the period will be marked Leave Without Pay. The sickness certificate issued by nominated hospital or Government hospital shall be accepted. In case of outstation, it should be issued from a Government hospital only.
- 7.3 If an employee remains absent on medical grounds for more than 15 days at a stretch, the employee will be directed to nominated/Government hospital, for second medical opinion and their judgment for veracity of the sickness certificate before allowing him/her to join duty.
- 7.4. The period till fitness certificate is received is to be treated as leave.

(Ref: O.O. No DGM/R&T/324/2004 dated 06.05.2004 and O&M/R&T-173 of 2005 dated 19.08.2005)

8. COMPENSATORY REST

In O&M, Compensatory Rest shall be given where in exigency, an employee has worked on his weekly rest day.

- Compensatory Rest is admissible to Non-executive employees only.
- A maximum of three days of Compensatory Rest can be availed at a time.
- Compensatory Rest can be suffixed or prefixed to leave, Casual leave, Sunday and holidays.
- Compensatory Rest can be availed within a period of 30 days from the date in lieu of which it is claimed.

(Ref: Office Order No. O&M/R&T-556 of 2004 dated 20.12.2004)

9. TRANSFER OF LEAVE IN RESPECT OF EMPLOYEES WHO JOIN OTHER GOVT. ORGANIZATION

The employees who resign from service of DMRC, through proper channel and join other Government organization will be eligible for transfer of the leave both Earned Leave (encashable & non-encashable) and Medical Leave (LHAP).

(Ref: Office Order No. PP/1189/2010 dated 14.12.2010).

10. INTERPRETATION/RELAXATION/DELETION/MODIFICATION

The decision of the Managing Director of the Corporation, on all interpretations and relaxations to these rules, will be final. He may also relax any of the provisions of these rules in individual cases of hardship for reasons to be recorded in writing.

Chapter-G

DMRC

HOUSE ADVANCE RULES



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HOUSE BUILDING ADVANCE RULES

1. TITLE AND SCOPE :

These rules shall be called DMRC EMPLOYEES OWN YOUR OWN HOUSE ADVANCE RULES and shall apply only to the regular and confirmed employees of the Corporation and shall not apply to the employees on deputation, ad-hoc, temporary, re-employed, contract on fixed terms and those working on daily wages.

2. OBJECTIVE :

The object of the scheme detailed in these rules is to provide, as a measure of welfare, assistance to the employees of the Corporation to own their own house or flat at the place of work or intended place of residence after retirement with in India.

3. DEFINITION :

- 3.1 'Advance' means advance for acquisition of a plot of land and construction of a house thereon, for purchasing a ready built house or a flat, for enlarging an existing house or for construction of a new house or flat.
- 3.2 'Corporation' means Delhi Metro Rail Corporation Ltd. including all units under its management/control.
- 3.3 'Regular employee' for the purpose of these rules means a person employed on full time regular basis and confirmed also in the Corporation with minimum 2½ years of continuous service including probation-
- 3.4 'Pay' means the basic pay plus dearness allowance.
- 3.5 'Sanctioning Authority' means the Managing Director or Director Finance or any other officer to whom the power for sanctioning the advance is delegated.
- 3.6 'House' means a house, flat or a tenement.

4. ELIGIBILITY:

- 4.1 Regular and confirmed employees of the Corporation with minimum 2 ½ years continuous service (including probationary period) as on the date of application for advance will be eligible to be granted an advance under these Rules.

- 4.2.1 For the purpose of reckoning continuous service, service rendered by an employee in the Central or a State Government or a Public Sector Undertaking or a Government Institution shall also be taken into consideration, provided he/she has joined DMRC on immediate permanent absorption basis and there is no break in service exceeding 30 days from the date of leaving any of these organization and the date of joining another of these or the Corporation as the case may be.
- 4.2.2 The contractual employees, subsequent upon regularisation, the contractual service @70% shall be counted towards the House Building Advance (Ref: Office Order No.PP/1782/2014 dated 03.06.2014)
- 4.3 **ELIGIBILITY OF AN EMPLOYEE UNER SUSPENSION FOR HBA:**
- 4.3.1 Where an employee, subsequent to his/her being placed under suspension makes a request for the first time for grant of House Building Advance, the same may not be sanctioned till such time his/her suspension order is revoked and he/she resumes his/her duties. However, in case an employee under suspension having been already sanctioned the advance previously and also drawn the same in part, makes a request for release of balance advance/subsequent installments during the period of the suspension, the same may be allowed in terms of the provisions of the extant rules.
- 4.3.2 Where an employee having been sanctioned the advance is subsequently placed under suspension and has not drawn any amount/installment of the advance earlier sanctioned. HBA should not be released till such time his/her suspension order is revoked and he/she resumes his/her duties.

5. PURPOSES FOR WHICH ADVANCE MAY BE GRANTED:

The advance may be granted under these Rules for any of the following purposes:

- 5.1 Purchase of ready-built house or ownership flat (which has not been lived in since its construction) offered for sale by a Government, semi-Government institution or an autonomous agency like Housing Board, Improvement Trust, Development Authority, and Registered Co-operative Society etc. provided (i) the sale is not on hire purchase basis and (ii) the employee gets a clear title to the house/flat and has the right to mortgage it.
- 5.2 Purchase of a ready-built house or ownership flat (which has not been lived in since its construction) under self financing housing scheme implemented by a Government, a semi-Government institution or an autonomous agency like Improvement Trust, Housing Board, and Development Authority etc.
- 5.3 Purchase of flat in construction-linked project of a duly RERA (Real Estate Regu. Authority) registered builder and having undisputable ownership of land and has obtained all approvals for developing the township/ group housing etc.

- 5.4 Purchase of a ready-built house or ownership flat, other than those at Sub - rules 5.1, 5.2 & 5.3 at the discretion of the competent authority and on proper valuation of the property by registered valuers (for which the valuation fees shall be paid by the employee), provided the house/flat is in good condition and constructed by agencies as defined in sub-rules above. A certificate from the structural Engineer to the effect that the building is structurally safe and the life of the building is not less than 20 years is to be furnished.

Note: The following facts will be ascertained before the advance is sanctioned in such cases:

- (a) The title of the land / house/ flat should be clear and valid.
 - (b) The number and date of the building plan issued by the Municipal or other competent authority by reference to the original plan.
 - (c) The date of commencement of construction and the date of completion of the house/flat by reference to the completion certificate issued by the Municipal or other competent authority.
 - (d) The property tax pendency status and receipt issued by the Municipal or other competent authority.
 - (e) Information from the neighbourhood or any other sources, if necessary.
- 5.5 Constructing a new house on the plot owned by the employee or employee and spouse jointly.
- 5.6 Purchasing a plot and constructing a house thereon.
- 5.7 Constructing the residential portion only of the building on a plot which is earmarked as a shop-cum residential plot in a residential colony.
- 5.8 Enlarging a existing house owned by the employee concerned or jointly with spouse. The total cost of existing structure(excluding cost of land) and the proposed additions should not exceed the prescribed cost –ceiling limit.
- 5.9 Repayment of the outstanding amount of a Housing Advance and interest thereon due to be paid to his/her former employer, being government or PSU by an employee of the Corporation at the time of his/her permanent absorption in the Corporation. In such cases the outstanding principal and interest will be separately transferred on the principle of deemed continuity of service of the employee in DMRC.

NOTE:-

- i) Floor area(super) of the house to be constructed should not be less than 33 sq. mt.
- ii) No advance shall be granted for purchasing a plot of land only.
- iii) No advance shall be granted towards initial payment of registration/booking amount for purchase of ready-built house or flat including those under a self-financing scheme.

6. CONDITIONS FOR GRANT OF ADVANCE :

- 6.1 The employee should not have availed of any loan or advance for the acquisition of a house or flat from any other Govt. source (e.g. Department of Rehabilitation), under the Housing Schemes of the Central or a State Government or a Statutory or Autonomous body or Public Sector Undertakings.
- 6.2 In the case of an employee who already possesses a plot of land, the advance will be granted for the construction of a house thereon, only if the employee has clear title to the land and construction on it can commence immediately.
- 6.3 In the case of an employee, who owns a plot of land or house jointly with his/ her wife/ husband, the advance will be granted provided both of them are willing to jointly mortgage the same in favour of the Corporation as security for the repayment of the advance. Applications in such a case should be accompanied by a declaration from the wife or the husband, as the case may be, and on sanction of advance he/she will mortgage his/her share of the land or house jointly with her husband/ his wife as security for repayment of the advance.
- 6.4 Where both the husband and wife are employees of the Corporation and are otherwise eligible for the grant of advance, the advance shall be admissible to only one of them at their option. A joint declaration in this regard will also be submitted.
- 6.5 Advance shall not be admissible to an employee, who is to superannuate within 36 months of the application for the advance.
- 6.6 Not more than one advance shall be admissible to an employee during his/her entire service.
- 6.7 An employee desiring to purchase a house or flat from a registered co-operative society shall furnish the following documents with his/her application for advance:
 - (i) A letter from the Registrar of Co-operative Societies of the concerned State, indicating that the Society is registered with him.
 - (ii) An attested copy of the Society's title deed in respect of the land on which the house or flat has been or is being built along with an affidavit from the society to the effect that the land and the house or flat are free from all encumbrances.
 - (iii) An attested copy of the offer of sale of the house or flat to the applicant indicating the total cost of the house or flat showing separately, the cost of the land and the house and where the house along with the land is being sold to the applicant, terms of allotment and payment etc.
 - (iv) A copy of the plan and detailed specifications adopted for construction of the house or flat and the accommodation available therein.
 - (v) An attested copy of the sale deed proposed to be executed by the Society in favour of the applicant.

(vi) A declaration from the Society stating that there is no objection to the house or flat being mortgaged to the Corporation on such terms and conditions as may be prescribed by the Corporation.

(vii) An attested copy of the Bye-laws of the Society.

6.8 An employee desiring to construct a house on a plot of land allotted on lease to the employee by a Government or semi-Government institution like Improvement Trust, Development Authorities, etc. shall furnish an attested copy of the Lessor's letter conveying the lessor's permission to construct a house on the leased plot by the lessee.

6.9 Before applying for HBA, employee shall ensure that he/she has submitted in prescribed format for prior intimation/permission for purchase of the immovable property under Para-16 of DMRC Discipline, Conduct and Appeal Rules and have obtained approval for the same. The format prescribed for this purpose is enclosed as Annexure-A.

7. CEILING LIMIT OF COST:

The cost of ceiling limit of the house (excluding cost of land) should not exceed 139 times of basic pay of the employee subject to a maximum of **Rs 01.00 Crore (one Crore)** (OO No.PP/2752/2019 dated 30.01.2019).

NOTE: (i) Where the sanctioning authority is satisfied on the merits of any individual case, the cost ceiling limit may be relaxed up-to a maximum of 25% of the above limits.

(ii) If the cost, as estimated or on scrutiny of the estimate still exceeds the ceiling costs indicated herein, the applicant should either reduce the size of the building or delete some items of work so as to bring the cost within the prescribed ceiling limit.

8. AMOUNT OF ADVANCE :

8.1 HBA limit:

HBA limit including cost of land of the house is 60 times of basic pay or **Rs.40.00 lakh**, whichever is less. The different purposes and quantum of advance are as under. (O.O. No.PP/1048/2010 dated 18.02.2010, PP/1520/2012 dated 22.10.2012 and PP2752/2019 dated 30.01.2019)

a) For new construction/purchase of new house/flat :

60 months' basic pay or Rs 40.00 lakh or cost of house or repaying capacity, whichever is less.

b) For enlarging existing house :

The employees will be permitted to avail HBA for enlargement of their existing house/flat, enclosing balconies or other alterations and modifications after a period of 5 years from the date of taking the possession of the house for which HBA was sanctioned from DMRC. The eligible amount of HBA will be limited to the maximum of 60 months basic pay or Rs. 20.00 lakh or total cost of enlargement or repaying capacity whichever is less, subject to the difference in HBA amount between current entitlement and the amount of HBA availed earlier.

Following conditions will apply for HBA for enlargement of House:

- i) Priority will be given to the fresh applicant for the 1st HBA over the applicant for enlargement, since the main objective of the HBA rule is to assist the employees to own their own house. Therefore, such requests shall be processed subject to budget availability in last quarter of each financial year.
- ii) It will be applicable for enlargement of house in Delhi and NCR region only.
- iii) A 3 member committee shall be constituted to verify the progress of enlargement (one civil engineer will necessarily be a part of committee)
- iv) HBA for enlargement will be released in 3 installments: a. 25% b. 50% c. 25%
 - a) First installment shall be released after verification of house on receipt of application.
 - b) Second and third installments will be released on verification that the amount already released has actually been spent by the applicant.
 - c) For HBA sanctioned for the purpose of enlargement, the interest will be levied @9% i.e. highest bracket of HBA interest, in vogue in DMRC from time to time.
 - d) The advance for HBA enlargement shall be admissible to an employee, who is not being superannuated in next 36 months of taking the advance.

NOTE: Extension in period will not be given. The whole HBA (original + for enlargement) will be recovered in full within period, defined in original office order.

8.2 Additional HBA:

At the time of taking absorption/joining DMRC after tendering resignation from their previous employer, DMRC grants HBA for the purpose of repayment of the outstanding HBA to Railway/PSU. A number of such employees have requested for sanction of differential HBA as per their entitlement in DMRC and loan (excluding interest portion) taken over by DMRC from railways/PSU. In such cases, the sanction of differential HBA as per their entitlement on the date of new request and HBA i.e. principal already taken over by DMRC from parent organisation at the time of absorption can be granted subject to the followings:

- i) Payment of interest as per the SBI home loan rate prevailing on the date of taking over of loan by DMRC till the entire amount is repaid to DMRC.
- ii) Repayment of entire HBA sanctioned by DMRC in single installment (outstanding principal on which interest is chargeable + outstanding interest taken over by DMRC on which interest is not chargeable in DMRC + accrued interest in DMRC + differential interest @ SBI home loan interest rate minus interest already accrued in DMRC.)
- iii) In case, an employee who is working in DMRC, has cleared the entire outstanding amount of HBA, availed from any Government Organisation/PSU/Bank and has not availed HBA from DMRC for repayment for the said Advance, he/she will be eligible for HBA from DMRC, subject to his/her entitlement as per DMRC HBA Rules.
- iv) The above options can be exercised only once during the service in DMRC.

8.3 Swapping of Housing Loan:

Existing employees who have already taken Home Loans from Banks and other Registered Financial Institutions are allowed to migrate to HBA, subject to fulfilment of the other conditions as per extant rules. This shall be permitted only once during the service period of the employee, subject to meeting all the required formalities.

NOTE: i) Only such cases of swapping of Home Loan from Banks/Financial Institutions shall be accepted where the property is found registered in the name of the employee or his or her spouse and possession is being handed over.

ii) In the event of outstanding amount is found in excess of the total amount of the HBA eligibility of the employee, he may be asked to repay the excess amount to the financial institution/bank prior to withdrawal of HBA instalment.

(Office order no.PP/1751/2014 dt.07.03.2014 & Circular no.DMRC/Pers/14/2014 dt.12.06.14)

8.4 Creation of Second Mortgage/Charge:

- a) The employee, if he/she wishes to take a second charge to meet the balance cost of House/Flat or plot from recognised Bank/Financial Institutions, then he/she may declare the same and apply for NOC at the time of applying for House Building Advance. The total loan from HBA and from other sources cannot be beyond ceiling limit of the house as defined under chapter 7.
- b) Permission for second charge/mortgage on property for enlargement may also be granted. Conditions of HBA rules for enlargement should, however, be fulfilled.

8.5 Advance repaying capacity:

- 8.5.1 The capacity of the applicant to repay the advance shall be worked out before the grant of the advance in order to ensure that the principal together with the interest thereon is fully recovered before the applicant retires from service. The net take home pay by way of disposable income in the hands of the employee should not be less than 50% of the basic pay plus DA after meeting of all recoveries.

Since the payment of minimum wages Act, 1948 is not applicable for executive category, the pension drawn by the employee from his previous organization shall be considered while calculating 50% take home salary.

- 8.5.2 The actual amount of advance to be sanctioned shall be determined by the Corporation on the basis of the plans, detailed specifications and estimates to be furnished by the applicant within the ceiling limit of advance prescribed above and the capacity of the employee to repay the advance.

9. RATE OF INTEREST :

- 9.1 The rate of interest which shall be paid by the employees on the advances sanctioned under these Rules as follows:

Slab	Rate of Interest
Up-to Rs. 12 lakh	@ 5%
From Rs. 12,00,001 to Rs 15,00,000 lakh	@ 7.5%
From Rs. 15,00,001 to Rs 40,00,000 lakh	@ 9%

(O.O. No. PP/2752/2019 dated 30.01.2019)

NOTE: Lower Rate of Interest will be applied for the advance drawn in 1st instalment till the reach of 1st slab i.e. upto Rs.12 lakh @ 5% p.a. and thereafter accordingly next rate of interest will be applied for the purpose of calculation of interest charges.

- 9.2 Interest will be calculated on the balance of advance outstanding on the last day of each month. (O.O. No. PP/263/2004 dated 24.05.2005).

- 9.3 In the process of recovery, the principal amount will be recovered first and thereafter the interest chargeable on the advance.
- 9.4 The advance carries simple interest from the date of payment of first instalment.
- 9.5 If the balance of principal amount is cleared on the 1st or during the middle of a particular month, the interest of the month will be NIL as the interest bearing balance will be 'Nil.'
- 9.6 In working out interest-bearing balance of advance if the pay of a month is drawn late due to administrative reasons, recovery of the advance shall be deemed to have been made in the month, following the month to which the pay relates, irrespective of the actual date of its drawal.

10. **SECURITY:**

The forms of securities and the types of cases in which they shall be obtained and when they shall be obtained are indicated below:

10.1 **Agreements:**

- a) An agreement in Form-4 shall be executed in the following types of cases before the first instalment of advance is disbursed to the applicant.
- (i) Purchase of a plot of land and building a house thereon.
 - (ii) Purchase of a ready built house/flat.
 - (iii) Where the terms of sale of land do not vest the title to it in the purchaser till the house is constructed on the land.
 - (iv) Enlargement of an existing house.
- b) An Agreement in Form-6 shall be executed by the applicant agreeing to execute a Mortgage Deed in the prescribed form within the time specified in Rule-10.4 below.
- c) Tri-partite agreement (wherever applicable)

NOTE: Notwithstanding anything mentioned above, the employee shall execute such supplementary documents/deeds as may be required by the Corporation from time to time.

10.2 **Surety :**

A surety bond in Form 7 shall be furnished by the applicant from two regular employees of the Corporation who have completed at least 3 years of service (including service in the Central or a State Government Department or a Public Sector Undertaking or a Government institution) and who are of a status equal to or

higher than that of the applicant, before the sanctioned advance or any part thereof is disbursed. The liability of the surety will continue till the house or flat built/purchased is mortgaged and original title deed of property is received to the Corporation or till the advance together with the interest due thereon is completely repaid, whichever event happens earlier. If, however, the surety resigns or his services are terminated or any other event of this nature takes place, the employee concerned shall provide a substitute surety. No employee can stand surety for more than two cases of House Building Advance.

10.3 Mortgage Deed :

- a) A mortgage deed in Form-8 shall be executed in the following types of cases for acceptance by the sanctioning authority:-
 - (i) Along with the application in all cases where the applicant owns the property absolutely either by himself or jointly with his/her wife/husband.
 - (ii) In cases of purchase of a plot of land for the purpose of construction of a house thereon, within 3 months of the purchase being affected.
 - (iii) In cases where the terms of sale do not vest the title in the purchaser till the house is erected thereon, within 3 months of the applicant acquiring the title to the property.
- b) A mortgage deed in Form 9 shall be executed in cases where the property is leasehold.
- c) The mortgage in all the above cases may be effected through equitable mortgage by deposit of title deeds of the property with the Corporation in the areas where this is permissible under the law, and where such a mortgage is not permissible, the mortgage shall be by way of 'simple mortgage' to be registered with the Registrar or Sub-Registrar of the area concerned.

10.4 Documents to be submitted for Enhanced HBA:

Where the amount of advance originally sanctioned is enhanced or the number and amount of instalments for repayment of advance are changed, the documents such as Application form, Agreements, Surety Bonds etc. are required to be executed afresh at the cost of the loanee subject to complying following conditions:

- a) The employee should not have drawn the entire amount of HBA sanctioned under earlier order and/or where construction is not completed/full cost towards acquisition of house/flat is yet to be paid.
- b) There will be no deviation from the approved plan of construction on the basis of which the original sanction of House Building Advance was accorded.
- c) The actual entitlement will be restricted to the repaying capacity
- d) In any case, not more than one enhancement is admissible to employee,

- e) The application for enhanced HBA should be submitted with-in six months from issue of office order.

10.5 **Re-conveyance Deed :**

After the advance together with interest due thereon has been fully repaid, the property mortgaged as security for the repayment of the advance shall be re-conveyed to the employee by means of a deed in Form-11 by or under the authority of the sanctioning authority.

Note: All the documents by way of security provided for in this rule shall be signed on behalf of the Corporation, wherever required by an Officer in grade Rs.70000-200000/- IDA (Dy HoD) or higher.

11. **DISBURSAL OF HOUSE BUILDING ADVANCE:**

- 11.1 In cases of construction of a new house including acquisition of plot of land for the purpose, the amount of sanctioned advance shall be paid in the following instalments.

Types of Cases	Purchase of Plot of Land	Installments for construction of house after allotting a portion, if any, for purchase of plot of land as a percentage of the sanctioned advance			
		1 st	2 nd	3 rd	4 th
1	2	3	4	5	6

Single storied houses:

(a) Construction		40%	40%	20%
-				
(b) Purchase of land & construction	40% of eligible HBA OR actual cost of plot of land whichever is less	20%	20%	20%
-				

Double storied houses:

(a) New Construction		30%	25%	25%	20%
(b) Purchase of land & construction	30% of eligible HBA OR actual cost of plot of land	20%	20%	15%	15%

whichever is less

The first instalment shall be released initially at the time of sanction of advance. The 2nd and 3rd instalments in the case of single storied structure shall be disbursed after the construction has reached the plinth level and roof level respectively, and in the case of double storied structure, the disbursement of 2nd, 3rd and 4th instalments shall be made after the construction has reached the plinth level, the roof level of the ground floor and the roof level of the first floor respectively.

- 11.2 In the case of houses/flats under self-financing schemes, the amount shall be paid in such instalments and at such intervals as are laid down by the authority implementing the scheme. Payment of first instalment shall be made only after the prescribed agreement in Form-4 and surety bond in Form-7 have been executed by the employee.
- 11.3 In case of enlargement of existing houses, the payment shall be made in three suitable instalments after the prescribed agreement in Form 4 and surety bond in Form-7 and other documents for the total amount including the enhanced amount of House Building Advance, as the case may be.
- 11.4 In case, house is purchased under Construction Linked Plan/Flexi plan, the payment of HBA shall be released according to the demands, subject to a maximum of 80% of the sanctioned HBA. There after next 10% will be released on offer of possession and rest of the amount shall be released after submission of completion certificate by employee and physical verification of the property by the nominated committee (APO/O&M Note No.DMRC/O&M/HR/HBA /2010 dated 03.12.2010 & dated 03.06.2011).
- 11.5 For Ready-to-Move in house or flat, entire amount of sanctioned HBA will be released in-favour of the owner/builder of property with whom the employee has made the transaction after physical verification of the property by the nominated committee and prescribed agreement in Form-4 and surety bond in Form-7 have been executed by the employee.
- 11.6 **For Swapping of Home Loan to DMRC HBA:** The total sanctioned HBA shall not be more than the outstanding amount of loan with bank/financial institutions as on the date of release of HBA.

12. PROCEDURE FOR DRAWAL OF ADVANCE :

- 12.1 Application for the grant of advance under these Rules shall be submitted in Form-1 through proper channel. The following documents shall accompany the application:
- (i) A declaration in regard to house property, if any, owned by the applicant or the applicant's wife/husband or minor children at the time of application.
 - (ii) If the advance is required for enlarging an existing house, the original sale deed, if any, as well as other documents such as non-encumbrance certificate from the

Registrar or Sub-Registrar evidencing that the applicant possesses indisputable title to the property in question. A site plan shall also be furnished.

(iii) The original sale deed or other proof of the applicant having clear title to land on which the house is proposed to be built along with a site plan except in the case of purchase of land and outright purchase of a house or flat in which case proof of negotiations etc. shall have to be furnished.

(iv) Where a ready built house/ flat is intended to be purchased, the Corporation, before authorizing payment of the advance, shall require the employee to produce proof of negotiation for the purchase of a house or flat together with a copy of the building plan and the site plan and a certificate that he has satisfied himself that the transaction will enable him to acquire indisputable clear title to the house or flat.

(v) Applicant who intend to construct a new house or to enlarge an existing house shall furnish a copy of each of the building plan and the site plan as well as the specifications, detailed estimates and abstract estimate in the prescribed forms 3 and 2. The applicant shall get the site plan and the building plan duly approved by the Municipality or other local body concerned before submitting them to the Corporation.

12.2 The Sanctioning Authority shall get the application duly vetted from the Legal Division of DMRC and satisfy itself of the correctness of the facts and genuineness of deeds stated therein. The sanctioning authority, before according sanction, shall get the existence of budget provision certified by Finance Division.

12.3 After the sanction is accorded, the borrower shall arrange to fulfill the prescribed formalities like submission of prescribed forms duly completed such as execution of agreement, mortgage deed, surety bond, as the case may be and after the aforesaid documents have been vetted, the Corporation shall arrange disbursement of the appropriate proportions out of the sanctioned advance (in suitable instalments) as per Rule 11.

12.4 In the case of purchase of land, house/ flat, the amount of advance shall be sanctioned by the Corporation to the applicant, but the cheque / demand draft for the amount shall actually be given to the seller by the Corporation after the requisite documents are received from the employee and the necessary formalities are completed.

12.5 In the case of purchase of house/ flat under self-financing schemes, payment of instalments of advance shall be made directly to the scheme-implementing authority by the Corporation on the execution of the prescribed agreement and completion of other formalities prescribed under these rules.

12.6 The sanctioning authority shall also ensure that:

(i) The prescribed mortgage deed is executed immediately on purchase of the land/house or flat and/or sanction of advance and the document kept in safe custody after registration if required under the law.

- (ii) The house is insured in the manner indicated in rule 15 immediately on its purchase/completion and kept insured till the amount of advance and interest thereon are repaid in full and that the premium receipts are regularly produced for check to HR Division.
 - (iii) Any amount of advance in excess of the actual expenditure incurred on purchase of land and construction of house or flat, is refunded by the employee concerned to the Corporation forthwith together with the interest, if any, due thereon.
 - (iv) The property mortgaged to the Corporation is released immediately on the repayment of the advance and the interest thereon in full.
- 12.7 The employee shall deposit all the legal documents such as title deed, mortgage deed, agreement, surety bond, etc., with the HR Department on behalf of the sanctioning authority. In the case of transfer of an employee from one office to another the documents shall continue to be kept in the safe custody on behalf of the sanctioning authority.

13. TIME LIMITS FOR UTILIZATION OF ADVANCE :

- 13.1 In the case of purchase of a plot of land and construction thereon, the land shall be purchased and the sale deed produced within 2 months of the disbursal of the instalment of advance for the purpose.
- 13.2 In the case of purchase of a house, acquisition of the same and mortgage to the Corporation shall be completed within 3 months of disbursal of advance for the purpose. Extension of time limit may be granted by the sanctioning authority depending upon the merits of an individual case.
- 13.3 In the case of purchase of a ready built flat, the applicant shall utilize the amount of advance and produce the original sale deed and mortgage deed of advance within one month of the disbursal of the advance. Extension of time limit may be granted by the sanctioning authority depending upon the merits of an individual case.
- 13.4 Any sanction for advance or its instalment, if not utilized within a period of 4 months from the date of issue of office order will automatically lapse.
- 13.5 If the advance is not utilized within the time limit prescribed herein, it should be refunded in lump sum with interest thereon failing which it shall be open to the Corporation to recover the advance with interest in lump sum from the salary and any other dues and/or by taking recourse to any other proceedings as deemed necessary.

14. CONSTRUCTION AND MAINTENANCE :

- 14.1 The construction of a new house or additions to an existing house, as the case may be, shall be:-

- i) Carried out exactly in accordance with the approved plan and specifications on the basis of which the amount of the advance has been computed and sanctioned. The plans and specifications shall not be departed from without the prior approval of the Corporation. The employee shall certify, when applying for instalments of advance admissible at the plinth/roof level, that construction is being carried out strictly in accordance with the plan and estimates furnished by him to the Corporation and that the construction has actually reached plinth/roof level and that the amount already drawn has actually been used on the construction of the house. The Corporation may, if necessary, arrange to have inspection carried out by an official to be nominated by it to verify the correctness of the certificates.
- ii) Completed within 18 months of the date on which the first instalment of the advance is paid to the employee concerned. Failure to do so shall render the employee liable to refund the entire amount advanced to him (together with interest thereon calculated as in rule 9 above) in one lump sum instalment. An extension of the time limit may however be allowed up-to one year by the Corporation in cases where the work of construction is delayed due to circumstances beyond the employee's control. The date of completion of the house shall be reported to the Corporation without delay.

14.2 The house shall be maintained in good condition and repairs carried out by the employee concerned at his own cost. He shall also keep it free from all encumbrances and shall continue to pay all the Municipal and other local taxes regularly until the advance along with interest thereon has been repaid to the Corporation in full. The employee shall furnish an annual certificate to this effect to the Corporation.

14.3 After completion of construction of the house, annual inspection may be carried out by an authorized official of the Corporation under instructions from the Corporation to ensure that it is maintained in good condition until the advance along with interest thereon has been repaid in full. The employee concerned shall afford full facilities for all inspections herein provided for.

Note: Furnishing of false certificates shall render the employee concerned liable to suitable disciplinary action, apart from his being called upon to refund to the Corporation forthwith the entire advance drawn by him together with accrued interest.

15. INSURANCE OF HOUSE:

15.1 Immediately on completion of construction or purchase of the house/flat, as the case may be, the employee concerned will insure the house with the recognised institutions as approved by Insurance Regulatory and Development Authority(IRDA) within one month at his own cost for a sum not less than the amount of the advance and shall keep it so insured against damage by fire, flood and lightning, till the advance along with interest is fully repaid to the Corporation. The

policy obtained shall be deposited with the Corporation. A letter in Form 10 shall be written to the Insurer by the employee about the interest which the Corporation has in the Insurance Policy. The premium shall be paid regularly by the employee and receipts thereon produced for inspection by the official authorised in this behalf by the sanctioning authority. In the event of failure on the part of the employee to effect insurance against fire, flood and lightning, or non-payment of premium for such insurance, it shall be lawful but not obligatory for the Corporation to insure the said house at the cost of the employee concerned and recover the same from the employee including interest fixed thereon. The employee shall, in addition, be liable to disciplinary action.

- 15.2 To ease the financial burden on the employee or his/her family in the event of his/her premature death, etc. a Group Insurance Scheme for the advance pending to be recovered (principal + interest) has been introduced for which the premium will be borne by the employer and employee on 50:50 basis.

16. REPAYMENT OF ADVANCE :

- 16.1 Recovery of sanctioned House Building Advance will be commenced from the month following which the advance is drawn, irrespective of the fact whether full advance has been drawn or not.
- 16.2 The advance granted to an employee under these rules, together with the interest thereon, shall be repaid in full before retirement of the employee by monthly instalments within a period not exceeding 20 years, repayment of principal being made in 15 years (180 instalments) and interest in 5 years (60 instalments)..

It will be open to an employee to repay the advance and or interest thereon in a shorter period, if he/she so desires. However, the entire advance together with interest thereon shall be repaid in full before the date on which the employee is due to retire from service.

In case an employee does not repay the balance of the advance due to the Corporation and the interest thereon on or before the date of his retirement, it shall be open to the Corporation to enforce the security of the mortgage at any time thereafter and recover the balance of the advance due together with interest thereon and cost of recovery, by sale of the mortgaged property and/or in such other manner as may be permissible under the law.

- 16.3 Recovery of the advance shall be effected through the monthly pay / leave Salary bills of the employee concerned by the Corporation.
- 16.4 If an employee dies before repayment of the advance, and/or interest thereon, the entire pending amount will be recovered from Insurer(w.e.f.1st Dec.,2019).

In all other cases, where the employee ceases to be in service for any reason, he/she is required to settle total outstanding House Building Advance (Principal

+interest) in single installment. In other words, settlement of outstanding advance shall not be permissible on equated monthly instalment basis. Failure on the part of employee concerned to repay the advance and interest thereon for any reason whatsoever, shall entitle the Corporation to enforce the mortgage and take such other action to effect recovery of the outstanding amount as may be permissible. In such cases of default if the amount realized by the sale of the property is not sufficient to cover the amount outstanding as balance due to the Corporation, the Corporation shall be entitled to proceed against the surety for the recovery of the amount, which falls short, to make good the difference.

16.5 Recovery from Gratuity:

In case employee is due to retire within 20 years of the grant of advance, he/she may be permitted to repay the outstanding balance of the advance along with interest, if any, remaining unpaid at the time of retirement from the due Gratuity and an undertaking to this effect shall be obtained from him/her at the time of sanctioning the advance. The amount of instalment worked out should not be less than that worked out on the basis of repaying with-in 20 years.

17. SAFEGUARDS:

- 17.1 Before disbursement of the first instalment of the advance, the applicant shall mortgage the land with the house to be erected thereon to the Corporation. The original documents of title of the land shall be deposited with the sanctioning authority before drawing the second instalment of the advance.
- 17.2 Before sanctioning the loan, administration shall get the legal vetting of all documents so that the titles of the deeds are properly verified and the corporation safeguards the amount of advance granted.
- 17.3 In the case of a ready built house, and in cases where the title to land passes to the buyer after the house is built thereon or after a prescribed period, the agreement in the prescribed form shall be obtained from the employee that he will execute the mortgage deed as soon as he acquires the title.
- 17.4 Surety bonds in the prescribed form (Form 7) shall be obtained from the applicants who apply for advance for purchasing a ready built house.
- 17.5 Procedure for watching recovery of advance and books to be kept shall be as such decided by the Managing Director.

18. STAMP DUTY, GST & TDS:

- a) Stamp duty chargeable on documents, registration fees and other expenses to be incurred for the completion of legal and other formalities shall be borne by the employee.
- b) Goods & Service Tax etc. (wherever applicable) will be borne by the employee.

c) Deduction and submission of TDS as per the provision of Income Tax Act (wherever applicable) will be the sole responsibility of concerned employee.

NOTE: Reimbursement of above (a,b&c) thereof are not admissible.

19. **PENALTY FOR NON-SUBMISSION OF ORIGINAL TITLE DEED ON TIME:**

In case the employee fail to submit the original title deed, possession letter and Insurance paper of property with-in one month of withdrawal of final instalment of HBA or completion certificate, whichever is earlier, a flat 2% interest over and above the normal HBA interest shall be charged on total withdrawn advance amount as a penalty applicable from the date of drawal of first advance/instalment of HBA and shall be settled separately.

An Affidavit in this regard shall also be submitted by employee at the time of withdrawal of 1st instalment of House Building Advance.

For existing House Building Advance cases, where full House Building Advance amount has already been disbursed, employee may submit the original title deed, possession letter and Insurance paper of property with-in one month of the issue of circular, failing which applicable penalty will be imposed. Representation for waiver of penalty, if received, can only be entertained, in case the reasons are beyond the control of the employee, for instance in case of court order/s, force majeure events, etc. Genuineness of the reason shall be considered in consultation with the Legal Department.

For new House Building Advance cases: Representation for waiver of penalty, if received, can only be entertained, in case the reasons are beyond the control of the employee, for instance in case of court order/s, force majeure events, etc. Genuineness of the reason shall be considered in consultation with the Legal Department.

20. **SUPPLEMENTAL ORDERS:**

Notwithstanding anything contained herein, the employee shall be bound to comply with any supplementary rules/orders which may be made subsequently in this regard from time to time with a view to safeguarding the corporation's interest as well as proper and faithful observance of the provision of these rules.

21. **INTREPRETATION/RELAXATION/MODIFICATION/ DELETION/**

The Managing Director reserves the rights to modify, cancel, add to or amend any of these rules and to delegate the power of sanction under these rules to any

authority in the Corporation from time to time. Such modification, cancellation, addition and amendment to any of these rules shall not affect the advances already sanctioned unless the employee to whom such advance had been sanctioned, specifically agrees to the same.

DOCUMENTS TO BE CHECKED BY EMPLOYEE BEFORE SUBMITTING THE HBA FILE TO HR

For Under Construction/Flexi Plan

- **Proof of prior Intimation of the transaction.**
- **Check List for HBA (The format is attached)**
- **Form No 1 duly filled in and forwarded by concerned HOD.**
- **Allotment letter**
- **Payment receipts**
- **Builder buyer agreement**
- **Permission to Mortgage and Non-Encumbrance Certificate.**
- **Article and Memorandum of Association.**
- **Chain of Ownership.**
- **NOC from concerned Govt Agencies/Deptts.**

- **Sanctioned Map**

a) **Site Plan**

b) **Building Plan**

c) **Floor Plan**

- **Any other documents required by Legal Deptt.**

For Ready to Move in Plan

- **Chain of ownership**
- **Property tax receipts/electricity bill/ water bill**
- **Valuation of property from a registered valuer.**
- **Any other documents required by Legal Deptt.**

NOTE: CORPORATION MAY SEEK ANY OTHER DOCUMENT AS REQUIRED.

**CHECK LIST FOR SANCTION OF HOUSE BUILDING ADVANCE
(TO BE FILLED BY THE EMPLOYEE)**

Dated

1	Name	
2	Designation	
3	Emp No.	
4	Pay Scale	
5	Basic Pay as on today	
6	Date of Birth	
7	Date of Joining/Absorption DMRC	
8	Date of retirement	
9	Balance service period	
10	Cost Ceiling limit (Max 139 months basic)	
11	Ceiling limit for advance (60 times of basic pay or ₹40 Lakhs whichever is less.	
12	Amount of Advance (applied for)	
13	Purpose	
14	The proposed purchase is made from	

15.	Balance Fund Required	
16.	Source of Balance Fund	
17.	Details of HBA taken from Govt Deptt/PSU's earlier if any	

TO BE FILLED BY EMPLOYEE AND VETTED BY LEGAL DEPARTMENT

18	Documents required for grant of HBA	
	Application Form No.1	F/
	Surety Bonds in FORM 7 (Clause 10.2)	F/ & F/
A.	FOR PURCHASE OF READY BUILT FLAT	
	Proof of Negotiation (Clause 11.1(iv))	F/
	Copy of Building Plan (Clause 11.1(iv))	F/
	Title of the House (Clause 5.3)	F/
	No. & Date of Building Plan issued by Municipal Corporation (clause No. 5.3b)	F/
	Tax bill & receipt issued by Municipal Corp. (Clause No. 5.3d)	F/
	Agreement in Form 4, 6, 8 or 9 (Clause 9.2)	F/ , F/ , F/
	Proper valuation of the property by registered valuer (Clause 5.3)	
	Certificate from a Structural Engineer to the effect that the building is structurally safe for 20 years (Clause 5.3)	

B	FOR PURCHASE OF HOUSE or FLAT FROM A REG. CO-OP SOCIETY SHALL FURNISH DOCUMENTS AS REQUIRED IN CLAUSE No. 6.8(1-7)	
	Society Registration Proof. Attested Copy of the society's title deed in respect of the land on which the house/flat is constructed and that it is free from all encumbrances. Attested copy of the offer of sale of the house/flat to the applicant (cost of land, terms of allotment payment etc.) Copy of the plan and detailed specification adopted for construction of the house/flat.	F/ F/

	Attested copy of the sale deed proposed to be executed by the Society in favour of the applicant No. objection certificate for mortgaging the house/flat to the organization. Attested copy of bye-law of the society.	
C	FOR CONSTRUCTION OF HOUSE ON A PLOT ON LAND, DOCUMENTS AS REQUIRED IN CLAUSE NO. 6.9 MAY BE FURNISHED.	----- NA -----

TO BE FILLED IN BY ACCOUNTS DEPARTMENT

19	Advance repayment, Gross pay w.r.t. latest pay slip, total deduction (a)	
	Other recoveries (b)	
	Proposed instalment of HBA (c)	
	HBA Interest instalments	
	HBA calculation sheet attached	
	As per para 8.5 Advance repaying capacity (50% of Basic Pay +DA)	
	Net take home salary as per above (a-b-c)	
	Budget provision	

I have applied / obtained the NOC for my transaction into above mentioned immovable property.

Sign of Employee

HR Department

Legal Department

Finance Department

**APPLICATION FORM FOR USE BY DMRC EMPLOYEE FOR THE GRANT OF
OWN YOUR OWN HOUSE BUILDING ADVANCE UNDER THE RULES
REGULATING THE GRANT OF ADVANCE TO THEM FOR HOUSE ETC.**

1. (a) Name (in block letters). :
(b) Designation :
(c) Employee no :
(d) Department. Office and
Station in which employed :
(e) Scale of pay :
(f) Present pay (exclusive of
Allowances but including :
Dearness pay, if any) :
2. Place and address where the house/
Flat is proposed to be built/enlarged :

3. Please state:

Whether you are a regular employee of corporation	Date of your appointment In the corporation & the grade thereof	Date of birth & age next birthday	Date on which you will attained the age of 60 years	Is your wife/husband a central Govt/Public sector undertaking employee? if so, give her/his name. Designation. Office etc

4. Do you or does your wife/husband/minor child already own a house, if so please state:-

Station where it is situated	Floor are (in sq.ft.)	Its approximate Valuation ₹.	Reason for desiring to own another house with exact address, or enlarging living accommodation in an existing house, as the case may be

--	--	--	--

(Form No 1: Page 2 of 6)

5. Do you require the advance for building a new house? If so, please Indicate:

(a)

Approximate Floor area Of house Proposed to Be constructed (In Sqm.)	Estimated cost			Amount of advance required	No. Of years In which The Advance with Interest is Proposed to Be repaid
	Cost of land	Cost of Construction	Total		

Note: Entries in cols. 2-4 will have to be supported by specification/estimates and plans at the appropriate stage in prescribed forms.

Note: - The cost of land should be below or equal to 40% of total eligible HBA amount.

Note: - Minimum of 36 months of regular service is required for availed HBA.

(b) Whether you are already in possession of the land? If so, please state:-

Name of the city or town	Whether you wish to settle there after retirement	Area of the plot (in sq.mtr)	Name of the municipal or other local authority (if any) in whose jurisdiction it is located
--------------------------------	---	---------------------------------	---

where it is located			

- (c) If no plot of land is already in your possession, how and when do you propose to acquire one, state the approximate plot area (in sq.m.) Proposed to be acquired and enclose an attested true copy of letter from the seller of the plot that subject to settlement and payment of the price, he can hand over to the applicant the vacant possession of A clearly demarcated developed plot of land within a period of two month from the date of letter.

6. Do you require advance for enlarging living accommodation in an Existing house? If so please state:-

No. of rooms in the house excluding lavatory. Bathroom & kitchen	Total floor area of the room (in Sq. m)	If additional storey is proposed to be added. Is the Foundation Strong Enough?	Particulars of			Amount Of Advance Desired	No. of years In which the advance with interest is proposed to be repaid
			No of floor area estimated Rooms (in Sq m.) cost				

Note: A plan of existing house should accompany the application.

7. Do you require the advance for purchasing a readymade house from a Govt Authority/ Private Builder/ Third Party/ Individual?

(a) If so and in case you have a house in view, state:-

Exact location of house/ Address	Floor area of house (in Sqm)	Plinth area of the house (in Sqm)	Approx age of the house	Municipal Valuation of the house	Name & address of the owner	Approx. Price expected to be paid	Amount of advance required	No. of years in which the advance with interest is proposed to be repaid

--	--	--	--	--	--	--	--	--

Have you satisfied yourself that the transaction would result in your acquiring an undisputable title of house?

Note: A plan of the house should accompany the application.

- (b) If you do not already have a house in view. When and where do you propose to acquire one? indicate:-

The approximate amount up to which you will be prepared to buy a house	The approximate amount of advance required	No. of years in which the advance with interest is proposed to be repaid

The detail specified in 7 (a) above should be furnished in this case also as soon as possible and in any case before the full amount of the advance can be drawn.

8. Is the land on which the house stands, or proposed to constructed free hold or lease hold? If lease hold, please state:-

The term of lease	How much of the term has already expired	Whether conditions of the lease permit the land being mortgaged to corporation	Premium paid for the land	Annual rental value of the plot

Note: A copy of the lease/sale deed should accompany the application.

9 (A) is your title to land/house undisputed and free from encumbrances?

(B) Can you produce .if required Original document (Sale of lease deed in support of your title? If not, state reasons therefore indicating what other documentary proof. If any can you furnish in support of your claim.

(C) Does the locality in which the plot of land/house is situated. Possess essential services like road .water supply drainage sewerage. Street lighting etc?(furnish a site plan with complete address.

10 Name and designation of the surety (1st) :

Home Town Address of the Surety (1st) :

Name and designation of the Surety (2nd) :

Home Town Address of the
(2nd) :

Present pay (excluding allowances but including DA) of surety

(Enclose latest salary slip duly attested by the concerned sureties)

Date of superannuation of sureties

- 11 In case you have already made a final withdrawal from your provident fund for the construction or acquisition of a house /flat or a residential plot ,please furnish the particular of amount drawn ,the date of drawn etc.
- 12 In case you happen to be due to retire from employment within 20 years of the date of application. do you agree to authorize the corporation to adjust the outstanding amount of advance with interest against the gratuity or any other dues admissible to you.

DECLARATION BY THE APPLICANT

1. That whatever is stated above is true to best my knowledge and belief.
2. I have read the rules regulating the grant of advances to DMRC employee for building etc. of house, and agree to abide by the terms and condition stipulated therein.
3. I certify that:
 - My wife/husband is not a Central Government/Public Sector Undertaking employee. My wife/husband who is a Central Government/Public Sector Undertaking employee has not applied for and/or obtained any advance for the same purpose.
 - Neither I nor my wife/husband/minor child has applied for and/or obtained any loan or advance for acquisition of a house in the past from any Government source (e.g. Ministry of Rehabilitation or under any Central or State Housing Scheme) or drawn an advance or made a final withdrawal from any provident Fund in connection with the acquisition of a house.
 - That the house/flat proposed to be purchased / constructed/enlarged is required for my bonafide personal use.
 - That the construction of the house/flat for which the advance has been applied, has not yet been commenced.

I solemnly declare that the information furnished by me in reply to various items indicated

Station:

Signature of the applicant

Name :

Dated:

Designation :

Emp No :

Department :

Mobile No. :

Extn No. :

E-mail :

**Strike out the alternative(s) whichever not applicable*

(To be completed by the applicant's Head of Department)

No. _____ Station _____ Date _____

- (1) I have scrutinized the application in terms of the Corporation Rules and have satisfied myself of the correctness of the facts etc. Stated therein and that the applicant possesses a clear title to the property in question.
- (2) It is recommended that an advance of ₹. _____ (₹ _____ only) may be granted to the applicant. I have satisfied myself, on the basis of monthly deductions made from the applicant's salary that this amount is well within his repaying capacity.

Signature _____

Name: _____

Designation _____

Department _____

UNDERTAKING

I, -----, -----, EMP No -----, certify that I would get the property ----- at -----

-----insured against fire, lightening, riots, and earth quake immediately after possession of the flat at my own cost for an amount not less than the amount sanctioned. I shall deposit the original policy with the Delhi Metro Rail Corporation.*

I also state that I would submit original receipts, property documents, conveyance deed and insurance papers as soon as I am in possession of the above said documents.*

That I am purchasing the under construction immovable property from -----and I shall deposit the conveyance deed papers within two years or after possession whichever is earlier.*

I shall submit society buy laws, society registration proof whenever it is with me.*

I shall submit Structural Stability Certificate, Completion Certificate and Occupancy Certificate before withdrawal of final HBA Installment.*

Signature-----

Name-----

Employee No.-----

Design-----

Dated: / / 20

**Strike out whichever is not applicable.*

UNDERTAKING

I, -----, Emp. No-----, Designation -----, certify that I would get the property at -----
_____. I also certify that I shall deposit the **society bye laws** at the time of possession of the above mentioned flat.

Signature-----

(Name-----)

Employee No.-----

Desig-----

Dated:

CERTIFICATE

I, -----, Emp. No-----, Designation
-----, certify that transaction to the purchase of ready built flat/house/plot at

--enable me to acquire indisputable clear title to the said flat/property.

Signature-----

(Name-----)

Employee No.-----

Desig-----

Dated:

DECLARATION

I, -----, Emp. No-----, Designation -----, declared that my wife or child do not own any housing property as on date.

Signature-----

(Name-----)

Employee No.-----

Desig-----

Dated:

Abstract of cost or original estimates and detailed specifications (based on details in Form 8) for grant of advance to DMRC employees for the building or houses.

Amount _____

Name _____

Designation _____

Locally and address in which the house is proposed to be constructed.

Item No.	Sub heads & item of work	Quantity or No.	Rate per	Amount (Rs)	Total
1	Earth work (Earth work excavation for foundation and disposing of the surplus earth etc.)				
2	Concrete work (Foundation concrete with cement or lime using stone or brick ballast either below floors or for footings)				
3	Damp Proof Course (concrete on rich cement mortar or bitumenistic compound				
4	Reinforced cement				
5	Masonry (Brick, stone, concrete blocks walls etc.)				
6	Roofing work (RCC Asbestos or any other type of suitable roof)				
7.	Wood work (for doors and windows wooden scantling for roofs etc.				
8.	Steel work for reinforcements holdfasts, window bars etc.				
9.	Flooring (concrete, stone or marble chips etc.)				
10.	Finishing (Plastering, pointing, colour or white washing painting, etc.)				
11.	Miscellaneous (like rain water pipes/shelves, jails, chulas pegs, hooks for fans etc.)				

12. Sanitary Installations (closets, connections pipes manholes, drains etc.
13. Water Supply (Taps, water meters, water tanks, G.I.pipes etc.)
14. Electricity (electric points, meters, connections lines etc)

Total cost

Date

applicant

Signature of the

NOTE: The abstract is to be typed on a separate sheet (including the actual detailed items of works/rates etc. proposed to be adopted) and attached to the application at the appropriate stage.

Details of Measurements.

Name of work

Quantities have been worked out for the approved plan:

Sr.No	Details of Work	Measurements LBH	Quantities
1.	Earth work in excavation in foundation trenches in ordinary soil		
2.	Filing available excavated earth in plinth sides of foundations etc.		
3.	Providing and laying cement concrete 1:5:10 in foundation, etc		
4.	Providing and laying 38 mm thick long wall		
5.	Applying a coat of residual petroleum bitumen 80/100		
6.	2 nd class brick work in cement mortar 1:6 in foundation and plinth		
7.	2 nd class brick work in super-structure in CM 1:6 up to floor 2 level		
8.	RCC 1:2:4 in Chhajjas up to floor 2 level		
9.	RCC 1:2:4 in suspended floors roof landings, balconies up to 2 level		
10.	RCC 1:2:4 upto floor 2 level in lintels beams etc.		
11.	Centering, shuttering suspended floors landings, balconies, etc.		
12.	Mild steel reinforcement for RCC work		
13.	Cement Concrete flooring 1:2:4 40 mm thick		
14.	Providing wood work in frames of doors etc.		
15.	Providing and fixing 38mm thick paneled glazed shutters of doors, windows.		

16. 10 cm (thick)mud phaska of clamped brick arch and covered with flat title bricks
17. 12 mm cement plaster 1:6 or any other mix
18. White washing with lime of new work
19. Applying priming coat with ready mixed primer of approved brand
20. Painting two or more coats
21. Providing and fixing steel compound gate

Note: Details like long wall, cross wall, doors, windows, etc. are be included.

AGREEMENT

(TO BE EXECUTED AT THE TIME OF DRAWING ADVANCE IN ACCORDANCE WITH MASTER CIRCULAR DMRC EMPLOYEES OWN YOUR HOUSE ADVANCE RULES)

AN AGREEMENT MADE ON THIS _____ day of _____ 20____ between _____, S/o/D/o/ Sh. _____, at Delhi, hereinafter called “the Borrower”, which expression shall unless excluded by or repugnant to the subject or context, include his/her heirs, executors, legal representatives and administrators) of the ONE PART

AND

the Managing Director, Delhi Metro Rail Corporation Limited, New Delhi, here in after called “the Management”, which expression shall unless excluded by or repugnant to the subject or context include his successors in office and assigns) of the OTHERPART.

(Each page of this Agreement shall be signed by the Borrower and the Management)

This Agreement is in accordance with “MASTER CIRCULAR DMRC EMPLOYEES OWN YOUR HOUSE ADVANCE RULES” as amended from time to time, hereinafter called “the Rules”.

The Rules detail a scheme, object whereof is to provide as a measure of welfare, assistance to the employees of Delhi Metro Rail Corporation Limited, hereinafter called “DMRC”, to own their own house or flat, preferably near to the work-site and/or near to a metro station.

WHEREAS the Borrower desires to do any one of the following:

- (i) Construct a new house including the acquisition of plot of land for the purpose of such construction.
- (ii) Purchase a ready-built house or ownership flat (which has not been lived in since its construction), offered for sale by a Government, semi-Government institution or an autonomous agency like Housing Board, Improvement Trust, Development Authority and Registered Co-operative Society etc..

Provided that the sale is not on hire purchase basis and further provided that the employee gets a clear title to the house/flat and has the right to mortgage it.

- (iii) Purchase a ready-built house or ownership flat (which has not been lived in since its construction), under self financing housing scheme implemented by a Government, semi-Government institution or an autonomous agency like Improvement Trust, Housing Board, and Development Authority etc..

Provided that no advance shall be granted towards initial payment of registration fee for purchase of ready-built houses or flats including those under a self-financing scheme.

- (iv) Purchase a flat in a construction-linked project of a duly registered builder having undisputable ownership of land and who has obtained all approvals for developing the township/group housing etc.
- (v) Purchase a ready-built house or ownership flat, other than those at (i)-(iv) above at the discretion of the competent authority and on proper valuation of the property by registered valuers (for which valuation fees shall be paid by the employee).

Provided that the house/flat is in good condition and constructed by agencies as defined in (i)-(iv) above and further provided that a certificate is to be furnished from the structural Engineer to the effect that the building is structurally safe and the life of the building is not less than 20 years from the date of the certificate.

Sanctioning of an advance under (v) shall be preceded by ascertaining the following facts:

- (a) The title of the land/house/flat should be valid.
- (b) The number and date of the building plan issued by the Municipal or other competent authority, by reference to the original plan.
- (c) The date of commencement of construction and the date of completion of the house/flat by reference to the completion certificate issued by the Municipal or other competent authority.

- (d) The tax bill and receipt issued by the Municipal or other competent authority. Information from the neighborhood or any other sources, if necessary.
- (vi) Enlarge the existing house owned by the Borrower.
- (vii) Repay the outstanding amount of a Housing Advance and interest thereon due to be paid to his former employer being the Government or PSU, by an employee of DMRC at the time of his permanent absorption in DMRC. In such cases, the outstanding principal and interest will be separately transferred on the principle of deemed continuity of service of the employee in DMRC.

WHEREAS such house or flat described in the Schedule annexed hereto shall hereinafter be called "the Said Property".

WHEREAS the Borrower has, under the provisions of the Rules, applied to the Management for an advance of Rs. _____ (Rs. _____ only) for one of the purposes in (i)-(vii) above and the Management has sanctioned an advance of Rs. _____ (Rs. _____ only) to the Borrower vide office order no HR _____ of dated _____ a copy whereof is annexed hereto as Annexure 1 to this Agreement for the purpose aforesaid on the terms and conditions set forth therein.

WHEREAS the mode of payment of advance shall be strictly governed by clause 10 of the Rules, which is non-derogable.

WHEREAS the Borrower should secure the repayment of the said advance by a first mortgage by deposit of title deeds in respect of the Said Property together with the building erected and/or to be erected thereon.

WHEREAS the Borrower shall duly observe all the terms and conditions of the Rules and orders that may be issued from time to time by the Management regulating the grant of house building advance.

It is hereby agreed by and between the parties as follows:

- (1) That in pursuance of the Rules and in consideration of the sum of Rs. _____ (Rs. _____ only) (the First Installment) to be paid by the Management after the execution of this Agreement; and the sum of Rs. _____ (balance amount to be paid) and / or such further additional advance or advances that may be granted by the Management to the Borrower as provided in the Rules, the Borrower and the Management hereby agree that:
From the date of the receipt of the First Installment, within such period of time as has been mandated by the Rules, the Borrower shall expend the First Installment in the purchase of the Said Property and complete the acquisition/redemption, as the case may be, of the said property and mortgage it to the Management.
Any failure on the part of the Borrower shall render him liable to refund forthwith the First Installment together with interest as per the Rules, to the Management, unless an extension of time is granted by the Management vide an office order.
- (2) That if the actual amount paid by the Borrower for the purchase of the said property is less than the amount received under this Agreement, then, the Borrower shall be liable to repay forthwith the difference to the Management.
- (3) To execute a mortgage deed whereby the Said Property shall be mortgaged to the Management as security for the amount advanced to the Borrower under this Agreement also for the interest payable for the said amount in the form provided by the Rules.

- (4) That in pursuance of the Rules and in consideration of the sum of Rs. _____ (Rs. _____ only) (the First Installment) to be paid by the Management after the execution of this Agreement; and the sum of Rs. _____ (balance amount to be paid) and / or such further additional advance or advances that may be granted by the Management to the Borrower as provided in the Rules, the Borrower and the Management hereby agree that: From the date of the receipt of the First Installment, within such period of time as has been mandated by the Rules, the Borrower shall expend the First Installment in the purchase of the Said Property and complete the acquisition/redemption, as the case may be, of the said property and mortgage it to the Management. Any failure on the part of the Borrower shall render him liable to refund forthwith the First Installment together with interest as per the Rules, to the Management, unless an extension of time is granted by the Management vide an office order.
- (5) That if the actual amount paid by the Borrower for the purchase of the said property is less than the amount received under this Agreement, then, the Borrower shall be liable to repay forthwith the difference to the Management.
- (6) To execute a mortgage deed whereby the Said Property shall be mortgaged to the Management as security for the amount advanced to the Borrower under this Agreement also for the interest payable for the said amount in the form provided by the Rules.

AND IT IS HEREBY AGREED AND DECLARED THAT if the Said Property is not purchased

Redeemed and mortgaged within three months of the disbursement of the advance or if the Borrower becomes insolvent or quits the service of DMRC or dies, the whole amount of advance together with the interest accruing thereon shall immediately become due and payable to the Management. Without prejudice to any other right and/or remedy of the Management, if any amount becomes refundable or payable by the Borrower to the Management, the Management will be entitled to recover the same by deducting from his pay, such amounts as it shall deem reasonable.

The Borrower's liability to repay the advance, together with the interest does not extinguish till the time the advance together with the interest thereon is not paid in full, in terms of Clause 16 of the Rules and such repayment is acknowledged in writing by the Management.

All words and expressions used in this Agreement and defined in the Rules, shall have the meanings respectively assigned to them in the Rules.

IN WITNESS WHEREOF, THE BORROWER has hereunto set his hand and the Management has caused _____ for and on behalf of the Management to set his hand on the day, month and year mentioned above.

Signed by the Borrower: _____

Name :

DesignationEmp.No.....

In the presence of

1stWitness_____ Address_____

2ndWitness_____Address_____

Signed by Shri/ Mrs Designation... of DMRC for and on behalf of
the Management (Not to be filled in by the employee himself).

In the presence of

Witness.....

Address.....

UNDERTAKING TO MORTGAGE

Pursuant to the Agreement dated____, hereinafter called “the Agreement”, in accordance with “MASTER CIRCULAR DMRC EMPLOYEES OWN YOUR HOUSE ADVANCE RULES” as amended from time to time, hereinafter called “the Rules”, in respect of such house or flat described in the Schedule annexed thereto, hereinafter called “the Said Property”, I:

1. Declare that there are no subsisting encumbrances or charges of any nature whatsoever, in respect of the Said Property, and that, till the time my liability to repay all the monies due or to become due from me to DMRC does not extinguish, in terms of Clause 15 of the Rules and such repayment is acknowledged in writing by the Management, the title of the Said Property shall vest in me and I shall be the sole and exclusive owner thereof.
2. Undertake that within 14 days of allotment under the Agreement, I shall execute a mortgage deed with Delhi Metro Rail Corporation Limited, hereinafter called “DMRC”, in terms of Form No. 8 or Form No, whichever is applicable, to secure the repayment of all the monies due or to become due from me to DMRC.
3. Undertake that till the time my liability to repay all the monies due or to become due from me to DMRC does not extinguish, in terms of Clause 16 of the Rules and such repayment is acknowledged in writing by the Management, I shall not create any third party right/rights whatsoever, or other mortgage or other charge or other encumbrance, inclusive of sale, exchange, lease or otherwise deal with or dispose of the Said Property.

Dated at.....this.....day of.....20

Borrower

Name_____Desig_____Emp No_____

In the presence of

1st Witness_____Address_____

2ndWitness_____Address_____

SURETY BOND (To be filled in Surety of Applicant)

(TO BE EXECUTED AT THE TIME OF DRAWING ADVANCE IN ACCORDANCE WITH MASTER CIRCULARON DMRC EMPLOYEES OWN YOUR HOUSE ADVANCE RULES)

Know ALLMEN BY THESE PRESENTS that I, _____ (Surety) resident of _____ in the District of _____ presently residing at _____ (hereinafter called “the Surety”) are held and firmly bound unto Delhi Metro Rail Corporation Limited (hereinafter called the “Corporation”

Name of Emp Sign of Surety

Sign of Witnesses

which successors in office and assigns in the sum of Rs. _____
(Rs. _____ only) to be paid to the Corporation FOR
WHICH PAYMENT to be well and truly made I hereby bind myself, my heirs, executors,
administrators and representatives firmly by these presents.

As witness my hand this _____(Date) day of _ (Month) Two thousand

_____ (To be filled at the time of issuance of office order)

WHEREAS Shri _____ (Borrower) S/o Sh _____ presently
employed as a permanent employee in Delhi Metro Rail Corporation whose Emp No is
' (hereinafter called "the Borrower").

WHEREAS in terms of Clause 11.2 of DMRC Employees Own Your House Advance
Rules, in the case of houses/flats under self-financing schemes, the amount shall be paid
in such installments and at such intervals as are laid down by the authority implementing
the scheme. Payment of first installment shall be made only after the prescribed agreement
in Form-4 and Surety Bond in Form-7 have been executed by the Borrower.

WHEREAS in terms of Clause 11.3 of DMRC Employees Own Your House Advance
Rules, in case of enlargement of existing houses, the payment shall be made in two or
three suitable installments after the prescribed agreement in Form 4 and Surety Bond in
Form-7 or supplementary agreement in Forms - 5 for the total amount including the
enhanced amount of House Building Advance, as the case may be, have been executed by
the Borrower.

WHEREAS in terms of Clause 11.5 of DMRC Employees Own Your House Advance
Rules, the entire amount of advance may be paid in lump sum in the case of purchase of a
ready-built house or flat, after the prescribed agreement in Form-4 and Surety Bond in
Form-7 have been executed by the Borrower.

WHEREAS Rule 10.2 of DMRC Employees Own Your House Advance Rules requires
that a surety bond in Form 7 shall be furnished by the Borrower from the Surety – a
regular employee of Corporation who has completed at least 3 years of service (including
service in the Central or a State Government Department or a Public Sector Undertaking
or a Government institution) and who is of a status equal to or higher than that of the
Borrower, before the sanctioned advance or any part thereof is disbursed.

WHEREAS in terms of Rule 10.2 of DMRC Employees Own Your House Advance Rules, the liability of the Surety will continue till the ready-built house/flat/plot of land/enlargement of existing house is mortgaged and original title deeds of property is received to Corporation or till the advance together with the interest due thereon is completely repaid, whichever event happens earlier.

WHEREAS in terms of Rule 10.2 of DMRC Employees Own Your House Advance Rules, if the Surety resigns or his services are terminated or any other event of this nature takes place, the Borrower shall provide a substitute surety.

WHEREAS in terms of Rule 10.2 of DMRC Employees Own Your House Advance Rules, the Surety cannot stand surety for more than two cases of Housing Advance.

WHEREAS in such cases of default, as detailed in Clause 16.4 of DMRC Employees Own Your House Advance Rules, if the amount realized by the sale of the property is not sufficient to cover the amount outstanding as balance due to Corporation, Corporation shall be entitled to proceed against the Surety for the recovery of the amount, which falls short, to make good the difference.

AND WHEREAS the Corporation sanctioned the payment of Rs. _____(Rs. _____**only**) under the rules framed by the Corporation to regulate the grant of advance to DMRC employees for the purchase of ready-built house/flat/plot of land/enlargement of existing house.

AND WHEREAS in consideration of the Corporation having agreed to grant the aforesaid advance to the Borrower the Surety has agreed to execute the above bond with such condition as hereunder is written.

NOW THE CONDITION OF THE OBLIGATION is such that if the said Borrower shall while employed in the said Office, duly and regularly pay or cause to be paid to the Corporation the amount of aforesaid advance owing to the Corporation by installments until the said sum of Rs. _____(Rs. _____**only**) shall be duly paid to the Corporation, then this bond shall be terminated, otherwise the same shall be and remain in full force and virtue BUT SO NEVERTHELESS that if the borrower shall die or become insolvent or at any time cease to be in the service of the Corporation, the whole or so much of the said principal sum of Rs. _____(Rs. _____**only**) together with the interest, as shall then remain unpaid shall immediately become due and payable to the Corporation and recoverable from the Sureties in one installment by virtue of this bond.

The obligation undertaken by the Surety shall not be discharged or in any way affected by an extension of time or any other indulgence granted by the Corporation to the said Borrower.

The stamp duty in respect of these presents shall be borne and paid by the borrower.

Signed and delivered by
the said _____at
Delhi

Surety given: 1sttime:___/2nd time:___
_____(Tick whichever is applicable)

Sign of Emp	Sign	of
Surety	Sign	of
Witnesses		

(An employee can give a maximum of two sureties only. and should keep a record of the same)

Sign of Surety with Name and Emp No -----

In the presence of

1st witness Address Occupation

DMRC Emp No

2nd Witness Address Occupation

DMRC Emp No

(For office use only & not to be filled in by the employee)

Signed by Shri. _____ of DMRC for and on behalf of the
Managing

Director.

In the presence of 1st Witness

Address Occupation

DMRC Emp No

2nd Witness Address Occupation

DMRC Emp No

Sign of Emp

Sign of Surety

Sign of Witnesses

Encl: Current Salary Slips of Borrower, Both Sureties duly self attested AND photocopies of I - Cards of both sureties.

MORTGAGE DEED

(TO BE EXECUTED WHEN THE PROPERTY IS FREEHOLD)

Pursuant to the Agreement dated _____, hereinafter called “the Agreement”, in accordance with “MASTER CIRCULAR DMRC EMPLOYEES OWN YOUR HOUSE ADVANCE RULES” as amended from time to time, hereinafter called “the Rules”, in respect of such house or flat described in the Schedule annexed thereto, hereinafter called “the Said Property”,

(Form 8, 2/5)

THIS INDENTURE IS MADE ON THIS day of 20 between Sh
_____ S/D/o Sh. _____, hereinafter called “the Mortgagor”, which expression shall, unless excluded by or repugnant to the subject or context, include his/her heirs, executors, legal representatives and administrators of the FIRST PART and Delhi Metro Rail Corporation Limited, hereinafter called “the Mortgagee”, which expression shall, unless excluded by or repugnant to the subject or context, include its successors in office and assigns) of the SECOND PART.

WHEREAS there are no subsisting encumbrances or charges of any nature whatsoever, in respect of the Said Property.

WHEREAS the Mortgagor is the absolute and sole beneficial owner and is seized and possessed of or otherwise sufficiently entitled to the Said Property.

NOW THIS INDENTURE WITNESSETH as follows:

- (i) The Mortgagor hereby covenants with the Mortgagee that the Mortgagor shall always duly observe and perform all the terms and conditions of the Rules and shall repay the Mortgagee the said advance of Rs. _____ (Rs. _____ only) from the pay of the Mortgagor, commencing from the month of . 20 , or from the month following the completion of the Said Property, whichever is earlier, and the Mortgagor hereby authorizes the Mortgagee to make deductions from his monthly pay/leave salary/subsistence allowance of the amount of such installments and the Mortgagor shall after paying the full amount of the advance also pay interest due there on in _____ monthly installments in the manner and on the terms specified in the Rules.
- Provided that the Mortgagor shall repay the entire advance with interest in full before the date on which he is due to retire from service, failing which the Mortgagee shall be entitled to enforce the security of the Mortgagee at any time thereafter and recover the balance of the advance then due together with interest and costs of recovery by sale of the Said Property or in such other manner as may be permissible under the law. It will however be open to the Mortgagor to repay the amount in a shorter period.

- (ii) If the Mortgagor shall utilize the advance for a purpose other than that for which the advance is sanctioned or if the Mortgagor shall become insolvent or shall cease to be in service for any reason other than normal retirement, superannuation or if he dies before the repayment of the advance in full, or if the Mortgagor shall fail to observe or perform any of the terms, conditions and stipulations specified in the Rules and on his part to be observed and performed, then and in any such case, the whole of the principal amount of the advance or so much thereof as shall then remain unpaid and due shall become payable forthwith to the Mortgagee with interest thereon at__per annum calculated from the date of the payment by the Mortgagor of the first installment of the said advance

Notwithstanding anything contained herein, if the Mortgagor utilizes the advance for a purpose other than that for which the advance is sanctioned, it shall be open to the Mortgagee to take such disciplinary action against the Mortgagor as may be appropriate under the Rules of Service applicable to the Mortgagor.

- (iii) In further pursuance of the Rules and for the consideration aforesaid and to secure repayment of the aforesaid advance and interest as shall at any time or times hereinafter be due to the Mortgagee under the terms of this deed, hereinafter called "this Deed", the Mortgagor hereby grants, conveys, transfers, assigns and assures unto the Mortgagee ALL AND SINGULAR the Said Property together with buildings erected or to be erected by the Mortgagor on the Said Property or materials for the time being thereon with all rights, easements and appurtenances to the Said Property with their appurtenances including all erections and buildings erected and built or to be erected and built here after on the Said Property or materials for the time being thereon unto and to the use of the Mortgagee absolutely forever, free from all encumbrances SUBJECT NEVERTHELESS to the provision for redemption hereinafter contained.
- (iv) It is hereby agreed and declared by and between the parties that if the Mortgagor shall duly pay to the Mortgagee the said principal sum and interest thereby secured in the manner herein provided and also any further additional advance determined to be payable by the Mortgagor to the Mortgagee under the terms and conditions of the Rules, then the Mortgagee will at any time thereafter upon the request and at the cost of the Mortgagor, recover, retransfer and reassure the Said Property unto and to the use of the Mortgagor or as he may direct within eighteen months from _____20 , unless an extension of time is allowed in writing by the Mortgagee. In case of default, the Mortgagor shall be liable to repay forthwith the entire amount of advance as has been utilized for the purpose for .
- (v) AND IT IS HEREBY EXPRESSLY AGREED AND DECLARED that if there shall be any breach by the Mortgagor of the covenants on his part herein contained or if the Mortgagor becomes insolvent or ceases to be in service for any reason other than normal retirement/superannuation or if he dies before all the dues payable to the Mortgagee under this Deed together with interest thereon have been fully paid off or if the said advance or any part thereof becomes payable forthwith under this Deed or otherwise, then and in any such case it shall be lawful for the Mortgagee to sell the Said Property or any part thereof either together or in parcels and either by public auction or by private contract with power to buy in or rescind any contract for sale and to resell without being responsible for any loss which may be occasioned thereby and to do and execute all such acts and assurances for effectuating any such sale as the Mortgagee shall think fit and it is hereby declared that the receipts of the Mortgagee for the purchase money of the premises sold or any part there of shall effectually discharge the purchaser or purchasers there from and it is hereby declared that the Mortgagee shall hold the monies to arise from any sale in pursuance of the aforesaid power UPON TRUST in the first place there out to pay all the expenses incurred on such sale and then to pay monies in or towards the satisfaction of the monies for the time being owing on the security of this Deed and the balance if any to be paid to the Mortgagor.

The MORTGAGOR hereby covenants with the MORTGAGEE as follows:

- a) That the Mortgagor now has in him good right and lawful authority to grant, convey, transfer, assign and assure the Said Property unto and to the use of the Mortgagor in the manner aforesaid.
 - b) That the Mortgagor shall carry out the construction of the Said Property/additions to living accommodation in the aforesaid, exactly in accordance with the approved plan and specifications on the basis of which the above advance has been computed and sanctioned unless a departure there from is permitted by the Mortgagee. The Mortgagor shall certify, when applying for installments of advance admissible at the plinth/roof level, that the construction is being carried out in accordance with the plan and estimates furnished by him to the Mortgagee, that the construction has reached plinth/roof level and that the amount already drawn out of the sanctioned advance has actually been used on the construction of the Said Property. He will allow the Mortgagee to carry out either by himself or through his representative an inspection to verify the correctness of the aforesaid certificates. If a false certificate is furnished by the Mortgagor he will be liable to pay to the Mortgagee forthwith the entire advance received by him together with interest thereon at percent per annum and further will also be liable to such disciplinary action as may be permissible under the rules of service as applicable to the Mortgagor.
 - c) That the Mortgagor shall insure the Said Property within 1 month of the completion of the construction or purchase of the Said Property, as the case may be, at his own cost, with an Insurance Corporation for a sum of not less than the amount of the aforesaid advance and shall keep it so insured against loss or damage by fire, flood and lightning as provided in the Rules till the advance is fully repaid to the Mortgagee and deposit the policy of insurance with the Mortgagee. The Mortgagor shall pay regularly the premium in respect of the said insurance from time to time and will when required produce to the Mortgagee the premium receipts for inspection. In the event of failure on the part of the Mortgagor to effect the insurance against fire, flood and lightning, it shall be lawful but not obligatory for the Mortgagee to insure the Said Property at the cost of the Mortgagor and add the amount of the premium to the outstanding amount of the advance and the Mortgagor shall thereon be liable to pay interest thereon as if the amount of the premium had been advanced to him as part of the aforesaid advance at___till the amount is repaid to the Mortgagee or is recovered as if it were an amount covered by the security of this Deed. The Mortgagor shall give a letter to the Mortgagee as often as required, addressed to the Insurer, with which the Said Property is insured with a view to enable the Mortgagee to notify to the Insurer the fact the Mortgagee is interested in the Insurance Policy secured.
- (vi) That the Mortgagor shall maintain the Said Property in good repair at his own cost and shall pay all the Municipal and other local rates, taxes and all other outgoings in respect of the Said Property regularly until the advance has been repaid to the Mortgagee in full. The Mortgagor shall also furnish to the Mortgagee an annual certificate to the above effect.

- (vii) The Mortgagor shall afford full facility to the Mortgagee for carrying out inspections after completion of the Said Property to ensure that it is maintained in good repair until the advance has been repaid in full.
- (viii) The Mortgagor shall not, during the continuance of this Deed, charge, encumber, alienate or otherwise dispose of the Said Property.
- (ix) Notwithstanding anything contained herein, the Mortgagee shall be entitled to recover the balance of the advance with interest remaining unpaid at the time of his retirement or death preceding retirement to enforce the security of the Mortgagee at any time thereafter and recover the balance of the advance due together with interest and cost of recovery by sale of the flat etc. or in such other manner as may be permissible under the law.

In Witness whereof the Mortgagor has hereunto set his hand and the MD/DMRC has caused Shri/Smt _____ in the office of _____ for and on his behalf to set his hand hereunto the day and year first above written.

Signed by the said Mortgagor: -----

Name _____ Design. _____ Emp.no. _____

In the presence of

1stWitness

Address _____ Occupation _____

2ndWitness

Address _____ Occupation _____

Signed by Shri/Mrs. _____, Designation _____ of DMRC for and on behalf of the Managing Director DMRC. (Not to be filled in by the employee himself)

In the presence of

1stWitness _____ Address _____ Occupation _____

2ndWitness _____ Address _____ Occupation _____

MORTGAGE DEED

(TO BE EXECUTED WHEN THE PROPERTY IS LEASEHOLD)

Pursuant to the Agreement dated _____, hereinafter called "the Agreement", in accordance with "MASTER CIRCULAR DMRC EMPLOYEES OWN YOUR HOUSE ADVANCE RULES" as amended from time to time, hereinafter called "the Rules", in respect of such house or flat described in the Schedule annexed thereto, hereinafter called "the Said Property",

(Form 9, 2/5)

THIS INDENTURE IS MADE ON THIS day ____ of ____ 20 between Sh____
_____/S/o _____ hereinafter called "the Mortgagor", which expression shall, unless excluded by or repugnant to the subject or context, include his/her heirs, executors, legal representatives and administrators of the FIRST PART and Delhi Metro Rail Corporation Limited, hereinafter called "the Mortgagee", which expression shall, unless excluded by or repugnant to the subject or context, include its successors in office and assigns) of the 2nd PART

WHEREAS by a lease deed dated _____ hereinafter called "the said Lease", and made between _____ hereinafter called "the Lessor" and the Mortgagor, the Lessor demised the Said Property to the Mortgagor for a term of ____ years on a yearly/monthly rent of Rs. _____ and subject to the performance and observance of the covenants and conditions therein mentioned.

NOW THIS INDENTURE WITNESSETH as follows:

1. The Mortgagor hereby covenants with the Mortgagee that the Mortgagor shall always duly observe and perform all the terms and conditions of the Rules and shall repay the Mortgagee the said advance of Rs. _____ (Rs. _____ only) from the pay of the Mortgagor, commencing from the month of ____ 20, or from the month following the completion of the Said Property, whichever is earlier, and the Mortgagor hereby authorizes the Mortgagee to make deductions from his monthly pay/leave salary/subsistence allowance of the amount of such installments and the Mortgagor shall after paying the full amount of the advance also pay interest due there on in monthly installments in the manner and on the terms specified in the Rules.

Provided that the Mortgagor shall repay the entire advance with interest in full before the date on which he is due to retire from service, failing which the Mortgagee shall be entitled to enforce the security of the Mortgagee at any time thereafter and recover the balance of the advance then due together with interest and costs of recovery by sale of the Said Property or in such other manner as may be permissible under the law. It will however be open to the Mortgagor to repay the amount in a shorter period.

- 2 If the Mortgagor shall utilize the advance for a purpose other than that for which the advance is sanctioned or if the Mortgagor shall become insolvent or shall cease to be in service for any reason other than normal retirement, superannuation or if he dies before the repayment of the

advance in full, or if the Mortgagor shall fail to observe or perform any of the terms, conditions and stipulations specified in the Rules and on his part to be observed and performed, then and in any such case, the whole of the principal amount of the advance or so much thereof as shall then remain unpaid and due shall become payable forthwith to the Mortgagee with interest thereon at_ per annum calculated from the date of the payment by the Mortgagor of the first installment of the said advance.

Notwithstanding anything contained herein, if the Mortgagor utilizes the advance for a purpose other than that for which the advance is sanctioned, it shall be open to the Mortgagee to take such disciplinary action against the Mortgagor as may be appropriate under the Rules of Service applicable to the Mortgagor.

(Form 9, 3/5)

- 3 In further pursuance of the Rules and for the consideration aforesaid and to secure repayment of the aforesaid advance and interest as shall at any time or times hereinafter be due to the Mortgagee under the terms of this deed, hereinafter called "this Deed", the Mortgagor hereby grants, conveys, transfers, assigns and assures unto the Mortgagee ALL AND SINGULAR the Said Property together with buildings erected or to be erected by the Mortgagor on the Said Property or materials for the time being thereon with all rights, easements and appurtenances to the Said Property with their appurtenances including all erections and buildings erected and built or to be erected and built here after on the Said Property or materials for the time being there on unto and to the use of the Mortgagee absolutely forever, free from all encumbrances SUBJECT NEVERTHELESS to the provision for redemption hereinafter contained.
- 4 It is hereby agreed and declared by and between the parties that if the Mortgagor shall duly pay to the Mortgagee said principal sum and interest hereby secured in the manner herein provided and also any further additional advance determined to be payable by the Mortgagor to the Mortgagee under the terms and conditions of the Rules, then the Mortgagee will at any time thereafter upon the request and at the cost of the Mortgagor, recover, retransfer and reassure the Said Property unto and to the use of the Mortgagor or as he may direct within eighteen months from 20unless extension of time is allowed in writing by the Mortgagee. In case of default, the Mortgagor shall be liable to repay forthwith the entire amount of advance as has been utilized for the purpose for
- 5 AND IT IS HEREBY EXPRESSLY AGREED AND DECLARED that if there shall be any breach by the Mortgagor of the covenants on his/her part here in contained or if the Mortgagor becomes insolvent or ceases to be in service for any reason other than normal retirement/superannuation or if he dies before all the dues payable to the Mortgagee under this Deed together with interest there on have been fully paid off or if the said advance or any part there of becomes payable forthwith under this Deed or other wise ,then and in any such case it shall be lawful for the Mortgagee to sell the Said Property or any part here of either together or in parcels and either by public auction or by private contract with power to buy in or rescind any contract for sale and to resell without being responsible for any loss which may be occasioned thereby and to do and execute all such acts and assurances for effectuating any such sale as the Mortgagee shall think fit and it is hereby declared that the receipts of the Mortgagee for the purchase money of the premises sold or any part there of shall effectually discharge the purchaser or purchasers there from and it is hereby declared that the Mortgagee shall hold the monies to arise from any sale in pursuance of the aforesaid power UPON TRUST in the first place thereout

to pay all the expenses incurred on such sale and then to pay monies in or towards the satisfaction of the monies for the time being owing on the security of this Deed and the balance if any to be paid to the Mortgagor

The MORTGAGOR hereby covenants with the MORTGAGEE as follows:

- i. .
- a) That the Mortgagor now has in him good right and lawful authority to grant, convey, transfer, assign and assure the Said Property unto and to the use of the Mortgagor in the manner aforesaid.

- b) That the Mortgagor shall carry out the construction of the Said Property/additions to living accommodation in the aforesaid, exactly in accordance with the approved plan and specifications on the basis of which the above advance has been computed and sanctioned unless a departure there from is permitted by the Mortgagee. The Mortgagor shall certify, when applying for installments of advance admissible at the plinth/roof level, that the construction is being carried out in accordance with the plan and estimates furnished by him to the Mortgagee, that the construction has reached plinth/roof level and that the amount already drawn out of the sanctioned advance has actually been used on the construction of the Said Property. He will allow the Mortgagee to carry out either by himself or through his representative an inspection to verify the correctness of the aforesaid certificates. If a false certificate is furnished by the Mortgagor he will be liable to pay to the Mortgagee forthwith the entire advance received by him together with interest thereon at percent per annum and further will also be liable to such disciplinary action as may be permissible under the rules of service as applicable to the Mortgagor.
- c) That the Mortgagor shall insure the Said Property within 1 month of the completion of the construction or purchase of the Said Property, as the case may be, at his own cost, with an Insurance Corporation for a sum of not less than the amount of the aforesaid advance and shall keep it so insured against loss or damage by fire, flood and lightning as provided in the Rules till the advance is fully repaid to the Mortgagee and deposit the policy of insurance with the Mortgagee.
- d) The Mortgagor shall pay regularly the premium in respect of the said insurance from time to time and will when required produce to the Mortgagee the premium receipts for inspection. In the event of failure on the part of the Mortgagor to effect the insurance against fire, flood and lightning, it shall be lawful but not obligatory for the Mortgagee to insure the Said Property at the cost of the Mortgagor and add the amount of the premium to the outstanding amount of the advance and the Mortgagor shall thereon be liable to pay interest thereon as if the amount of the premium had been advanced to him as part of the aforesaid advance until the amount is repaid to the Mortgagee or is recovered as if it were an amount covered by the security of this Deed. The Mortgagor shall give a letter to the Mortgagee as often as required, addressed to the Insurer, with which the Said Property is insured with a View to enable the Mortgagee to notify to the Insurer the fact the Mortgagee is interested in the Insurance Policy secured.
- e) That the Mortgagor shall maintain the Said Property in good repair at his own cost and shall pay all the Municipal and other local rates, taxes and all other outgoings in respect of the Said Property regularly until the advance has been repaid to the Mortgagee in full. The Mortgagor shall also furnish to the Mortgagee an annual certified to the above effect.
- f) The Mortgagor shall afford full facility to the Mortgagee for carrying out inspections after completion of the Said Property to ensure that it is maintained in good repair until the advance has been repaid in full.
- g) That the said Lease is now a valid and subsisting lease in respect of the Said Property and is in no way void or voidable. The rents, the covenants and conditions

in and by the said Lease reserved have been paid, performed and observed up to the date of this Deed and that the same is assignable in the manner hereinbefore stated.

- h) That the Mortgagor will, so long as any money shall remain owing on security of the Said Property hereinbefore expressed to be hereby assigned and, in any case for the period of the said Lease, duly observe all the covenants and the conditions contained in the said Lease and keep the Mortgagee indemnified against all actions, suits, proceedings, costs, charges, claims and demands which will be incurred or sustained by reasons of the non- payment of the said rent or the breach, non-performance, non-observance of the said covenants and conditions or any of them.
- g) The Mortgagor shall not, during the continuance of this Deed, charge, encumber, alienate or otherwise dispose of the Said Property.
- j) Notwithstanding anything contained herein, the Mortgagee shall be entitled to recover the balance of the advance with interest remaining unpaid at the time of his retirement or death preceding retirement to enforce the security of the Mortgagee at any time thereafter and recover the balance of the advance due together with interest and cost of recovery by sale of the flat etc. or in such other manner as may be permissible under the law.

In Witness whereof the Mortgagor has hereunto set his hand and the MD/DMRC has caused Shri/Smt _____ in the office of _____ for and on his behalf to set his hand hereunto the day and year first above written.

Signed by the said Mortgagor: -----

Name _____ Design. _____ Emp.no. _____

In the presence of:

1stWitness: _____

Address _____ Occupation _____

2ndWitness _____

Address _____ Occupation _____

Signed by Shri/Mrs. _____, Designation _____ of DMRC for and on behalf of the Managing Director DMRC. (Not to be filled in by the employee himself)

In the presence of

1stWitness _____ Address _____ Occupation _____

2ndWitness _____ Address _____ Occupation _____

FORM NO.10

Form of letter for intimating the Insurance Corporation of the Corporation's interest in the Insurance Policies of houses/flats constructed/purchased with the House Building Advance granted under the Rules From _____ to _____ (Through the Managing Director/DMRC)

Dear Sir,

I am to inform you that Delhi Metro Rail Corporation Ltd. is interested in House Insurance Policy No. _____. Kindly insert a clause to the following effect in the Policy:

Form of clauses to be inserted in the Insurance Policy:

1. It is hereby declared and agreed that Sh. _____ (the owner of Building having Municipal No. ____ (hereinafter referred to as the insured in the schedule to this policy) has mortgaged to Delhi Metro Rail Corporation Ltd. (hereinafter called the Corporation) as security for an advance for the construction of the house and it is further declared and agreed that the Corporation is interested in any moneys which but for this endorsement be payable to the said Sh. _____ in respect of loss or damage to the said house (which loss or damage is not made good by repair, reinstatement or replacement) and such moneys shall be paid to the Corporation as long as it is the mortgagee of the house and its receipt shall be full and final discharge to the Corporation in respect of such loss of damage.
2. Save as by this endorsement expressly agreed, nothing herein shall modify or affect the rights or liabilities of the insured or the Corporation respectively, under or in connection with this policy or any term, provision or condition thereof.

Yours faithfully,

Name: _____

Design: _____ Emp.No. _____

Place Date

Forwarded. The receipt of this letter may kindly be acknowledged. It is also requested that the undersigned may kindly be informed whenever any claim is paid under the policy and also if the premium is not paid periodically for renewal.

Place:

Designation

Date

RECONVEYANCE FOR HOUSE BUILDING ADVANCES

THIS DEED OF RECONVEYANCE IS MADE THIS _____ day of _____ 20 _____ between the Managing Director, Delhi Metro Rail Corporation Limited, New Delhi, (hereinafter called the Mortgagee which expression shall unless excluded by or repugnant to the subject or context include his successors in office and assigns) of the ONE PART and _____ of _____ (hereinafter called the Mortgagor which expression shall unless excluded by or repugnant to the subject or context include his/her heirs, executors, administrators and assigns) of THE OTHER PART.

WHEREAS by an indenture of Mortgage, dated the _____ day of Two thousand _____ Mortgagor of the ONE PART AND MORTGAGE OF THE OTHER PART and registered at _____ in Book _____ Volume for _____ (hereinafter called the PRINCIPAL INDENTURE). The Mortgagor by the said particularly described in the schedule hereunder written to the Mortgagee to secure an advance of Rs. _____ made by the Mortgagee to the Mortgagor.

AND

WHEREAS ALL MONEYS due and owing on the security of the PRINCIPAL INDENTURE having been fully paid and satisfied and the Mortgagee has accordingly at the request of the Mortgagor agreed to execute a reconveyance of the Mortgaged premises as is hereinafter contained.

NOW THIS INDENTURE WITNESSETH that in pursuance of the said agreement and in consideration of the premises the Mortgagee doth hereby grant, assign and reconvey unto the Mortgagor, all THAT THE Piece of land situated at _____ and comprised in the said PRINCIPAL INDENTURE and more particularly described in the schedule hereunder written with their rights, easements and appurtenances as in the PRINCIPAL INDENTURE expressed and all the estates right, title, interest, property, claim and demand whatsoever of the Mortgagee into, out of or upon the said premises by virtue of the PRINCIPAL INDENTURE to have and to hold the premises hereinbefore expressed to be hereby granted, assigned and re-conveyed unto and to the use of the Mortgagor, for ever freed and discharged from all moneys intended to be secured by the said PRINCIPAL INDENTURE and from all actions, suits, accounts, claims and demands for, or in respect of, the said moneys or any part thereof, or, for or in respect of, the PRINCIPAL INDENTURE OR of anything relating to the premises AND THE mortgagee hereby covenants with the Mortgagor that Mortgagee has not done or knowingly suffered or

been party or privy to anything whereby the said premises or any part thereof, are, is or can be impeached, encumbered or affected in title estate or otherwise however.

IN WITNESS WHEREOF the Mortgagee has caused Shri _____ on his behalf to set his hand the day, month and year first above written.

SCHEDULE ABOVE REFFERRED TO

Signed by Shri _____ for and on behalf of the Mortgagee in the presence of _____

In the presence of

1st Witness _____

Address _____

Occupation _____

2nd Witness _____

Address _____

Occupation _____

TRIPARTITE AGREEMENT

This agreement is made and executed here at Metro Bhawan, Barakhamba Road, New Delhi-110001 on this -----day of _____20____ between Shri/Smt _____, son /daughter/wife of Shri/Smt _____, DMRC Emp No----- (hereinafter called the “**Borrower**” which term so far as the context admits shall mean and include his/her heirs, executors, successors, administrators and legal representatives of the First Part and

-----,
a company registered under the companies act, 1956 having its registered office at

through Sh ----- S/o, D/o/ W/o
Sh-----, R/o
-----, authorized
signatory who has been appointed to sign this document vide POA/ Resolution dated
-----hereinafter referred to as the “**BUILDER**” (which expression shall unless
the context otherwise requires, include its successors and permitted assigns) of the Second
part and

M/S Delhi Metro Rail Corporation Ltd, New Delhi, a company incorporated under companies act, 1956 with its Registered Office at Barakhamba Road, Connaught Place, New Delhi hereinafter referred to as the “**DMRC**” (which expression shall unless the context otherwise requires, include its successors and permitted assigns) of the Third Part.

WHEREAS the Borrower has represented that the Builder is of his choice and that he/she has satisfied himself with regard to integrity, capability for quality construction of the Builder and the Builder’s ability for timely completion and on time delivery of the Project;

AND WHEREAS, as part of its business activity, builder has developed the project
----- situated at

----- (hereinafter
referred to as the “**PROJECT**”);

AND WHEREAS the Builder has invited applications for allotment by sale of residential apartments

------(Address of apartment) in the said project and the Borrower and the Builder have jointly approached DMRC for a Loan of ₹ ----- towards payment of the sale / purchase consideration of the residential apartment in the Project;

AND WHEREAS the Borrower has agreed to secure DMRC with the said residential apartment under finance by way of mortgage of all the rights, title, benefits that would accrue from the said residential apartment till the currency and term of the said loan to be advanced/ advanced. The Builder also agrees and confirms that they shall take note of the said mortgage created by the Borrower and undertake not to create any third party rights or security interest of any sort whatsoever on the said flat without the prior written consent of DMRC;

AND WHEREAS based on several representations made by the Borrower and the same being acknowledged and consented to by the Builder, the Lender M/S DMRC granted a loan of ₹ ----- (₹ ----- only) to the Borrower, in terms of the Loan Agreement dated ----- (hereinafter referred to as the "Loan Agreement") duly executed by the Borrower;

AND WHEREAS DMRC based on such requests and representation, shall make disbursement periodically as the stage of construction may warrant as assessed by DMRC which decision being full and final, which factor is hereby confirmed and acknowledged by the Borrower and the Builder herein;

AND WHEREAS DMRC has considered the said request with a clear understanding and an irrevocable undertaking by the Borrower that subsequent to the disbursements as requested by the Borrower, there would be no repayment default for any reason whatsoever including but not limited to any concern/issues by and between the Borrower and the Builder/Developer and that such disbursements shall be in accordance with the stage of construction as assessed by DMRC in its sole discretion;

AND WHEREAS the Borrower has represented, and such representation being a continuing representation, that Borrower's obligation to repay the Loan shall be a distinct and independent obligation more particularly independent of any issues/concern/dispute of whatsoever nature between the Borrower and Builder;

AND WHEREAS one of the conditions for DMRC sanctioning the said Loan to the Borrower was that the understanding as stipulated in the recitals above shall be reduced and recorded in writing with an understanding and intent of making the same irrevocable, binding and enforceable by and between the Borrower and the Builder such time this

formality is complied with to the satisfaction of the DMRC and documents in evidence thereof are delivered to DMRC, there will be no disbursement pursuant to the Loan Agreement;

AND WHEREAS in consideration of DMRC agreeing to give loan to the Borrower, all the Parties have agreed as under.

NOW THEREFORE IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES THAT:

1. The foregoing recitals as mentioned above are incorporated herein by this reference and constitute an integral part of this Agreement.
2. The housing loan advanced to the borrower by DMRC shall be subject to the borrower's repayment capacity as assessed by DMRC and shall be secured against the first and exclusive mortgage of the residential apartment to be acquired in the Project in favour of DMRC.
3. The housing loan advanced to the borrower by DMRC shall be repayable by the borrower by way of Equated Monthly Instalments (EMI) and is recoverable w.e.f. the pay of the month following that in which the advance is drawn. Principal amount would be recovered first and thereafter the interest accrued thereon. Balance if any, would be recovered from his/her settlement of dues at the time of superannuation/ retirement. Principal amount @ ₹-----per month would be recovered in ----- equal monthly instalments and thereafter the interest accrued thereon in equal monthly instalment. In the extant case ₹-----per month in ---- equal monthly Instalments would be recovered.
4. That irrespective of the stage of construction of the Project and irrespective of the date of handing over the possession of the residential apartment to the Borrower by the Builder, the Borrower shall have the paramount obligation and shall be liable to pay DMRC regularly each month the EMIs / Pre-EMIs as laid down in the Loan Agreement signed by and between DMRC and the Borrower. The Borrower shall execute an indemnity and such other documents as may be required by DMRC in its favour in this regard.
5. That DMRC shall disburse the Loan as the stages of construction of the Project may warrant as assessed by DMRC in its sole discretion and such decision being full and final.

6. That the Borrower shall ensure to pay to the Builder his own contribution in full i.e the cost of the flat minus the loan amount being disbursed by DMRC before availing of the full disbursement of the Loan from DMRC.

7. That DMRC shall at the request of the Borrower disburse the part sale consideration to the Borrower by way of cheque drawn in favour of the Builder. Any balance payment or any payment towards escalation towards the cost of the residential apartment shall be made by the Borrower himself to the Builder.

8. That the builder shall get the property insured against the force majeure events i.e. fire, lightening, riot, and earthquake. In case of eventuality i.e. loss of property, builder shall refund the amount in favour of DMRC.

9. That the Builder shall not hand over the actual and physical possession of the said flat/residential apartment to the Borrower before execution and registration of the said deed and the original registered sale deed shall be submitted to DMRC directly by the Builder to be kept by DMRC towards security for the said loan.

10. That if the Borrower is ceased to be an employee of M/S DMRC Ltd or fails to pay the balance amount representing the difference between the loan sanctioned by DMRC and the actual purchase price of the flat/residential apartment, or in the event of death of the Borrower or in the event of cancellation of the residential apartment for any reason whatsoever the entire amount advanced against the flat will be refunded by the Builder to DMRC forthwith. The Borrower hereby subrogates all its rights for refund with respect to the said residential apartment in favour of DMRC.

11. Further if the Borrower commits a breach of any of the terms and conditions of this Tripartite Agreement it shall be treated as an event of default under the Agreement for Sale / Allotment cum Agreement for sale or any such agreement or document signed by and between the Borrower and the Builder for the sale of the said residential apartment, and in that case the builder shall refund entire amount advanced against the flat to DMRC.

That in the event of occurrence of default under the Loan Agreement which would result in the cancellation of the Allotment as a consequence thereof and/or for any reason whatsoever if the allotment is cancelled, or in the event of the Borrower requesting for the cancellation of the allotment of the Residential Unit in his favour, the consideration received by the Builder shall be refunded to M/S DMRC Ltd.

However it is further agreed between the Parties that such payment made by the Builder directly to DMRC shall not absolve the Borrower from his liability to pay the residual amount, if any, from the outstanding under the Loan Agreement.

That the Borrower agrees that it unconditionally and irrevocable subrogates its right to receive any amount payable by the Builder to the Borrower in the event of cancellation in favour of DMRC and that the act of payment by the Builder to DMRC under this clause shall amount to a valid discharge of the Builder of its obligation to pay the Borrower such cancellation amount.

Further that the parties agree that the Builder shall in no circumstances forfeit any amount over and above the amount equivalent to the Borrowers contribution towards the purchase consideration paid to the Builder. Borrower's contribution for the purposes of this clause shall mean and include the difference between the total cost of the residential apartment and the Loan amount as mentioned above.

12. Further, the Builder, in the in the event of default of repayment as mentioned in clause 2 and 3 hereinabove, shall on intimation by DMRC cancel the allotment of the residential apartment in favour of the borrower and refund all amount to DMRC directly under intimation to the borrower for appropriation and adjustment by DMRC against all money due to it from the Borrower as mentioned above.

13. The Builder also confirms and undertakes that it shall submit to DMRC all documents for the Project as requested by DMRC and shall keep DMRC informed of the progress of the project and shall obtain a clearance from DMRC before handing over possession of the respective apartment to the borrower.

Signed and Delivered by the within-named Borrower

By the hand of Mr./Ms. _____ DMRC Emp No _____ Sign ____

Signed and Delivered by

By the hand of Mr./Ms. _____ Its
_____ Sign ____

Signed and delivered by the within-named **FOR** Delhi Metro Rail Corporation Limited

By the hand of Mr./Ms. _____ Emp.No. _____ Sign ____

HBA Record Sheet			File No. (To be Filled by HR Asstt)		
	Name of Employee				
	Designation				
	Emp No				
	Home Town Address				
	Mobile No/ Alternate No (Mention Both)	1- 2-			
	Property Details				
	Purchased From				
	Expected Date of Possession				
	If swapping, swapped from				
	Property Insured or Not & Date of Insurance				
	Sanctioned Amount & Rate of Interest	₹	Up To ₹ 12,00,000/ - 5%	> ₹ 12,00,001/- < ₹ 15,00,000/- 7.5%	> ₹ 15,00,001/- < ₹ 40,00,000/- 9%
	Office Order No and Date of Order				
	Name of First Surety & Emp No				
	Home Town Address of First Surety				
	Name of Second Surety & Emp No				
	Home Town Address of Second Surety				
	File Location	Xerox Papers		Original Papers	

	Original Documents Submitted	See back side of this Sheet (Annexure-A)		
	Payments Released	Sr. No	Date of Release	Amount Released
		1.		₹
		2.		₹
		3.		₹
		4.		₹
		5.		₹
	(Remarks, if any)			

Original Documents of property submitted by the employee:

Sr No	Original Property Papers	Received (Y/N)	Sign (HR Asstt.)	Remarks
1	Original Insurance Papers in Favour of DMRC, New Delhi covering risk of fire, flood, lightening and earthquake etc of the house/ flat to the extent of loan granted or more.			
2	Original Builder Buyer Agreement and Original Allotment Letter/ Welcome Letter.			
3	Original possession letter.			
4	Original Sale Deed/ Lease Deed (Whichever is applicable)			
5	Original Conveyance Deed.			
6	Original Permission to Mortgage the flat in favour of DMRC issued by the builder.			
7	Original Demand Letters issued by the builder.			
8	Original Receipts (All) of the payment made to the builder.			
9	Original Fore Closure Letter, in case loan swapped to DMRC HBA.			
10	Original Registry Papers, if the property is acquired/ possession is done.			

Any Other Documents

Sign of Emp HR Asstt (Emp.No.____)

Countersigned By

This bond is an integral part of an undertaking submitted to Delhi Metro Rail Corporation; New Delhi wherein I have undertook to submit the property papers within one month of the receiving of HBA amount.

UNDERTAKING

(Certificate No -----)

I,-----, Designation -----, Emp No -----do hereby submit that I shall deposit the following documents within one month of the receipt of full HBA amount. The details of the documents are as under –

Sr No	Original Property Papers	Remarks*
1	Original Insurance Papers in Favour of DMRC, New Delhi covering risk of fire, flood, lightening and earthquake etc of the house/ flat to the extent of loan granted or more.	
2	Original Builder Buyer Agreement and Original Allotment Letter/ Welcome Letter.	
3	Original possession letter.	
4	Original Sale Deed/ Lease Deed (Whichever is applicable)	
5	Original Conveyance Deed.	
6	Original Permission to Mortgage the flat in favour of DMRC issued by the builder.	
7	Original Demand Letters issued by the builder.	
8	Original Receipts (All) of the payment made to the builder.	
9	Original Fore Closure Letter, in case loan swapped to DMRC HBA.	
10	Original Registry Papers, if the property is acquired/ possession is done.	
11	Tripartite Agreement (on Non Judicial Stamp Paper of ₹100/- duly signed by employee and builder in triplicate) as per enclosed format.	

***Sign in the column against the mentioned documents.**

Name-----

Date-----

Emp No -----

Place-----

Designation-----

Delhi Metro Rail Corporation,

Barakhamba Road,

Fire Brigade Lane,

New Delhi.

Sub: - Permission to Mortgage the flat in favour of Delhi Metro Rail Corp.
New Delhi.

Ref: - Full address of the property to be mortgaged.

Dear Sir,

We confirm that we have a valid, clear and marketable **lease hold/free hold title** relating to lands covered by -----dated----- duly registered at the office of sub registrar and after getting the Building Plans sanctioned by the competent authority, we are developing a Housing Complex known as ----- on the said land. The project land is -----hold and free from all encumbrances, lien, charges etc.

We have allotted / agreed to sell
-----constructed on the said land to

We further undertake to deposit the original ----- executed and registered at the office of the concerned Sub Registrar in favour of the Borrower/s directly to the Bank/ Employer and also give 30 days prior intimation to the Bank/ Employer relating to execution and registration of the -----

We understand that -----(Name of Borrower/s) has approached you for Home Loan for purchase of the said flat/ apartment against Mortgage.

We have no objection if the flat is mortgaged with the Bank/ Employer of Mr----- against security of repayment of the said loan.

That the builder assures the Bank/ Employer that it will get the flat Buyers' agreement executed within two month from today and deliver the same to the Bank/ Employer.

We confirm that the land and the construction including the flat sought to be sold/ transferred to the Vendee and unencumbered and the Builder shall not mortgage the Flat/ Apartment in future without your written consent. In case Builder raises project funding from any Bank / Financial Institution in future, the Builder shall give intimation to DMRC in this regard and forthwith provide NOC with respect to all the Flats / Apartments funded by DMRC.

Authorized Signatory

AFFIDAVIT for SOFT LOAN

I, _____ S/W/D/o Sh _____ presently residing
at _____ hereby declare and affirm-

1. That I am working as a _____ since _____.
2. That I have provided a SOFT LOAN of ₹ _____/- (₹ ____ lakh only) from my
known sources of income to my _____ who is in process of purchasing a
dwelling unit jointly with my/him/her _____
3. That he/she shall use the amount provided for the said purpose only.
4. That I will not make any mortgage right for the above mentioned property in future.
5. That I have no Pan Card in my name.

Place: Delhi

Date:

DEPONENT

VERIFICATION

Verified on _____ at Delhi that the contents of the above affidavit are true and
correct to the best of my knowledge and nothing has been concealed/ suppressed therein.

DEPONENT

Undertaking for submission of Original Title Deeds & Insurance paper on
time

I/We Sh_____S/D/W/o Sh._____

age_____years residents of _____ and

Sh/Smt_____ husband/wife of Smt/Sh_____do hereby

solemnly affirm and state that DMRC has sanctioned me HBA of Rs._____ on the

term and conditions contained in the office order

no _____dated_____ and accordingly an agreement

dated_____ was executed by me (and my wife/husband) with DMRC and I/We will

fully agreed to deposited original title deeds, possession letter and Insurance papers of the

property/House with in one month of possession of property/house situated

at_____, or within one month of withdrawal of final instalment of HBA,

whichever is earlier, failing which I/We shall refund the entire amount of advance

forthwith to the Corporation/or I/We shall agreed to pay a flat 2% interest over and above

the normal HBA interest rate on total withdrawn amount from the date of drawal of first

instalment/advance, as penalty.

Name-----

Date-----

Emp No -----

Place-----

Designation-----

REQUEST LETTER FROM EMPLOYEE FOR 2ND MORTGAGE/CHARGE

The General Manager/HR

Dated:

Delhi Metro Rail Corporation

Metro Bhawan, New Delhi

Subject: NOC for 2nd Mortgage/charge.

I have been sanctioned HBA amounting to Rs._____ vide office order no._____dt._____ I have executed the Mortgage deeds and deposited with Corporation as per terms of the HBA Rules.

M/s _____ whom I had approached for an additional housing loan by creation of second charge have consented(copy attached) to advance loan amounting to Rs._____ to me

I, now request you to kindly grant me permission(NOC).

Signature_____

Name in full_____

Designation:_____

Emp.No._____

Contact NO._____

DELHI METRO RAIL CORPORATION LTD.

Form for giving **PRIOR INTIMATION** for seeking previous sanction under Rule 16 of the DMRC Conduct, Discipline & Appeal Rules for transaction in respect of **IMMOVABLE PROPERTY**.

1.	Name, Emp.No. and Designation	
2.	Scale of Pay and Present Pay	
3.	Name & Designation of HoD under whom posted	
4.	Purpose of application	Sanction for transaction: Prior intimation of transaction:
5.	Whether property is being acquired or disposed of	Acquired: Disposed:
6.	Probable date of acquisition/disposal of Property	Date of acquisition: Date of disposal :
7.	Mode of acquisition/disposal	
8.	(a) Full details about Size/Area of plot/house & location viz., Municipal no. Street/ Village/ Taluk/ District and state in which situated.	
	(b) Description of the property, in the case of cultivable land, dry or irrigated land	
	(c) Whether freehold or leasehold	
	(d) Whether the applicants interest in the property is in full or part (in case of partial interest, the extent of such interest must be indicated)	
	(e) In case the transaction is not exclusively	

	in the name of the Government servant, particulars of ownership and share of each Member	
9.	Sale/Purchase price of the property (Market value in the case of Gifts)	
10.	All immovable property held before and after joining DMRC in the name of employee, spouse & dependents. (including those under construction for which approval already obtained from DMRC)	
11.	Properties acquired since joining the DMRC.	
12*.	In case of acquisition, source or sources from which proposed to be financed.	Self Savings
		HBA, if eligible otherwise.
		2 nd Mortgage
		Others 1. 2.
13.	In case of disposal of property, was requisite/sanction/intimation obtained/given for its acquisition? (A copy of the sanction/acknowledgement should be attached).	
14.	(a) Name and address of the party with whom transaction is proposed to be made	
	(b) Is the party related to the applicant? If so, state the relationship.	
	(c) Did the applicant have any dealings with	

	the party in his official capacity at any time, or is the applicant likely to have any dealings with him in the near future	
	(d) How was the transaction arranged? (Whether through any statutory body or a private agency through advertisements or through friends and relatives. Full particulars to be given)	
15.	In the case of the acquisition by gifts, whether sanction is also required under Rules 12 of the DMRC Conduct, Discipline & Appeal Rules.	
16.	Any other relevant fact which the applicant may like to mention.	

NOTE:

1. For personal savings, proof to be furnished by way of photo copy of Bank statement/FD/mutual fund etc.
2. For interest free loan from close relatives, similar proof as well as a declaration from such relative on stamp paper of Rs. 100/- along with their financial status is required to be produced.

DECLARATION

I _____ hereby declare that the particulars given above are true. I request that I may be given permission to acquire/dispose of property as described above from/to the party whose name is mentioned in Item No. 13 above

OR

I _____ hereby intimate the proposal acquisition/disposal of property by me as detailed above. I declare that the particulars given above are true.

Sign. _____

Name: _____

Designation_____

Emp. No._____

Extension no._____

Station/Posting Place: _____

Mob. No. _____

Date: _____

Email ID._____

Application for seeking prior intimation of transaction of immovable property as per details mentioned below-

1. Name of Emp : _____
2. Designation and Emp No : _____

Note: - 1. Where previous sanction is asked for, the application should be submitted at least 30 days before the proposed dated of transaction.

2.Post facto approval will not be considered.

Check List

1. Latest six months bank statement of employee.
2. Latest salary slip.
3. Agreement paper for sale/purchase.
4. Proof of sources of funds proposed to be utilized.(if arranged from relative/friend, a notarized affidavit of Rs.100 by the relative/friend & source of finance with bank statement)
5. Other relevant papers(if applicable).

NOTE: Filled-in application duly forwarded by concerned Dy HoD.

*Controlling Officer

Signature:

Name

Designation:

*Dy. HOD

Signature:

Name:

Designation:

Executives filling up the Form are required to route it through their respective HoD

*HOD

Signature:

Name:

Designation:

Duly filled in Form to be forwarded to the office of:

- ED/HR – for Project Employees
- GM/HR – for O&M employees

Chapter – H

DMRC RECRUITMENT RULES



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RECRUITMENT RULES

SECTION-I

GENERAL

1. SHORT TITLE, COMMENCEMENT AND APPLICATION:

- 1.1 These Rules shall be called the **Delhi Metro Rail Corporation (Recruitment) Rules, 2021.**
- 1.2 These Rules come into force from the date of the issuance.

2. DEFINITIONS:

In these Rules, unless the context otherwise requires-

- 2.1 “**Absorbee**” means an employee belonging to the Central or State Government or Public Sector Undertaking who has been permanently absorbed in regular service of the Corporation;
- 2.2 “**Act**” means the Metro Railways (Operation and Maintenance) Act, 2002, as amended from time to time;
- 2.3 “**Appointing Authority**” in relation to a post means the Authority as specified in the Schedule of Powers, in respect of Establishment matters;
- 2.4 “**Corporation**” means the Delhi Metro Rail Corporation Ltd., registered under the Companies Act, 1956;
- 2.5 “**Board**” means the Board of Directors of the Delhi Metro Rail Corporation Ltd.;
- 2.6 “**MD**” means the Managing Director of the Delhi Metro Rail Corporation Ltd.;
- 2.7 “**Competent Authority**” means the Managing Director or any functional Director or any officer authorized by the Managing Director in this behalf by general or specific order;
- 2.8 “**Departmental Candidate**” means the official who have been appointed on regular basis and who hold posts or hold lien on any permanent post of the Corporation;
- 2.9 “**Departmental Promotion Committee**” means a Committee constituted to consider promotions in any grade.
- 2.10 “**Employee**” means a person appointed by the Corporation either on temporary or permanent basis including the deputationists but does not include a person employed by the Corporation on daily wages, contract or apprentices paid under the Apprenticeship Act, 1961.
- 2.11 “**Executive Posts**” means the posts in the grade of Assistant Manager and equivalent and above, up to the level of Executive Director and equivalent;
- 2.12 “**Government**” means the Government of India;
- 2.13 “**Management**” means the Managing Director or Director or any other Executive of the Corporation so authorized by the Managing Director.
- 2.14 “**Month**” means the calendar month;

- 2.15 **“Non-Executive Posts”** mean the posts in the grade of Unskilled and equivalent and above, upto the level of Senior Section Engineer, Head Station Controller/Train Operator/Line Supervisor/Station Manager, etc;
- 2.16 **“Permanent Employee”** means an employee who has been appointed by the Corporation against a post which has been sanctioned and who has been confirmed after completion of the probation period satisfactorily;
- 2.17 **“Post”** means any post against which a person has been appointed on temporary or permanent basis or on Contract/Deputation;
- 2.18 **“Probationer”** means an employee who has been appointed by the Corporation against a sanctioned post but has not been confirmed;
- 2.19 **“Recruitment Year”** means the year commencing from the 1st of January to the 31st December of the year;
- 2.20 **“Temporary Employee”** means an employee who has been appointed by the Corporation against a temporary post sanctioned for a specified period or appointed on temporary basis against a permanent post.

3. CATEGORISATION OF CADRES/GRADES:

The posts in DMRC are broadly categorized as Executive and Non-Executive (Supervisor and Non-Supervisor) in the following groups/levels:

(i) Non-Executive:

S.N	Group	Level	Revised Pay Scales w.e.f. 01/01/2017
1	Non-Executive Group-I	Non-Supervisor (Induction)	16000-50000
2			20000-60000
3	Non-Executive Group-II	Non-Supervisor (Induction)	25000-80000
4		Non-Supervisor (Induction)	35000-110000
5		Non-Supervisor	37000-115000
6		Non-Supervisor	40000-125000
7		Non-Supervisor	46000-145000
8	Non-Executive Group-III	Supervisor (Induction)	37000-115000
9		Supervisor	40000-125000
10		Supervisor	46000-145000
11		Supervisor	50000-160000

(ii) **Executive:**

S.N	Group	Level	Designation	Revised Pay Scales w.e.f. 01/01/2017
1	Executive Group-I (Junior Management)	Executives	Assistant Manager	50000-160000
2			Manager	60000-180000
3	Executive Group-II (Middle Management)		Deputy General Manager	70000-200000
4			Sr. Deputy General Manager	80000-220000
5			Joint General Manager	90000-240000
6			Additional General Manager / Sr. Additional General Manager	100000-260000
7	Executive Group-III (Senior Management)		General Manager / Sr. General Manager / Chief General Manager	120000-280000
8			Executive Director / Principal Executive Director	150000-300000
9	Top Management	Top Management	Director	180000-340000
10		Managing Director	200000-370000	

SECTION -II

DIRECT RECRUITMENT AND RELATED MATTERS.

1. **CADRE:** The various categories of posts in the hierarchy shall form a cadre.

2. **DIRECT RECRUITMENT:**

2.1 Direct Recruitment shall be made through the following modes of induction:

- (a) Open Market / Lateral Recruitment;
- (b) Campus Recruitment;
- (c) Recruitment on the basis of GATE / CAT Scores;
- (d) Post Retirement Contractual Engagement (PRCE);
- (e) Absorption from Government/PSU's;
- (f) Regularisation of Contractual staff; and
- (g) Appointment on Compassionate Ground.

2.2 Direct Recruitment procedure:

(a) **Assessment of Vacancies:**

The assessment of vacancies shall be done on the basis of the vacancies in the cadre, as per the laid down percentage between Direct Recruitment and Promotion quota. While undertaking assessment, vacancies reserved for promotional quota shall be kept separate and an element of attrition shall be added to the vacancies, so assessed for Direct Recruitment.

(b) **Reservation in Recruitment:**

Based on the number of vacancies, the reservation roster register points would be worked out for calculating reservation in line with the Presidential Directives / DoPT Orders, i.e., Scheduled Castes (SC) – 15%; Scheduled Tribes (ST) – 7.5%, Other Backward Classes (OBC) – Non-Creamy Layer – 27%, Economically Weaker Section – 10%. The quota of Divyang (Physically Handicapped) @ 4% would be applied on horizontal basis for the posts which have not been exempted, and only such persons would be eligible for reservation in services/posts who have not less than 40% of the relevant disability. Such candidate would be required to submit a Disability Certificate issued by the Medical Board duly constituted by the Central or State Government. The reservation for Ex-Servicemen, wherever applicable, shall be treated as horizontal reservation, i.e., reservation to Ex-Servicemen belonging to any category (UR/SC/ST/OBC/EWS) would be adjusted within the category to which the selected Ex-Serviceman candidate belongs. The reservation rosters and roster points would be checked and verified by the concerned Liaison Officers for SC/ST/OBC/PwBD.

- (c) Educational Qualification, Work Experience Criteria and Job Profile:
These shall be notified along-with the advertisement and shall be based on the job requirement(s), as may be required from time to time.
- (d) Minimum and Maximum Age:
The minimum age for the applicant shall be 18 years of age. The maximum age shall be 32 years for 'Executive' posts and 33 years for 'Non-Executive' posts, with the usual relaxation for reserved categories as per the guidelines of the Govt. of India, as issued from time to time. The Existing DMRC employees who have completed at least 3 years continuous service in DMRC, as on the crucial date, shall be given an upper-age relaxation/limit to the extent, that for Executive posts, the maximum age relaxation shall be UR – by 5 years, OBC – 8 years and SC/ST – 10 years and for Non-Executive posts, the upper-age limit for the employee shall be for UR – 40 years, OBC – 43 years and SC/ST – 45 years.
- (e) Crucial Date of Ascertaining Eligibility:
The crucial date of ascertaining eligibility would be the 1st of the month in which open market recruitment advertisement is published / notified.
- (f) Publishing of Advertisement:
Wide publicity shall be given by way of notification to be published in full, in Employment News (English/Hindi/Urdu) and on the official website of DMRC and an abridged text of advertisement in leading newspapers in the National Capital Region of Delhi and adjoining areas, in a minimum of 02 English and 02 Hindi languages. A copy of the Notification shall, also, be sent to following agencies, for information and wide circulation, at their level: -
 - (i) Parliamentary Committee of the Lok Sabha, for the welfare of SC/ST;
 - (ii) National Commission for SC;
 - (iii) National Commission for ST;
 - (iv) National Commission for OBC;

- (v) Liaison Officer for the Welfare of the SC/ST in DMRC;
- (vi) Liaison Officer for the Welfare of the OBC employees in DMRC
- (vii) Liaison Officer for the Welfare of the PwBD.

Apart from the above, the services of the Doordarshan and the All India Radio shall also be utilized for wide publicity.

(g) Engagement of Specialized Agency(ies):

Services of an outside Agency(ies) of repute may be availed for the recruitment process on an end to end basis. Similarly, an agency acting as a Payment Gateway may be engaged for receiving Application Processing Fees, from the candidates.

(h) Application Processing Charges:

In order to keep the recruitment process self-sustained, to an extent and to weed-out the non – serious candidates, a minimum amount of application processing charges shall be charged from the candidates, as may be determined from time to time.

(i) Selection Process:

All applications received through the online system shall be scrutinized for the purpose of screening and the shortlisted candidates shall be called provisionally for participating in the written or online test /selection. While it may be appropriate to afford opportunity to appear in the selection to all the eligible applicants, mere possession of the requisite qualifications shall not confer any right on any applicant to be called for the selection and the Corporation may restrict selection from amongst the more meritorious applicants through an appropriate process of initial screening. The computer-based test shall be scheduled and e-Admit Card, shall be issued to the candidates, as per the time-lines laid down.

(j) Qualifying Marks:

The minimum qualifying marks in the Computer Based Test and Personal Interview for UR/EWS candidates will be 40%. For SC/ST/OBC/PwBD candidates the qualifying marks will be 30%. However, DMRC reserves the right to increase/decrease the qualifying criteria. In case of non-executive employees, there will be no interview and the results of selection will be declared based on online examination. For the executive posts, the standard ratio of calling the short-listed candidates for interview is 1:3. However, taking into account the number of short-listed candidates, the appointing authority may decide to increase or decrease the ratio accordingly.

(k) Life of Panel:

The life of the recruitment panel shall be two years from the date of approval by the Competent Authority, which may be extended by one more year with the approval of the Managing Director.

(l) Medical Examination:

All candidates shall have to undergo the medical fitness test(s) and meet the medical standards prescribed by DMRC for various posts. Expenses for the first-time medical examination of the candidate will be borne by DMRC. However, in case a candidate seeks re-medical examination, the expenditure for the medical test(s) will be borne by the candidate himself/herself. Candidates having undergone lasik surgery are not suitable for any post except Non – Technical categories or as specified in the Advertisement.

(m) **Surety Bond:**

The candidates selected for post under Executive Cadre/Non-executive Cadre will have to execute a surety Bond to serve the corporation for a minimum period of three years (exclusive of the period in which one remain on Leave without Pay) and also a prior notice of 90 days will be required before seeking resignation from the Corporation.

3. CHARACTER AND ANTECEDENTS:

The success in the examination does not confer any right to appointment unless the corporation is satisfied after such an inquiry, as may be considered necessary, that the candidate having regard to his/her character and antecedents is suitable in all respect for appointment to the service.

4. TRAINING:

The Selected candidates (both Regular and contract), shall undergo training for the prescribed duration before posting on the job. The corporation has the right to enhance or curtail the training period for any or all trainees.

5. PROBATION:

The selected candidates (on regular posts) on appointment, shall be on Probation for a period of one year/two years (including period of training). During the probation period, candidates shall be required to pass various examinations. The services of the candidate during the probation period can be terminated by the Corporation if the performance of the candidate is found to be unsatisfactory, in accordance with the terms and conditions of offer of appointment and receipt of an unsatisfactory police report. The probation period shall exclude Leave without Pay.

6. CAMPUS RECRUITMENT:

Recruitment can also be made through Campus selection by deputing a Selection committee to reputed Technical Institutes/Universities/Colleges/Polytechnics. The procedure of Campus recruitment shall be as under: -

- (a) A list of reputed Technical Institutes/Universities/Colleges/Polytechnics shall be prepared, which the Selection Committee shall visit for campus recruitment.
- (b) Recruitment for the post of Junior Engineer shall be made from amongst the newly passed candidates having Diploma in the prescribed field.
- (c) Recruitment for the post of Assistant Manager shall be made from amongst the newly passed candidates having Degree in the prescribed field.

- (d) Candidates may also be considered for direct recruitment as Assistant Managers strictly on the basis of merit (marks in written + Interview) in the case of GATE/CAT qualified candidates.

SECTION – III

1. POST RETIREMENT CONTRACTUAL EMPLOYMENT FOR VARIOUS POSTS IN DMRC.

To meet with the immediate requirement of experienced personnel for the Corporation and its allied projects, contractual employment of retired employees on re-employments basis shall be made from amongst the retired/experienced personnel of the Government/PSUs, for various posts in Non-Executive and Executive cadres. The various norms and conditions of re-employment shall be as under: -

- i. **Consolidated Fee:** Only a consolidated amount shall be paid according to the **substantive pay scale** from which they had retired from the Govt/PSUs.
- ii. **Age Limit:** The age of the candidates should be between the ages 58 years to 62 years, as on the crucial date.
- iii. **Period of employment:** Initially, the employment shall be made for a period of one year which may be extended from time to time on the basis of requirement / work. The maximum limit for re-employment shall be upto the age limit of 65 years of the re-employed personnel.
- iv. **Selection Process:** The post shall be circulated through an Open Advertisement. The selection of candidates for re-employment shall made by a interview of the shortlisted candidates, by a Selection Committee of an appropriate level. Should any additional selection method be required, the same shall be undertaken by the nominated Committee.

SECTION – IV

1. ABSORPTION:

A deputationist shall be required to put in a minimum of two years' service in DMRC, for being considered for absorption in DMRC. The minimum requirement for absorption shall be a justification from the concerned Director for absorption in DMRC. The employee should have 9 out of 10 marks in APAR ratings in a scale of 5 in the last two years.

1.1 Rules for Absorption:

- (a) The seniority of a deputationists upon absorption in DMRC shall count from the date following the date of acceptance of his/her resignation by the parent organization.

- (b) Absorption of a deputationist shall be given in the grade, in which the absorbee had been substantively working in their parent department.
- (c) In case, an employee is absorbed in a grade corresponding to his/her substantive grade in parent cadre, the service rendered in the parent cadre as well as on deputation in DMRC, shall be counted for the next promotion.

SECTION – V

1. CONTRACT REGULARISATION:

- i. To meet with the Project requirements, recruitment on contract basis may be resorted to. The period of contract shall normally be for a period of two years, however, based on requirement, the period can be increased, or, decreased.
- ii. The contract employees shall be considered for regularisation on completion of two years contract period in DMRC. The regularisation shall be done through paper screening process based on APARs and requisite clearances.
- iii. The number of contract employees to be regularized in a particular category, in a year, will be decided once a year, i.e., on the 1st July, every year, based on the availability of regular / permanent vacancies, in that category. The contract employees shall be regularized to the extent they are essential for DMRC and shall not become surplus during the next five years.
- iv. A contract employee may be considered for regularization on completion of 02 years of contract service, in DMRC.
- v. 02 APARs in DMRC shall be required for consideration for regularization. 18 points out of 20, i.e. one Outstanding and One Very Good, at least, shall be required. The latest APAR needs to be ‘Outstanding’.
- vi. Subsequent upon regularization, the contract service of such employees shall be counted @ maximum upto 70%, for further promotion in DMRC. The maximum period of the past contractual service shall not exceed a total of 1.4 years (approx. 70% of 02 years), for promotion purposes and for availing various advances.
- vii. All regularization / absorption orders, shall have prospective effect only.
- viii. The regularization of contract employees shall be solely guided by the future requirements of DMRC and no contract employee shall have a right to be absorbed, even if he / she fulfills all the requisite conditions for such regularization, automatically.
- ix. Upon regularization, their pay shall continue to be paid at the same level, as before. However, their seniority in the grade of absorption, shall count from the date of regularization / absorption.

SECTION – VI

1. APPOINTMENT ON COMPASSIONATE GROUND:

1.1 Dependents of Deceased Employees:

- a) The dependent of a deceased employee shall be eligible for consideration for appointment on compassionate grounds on need-cum-economic status basis against an available vacancy.
- b) Compassionate appointments shall only be in the non - executive posts (up to the scale of Rs. 37,000-1,15,000/- only) and shall be limited to recruitment grades only, where there is an element of direct recruitment, as detailed at Clause No. 1.5 below.
- c) A candidate shall be considered as per the qualification possessed by the candidate at the time of death of the deceased employee, or, if the candidate is enrolled for a course, on the basis of qualification acquired, on completion of such course.

1.2 The broad parameters which shall be considered in this regard are: -

- a) The deceased employee should have been below 50 (Fifty) years of age, at the time of his/her death;
- b) The family is indigent and deserves immediate assistance of relief from financial destitution;
- c) The applicant for compassionate appointment is eligible and suitable for the post in all respect, as per the extant rules and regulations.

1.3 “Dependent Family Member” means a:

- a) Spouse; or,
- b) Son (including adopted son); or,
- c) Daughter (including adopted daughter);-unmarried/widowed/divorcee.
- d) Brother/Sister in the case of an unmarried employee.

who was wholly dependent on the DMRC employee, at the time of his/her death in harness.

1.4 ‘Deceased employee’ means an employee appointed on regular basis and not one working on daily wages, or, casual, or, an apprentice, or, ad-hoc, or, contract, or, re-employment/consultant basis.

1.5 Appointment on compassionate grounds shall be made on regular basis. Such appointment shall be based through an appropriate suitability test, based on the written examination and psychometric test (as required, for categories like SC/TO and CRA) and shall also be subject to fitness in medical examination, as per the applicable standards. A maximum of three chances shall be given to a candidate, while in case of candidates, who are SC/ST/Widow/Wife, a maximum of four chances, shall be given. The pass marks in the written test shall be 40% for UR candidates and 30% for OBC/SC/ST and PwBD candidates. The psychometric test, as required, shall only be qualifying in nature. However, fitness in medical test, shall be mandatory and shall be, as per the norms of open market recruitment.

In case, any applicant who chooses to submit his/her application for Appointment on Compassionate Ground without appearing in the Written / Online Test, he/she may submit his/her application to be considered for the post of Multitasking Staff (MTS), in the pay scale of Rs. 16000 – 50000. The education qualification for the MTS shall be Matriculation / Xth pass. The option shall be given to the applicants to either opt for the post of MTS, for which they shall be considered without any written test, or, undergo a written examination for a higher-level post, as per their eligibility. In case an applicant opts to be considered for a higher level / post but do not qualify the written examination and psychometric /skill test (wherever applicable), after having exhausted all the opportunities, shall then be considered for the post of MTS. Should they desire to opt, in between, for the post of MTS, they shall be allowed to do so, subject to the condition that they would not be able to avail any further chance(s) of sitting for a written examination, etc., for a higher-level post, subsequently. Once appointed, in the MTS category, the applicants shall have no further claim for consideration, for a higher-level post.

- 1.6 Request for compassionate appointment in DMRC can be considered within a period of five years, from the date of death of the deceased DMRC employee.
- 1.7 A widow appointed on compassionate ground shall be allowed to continue in service, even after re-marriage.
- 1.8 A Committee comprising of three Directors of DMRC shall recommend such appointments, to the Managing Director, DMRC.

SECTION – VII

INTREPRETATION/RELAXATION/DELETION/MODIFICATION:

In case of any doubt or dispute regarding interpretation of these rules, the decision of the Managing Director, DMRC shall be final. He / She shall also have the powers to relax, delete/ modify/revise, etc., any of the provisions of these rules, if found necessary, in future.

Chapter -I

Vehicle Advance



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DMRC EMPLOYEES ‘OWN YOUR OWN VEHICLE’ ADVANCE RULES

These Rules shall be called the DMRC Employees ‘Own Your Own Vehicle’ Advance Rules.

1. OBJECTIVE

These Rules are intended to regulate the grant of monetary advance for the purchase of different types of vehicles (Only for purchase of new vehicles and no vehicle advance will be sanctioned for purchasing used vehicle Office Order No. PP/1499/2012; dated: 26.06.2012) by the employees of DMRC which they intend to use for travel for official purposes.

2. ELIGIBILITY

- 1.1 Advance for purchase of conveyance will be admissible only to regular confirmed employees of the Corporation, including the deputationists, who are absorbed in the Corporation. The deputationists, temporary, ad hoc or daily rated, re-employed or those engaged on contract on fixed terms are not eligible for the advance.
- 1.2 Employees who have completed 2½ years of regular service & are confirmed in the Corporation and have not less than three years of service before superannuation from the date of application will be entitled for the advance.
- 1.3 Employees on deputation when permanently absorbed in the Corporation shall also be eligible to be granted the amount of advance plus interest outstanding on the date of absorption, out of the advance already received from their parent department, and which they are required to repay at the time of absorption. In such cases, the outstanding principal and accumulated interest will be separately transferred with deemed benefit of continuity of service.
- 1.4 Regular confirmed employees of the Corporation will be eligible for grant of vehicle advance for purchase of Motor Car or Two Wheeler (Motor Bike/Scooter).
(Ref: Office Order No.PP/1987/2015; dated: 22.05.2015)
- 1.5 The contractual employees, subsequent upon regularization, the contractual service @70% shall be counted towards the Vehicle Advance.
(Ref: Office Order No. PP/1782/2014; dated: 03.06.2014)

i) MOTOR CAR ADVANCE

SN	Level	Eligibility of Vehicle Advance	Ceiling Limit
1	Supervisors and below, viz., in grade of Rs.37000-115000 IDA and below.	Rs.1.5 lakh or 25 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.	Upto Rs. 6.75 Lakh
2	Sr. Supervisors, viz., in grade of Rs.40000-125000 IDA and above upto Rs. 50000-160000 IDA (Non-Executive)	Rs.3.5 lakh or 25 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.	Upto Rs. 9 Lakh
3	Executives, viz., in grade of Rs. 50000-160000 IDA and above.	Rs.5 lakh or 25 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.	Upto Rs.15 Lakh

Office Order No. PP/3341/2023, dated: 06/09/2023.

ii) MOTOR CYCLE/SCOOTER ADVANCE

SN	Level	Eligibility of Vehicle Advance	Ceiling Limit
1	All grades	Rs.1.5 lakh or 10 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.	Upto Rs.1.5 Lakh

(Ref: Office Order No. PP/2349/2017, dated: 03/04/2017)

Provided it is certified that:

- In the opinion of the authority competent to sanction the advance, it will be useful to the service of the Corporation if the employee possesses the conveyance in question for the efficient performance of his official duties; and
- the authority competent to sanction the advance is satisfied that the employee has the capacity to repay the advance.

3. PERMISSION TO ACQUIRE MOVABLE PROPERTY

- 2.1. All cases of permission to acquire movable property of non-executives and executives upto the level of AM/Managers will be approved by their respective HoD.
- 2.2. All cases of permission of movable property of Dy. HoDs and HoDs will be approved by concerned Director.
- 2.3. All such applications duly forwarded by concerned HoD/Director will be processed and routed for approval through HR Department.

4. SANCTIONING AUTHORITY

3.1 The following will be the sanctioning authorities for sanction of advances for purchase of vehicles subject to availability of funds in the budget.

- a) Director(F) - For Vehicle Advance for Executives.
- b) ED/HR - For Vehicle Advance admissible to non-executive staff working in Project and Corporate office.
- c) GM/O&M/HR - For Vehicle Advance admissible to non-executive staff working in O&M division.

(Ref: Office Order No. PP/2019/2015, dated: 10/07/2015)

5. DISBURSING AUTHORITY

The disbursing authority is the authority which disburses salary to the employees.

6. AMOUNT OF ADVANCE

6.1 The maximum amount that will be advanced for purchase of conveyance in each case will be as follows:

As specified in para 1.5, above.

6.2 If the ex-show room price of vehicle is less than the amount granted as advance, the difference shall be refunded by the employee to the disbursing authority immediately after the purchase of the vehicle.

Note: The expression 'actual price' means 'Ex-show Room price' and includes sales tax and the cost of such items as spare wheel, tyre and tube or a pillion seat in a scooter on the purchase of which the purchaser has no choice, it does not, however, cover the cost of accessories, like radio in a car, plastic covers etc which are not essential and are purchased by the customer on his own volition. Insurance and registration charges are also not included in the actual price.

7. PROCEDURE FOR SANCTION OF ADVANCE

7.1 While purchasing the vehicle, the employee shall be required to apply through ESS for prior Intimation of movable property with complete details of purchases/source of income etc., under Rule-16 of the DMRC conduct, Discipline & Appeal Rules. Any aberration in obtaining prior approval under movable property will attract appropriate penalties as mentioned in D&AR rules. **No Post Facto approval will be entertained.**

Following documents are required to attach while applying for Prior Intimation of Movable Property or any transactions and also applying Vehicle Loan:

SN

MOVABLE PROPERTY

1

Latest Six Months Bank Statement (Mandatory)

- 2 Source/fund of Transaction (if financed from relative/friends/family, a notarised affidavit and income source of the finance), if applicable
- 3 Quotation (Mandatory)
- 4 Loan Paper and EMI Details (if applicable)
- 5 Other relevant papers (if applicable)

(Ref: Office Order No.-PP/2502/2017; dated: 23.11.2017)

- 7.2 After approval of Prior intimation of movable property through ESS, employee has to apply for Vehicle Loan through ESS only. The advance would be sanctioned by the sanctioning authority after ascertaining the eligibility of the employee and the availability of funds.
- 7.3 The following bonds in non-judicial stamp papers need to be executed and submitted to HR Department by the employee after approval for Vehicle Loan along with the signed copy of the printout of the application. Original Quotation is also required to submit with these bonds.
- (i) Mortgage Form (Form CA-4) – Rs. 50/-
 - (ii) Form of Agreement (Form CA-2) – Rs. 50/-
 - (iii) Insurance (Form CA-9) - Rs. 50/-
 - (iv) Surety Bonds – Rs. 100/- (02 nos.)

Surety: Surety is to be taken from regular employee who has completed 3 years of service and has residual of 3 year of service, and also who is of equal status or higher than the applicant.

(Ref: Office Order No. PP/1572/2013, dated: 06.03.2013)

Original Office Order will be sent to disbursing authority for release of the loan amount.

- 7.4 Purchase of vehicle should be completed within thirty days from the date on which the applicant actually draws the advance, failing which the full amount of advance drawn with existent interest thereon will be recoverable from the employee and will have to be refunded to the Corporation immediately. The sanctioning authority may, however, extend the above time limit for a period not exceeding one month on the merits of the case.

Following documents need to be submitted to HR Department immediately after purchase of vehicle:

- (i) Original invoice/cash receipt.
- (ii) Copy of Insurance paper.
- (iii) Copy of Registration Certificate.
- (iv) Proof of hypothecation.

The hypothecation in favour of DMRC is also to be got registered with Regional Transport Authority and an endorsement to that effect be got noted in the RC book of the vehicle so purchased. In case of non-submitting of required papers & hypothecation done in favour of DMRC, penal interest @ 10.75% will be charged from the date of disbursement of advance.

- 7.5 Time Limit for Utilization of Advance: Any sanction for advance or its instalment, if not utilized within a period of 4 months from the date of issue of Office Order would automatically lapse.
- 7.6 Original Cash receipt shall be returned to the employees after the advance and interest thereon have been completely recovered and an NOC of this effect would be issued to the employee.
- 7.7 An advance for the purchase of a conveyance shall not be granted to an employee of the Corporation who has already purchased the conveyance and paid for it, unless the conveyance has been purchased within the last three months reckoned from the date the advance is applied for and has been paid for by raising a temporary loan. In such a case, the agreement will have to be executed by the employee.

8. SECOND /SUBSEQUENT ADVANCE

SN	Level	Maximum amount of vehicle advance in INR, applicable at 2 nd advance.	Maximum amount of vehicle advance in INR, applicable at 3 rd advance.
1	Supervisors and below, viz., in grade of Rs.37000-115000 IDA and below.	Rs.1.25 lakh or 20 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.	Rs.1 lakh or 15 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.
2	Sr. Supervisors, viz., in grade of Rs.40000-125000 IDA and above upto Rs. 50000-160000 IDA (Non-Executive)	Rs.3 lakh or 20 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.	Rs.2.5 lakh or 15 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.
3	Executives, viz., in grade of Rs. 50000-160000 IDA and above.	Rs.4.5 lakh or 20 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.	Rs.4 lakh or 15 months' Basic pay or actual cost of vehicle whichever is less, subject to financial eligibility.

- 7.1 (a) The second and subsequent advance will be sanctioned only after completion of 5 years from the date of drawl of previous advance and also full and final settlement of previous outstanding principal and interest amount except in exceptional circumstances at the discretion of the sanctioning authority.
- (b) The number of occasions on which the vehicle advance can be granted to an employee shall not exceed more than 3 times during his/her entire service.

(Ref: *Office Order No.PP/1996/2015; dated: 15.06.2015*)

- 7.2 The restriction of five years will not, however, apply when advance has been allowed earlier for the purchase of lower category of vehicle but subsequently on the employee becoming eligible for higher category vehicle and it is desired to draw an advance for such purpose.

8. INSURANCE

- 8.1 The vehicle purchased with the advance given by the Delhi Metro Rail Corporation Limited should be comprehensively insured within one month from the date of purchase or as soon as it is on the road, whichever is earlier, and the insurance policy should be furnished to the sanctioning authority along with the mortgage deed for verification. The insurance should be renewed from time to time till the full amount of advance, including interest, is liquidated. The amount for which the vehicle is insured should at no time be less than the outstanding balance of the advance plus interest.
- 8.2 The employee should produce renewal policies to the sanctioning authority for verification until the advance is fully liquidated.

9. INTEREST

- 9.1 Rate of interest to be charged on advances sanctioned under these Rules would be 5%.
- 9.2 Recoveries of interest calculated at prescribed rates will be made after principal amount is recovered.
- 9.3 The total amount of interest due from the employees shall be recovered in monthly instalments, the amount of each such instalment being not more than the amount of instalments by which the principal amount is repaid.
- 9.4 It shall be ensured that the advance and the interest is recovered before the date of termination of service of the employee in the Corporation due to retirement or for any other reason.

10. REPAYMENT OF ADVANCE

- 10.1 The advance for purchase of a Motor Car along with interest will be recovered in 96 equal monthly instalments, if it is a first advance and in not more than 50 equal monthly instalments in the case of a second or subsequent advance.
- 10.2 The advance in the case of Motor cycle/scooter along with interest will be recoverable in not more than 60 equal monthly instalments in the case of first advance and in not more than 30 equal monthly instalments in the case of a second or a subsequent advance.
- 10.3 The amount recoverable in each instalment will be in whole rupees, except the last instalment. The instalment once fixed cannot be altered, except with the permission of the sanctioning authority.
- 10.4 Recoveries of advance will commence from the salary for the month following that in which the advance is drawn.

11. SALE OF CONVEYANCE BEFORE COMPLETE REPAYMENT OF ADVANCE

- 11.1 If an employee desires to sell the vehicle before the advance received from the Corporation with interest thereon has been fully repaid, he will do so only after obtaining permission from the sanctioning authority. In such a case, he will repay the

balance of the advance and interest outstanding at his credit immediately after carrying out the transaction.

- 11.2 If, however, the employee desires to apply for re-appropriation of sale proceeds towards the purchase of another vehicle, the sanctioning authority may permit the same, provided:
- i) The amount outstanding shall not be permitted to exceed the cost of the new vehicle obtained.
 - ii) The amount outstanding and interest will continue to be repaid at the rate previously fixed.
 - iii) If the amount outstanding is less than the cost of the new vehicle the balance of advance will be repaid forthwith, and
 - iv) The new vehicle is insured comprehensively and mortgaged to the Corporation in the form at Annexure-III A and all other conditions and rules will apply in such cases.

12. INTERPRETATIONS/RELAXTION/DELETION/MODIFICATION

In case of any doubt or dispute regarding interpretation of these rules, the decision of Managing Director shall be final. He may also have the powers to relax, delete/modify/revise, etc of any of the items of the provisions of these rules, found necessary in future, for reasons to be recorded in writing.

FORM CA – 1APPLICATION FOR INTEREST BEARING ADVANCE FOR PURCHASE OF MOTER
CAR/MOTER CYCLE/SCOOTER (See Rule 4.1)

Name of the applicant.....

Emp.No.....

Designation and scale of pay

Pay

Project / office and section to
which attachedType of vehicle for which advance
is required

Anticipated cost of the vehicle

Amount of advance required

Date of appointment

Date of superannuation

No. of instalments in which the
advance is desired to be repaidWhether advance for the
purchase of any conveyance was
Obtained previously if so, indicate:

- (a) Date of drawl of advance
- (b) Whether the amount of advance and/or
interest thereon is still outstanding. give details

Whether the intention is to purchase :

- (a) A new or an old motor car / motor cycle /
scooter / moped / bicycle
- (b) If the intention is to purchase a motor
car/ motor cycle scooter/moped/
bicycle through a person other than a
regular reputed dealer or agent.
Whether previous sanction of the
competent authority has been
obtained.

12.Do you possess a vehicle? If Yes, indicate

- a) Type of vehicle
- b) Date of purchase

13. a) Certified that the information given above is complete and true.

b) Certified that I have not taken delivery of the motor car/motor cycle/scooter/moped / bicycle on account of which I apply for the advance, that I shall complete negotiations for the purchase and pay finally and take possession of the motor car/motor cycle/scooter/moped/bicycle before the expiry of one month from the date of drawal of the advance and that the vehicle shall be insured from the date of taking delivery of it.

c) Certificate that I have read the rules and will abide by them.

Signature of applicant

No. _____

Dated _____

Eligibility of the employee for advance and availability of funds may kindly be indicated.

(Signature of the immediate superior officer)
Designation:

DGM

GM

FOR USE IN ACCOUNTS SECTION

No. _____

Dated _____

Verified, The applicant is/is not eligible for advance of RS. _____ for purchase.
Funds are/are not available.

(Signature of the certifying officer
from Accounts Department)
Designation

Essentially Certificate and remarks of the sanctioning authority.(To be signed by an officer not below the scale of Rs. _____ (CDA) or its equivalent.

No. _____

Dated _____

Certificate that the purchase of motor car/motor/motor cycle/scooter/moped/bicycle by the applicant is/is not necessary for efficient discharge of his duties.

Signature & Designation of
the controlling Officer

ADVANCE of Rs. _____ (Rupees _____ only) for purchase of
_____ is /is not sanctioned.

(Signature of the sanctioning authority)
Designation
Dated :

(FOR USE IN PERSONNEL WING)

Sanction issued vide No. _____ Dated _____

Chapter -J

Advanced Rules



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DMRC EMPLOYEES

‘MULTIPURPOSE’ ADVANCE

RULES

These Rules shall be called the DMRC Employees ‘Multipurpose’ Advance Rules.

1. OBJECTIVE

These Rules are intended to regulate the grant of monetary advance to DMRC confirmed employees to meet varied financial needs of emergent nature like marriage/social functions, education of children, furnishing of house, purchase of electronic appliances for home and to meet other domestic requirements, contingencies etc.

(Ref: Office Order No. PP/538/2006; dated: 30.10.2006)

2. ELIGIBILITY

1.1 Multipurpose Advance will be admissible only to confirmed employees of the Corporation, including the deputationists, who are absorbed in the Corporation. The Temporary, ad hoc or daily rated, re-employed or those engaged on contract on fixed terms are not eligible for the advance.

1.2 Employees who have completed 2½ years of regular service & are confirmed and having more than three years of service before superannuation from the date of application will be entitled for advance.

(Ref: Office Note No. DMRC/MPA/2007; dated: 20.04.2007)

1.3 The contractual employees, subsequent upon regularization, the contractual service @70% shall be counted towards the Multipurpose Advance.

(Ref: Office Order No. PP/1782/2014; dated: 03.06.2014)

3. MULTIPURPOSE ADVANCE

2.1 The Multipurpose Advance (MPA) admissible will be upto a maximum of Rs. 2,00,000/-, or 5 times of the Basic pay, whichever is less.

The employees who have already availed part, or, full MPA, as per their earlier limit, would be treated as having availed their first/second chance. No difference of MPA shall be admissible.

(Ref: Office Order No.-PP/2776/2018; dated: 22.02.2019)

2.2 In case of more number of applications than the fund available, the fresh cases (who did not avail MPA earlier) will be given priority.

2.3 After a gap of two years after complete repayment of MPA, an employee will be eligible for subsequent MPA, limiting to a maximum three occasions in the entire service.

(Ref: Office Order No.-PP/1520/2012; dated: 22.10.2012)

Deleted in Objective – “The fund for this scheme will be released from DMRC Staff Welfare Fund”.

4. SANCTIONING AUTHORITY

3.1 The following will be the sanctioning authorities for sanction of MPA subject to availability of funds in the budget.

- a) HoD/HR - For MPA admissible to all employees working in project and corporate office.
- HoD/HR/O&M - For MPA admissible to all employees working in O&M division.

5. RATE OF INTEREST

The rate of interest will be kept at 7.5% (Simple). The principal shall be recovered first in maximum of 30 instalments followed by interest in the maximum of next 5 instalments. The recovery of this account including all other recoveries should not exceed 50% of pay.

(Ref: Office Order No.-PP/538/2006; dated: 30.10.2006)

6. SURETY BONDS

The provision of Advances is a welfare measure. Before release of advance, it is essential to secure the recovery of the amount. The employee seeking advance will submit indemnity bond/s signed by surety/sureties (one surety for an advance upto Rs.50,000/- and two sureties for above Rs.50,000/-) on the prescribed format/s attached at **Annexure'A'** along with their applications.

The Surety should be of equivalent or higher grade and a confirmed employee of the corporation having completed / residual of 3 years of service. Before Signing as a surety, employee will ensure that he has not indemnified more than two cases at a time. He/she may further sign as surety after clearing previous advances.

(Ref:Office Order No.-PP/1572/2013; dated: 06.03.2013)

6.1 Indemnity bonds/Surety bonds are required to be uploaded in while applying for MPA through ESS. The bonds must be submitted in HR department with the print copy of ESS for issuing the office order.

Following documents are required to upload while applying for MPA through ESS is tabulated below for ready reference:

S.No.	Multipurpose Advance
1.	Two Surety bonds on non-judicial paper/s of Rs.20 each. →While procuring the surety bonds, the First Party should be the person who is giving the Surety to Borrower for MPA and the Second Party would be DMRC

	→ the surety bonds will become valid only from the date of issuing of the office order by the Sanctioning Authority, so the column date on surety bonds at page-2, be filled accordingly.
2.	Printout of the application shall be self-attested by the employee
3.	Sign of Sureties, Employee and witnesses on each page is mandatory on the Surety Bonds.
4.	Paragraph of indemnity bond should start from 1 st page of Surety bond and matter should not be printed at the backside of surety bond.

7. **INTERPRETATIONS/RELAXTION/DELETION/MODIFICATION**

In case of any doubt or dispute regarding interpretation of these rules, the decision of Managing Director shall be final. He may also have the powers to relax, delete/modify/revise, etc., of any of the items of the provisions of these rules, found necessary in future, for reasons to be recorded in writing.

APPLICATION FOR GRANT OF MULTIPURPOSE ADVANCE

(Ref. Office Order No.PP/1520/2012 dated 22/10/12)

1. Name of the employee :
2. Designation :
3. Emp. No. :
4. Scale of Pay :
5. Date of Birth :
6. Present Basic Pay :
7. (i) Date of Appointment :
- (ii) Total Service : Yrs Months.
- (iii) Status of Employment : Direct Recruit/ On deputation/ Absorbed.
- (iv) If on deputation,
 - (a) Date of Joining in DMRC :
 - (b) Sanctioned Deputation Tenure :
 - (c) Date of Deputation Tenure going to be completed :
8. Amount of loan applied for :
9. Purpose of loan applied for :
10. (a) No. of installments in which principal amount is to be repaid (Max- 30 Installments) :
- (b) No. of installments in which interest is to be recovered (Max. -5 installments) :
11. Whether any advance for any other purpose was obtained previously. If so, give details-
 - a) Purpose :
 - b) Date of drawl of advance :
 - c) Whether the amount of

- advance and/or interest thereon
is still outstanding, give details :
12. Execution of two Surety Bonds on non-judicial
Stamp paper of Rs 20/-each from a permanent
employee of equal/higher status of the applicant
who has at least 3 years residual service in DMRC :
13. No. of times Multipurpose Advance availed in DMRC :
14. a) Certified that the information given above is completed and true.
b) Certified that I have read the rules and will abide by them.

Sign. _____

Name: _____

Designation _____

Emp. No. _____

Mob. No. _____

Station/Place of Posting:

Date: _____

Email ID. _____

*Controlling Officer

Name:

Signature:

Designation:

Emp No.:

*Dy. HOD

Name:

Signature:

Designation:

Emp No.:

ANNEXURE ‘A’

SURETY BOND

KNOW ALL MEN BY THESE PRESENTS that I,
..... (Surety) resident of
.....in the District
of....., presently residing at,

Sign of Emp
Witnesses

Sign of Surety

Sign of

(hereinafter called "the Surety") are held and firmly bound unto Delhi Metro Rail Corporation Limited (hereinafter called the "Corporation" which successors in office and assigns in the sum of ₹.....(₹only) to be paid to the Corporation FOR WHICH PAYMENT to be well and truly made I hereby bind myself, my heirs, executors, administrators and representatives firmly by these presents.

As witness my hand this (Date) day of (Month) Two thousand -----

WHEREAS **Shri** **(Borrower)** **S/o** **Sh** presently employed as a permanent employee in Delhi Metro Rail Corporation whose Emp No is-----` (hereinafter called "the Borrower").

AND WHEREAS the Corporation sanctioned the payment of ₹..... (₹ only) under the rules framed by the Corporation to regulate the (hereinafter referred to as the "said Rules").

AND WHEREAS in consideration of the Corporation having agreed to grant the aforesaid advance to the Borrower the Surety has agreed to execute the above bond with such condition as hereunder is written.

NOW THE CONDITION OF THE OBLIGATION is such that if the said Borrower shall while employed in the said Office, duly and regularly pay or cause to be paid to the Corporation the amount of aforesaid advance owing to the Corporation by installments until the said sum of ₹..... (₹ only) shall be / duly paid to the Corporation, then this bond shall be void, otherwise the same shall be and remain in full force and virtue but so nevertheless that if the borrower shall die or become insolvent or at any time cease to be in the service of the Corporation, the whole or so much of the said principal sum of ₹.....(₹only) together with the interest, as shall then remain unpaid shall immediately become due and payable to the Corporation and recoverable from the Sureties in one installment by virtue of this bond.

The obligation undertaken by the Surety shall not be discharged or in any way affected by an extension of time or any other indulgence granted by the Corporation to the said Borrower.

The stamp duty in respect of these presents shall be borne and paid by the borrower. Signed and delivered by the said.....andat Delhi

Sign. of surety
Name:
Desig:
Emp. No.:
Address:
Mob No:

Surety given: 1st time:...../2nd time: (Tick whichever is applicable)

Sign of Emp

Sign of Surety

Sign of Witnesses

(An employee can give a maximum of two sureties only, and should keep a record of the same)

Sign of Surety with Name and EMP No -----

In the presence of

1st witness.....
Address.....
Occupation.....
DMRC Emp No

2nd Witness.....
Address.....
Occupation.....
DMRC Emp No

(For office use only & not to be filled in by the employee)

Signed by Smt/Shri..... of DMRC for and on behalf of the Managing Director.

In the presence of

1st Witness
Address.....
Occupation.....
DMRC Emp No

2nd Witness.....
Address.....
Occupation.....
DMRC Emp No

Sign of Emp

Sign of Surety

Sign of Witnesses

Enclosures: Current Salary Slips of Borrower, Both Sureties duly self attested and photocopies of I - Cards of both the sureties.

**Metro Bhawan Fire Brigade Lane, Barakhamba Road,
New Delhi - 110001, India**

Chapter-K

DMRC Housing

Allotment

Rules

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DMRC Housing

Allotment Rules

1. SHORT TITLE AND APPLICABILITY

- 1.1 These rules shall be called the "DMRC Housing Allotment Rules".
- 1.2 These rules shall be applicable to DMRC staff quarters located at Ajrona, Bahadurgarh, Gurgaon, Mukundpur, Mundka, Najafgarh, New Ashok Nagar, Sarita Vihar, Shastri Park, Vinod Nagar, Yamuna Bank and Noida.
- 1.3 These rules shall come into force with immediate effect, subject to such alterations and additions as may be made, from time to time, by the Competent Authority.
- 1.4 These rules shall apply to all residential buildings and premises appurtenant thereto, allotted to the employees of the organization to use the same as quarters, under the permission of the organization and in accordance with these rules. The term building herein includes all constructions, permanent, temporary, semi-permanent, dormitory belonging to or otherwise secured by the organization for the purpose of housing their own employees.
- 1.5 No employee shall have any right to be provided with accommodation by the organization. Subject to the availability of such accommodation, the employees in accordance with these rules, may be permitted to stay in any of the quarters of the organization for such periods as permitted, during and in course of their employment under the organization. Allotment of quarters to employees shall be for beneficial working of the affairs of the organization.
- 1.6 The quarters allotted to house the employee as aforesaid, at all times, before, during and after occupation of the employees shall continue to be in possession of the organization. The employees shall occupy the said quarters as licensees, without having any right or interest in the land and the building concerned.
- 1.7 The rules hereby introduced shall have prospective effect only, with respect to the changes introduced therein.

2. DEFINITIONS

- 2.1 In these rules, unless the context otherwise requires:

- (a) "accommodation" means the DMRC Staff Quarters at various locations in Delhi/NCR at Para 1.2 above, under the control of the Delhi Metro Rail Corporation Ltd.;
- (b) "allotment" means the grant of a license to occupy a residential accommodation in accordance with the provisions of these rules;
- (c) "employee" means a person appointed against a regular post and includes probationers, but excludes apprentices, reemployed or casual employees, deputationists, and employees on contract basis. (to be read along with item 6- eligibility criteria)
- (d) "damages" means a compensation to be levied as penal rent for unauthorised occupation or subletting or misuse of whole or any part of accommodation or garages by the occupant of the accommodation or garages;
- (e) "Estate Officer" means the officer appointed as such by order of Competent Authority, having power to issue orders in relation to allotment;
- (f) "eligible type of accommodation" in relation to an officer means the type of accommodation to which he is eligible under these rules;
- (g) "family" means the wife or husband of allottee, as the case may be, and children, step children, legally adopted children, parents, brothers or sisters as ordinarily reside with and are dependent on the allottee;
- (h) "close relations" mean relationship such as Father, Mother, Brothers, Sisters, Grandfather, Grandmother, Grandsons, Granddaughters, Uncles, Aunts, First cousins, Nephews, Nieces (directly related by blood), Father-in-law, Mother-in-law, Sister-in-law, Brother-in-law, Son-in-law, Daughter-in-law and relationship by legal adoption;
- (i) "guest" means a casual visitor staying temporarily with the allottee;
- (j) "own house" means a building or part thereof meant for residential purposes and owned by the allottee or by any member of his family;
- (k) "license fee" means a fee payable monthly in respect of the accommodation allotted under these rules besides HRA;
- (l) "misuse", in relation to an allotment, means an accommodation or a servant quarter or a garage being used by allottee himself or by his family members or close relations staying with him for the purpose other than the purposes provided under these rules;
- (m) "residential accommodation" means a covered structure or part thereof whether permanent or semi- permanent or temporary, which has at least a living room and a lavatory with or without kitchen;

(n) "subletting" means letting out of a DMRC accommodation partly or wholly by an allottee to any person outside allottee's family and close relations; (Amended as per approval dated 25.05.2021, File No. D-11/6/2021-HR (O and M))

(o) "surrender of accommodation" means vacation of accommodation after physical occupation of the accommodation by the allottee on his own volition during the allotment period;

3. TYPES OF ACCOMMODATION AND ELIGIBLE PAY SCALES

3.1 There are 7 types of accommodation in the DMRC Staff Quarters. The description of the same is given under.

Type	Eligible Pay Scale	Accommodation
Transit Flats (Type-II)	All scales up to Rs. 35,000 – 110000 (Non-Sup.)	1 Bed room-cum- Drawing room + WC + Kitchen + Balcony
Type-II		1 Bed room + Drawing room + WC + Kitchen + Balcony
Type-III	From Rs. 37000 – 115000 upto Rs. 50000–160000 (Non-executives only)	2 Bed room + Drawing room + WC + Kitchen + Balcony
Type-IV	Rs. 50000 – 160000 and Rs. 60000 - 180000 (Executives only)	3 Bed room + Drawing room + WC + Kitchen + Balcony
Transit Flats (For executives only)*		1 Bed room + Drawing room + WC + Kitchen + Balcony
Type-V	Rs. 70000 - 200000 and above (Dy. HODs only)	3 Bed room + Drawing room + WC + Kitchen + Balcony + 1 servant quarter
Type-VI	Rs. 120000 – 280000 (HODs and above)	3 Bed room + Drawing room + WC + Kitchen + Balcony + 1 servant quarter

For Trainees Hostel (Ref. Office Order No. O&M/R&T 001 of 2010 dated 01.01.2010)

For Permanent Hostel (Women only) (Ref. Office Order No. O&M/HR-405 of 2020 dated 07.10.2020)

>Availing hostel facility will not affect seniority in staff quarters priority list.

*Transit Flats (for executives) are allotted on a first-come first-serve basis, on payment of 100% HRA.

4. POOLING OF DMRC STAFF QUARTERS

4.1 The distribution of quarters of various types amongst the various pools will be as under.

S. No.	Name of Pool
1.	Civil
2.	Electrical
3.	S&T
4.	Operations
5.	Rolling Stock
6.	General (Includes HR, Finance, Legal, Stores, Training Institute etc)
7.	Common (For Executives only)

4.2 The distribution of quarters of various types amongst the various pools at different locations will be as under:-

S. No.	Pool	Type	SP D	S V D	Y B D	N JF D	M D D	B G D	A J D	M KD	G G D	V N D	N A N D	N O I D A	TO T A L
1	Operations	II	17	19	10	29	10	34	29	48	14	34	0	0	244
		III	101	119	0	66	76	58	21	66	33	37	0	45	621
		Transit-I I	19	0	0	0	0	0	0	0	0	0	0	0	19
2	Rolling Stock	II	23	27	13	40	13	47	40	67	21	47	0	0	338
		III	31	37	0	20	24	18	7	20	10	12	0	14	193
		Transit-I I	26	0	0	0	0	0	0	0	0	0	0	0	26
3	Electrical	II	21	24	12	36	12	42	36	60	18	42	0	0	303
		III	31	37	0	20	24	18	7	20	10	12	0	14	193
		Transit-I I	23	0	0	0	0	0	0	0	0	0	0	0	23

4	Civil	II	4	5	2	7	2	8	7	12	4	8	0	0	59	
		III	20	24	0	14	15	12	4	13	6	8	0	9	124	
		Transit-I I	5	0	0	0	0	0	0	0	0	0	0	0	5	
5	S&T	II	17	19	10	29	10	34	29	48	14	34	0	0	244	
		III	31	37	0	20	24	18	7	20	10	12	0	14	193	
		Transit-I I	19	0	0	0	0	0	0	0	0	0	0	0	19	
6	Gen	II	2	2	1	3	1	3	3	5	1	3	0	0	24	
		III	7	9	0	4	5	4	1	4	3	3	0	3	42	
		Transit-I I	2	0	0	0	0	0	0	0	0	0	0	0	2	
7	Commo n	IV	42	6	42	12	6	8	6	10	0	8	30	120	290	
		V	0	0	0	0	0	0	0	0	0	0	0	6	43	49
		VI	0	0	0	0	0	0	0	0	0	0	0	0	8	8
		Transit- Executiv e	0	0	0	0	0	0	0	0	0	0	0	11	0	11
OTHERS (Crèche, Gym, Guest House etc.)			13	1	0	0	0	0	1	1	0	0	1	0	17	
Total			454	366	90	300	222	304	198	394	144	260	48	270	3050	

*Other flats = Ajronda (1), Mukundpur (1), New Ashok Nagar (1), Sarita Vihar (1), Shastri Park (1) + 15 guest house)

(Row at S. No. 2 – Type-II and Total, amended as per approval dated 25.05.2021, File No. D-11/6/2021-HR (O and M))

5. DISTRIBUTION OF STAFF QUARTERS AMONG VARIOUS DEPARTMENTS

5.1 Depending on the staff strength in various departments, the following percentage of pool-wise distribution will be implemented:

S. No.	Pool	Current distribution (%) of staff quarters		
		Type-II	Type-III	Type- IV, V & VI
1	Operations	20	45	
2	Rolling Stock	28	14	

3	Electrical	25	14	NA
4	S&T	20	14	
5	Civil	5	9	
6	General	2	3	
7	Common*	NA		100%

*Pool-wise Allotment is not applicable for executives. Allotments for all executives shall be done from a Common Pool.

6. ELIGIBILITY CRITERIA

6.1 (i) All **regular employees** of DMRC are eligible for allotment of DMRC staff quarters.

(ii) The employees who are allotted staff quarter, while being in regular service and retire from DMRC upon attaining the age of superannuation and are then engaged on Post Retirement Contractual basis, may also be allowed to retain such staff quarter.

The regulation of payment of Gratuity, in case of employees who are allotted staff quarters are superannuating /immediately engaged on PRCE basis, and are allowed to retain staff quarters, as per the admissible rules, shall be as under –

- (a) The employees who are allotted staff quarter, while being in regular service and retire from DMRC upon attaining the age of superannuation, may be allowed to retain such staff quarter (as per Sr. No. 12.4(3)) and their Gratuity (upon maximum Rs. 1 lakh in case of Non-Executives and Rs. 2 lakhs in case of Executives) shall be released on vacation of such staff quarter.
- (b) The employees who are engaged on Post Retirement Contractual engagement basis after superannuation from DMRC and are allotted staff quarter, while being in regular service, may be allowed to retain such staff quarter and their Gratuity (upto maximum Rs. 1 lakh, in cases of Non-Executives and Rs. 2 lakhs, in case of executives) shall be released on vacation of such staff quarter.

In case there is a shortfall / excess in the aforementioned amount/s, the same shall have to be deposited by / released to, the employee, as the case may be.

(Clause 6.1(ii) inserted vide Order No. O&M/HR – 142 of 2023 dated 17.04.2023)

(iii) The employees, who join DMRC on Post Retirement Contractual Engagement basis directly and apply for staff quarter allotment, shall also be eligible, provided they deposit an amount of Rs. 1 lakh in case of Non-Executives and Rs. 2 lakhs in case of Executives, as a security deposit, against the staff quarter, which shall be released once they vacate the allotted quarter. The same condition shall apply for such employees, who retire from DMRC upon attaining the age of superannuation and are engaged on Post Retirement Contractual engagement basis and have not completed

the requisite period for being eligible for payment of Gratuity, at the time of their retirement.

(iv) The priority of allotment of staff quarter, however, shall be given to regular employees, over the employees who are working on Post Retirement Contractual Engagement basis, in case there is a waiting list / non availability of flats. However, the decision of Managing Director in the matter shall be final.

Note - For (ii) and (iii) - Applicable licence fee and other allied charges shall be deducted from the consolidated fee.

For (iii) - They will have to register themselves through the ESS application and shall be allotted staff quarter, as per the DMRC Housing Allotment rules. The eligibility of staff quarter shall be as per their last drawn substantive pay scale, in their previous employment.

The SOP for allotment of staff quarters shall be as below –

S.No	Allotment for cases covered under	Approving Authority
1	Point (i) above	Respective Allotment Committee
2	Points (ii) and (iii)	Managing Director

Further, for employees covered under Point No. (ii) and (iii), the allotment of staff quarters shall be, only after satisfaction of all other criteria viz. availability of quarter, seniority in priority list etc. and at the sole discretion of the MD.

(Clause 6.1 inserted vide Order No. O&M/HR – 142 of 2023 dated 17.04.2023)

The following scale of pay shall be taken into account for the type of accommodation shown against each.

S. No	Staff in Pay Scale	Eligibility for type of quarter
1	All scales up to Rs. 35,000-110000 (Non-Sup.)	Type-II accommodation of concerned pool
2	From Rs. 37000-115000 upto Rs. 50000-160000 (Non-executives only)	Type-III accommodation of concerned pool
3	Rs. 50000-160000 & Rs. 60000-180000 (Executives only)	Type-IV accommodation
4	Rs. 70000-200000 and above (Dy. HODs only)	Type-V accommodation
5	Rs. 120000 – 280000 and above (HODs and above only)	Type-VI accommodation

*No quota will be applicable on the basis of pay scale.

6.2 The allotment of accommodation to an employee under suspension shall be made as if suspension has not taken place.

- 6.3 In case of absconding employees, allotment will not be given, but seniority will be kept on hold.
- 6.4 The seniority of employees who are posted at outstation offices/projects will be maintained till the time they return and allotment will be done to the subsequent employees in the list. (Modified vide O.O. No. O&M/HR-137 of 2021 dated 18.05.2021)
- 6.5 The names of employees proceeding on deputation will be removed from the priority list. Upon repatriation, the employee may register afresh for DMRC staff quarters, and his/her seniority will be placed at the bottom of the list. (Included vide O.O. No. O&M/HR-137 of 2021 dated 18.05.2021)

7. PRIORITY LIST

- 7.1 (a) For availing staff quarter facility, registration will be prerequisite for which registration has to be completed on ESS portal (Sample hard copy format at Annexure I). The location preference will have to be filled on ESS portal (Sample hard copy format at Annexure II).
- (b) The applications received will be added type-wise in the list as per procedure outlined below.
- (c) Each time there is an upgradation in eligible type of quarter, the employee shall have to apply afresh.
- (d) Deleted vide Order No. O&M/HR – 142 of 2023 dated 17.04.2023
- 7.2 The calculation of date of priority and preparation of waiting lists for all types of accommodations shall be as under:
- The date of priority for all types of accommodation shall be determined on the basis of the date and time of registration** by the employee on ESS portal for the eligible type of accommodation.
- 7.3 Deleted vide O.O. No. O&M/HR-101 of 2022 dated 25.03.22)
- 7.4 A common priority list shall be prepared for the quarters situated at different locations and allotment will be made as per turn & availability.
- 7.5 After promotion through LDS/LDCE or time-bound promotion, the employee shall be eligible for the allotment of lower type of staff quarter as well, if applied earlier, and seniority will be maintained in both lists.
- 7.6 In case of transfer of an employee on administrative ground to any other pool, his/her name in the priority list shall be kept in both (previous and new pool) the priority lists of quarters, with a specific remark – “He/she shall be allotted quarter on his/her turn in any priority list whichever comes earlier to avoid loss of his turn in quarter allotment in new pool” After allotment, the quarter may be transferred to new pool, to make the accountal complete.
- 7.7 In case of transfer on own request to a different pool, he/she will be treated as a fresh applicant and will be interpolated in the priority list of the new pool as per his/her date of transfer.
- 7.8 In case of employee having his/her name in any particular pool again joined post in higher grade through open market recruitment process, 50% weightage of the previous seniority (lower type) will be given and his/her name will be interpolated in the priority list of higher

grade in the priority list of higher grade in new Pool. This weightage shall be given as a one-time benefit in the career of the employee.

7.9 **Non acceptance of offer/allotment or failure to occupy:**

Once a quarter is allotted as per the above scheme, and the staff refuses to take accommodation then his/her name will be struck from the priority list and he/she will have to pay further one month's HRA from the date of withdrawal request. Thereafter, fresh registration will be required for quarter allotment.

7.10 **Reservation in Staff Quarter**

a) 10% of quarters will be reserved for SC and ST candidates in Type-II quarters and 5% will be reserved in Type-III and IV. However, there will be no reservation in essential staff quarters which are allotted exclusively for maintaining essential services. However, there shall be no bar in nominating essential staff from any category employee.

b) The ratio of SC and ST employees in the reserved quota will be 2:1 and SC/ST who are already in possession of staff quarter will not be eligible for higher type of accommodation out of quota reserved for SC and ST employee.

c) Separate waiting list will be prepared for SC/ST for Type-II, III & IV quarters.

d) In case, there is no ST employee, the quarter will be allotted to SC employee and vice versa.

e) In case of SC/ST employees who get staff quarters due to their seniority in the general waiting list, such allotments will not be counted against the reserved quota.

8. **ALLOTMENT PROCEDURE**

8.1 Allotment of quarter to eligible employees shall be made by the nominated Committee of the pool in consultation with HR wing, in accordance with the priority list of the Pool, through a process of draw.

8.2 The following Quarter Allotment Committees have been constituted for the various pools:

S. No.	Pool	Member from concerned pool	Member from HR/O&M Branch
1	Operations	Dy.HOD/Operations	Dy.HOD/HR/O&M
2	Rolling Stock	Dy.HOD/RS	
3	Electrical	Dy.HOD/E&M	
4	S & T	Dy.HOD/S&T	
5	Civil	Dy.HOD/Civil	
6	General & Common	Dy.HOD/Finance	

Note - In case of unavailability/transfer of any committee member, concerned HOD may nominate another member in his place.

On being notified regarding vacant quarters available for allotment from HR wing, the allotment committee will issue notice/circular on intranet for informing shortlisted employees regarding allotment on the basis of willingness submitted by them and priority list for allotment before forwarding their names to the HR department, so as to avoid withdrawals after issuance of allotment orders. This exercise shall be completed by the committee within 15 days of receipt of note regarding vacant quarters for allotment.

8.3 On the basis of allotment made by the Committee, allotment orders will be issued by the nominated officer (AM/Manager for Type- II, III & IV and Dy. HOD for Type- V and VI) in the HR/O&M department.

8.4 **General Rules for allotment:**

(a) 10 days' time will be given from the date of allotment order for taking occupation of the staff quarter.

(b) Also during the aforesaid 10 days period the allottee shall visit the staff quarter allotted to him/her and verify its condition. If any problem related to civil or electrical work is found, the issue should be reported to the concerned department of the staff quarter premises who will acknowledge in writing to the HR department that handover was on hold due to pending works. The date of releasing the quarter for occupation, upon completion of repairs etc. will be clearly mentioned. 7 days' time after the release date will be given for shifting, after which HRA deduction will be made.

(c) Further, in case an allottee residing in staff quarters is allotted another staff quarter, but the allottee has failed to occupy the allotted staff quarter and continues to occupy accommodation in previous staff quarter beyond 10 days of the allotment order, the allotment to new staff quarter is liable for cancellation. However, a further grace period of maximum 20 days will be given upon request of employee on medical/academic session grounds etc, backed by relevant documents, if approved by HOD/HR/O&M. If the employee has still not vacated the previous accommodation, the allotment to new staff quarter will be automatically cancelled, and the employee will have to register afresh.

8.5 After the allotment of a quarter to an employee, a declaration/agreement regarding terms of occupation shall be submitted by the allottee at the time of possession along with Occupation Report (Declaration at ANNEXURE III). Formats of Occupation and Vacation Reports are attached at Annexure IV and V respectively.

8.6 **License fee (Earlier known as Standard Rate):** The below-mentioned licensee fee per month will be charged by the Corporation from the allottees of its quarter and will be recovered from their monthly salary and other dues from which it can be legally recovered.

S. No.	Type	License Fee
1	Type-2 & Transit - II	Rs. 280
2	Type-3	Rs. 550
3	Type-4 & Transit - Exe.	Rs. 730

4	Type-5	Rs. 1090
5	Type-6	Rs. 1630*

(*Rate notified vide O.O. No. O&M/HR-272 of 2021 dated 06.09.2021)

8.7 The employee to whom a quarter is allotted shall be personally liable for the payment of rent thereof and for any damage beyond fair wear and tear caused thereto or to furniture, fixtures or fittings etc., during the period the quarter has been and remains allotted to him/her and until it is physically vacated by him/her.

8.8 (a) An employee should surrender the quarter allotted to him/her by giving a prior notice of not less than one month to the HR department. In case the said prior notice is not given before vacation, then one month license fees will be recovered from the date of vacation. He/She will be responsible for the payment of, license fee and other dues for the notice period and for any period beyond during which he continued to retain the accommodation.

(b) In case of transfer on administrative grounds, prior intimation before surrender is not required.

(Modified vide O.O. No. O&M/HR-103 of 2022 dated 25.03.2022)

8.9 In case of 100% disability, compassionate allotment of staff quarters, a quarter next below to the entitlement of the applicant, may be considered for allotment from the same pool to which the employee is entitled.

If a quarter of the entitled pool is not available at that time, a quarter may be borrowed from other pool, if available and the same type of quarter will be returned as and when it becomes available.

8.10 The employee will be liable to pay electricity, water & other charges levied by the concerned authorities for the services provided and availed of by him during the period the quarter stands allotted to him and until it is vacated by him.

8.11 Any deviation in the rules for out of turn allotment of a quarter can only be made with the approval of the Managing Director.

9. OPEN- FOR-ALL ALLOTMENT AND MUTUAL CHANGE OF STAFF QUARTERS

9.1 Open- for-all Allotment

(a) Quarters of a higher type may be allotted to a person of lower pay only when no employee is desirous of getting accommodation is in the priority list for that type of quarter even after making at least 2 attempts to invite willingness.

(b) In such an event, the quarters shall be offered on open-for-all basis to unregistered employees eligible for the same type for a limited period.

(c) In case the flats still remain vacant, they will be offered to the senior most employee in the seniority list of the lower type of quarters, who shows willingness for allotment of the higher type of quarters. This process shall be done with the approval of Director/Operations.

(d) A lower type of quarters, to an employee in the seniority list for higher type of quarters may not ordinarily be allotted under these rules.

9.2 Mutual Exchange of Staff Quarters

At Different Locations	At Same Location
Allowed within the same pool and same type.	
Allowed only after the minimum period of three months of occupation of quarter, provided both will not leave DMRC or the staff quarters within six months .	
Further, in case the employee leaves DMRC/Staff Quarter before six months, recovery of license fee will be done for the balance period.	
The next request for exchange will not be permissible, before expiry of two years period of materialization of the earlier request.	Allowed once in the entire service only.

*Recommendation of Nominated Committee Member of the concerned department is mandatory in both the cases.

**Mutual exchanges will not be applicable in case of open-for-all allotment and out-of-turn allotment.

Format for Mutual Exchange application is attached at Annexure VI.

10. RULES FOR CHANGE OF QUARTER LOCATION

10.1 After allotment of a quarter to the employees, no request for change to a different location shall be allowed unless it is in interest of administration with the approval of DO.

For change of location to a different colony and to a different quarter/floor within the same colony, due to medical grounds, a 3 member committee constituted for the purpose will examine medical reports for genuinity and make recommendation to the HR department for processing the case as per availability.

However, this will be allowed only once in the entire service only.

10.2 Options for locations:-

(a) All the staff will have to submit their location preference (upto 3 options) through ESS (hard copy sample at Annexure II).

(b) On the receipt of vacation reports from the Civil Department, whatever quarters are vacant, as per the HR records, will be furnished to the respective department and will be allotted on the basis of priority and the location preference.

(c) In this process, if the staff fails to get a quarter in any of his/her first three preferences then, whenever in future, if any quarter is available at these three locations, the same will be offered to the staff with higher priority and if he/she is unwilling then only it will be offered to the staff who is next in the priority.

(d) Once a quarter is allotted as per the above scheme and the staff refuses to take accommodation then he/she will be debarred from any further allotment and fresh registration will be required for quarter allotment.

(e) Option for location change will be entertained only once in a calendar year or whenever a staff is transferred from one location to another location on administrative grounds, only on the recommendations of the HOD.

11. ALLOTMENT OF STAFF QUARTERS UNDER ESSENTIAL QUOTA

11.1 (a) 10% of staff quarters for phase III and IV will be reserved for essential staff (non-executives only, to ensure expeditious attention towards teething problems related to new technology like UTO, PDS, CBTC which may hamper train services. The concerned HOD will certify the employee as an eligible essential staff, and employee shall also agree to the terms as stipulated in the Annexure to be signed and submitted to the HR wing.

(b) An employee having duty within 10 km radius of the staff quarter will only be eligible for the facility. Further, HOD's recommendation for the allotment will be approved by DO.

(c) In case an employee is allotted Staff quarter under Essential Quota, he will be allowed to vacate in case of administrative transfer to DMRC projects outside Delhi-NCR without completing 3 years of stay in the staff quarters.

(d) In case more than one application is received, the same will be put in priority as per date of application.

(e) The essential quota quarters which remain vacant for more than 6 months, will be considered as normal quarters for allotment. Subsequently, if any request for essential quota is received, a normal quarter from the pool will be converted into essential quota to maintain the percentage.

(f) Format for Essential Quota may be sent as per Annexure VII.

12. MISCELLANEOUS

12.1 **Allotment to employees married to each other:-**

(a) No employee shall be allotted a staff quarter if the spouse of that employee has already been allotted a government staff quarter (i.e state /central or any other PSU/CPSE's staff quarter), unless such staff quarter is surrendered.

(b) Provided that this sub-rule shall not apply where the wife and husband are residing separately by an order of judicial separation made by any court or where a petition has been filed for the separation,

(c) When two allottees in occupation of separate staff quarters marry each other, they shall surrender one of the staff quarters within one month of marriage.

12.2 House Rent Allowance:-

A government servant shall not be entitled to House Rent Allowance if:

- a) He/She shares Government accommodation allotted rent free to another Government servant; or
- b) He/She resides in accommodation allotted to his wife/her husband or to his/her parents/son/daughter by Central government, an autonomous public undertakings or semi-government organization such as Municipality, Port Trust etc.

In case such instances are found, recovery shall be made as per applicable rules.

12.3 **Extension for date of possession of staff quarter:** - After allotment, extension for taking possession up to 6 months may be given in genuine cases (i.e. problems faced due to ongoing academic session of children, medical condition etc.) with the approval of HoD / HR/O&M department. For this period, double license fee will be charged for availing such extension.

12.4 Retention of Staff Quarter

The rules relating to retention of DMRC Staff Quarters are as under: -

S. No.	Events	Rules for retention
1	In case of repatriation / resignation / deputation	First Two Months (On payment of license fee)
		Next Two Months (On payment of double license fee)
2*	In case of appointment for the Board level post in other organization/ mid-session repatriation/ mid-session deputation/ mid-session transfer further period if any (maximum upto academic session), beyond 4 months	Payment of four times the normal license fee
3.	Retirement, voluntary retirement, retirement on medical grounds, terminal leave or compulsory retirement under FR 56 (J)	Six months on normal license fee
4.	Dismissal or Removal from service, termination from service, or unauthorised absence without permission, or compulsory retirement under CCS (CCA) Rules 1965.	One month on normal license fee.

5.	On transfer to DMRC Project outside Delhi/NCR, where lease facility is not given.	Allotted staff quarter may be retained till transfer back on payment of license fee and HRA, at places where lease facility is not given.
6	To eligible ward/spouse in case of death of the allottee or in case of missing persons (from date from which police authority has certified the employee to be missing)	One year on normal license fee and further one year on double license fee. Any overstayal beyond two years, shall be governed by Clause 12.7**
7	Study leave	Actual period of study leave, or two years, whichever is earlier.

*Item No. (2) will not be applicable in case of resignation other than Board level post.

**Modified vide Order No. O&M/HR – 142 of 2023 dated 17.04.2023)

12.5 The allottee shall reside in the accommodation allotted to him with his family and close relations. An employee who has been allotted a quarter of the Corporation shall not sublet any portion of it. The servant quarters and garages if any, attached to the quarters shall be used only for bonafide purposes including residence of the servants of the allottee or such other purposes as may be permitted by the Corporation.

12.6 If any employee to whom a quarter is allotted, unauthorizedly sublets any portion of, or uses the quarter for any purpose other than his/her own residence or any other purpose for which it is permitted to be used or causes damages to the building, furniture, fixtures and other fittings, etc, or uses/occupies common areas in the staff quarter premises by placing own furniture, almirahs, etc, around fire hydrants, or common passage areas leading to danger in case of fire safety or other emergencies; provided therein, or conducts himself/herself in a manner prejudicial to the maintenance of harmonious relations with the neighbors, the management may without prejudice to any other disciplinary action, that may be taken against him/her, may cancel the allotment of the quarter.

Also, the concerned department can clear the common area of residents' personal belongings without prior intimation/notice. Repeated violation (more than twice) can lead to cancellation of the accommodation upon recommendation of RRA.

12.7 When an employee of his / her family continues to be in occupation of a quarter of the Corporation, whose allotment in his / her favour has been cancelled or the employee / employee's family continues to occupy the quarter after completion of admissible retention period, he / she or such family members, will be liable to pay monthly penal rent for extended use of the quarter which shall be equal to the last drawn monthly Basic Pay of the allottee w.e.f. the date of cancellation / overstayal of the allotment.

(**Modified vide Order No. O&M/HR – 142 of 2023 dated 17.04.2023)

12.8 After allotment order is issued, cancellation of staff quarter allotment due to administrative reasons shall be done with the approval of DO. For such employees the priority will be maintained as prior to allotment.

- 12.9 Notwithstanding the provisions contained in para-12.4 above, the Director/Operations may, on his/her discretion and sole administrative convenience, allow an employee in whose case the allotment of a quarter has been or is deemed to have been cancelled to continue to retain the quarter for a period of 6 months more or till the end of the academic year whichever period is shorter on grounds of education of children, on payment of twice the license fee.

13. INTERPRETATION/RELAXATION/DELETION/MODIFICATION

- 13.1 The Managing Director has the power to interpret these rules and in case of doubt / dispute, his / her decision will be final. He / She shall have the power to relax/ delete / modify / revise etc. any of the rule provisions in individual cases of hardship with reasons to be recorded in writing.

Chapter-L

DMRC STAFF WELFARE TRUST RULES



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DMRC STAFF WELFARE TRUST

RULES

1. TITLE AND COMMENCEMENT

These rules shall be called the DMRC Staff Welfare Trust Rules.

2. DEFINITION

In these rules, unless the context otherwise requires-

- 2.1 “**Member**” means regular and contract employee of the corporation including absorbee’s, but does not include deputationist, re-employment personnel, consultants and a person employed by the corporation on daily wages or apprentices paid under the Apprenticeship Act, 1961.
- 2.2 “**Family**” means a member’s spouse, children (son below the age of 25 years or till they get married or employed; whichever is earlier, unmarried daughter but not employed and dependant on the member (employee)) and widow mother/parents of the member (employee) only, who is wholly dependent upon the member (employee) and does not have independent income more than 15% of the basic pay of the member (employee) or the amount arrived by adding minimum pension/family pension of Rs. 9000/- (excluding the element of additional pension of old pensioners) and the dearness relief admissible to the pensioner/family pensioner thereon, rounded off to the nearest ten-rupee figure, whichever is more.
- 2.3 “**Fund**” means fund financed from the monthly contribution from member and the equal annual contribution by DMRC and from other sources as mentioned in para 5.
- 2.4 “**Committee**” means the committee constituted comprising members which shall be nominated by Managing Director to manage the fund for various welfare activities for DMRC members.

3. MANAGEMENT OF THE FUNDS

The Fund shall be administered by a Committee to be nominated by the Managing Director periodically from amongst the following:

- a) An officer at the HOD level or above to function as the ‘Chairman’.
- b) An officer at the Dy. HOD level to function as the ‘Deputy Chairman’.
- c) An officer at the Dy. HOD level to function as the ‘Member/Secretary’.
- d) Two representatives of members to be nominated by the Managing Director, one from amongst the Executives, working in grade Rs. 50000- 160000 IDA and up to Rs. 60000-180000 IDA and the other from amongst the non-executive grade Rs. 50000-160000 IDA and below.

- e) Any other representative(s) to represent special interest of the members as may be considered necessary by the Managing Director.

4. TENURE

The tenure of the committee shall normally be two years. However, the Managing Director may at his discretion extend its term or change the nomination during the tenure.

5. SOURCES OF THE FUND

“The Fund” shall be financed from the following sources: -

- a) Monthly contribution from the members at the prescribed/approved rates.
- b) Voluntary contribution from the members or other individuals, institution, organizations, etc, in the form of donations.
- c) Miscellaneous receipts such as from interest on investments, charity shows, fetes, etc,
- d) In addition to the above, a credit will be done to the fund in the month of April of each financial year, which shall be an annual contribution by DMRC for the previous year, matching the monthly contribution made by the members in the previous year.

6. OBJECTIVES OF THE FUND

6.1 The main objectives of the fund are-

- a) General welfare activities including recreation and amusement restricted to members and their families;
- b) Provision for education facilities to the children of members;
- c) Sickness benefits to the members so as to provide relief from distress;
- d) Any other object which, in the opinion of the Committee, deserves assistance from the Fund.

6.2. Some of the important objects and activities that could be supported from the Fund, on being duly recommended of the committee and further approval of Managing Director, are -

6.2.1. General welfare Activities

- (i) Grant for marriage gift to the member and their first two children, as per the nominations in service book & record.
- ii) Grant for Child birth gift to the member for first two children only.
- iii) Grant to dependent child suffering from infirmities (persons with disabilities /Divyangjan), which makes him/her eligible for appointment under ‘Rights of Persons with Disabilities Act’ 2016.
- iv) Facility of one-time grant to the spouse or children of a deceased member (regular employee), wherein, no employment assistance on compassionate ground is provided/DEFHS facility is not extended/ Pension’s, etc is not provided from any

other source. In case the member is unmarried and is survived by a widow mother dependent on the member (employee), as per DMRC Medical Attendance Rules, the facility can be extended to the widow mother also.

- v) Grant of cash award for excellence in sports field to the members/their wards, for achieving 1st /2nd/3rd position at State/National /International level competition recognized by the nominated govt. authorities/sports federations.
- vi) Funds may be allocated from Staff Welfare Fund to boost the women empowerment programmes for female members.

6.2.2. Education of members' children

- (i) Grant for assistance to the wards of members on successfully qualifying with earmarked percentage, Secondary /Senior Secondary School (as a one-time lumpsum award to the child)
- ii) First time admission grant for the wards of members.
- iii) Grant for Tablet PC to any one daughter, for non-supervisor level members only.
- iv) Cash award (as a one-time lumpsum) for the daughter of member's on successful completion of full-time professional Degree/Post graduation courses.

6.2.3. Recreation and amusement

- i) Grant for Institutes and recreation clubs formed by members
- ii) Grant for sports activities organized by members
- iii) Grant for cultural activities of members including educational tours of members.
- iv) Grant for picnic, sightseeing, excursion trip and for sports activities for members and their wards organized by DMRC.

6.2.4. Scheme for sickness and relief in distress

- i) Financial assistance to members suffering from terminal diseases.
- ii) Supply of artificial limbs, when necessary to members; if not covered under DMRC Medical Attendance Rules.
- iii) Meeting funeral expenses for members and their immediate family members (spouse and children) including parents.

7. ALLOCATION OF THE FUND

Allocation of the fund for various activities shall be proposed by the Committee members and approved by MD. Use of the fund will be strictly as per the proposed scheme. New allocation of funds beyond the specified purpose, if necessitated, will also require MD's approval based on the recommendation of the Committee.

8. ACCOUNTS & AUDIT OF THE FUND

- i) The accounts of the Fund shall be maintained separately in an appropriate form by a nominated AM/Manager level Officer of the Accounts department, who will be the Accounts officer to the fund.

ii) Disbursements from the funds shall be made on the approval of the Chairman and Secretary of the Committee.

iii) Annual statement of accounts shall be prepared by the Accounts Officer to the fund with the approval of committee and duly audited by the statutory auditors. The same will be put up to the Managing Director through the Chairman and Secretary.

9. BANKERS

An account is opened in a nationalized bank in the name of the Fund. All cheques for disbursement shall be signed jointly by two persons as decided by the committee. from amongst the Chairman, Deputy Chairman, Secretary and the Accounts officer as mentioned in para 8 above.

10. REVIEW OF THE FUND

The various schemes & the provisions will be reviewed every two years commencing from date of issue of these rules, based on the applicability/availability of the schemes/funds, etc,

11. INTERPRETATION/RELAXATION/DELETION/MODIFICATION

The Managing Director has the power to interpret these rules and in case of doubt / dispute his / her decision will be final. He / She shall have the power to relax/ delete / modify / revise etc. any of the rule provisions in individual cases of hardships faced by members with reasons to be recorded in writing.

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Annexure 'A'**Grant/ Assistance under 'Staff Welfare Trust' Provisions w.e.f. 01/04/22****A. Contribution towards Staff Welfare Trust:**

Current rates of contribution applicable w.e.f. 01.01.2020, for each category of members:

Un-skilled, Semi-skilled	Below Supervisors	Supervisors	Executives up to AGM Level	HODs & above
Rs. 15/- per month	Rs. 20/- per month	Rs. 35/- per month	Rs. 60/- per month	Rs. 70/- per month

(Ref.: Office Order No. HR/O&M/67/2020, dated 21/01/2020)

B. The activities, which will be funded from staff welfare Trust and the revised applicable rates w.e.f. 01/04/2022 are as under:

S. No.	Welfare Scheme (Grant /Assistance)	Existing Rate	Revised rate	Admissible to (Executives / Non-Executives)	Reference Office Order No.	Conditions applicable/Remarks, if any
1	Marriage Gift*: a) Female member. b) Male member c) Daughter of DMRC member d) Son of DMRC member	Rs. 8000/- Rs. 4000/- Rs. 8000/- Rs. 4000/-	Rs. 8000/- Rs. 4000/- Rs. 8000/- Rs. 4000/-	All	Item No. 1, O.O. No. PP/1692/2013 dt. 31/10/13	☐ Applicable once in service for self-marriage & marriage of their children (limited to first two children only) ☐ Age restrictions of 25 years for son/daughter shall not be applicable.
2.	Child Birth Gift	Rs. 2000/-	Rs. 2500/-	All	Item No. 2, O.O. No. PP/1692/2013 dt. 31/10/13	Limited to first two children only
3	Grant of assistance for school children A.] On passing class 10 th exam with: a. 85% marks and above but below 90% marks or equivalent grade-	Rs.4500/- Rs.6000/- Rs.7500/-	Rs.4500/- - Rs.6000/-			

	b. 90% marks and above but below 95% marks or equivalent grade - c. 95% marks and above or equivalent grade- On passing Class 12th exam with: a) 85% marks and above but below 90% marks or equivalent grade- b) 90% marks and above but below 95% marks or equivalent grade- c) 95% marks and above or equivalent grade- A.] First time admission in Nursery/KG/Ist	Rs. 6000/- Rs. 7500/- Rs. 11000/- Rs. 1000/-	Rs.7500/- Rs. 6000/- Rs. 7500/- Rs. 11000/- Rs. 1000/-	All All	Item No. 3, O.O. No. PP/1692/2013 dt. 31/10/13 Item No. 3, O.O. No. PP/1692/2013 dt. 31/10/13	• Cash Award as one-time lumpsum award • Limited to first two children only. • Limited to first two children only
	C.] Grant for dependent daughter on successful completion of professional degree/PG courses with aggregate 70% marks and above as: -Degree Course -Post Graduate Course	Rs. 4500/- Rs. 6000/-(Annual)	Rs. 7500/- Rs. 10,000/-(as a one-time grant)	Non-Exe.	Item No. 3, O.O. No. PP/1692/2013 dt. 31/10/13	• Cash award as one-time lumpsum amount, or successful completion of Professional degree/PG Course (Full time) with earmarked marks. • Limited to two Dependent daughters only
4	Monthly grant in case of long sickness- For life-threatening diseases like Cancer, TB, Kidney, Liver ailment and major surgery requiring prolonged treatment and hospitalization	Rs. 4000/-per month	Rs. 4000/-per month	All	Item No. 4, O.O. No. PP/1692/2013 dt. 31/10/13	□ Monthly grant will be applicable to only those members, who are unable to resume duty due to prolonged treatment and is on "without pay"

						owing to no leave a their credit, til they resume duty after treatment.
5.	Quarterly grant for Persons with disabilities /Divyangjan child.	Rs. 2500/-	Rs. 2500/-	All	Item No. 6, O.O. No. PP/1692/2013 dt. 31/10/13	□ Grant to those members (employee) who has a dependent child suffering from infirmities (person with disabilities/Divyangjan), which make him/her eligible for appointment under 'Rights to person with Disabilities Act' 2016.
6.	Grant to Spouse/ or Children/ or dependent widow mother, of the deceased member (regular employee), wherein, no compassionate appointment is provided/ DEFHS (Deceased employee's family health scheme facility is not extended)/Pension's, etc., is not provided from any other sources)	Rs. 3500/- (Monthly grant)	Rs. 50000/- (One- time grant as a lumpsum amount)	Non-Exe.	Item No. 7, O.O. No. PP/1692/2013 dt. 31/10/13	□ One time grant as a 'lumpsum amount' to spouse/children below the age of 25 years /dependent widow mother (in the aforesaid order of precedence) of the deceased member (Regular employee only) □ subject to submission of Life certificate (for existing cases) and undertaking (for all future and existing cases) Existing cases: □ Monthly grant @Rs. 3500/-shall be continued for all earlier cases till the notional date of superannuation of deceased

						members (regular employee).
7.	Grant of Funeral Assistance in case of death of the member (employee), or, his/her family members including parents (irrespective of dependency and the condition of “staying with the member (employee).”	Rs. 10,000/-	Rs. 10,000/-	All	Item No. 8, O.O. No. PP/1692/2013 dt. 31/10/13	☐ Subject to submission of death certificate.
8.	Tablet PC to dependent daughter (for one daughter only) on joining a regular Post graduation course (Full time) from Govt. recognized university/ Institute, after graduation with min. 70% marks in the National/ State run universities/Autonomous Universities.	1 Qty	1 Qty (with Ceiling limit- Rs. 15,000/-)	Non-Supervisor only	Item no. 3, O.O. No. PP/1692/2013 dt. 31/10/13	☐ Applicable for one daughter only for non-supervisors' members ☐ Eligibility for reimbursement- Rs. 15,000/-, or the actual cost of tablet PC whichever is less
9.	Cash awards for excellence/achievement in sports fields: a) Achievement at International level 1 st position 2 nd position 3 rd position b) Achievement at National level 1 st position 2 nd position 3 rd position c) Achievement at State level 1 st position 2 nd position 3 rd position	Rs. 20,000/- Rs. 15000/- Rs. 10000/- Rs. 10,000/- Rs. 7,500/- Rs. 5,000/- Rs. 7,500/- Rs. 5000/- Rs. 4000/-	Rs. 20,000/- Rs. 15000/- Rs. 10000/- Rs. 10,000/- Rs. 7,500/- Rs. 5,000/- Rs. 7,500/- Rs. 5000/- Rs. 4000/-	All	Item No. 2 of O.O. No. PP/1400/2012 dated: 28/02/12	☐ Limited to two children only. ☐ These awards will be extended for the sports events, which are recognized at International, National and State level competition by the nominated Government authorities/sports federations.

10.	Annual Camp for members and their families. ** (With a view to promote spirit de corps among the employees, Camps/tours will be planned /organized to the places of tourist / pilgrimage interest/ hill stations.)	Two-third of the lodging (without food) and travelling expenses will be borne by SWF and one- third by the member concerned.	Two-third of the lodging (without food) and travelling expenses will be borne by SWF and one- third by the member concerned.	All	Item no. 3 of O.O. No. PP/538/2006 dated 30/10/2006	1. All members of DMRC who are married and intend to take their family along can participate in the camp. 2. The number of members per family shall be limited to 4 only and will include only immediate family members i.e. (spouse/children), as per the declaration in the Service Book. 3. A member will be eligible for this benefit only once in a block of 5 years . period.
11.	Grant for Recreation/ Amusement/Sports/ Cultural Activities***	Amount will be sanctioned @ Rs. 125/- each member of the group.	Amount will be sanctioned @ Rs. 125/- each member of the group.	All	Item No. 3 of O.O. No. PP/1400/2012 dated: 28/02/12	□ Every Year SWF earmarks some budget for picnic sightseeing/ sports cultural activities etc. SWF member shall coordinate with the concerned wings to facilitate organizing Picnics sightseeing/tours, Puja/Festival Ceremony, other cultural Programmes, etc.,
12.	Diet Allowance	Rs. 3800/- p.m.	Repealed for all future cases	Non-Exe.	Item No. 5 of O.O No. PP/1692/2013 dated 31/10/2013	Existing cases Continued will be dealt with as under: □ Quarterly grant @Rs. 3800/- will be continuously given to the existing cases (Members who are suffering from cancer), till such time they recover from illness.

13.	Grant of Hostel Subsidy	Rs. 500/- p.m. and Rs. 10,000/- (One time scholarship)	Repealed for all future cases	-	Item No. 4 of O.O. No. PP/538/2006 dated: 30/10/2006	☐ No Existing cases
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NOTE:

* All SWF claims except grant for Marriage gift, shall be limited to one of the spouses only, if both are working in DMRC

** For Annual camp which will be organized for the members and their family, the places and timings for this long journey camp will be decided and notified in advance by Staff welfare fund committee and accordingly the member will be required to submit their options. Camps/Tours of covering upto 1% of total member's (employee's) strength will be organized every year. If the number of optees exceeds the fixed limit, a draw will be held to decide the beneficiaries. Max. of 4 representatives from DMRC will be nominated to accompany, each camp on official duty.

***The requisition of the fund, as per the admissibility, shall be forwarded as one consolidate demand of his department by the concerned HOD through HR wing. The departments shall maintain record of the fund demanded/allocated/expenditure incurred against the same and forward the same to Secretary, Staff Welfare Trust within one month of withdrawal of fund. In case, no expenditures incurred in a particular year, the admissible amount of grant may be drawn alongwith the funds of following year. However, the budget for this purpose of a particular year shall not be carried forward for more than one year. (Ref: Office Order No. PP/1400/2012, dated: 28.02.2012).

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Chapter-M

DMRC

LEAVE TRAVEL ADVANCE RULE



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MASTER CIRCULAR

LEAVE TRAVEL CONCESSION RULES

These rules shall be called as DMRC Leave Travel Concession rules of DMRC.

1. OBJECTIVES

These rules are meant to provide financial assistance to employees of DMRC in meeting the expenses of travel involved while availing of rest and recreation with their family away from headquarters at the 'Hometown' or 'Elsewhere' periodically.

2. SCOPE AND APPLICABILITY

These rules shall apply to all Regular employees, contractual employees on regular pay scales, who have completed at least one year of continuous service in cooperation, including those on deputation from Governments/ Public Sector Undertaking, who are permanently absorbed. The deputationist from other Government Departments/PSUs, who are eligible for LTC, will be eligible for LTC in DMRC also, as per their parent department eligibility.

Ref: 0.0. No. PP/1326/2011 dated 17.10.2011

Exclusion (This rules shall not apply to):

These rules do not apply to casual employees, whether on daily or monthly rates of wages or to those retired personnel engaged on Re-employment/ short term contract basis.

3. DEFINITION

3.1 Competent Authority means Managing Director (MD) or any other officer stipulated under Schedule of Powers (SOP).

3.2 Family means an employee's spouse, children (son below the age of 25 years or till they get married or employed; whichever is earlier, unmarried daughter but not employed and dependant on the employees) and widow mother/ parents of the employee only, who is wholly dependent upon the employee and does not have independent income more than 15% of the basic pay of the employee or the amount arrived by adding minimum pension/family pension of Rs. 9000/- (excluding the element of additional pension of old pensioners) and the dearness relief admissible to the pensioner/family pensioner thereon. rounded off to the nearest ten rupee figure, whichever is more.

Ref: Office Order No. DMRC/PERS/14-A/2018, dated: 30.11.2018. & 0.0. No. DMRC/PP/1910/2015, dated: 23.01.2015 and O.O.No.DMRC/PP/1987/2015 dated 22/05/2015.

Note

- (i) If spouse of the employee is employed with (i) any 'government organization/PSU/Autonomous bodies/ Local Bodies, the employee will have the choice for declaring separate dependency for claiming medical and LTC facilities; either completely (Medical + LTC) from DMRC or separately LTC from DMRC and Medical from spouse's organization or vice versa..

Ref: 0.0. No. PP/699/2007 dated 05.12.2007 & 0.0. No.HR/O&M/393/2023, dated: 29.08.2023.

(ii) The options once exercised for LTC will be valid for the complete block of 4 years for LTC and mid way change of locations, will not be entertained.

(ii) Employee can have separate dependency for medical and LTC for claiming the same either from DMRC or from Spouse's organization. However, the employee will ensure that the claim is not duplicated. Frequent change of dependency for LTC will not be entertained. The employee will have to submit necessary certificate from spouse's organization

(iii) Ref: 0.0. No. HR/O&M/393/2023, dated: 29.08.2023

3.3 "Home Town" means the town/ village or any other place, declared as such by the employee at the time of joining the corporation or at the time of absorption and accepted by the competent authority, as the place where employee himself was or his near relatives are still residing or where the employee owned immovable property.

3.4 Change of Home Town: The declaration of home town once made (Annexure-1) and accepted by the Competent Authority shall ordinarily be final. However in exceptional circumstances, the Managing Director or Functional Director may at his discretion authorize a change in declaration once during the entire course of service of employee in the corporation.

4. NATURE AND EXTENT OF LEAVE TRAVEL CONCESSION

4.1 The primary condition for admissibility of LTC under these rules is that it can be availed of only when the employee proceeds on leave.

4.2 SPLIT LTC/ TRAVEL IN GROUP

If, the employee and his family member/s travel/s separately during onward/ return journey, this will be considered as split LTC. However, split LTC can be availed under the approval of Concerned HOD. The LTC may be availed of by an employee and his family by undertaking the travels in separate groups but the outward journey of the last such group should commence before the expiry of six months from the date of commencement of the outward journey of the first group and the return journey of the last group must also be completed within six months from the date of commencement of its outward journey.

4.3 The scale of LTC entitlement will be as follows:

(1) **Home Town LTC:** Once in a block of two calendar years for the journey by the direct/shortest route from the headquarters to the hometown and back.

(ii) **All India LTC:** Once in a block of four calendar years for the journey from the headquarters to any other place in India and back, in lieu of a journey by the direct/ shortest route from the headquarters to the hometown and back.

(iii) However, if LTC to other than Hometown is not availed, the employee is eligible to avail one hometown LTC in lieu thereof in a block of four years in addition to one home town LTC allowed during the four year block (0.0. No. PP/1751/2014 dated 07.03.2014).

(iv) LTC claim of DMRC employees is to be regulated from the Headquarters to the Hometown. Thus, the DMRC employees whose headquarters / place of posting and hometown are same are not eligible for hometown LTC. In respect of DMRC employees whose headquarters/place of posting and hometown are different, they are eligible for hometown LTC irrespective of distance. The minimum gap between two LTC shall, however, remain six months from the date of outward journey of the previous LTC. (Addendum to 0.0. No. PP/3236/2022, dated: 16.12.2022)

Note: It is further clarified that the cities/towns which are outside Delhi and fall in the other states of NCR will not be treated as Delhi headquarter for the purpose of LTC.(0.0. No. PP/1533/2012 dated 06.12.2012).

(v) Hometown LTC can be availed either in the first or second sub-block of 2 years in the block of 4 years not practiced)

(vi) Railway deputations who are in CDA scales, getting reduced Passes/PTO from Railway organisation due to longer deputation in DMRC, are allowed reimbursement of one set of journey to the Hometown and back, in case of Non executives and anywhere in India to executives, for every year of deputation beyond three (03) years, as per their eligibility in Railways. The Railway deputation who have opted for IDA scales are not entitled for this facility. (0.0. No. PP/142/2002 dated 04.06.2002. PP/567/2006 dated 28.12.2006, PP/609/2007 dated 26.07.2007)

4.2.1 The block year for the purpose of LTC is the block year as defined in CCS (Leave Rules), 1988. The block year, henceforth in DMRC, will be uniform for all the employees and the four-year new block will be from 01.01.2014 - 31.12.2017, 01.01. 2018 - 31.12.2022, 01.01.2023-31.03.2025 and so on. (0.0. No. PP/1751/2014 dated 07.03.2014).

4.2.2 SPECIAL PROVISIONS TO VISIT NORTH EAST REGIONS(NER), JAMMU & KASHMIR (J&K), ANDAMAN & NICOBAR (A&N) AND LADAKH:

A. The relaxation to travel by Air to visit North East Region (NER), Jammu & Kashmir (J&K). Andaman & Nicobar (A&N) and Ladakh for DMRC employees is governed by DOPT guidelines. The current extension of the Special LTC is extended to DMRC employees w.c.f., 14.12.2022 for a period of two years, i.e, up to 25" September, 2024, vide this Office Order, dated: 14.12.2022.

Ref: This Office Order No. PP/3234/2022, dated: 14.12.2022

The DoPT vide O.M No. F. No. 31011/15/2022-Estt-A-IV. dated 11.10.2022, has extended the special provision for relaxation to travel by Air to the North East Region (NER), Jammu & Kashmir (J&K), Ladakh and Andaman & Nicobar (A&N) w.c.f., 26.09.2022, for a period of two years i.e., upto 25.09.2024. The above instructions of DoPT have been approved for implementation in DMRC also, with retrospective effect from 05.09.2022, for the period up to 25.09.2024, on the existing terms and conditions of DMRC.

The above special dispensation scheme shall be subject to the following terms & conditions:

(i) All eligible employees may avail LTC to visit any place in NER/A&N/J&K/Ladakh against the conversion of their one Home Town LTC in a four years block.

(ii) Employees, whose Home Town and Headquarters/place of posting are the same, are not allowed the conversion of any hometown LTC facility as they are not eligible for Home Town LTC facility.

(iii) Employees entitled to Travel by air (i.e. Executives of DMRC) may avail this concession from their headquarter in their entitled class of air, by any airlines.

(iv) Employees not entitled to travel by air (i.e. Non-Executives of DMRC), shall allowed to travel by Air in Economy class by any airlines, subject to the terms and conditions as defined in this Office Order, in the following sectors:

- a) Between Kolkata/ Guwahati and any place in NER.
- b) Between Kolkata/Chennai/Vishakhapatnam and Port Blair
- c) Between Delhi/ Amritsar and any place in J&K/Ladakh

Journey for the non-entitled employees from their Headquarters to Kolkata/Guwahati/Chennai/Visakhapatnam/Delhi/Amritsar, should be undertaken as per their entitlement.

(v) Air Travel by the employees to NER, J&K, Ladakh and A&N as mentioned in para (iii) & (iv) above, shall be allowed whether they avail the concession against 'Anywhere in (1 India LTC', or, in lieu of the 'Home Town LTC', as per special provision.

(vi) The booking of air tickets for the purpose of LTC, can be purchased either directly from the Airlines (Booking Counters/Websites), or, through the Authorized Travel Agents, viz, M/s Blamer Lawrie & Company Ltd. 'M/s Ashok Travels & Tours (ATT)' and 'IRCTC' only, as per the following conditions:-

a) Employee shall book the flight tickets on their entitled travel class at least 21 days prior to the intended date of travel on LTC, to avail the most competitive fares to minimize the burden on the organization.

b) Employees shall avoid unnecessary cancellations. In some cases of cancellation/ rescheduling, a refund fee may be applicable, which shall be borne by the employees unless the journey had to be rescheduled cancelled, due to the exigencies of work.

c) The LTC travel receipts submitted for availing LTC packages shall not be entertained, unless the fare break up of the travel segment, i.e, ticket for Air fare and Road transportation, is clearly indicated in the invoice/ bill through the Authorized Travel Agents.

d) Employees who are granted LTC advance, shall be required to submit the copies of the tickets within 10 days of drawal of advance. This will help in checking the date of commencement of journey; whether ticket has been booked directly from the airlines (Booking counters/Website) or through the Authorized Travel Agents. Any discrepancy noticed, can then be brought to the notice of the employee, so that he/she can take remedial action, if needed.

It is reiterated that the LTC advance should be settled immediately on completion of journey and on joining duty (within 30 days), failing which simple interest @10% per annum shall be charged till the unspent money is deposited back for the entire period, i.e., from the date of withdrawal of advance.

e) In such cases, wherein the Non-Executives employees do not travel as per their entitlement to visit places in North East/ A&N/J&K/Ladakh, under the special dispensation scheme, the LTC reimbursement shall be restricted as per their entitlement of Rail fare' up to the defined sector, i.e., Kolkata/Guwahati/Chennai/Vishakhapatnam/Amritsar and further reimbursement to travel by Air in Economy class by any airlines, to visit the places in the region i.e., North East/A&N/J&K/Ladakh, shall be as per the last available LTC 80 fare rates. (Ref. This Office order No.PP/3284/2023, dated: 01.05.2023)

f) Employees are allowed the conversion of one Home Town LTC for special LTC. The employees who have already availed Home Town LTC, may opt their All India LTC(other than home town) into two Home town LTCs and will be eligible for converting one Home Town LTC for special LTC.

B. The validity of availing the LTC facility shall be applicable as per extent order.

2. An eligible employee of the Corporation will be entitled to claim full reimbursement of the actual cost of travel, limited to total fare by the class of travel by Rail/Air, as shown below (O.O. No. PP/1987/2015 dated 22.05.2015):-

S. No.	IDA Payscale	Maximum Entitlement of Class
1.	16000-50000 20000-60000)	2 nd Sleeper Class
2.	25000-80000	1 Class/ AC 3 Tier except Rajdhani & Shatabdi
3.	35000-110000 37000-115000 40000-125000 46000-145000 50000-160000 (Non-Exe)	1 Class or AC 3 Tier Rajdhani-AC 3 Tier Shatabdi Chair Car By Road AC Bus
4.	50000-160000 60000-180000	AC 2 Tier Rajdhani-AC 3 Tier Shatabdi- Chair Car By Road- AC Bus
5.	70000-200000 80000-220000 90000-240000 100000-260000	1 st AC In Rajdhani- AC2 Tier In Shatabdi- Chair Car
6.	120000-280000 150000-300000	By Air(Domestic 'Y' class)
7.	M.D. & Directors	By Air (Domestic "Highest" Class)

4.3.1 For travel from residence to airport /railway station/Bus stand, both for outward and inward journey, the employee may claim reimbursement of actual expenses incurred by entitled mode of journey as on official duty, while, availing LTC for Home Town. In case of LTC availed for a place, other than Home Town, in a block of 4 years, Incidental Charges at the following rates will be admissible:

Incidental Charges

S.No.	Employee Category	Incidental Charges
	Non-supervisors	Rs. 3750/-
	Supervisors	Rs. 5250/-
	Executives, below HOD level	Rs. 6000/-
	Executives, HOD and above level	Rs. 9000/-

- Deputationists from Railways, given LTC in lieu of the loss of passes in the fourth year of deputation will not be entitled for the Incidental Charges.
- In case, an employee avails LTCs for Home Town in lieu of any other place (i.e All India) in a block of 4 year, he may claim incidental charges with Second Home Town LTC. The same will be paid by Finance Department with the 2nd Hometown in lieu of All India LTC, irrespective of claim by the employee.

4.3.2 Journey by Road: For journeys undertaken between places partly connected/not connected by Rail, reimbursement for such journey will be at the rate admissible as follows to visit any place in India, subject to the condition that the maximum amount shall not exceed the amount had the journey been performed by entitled class:

- Actual fare of travel by any type of Public Transport", or,
- At the prescribed rates of 'Mileage Allowance regulated as in case of journeys undertaken on transfer as per entitlement below, limited to 200 KMs to and fro, covered by the private/personal transport. The reimbursement will be made subject to certification by the employees concerned to the effect that the journey has been performed against the claim presented. Beyond that the expenditure shall be borne by the employees themselves.

Pay scale	Mode of entitlement	Applicable rates#
Rs. 120000-280000 and Taxi (ACY Car above but below TMM	Taxi (AC)/ Car	Base fare for Rs.25/- for 1 Km and onwards Rs. 16 per km for AC taxi/Car
Rs. 50000-160000 (Executive Taxi (Non-AC) Car grade) and above but less than Rs. 120000-280000	Taxi (Non-AC)/ Car	Base fare for Rs. 25/- for 1 Km and onwards Rs. 14 per km for AC taxi/ Car
Rs. 50000-160000 (non-Executive grade) and below	Three-wheeler/ Auto/ Bus	Base fare- Rs. 25/- for 1.5 Km and onwards Rs.9.5 per Km

Rates applicable as on date in case of transfer, as per the TA rules of DMRC.

*Public Transport- would be where a govt. servant travelling by road takes a seat or seats in a bus, van or other vehicle operated by the Tourism Development Corporations in the Public Sector, State Transport Corporations and Transport services run by other Government, or, local bodies, OR, their fares are regulated b these Authorities.

b) For the purpose of LTC reimbursement, the eligibility criteria such as considering of claims pertaining to dependent, entitlement etc., shall be reckoned as per the status on the date of journey.

4.3.3 For the journey performed by air or in other than his entitled class, one will be eligible for re-imbursement of LTC as per the eligibility in Rajdhani Express or eligible class for employees not eligible for Rajdhani.

4.3.4 Those employees who use own cars/taxi for availing LTC, are eligible for reimbursement subject to the limit of the fare by the entitled mode of transport or amount spent on such journey whichever is less, on certification by the employee concerned to the effect that journey has actually been performed against the LTC claim presented.

4.3.5 The re-imbursement of fare for the journey undertaken by sea for the places not connected by train shall be as per the scale shown at Annexure-1. (O.O. No. PP/609/2007 dated 26.03.2007):

S.No.	IDA Payscale/ Level	A&N Island and Lakshadweep Island(Shipping Corporation of India)	Others
Assistant Manager 50000-160000& Above		Deluxe Class	Highest class
37000-115000 40000-125000		First/'A' Cabin Class	If there be two classes only on the steamer, the lower class
46000 145000 50000-160000 (Non-Exe)		Second/'B' Cabin class	If there is two classes only the lower class If there be three classes, the middle or second class. If there be four classes, the third class.
35000-110000 25000-80000 16000-50000 20000-60000		Bunk Class	The lowest class

4.3.8 LTC facility on CCL: Employee is eligible for LTC.

4.3.9 LTC during Maternity Leave: The LTC can be availed during Maternity Leave/Paternity leave .

5. CARRY FORWARD OF LTC

The LTC, not availed in any particular block of two years, may be carried forward to and availed of before the expiry of the first year of the succeeding block years, as the case may be. Any further extension shall be granted by MD on merit of the case.

6. RESTRICTED CONCESSION

The above LTC will be restricted to one-way journey only when-

7.1 A dependent ward gets employment or a dependent daughter gets married after completion of the outward journey or remains at the outstation for studies, etc

7.2 When the family having completed the outward journey does not intend to complete the return journey.

7.3 The employee's newly married wife or a wife, who has been living away from the employee, travels to the headquarters station only on the return journey.

7.4 A dependent son/daughter travels to headquarters station from another place, where he has been studying or living with his relatives.

7.5. A child completes the fare-paying age only at the time of travel on the return journey.

7.6 A child adopted by the employee while on a visit to another station travels to the headquarters

7.7 When the employee and his family travel to hometown on his proceeding to LPR or terminal leave or within two months of retirement, provided the LTC is otherwise admissible.

8 COMBINATION OF LTC WITH TRANSFER OR TOUR

8.2 When an employee on a LTC visit to another station is transferred, he may avail of LTC from old headquarters to the place of visit and the facilities of transfer travelling allowance from that place to the new headquarters.

8.3 When an employee on tour at station 'A' is permitted to proceed on LTC to place 'B' he may avail of LTC from station 'A' to station 'B' and from station 'B' to headquarters.

8.4 When an employee who has proceeded on LTC to place 'A' is required to proceed on tour to place 'B' and return to headquarters from 'B', he may avail of LTC from headquarters to 'A' and TA on tour from 'A' to 'B' and 'B' to headquarters.

9 LTC TO VISIT HOMETOWN OUTSIDE INDIA

LTC is restricted for visits to places in India only. If, however, the hometown of an employee is located outside the country, the LTC will be limited to journeys to and from the Airport/Railway station nearest to the home town/port of embarkment in India (O.O. No. PP/734/2008 dated 03.05.2008)

10 LTC ADVANCE

10.1 An employee proposing to avail of LTC may draw an advance limited to 90% of the estimated final claim. The LTC Advance will be processed 60 days in advance of the date of outward journey. For this purpose, he shall submit an application through the Competent Authority. The HR will process the case in accordance with the rules.

10.2 Advance for both the outward and return journeys will be admissible only if the return journey is to be completed within 90 days.

10.3 The advance shall be returned in full by the employee forthwith if the outward journey is not commenced within 60 days of the drawal of the advance.

10.4 The LTC Advance are to be settled immediately on completion of journey and on joining duty (within 30 days), failing which simple interest @10% per annum will be charged till the unspent money is deposited back for entire period, i.e. from the date of drawal. (O.O. No.PP/1249/2011, dated: 13.06.2011).

10.5 LTC is being given as per the entitlement and LTC advance shall be booked as an expenditure on submission of bills. Therefore, the requirement of surety bonds for LTC advance stands deleted.

11 PROCEDURE FOR CLAIM OF LTC

The LTC Claim shall be made in LTC Claim against Application preferred in ESS along with the form placed at Annexure II within one month of the completion of the return journey. It shall be accompanied by proof of the journeys having been performed. The competent authority on being satisfied with the correctness of the claim will endorse it to the HR Department for verification and transmission to the Accounts Department for payment.

12. INTERPRETATIONS/RELAXATIONS/DELETION/MODIFICATION

In case of any doubt or dispute regarding interpretation of these Rules, the decision of Managing Director shall be final. He may also have the power to relax, delete, modify, revise etc. to any of the items of the provisions of these rules, found necessary in future, for reasons to be recorded in writing.
